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House of Representatives

The House met at 10 a.m. and was called to order by the Speaker pro tempore (Mr. CLINE).

DESIGNATION OF SPEAKER PRO TEMPORE

The SPEAKER pro tempore laid before the House the following communication from the Speaker:

WASHINGTON, DC,
September 19, 2023.

I hereby appoint the Honorable BEN CLINE to act as Speaker pro tempore on this day.

KEVIN MCCARTHY,
Speaker of the House of Representatives.

MORNING-HOUR DEBATE

The SPEAKER pro tempore. Pursuant to the order of the House of January 9, 2023, the Chair will now recognize Members from lists submitted by the majority and minority leaders for morning-hour debate.

The Chair will alternate recognition between the parties, with time equally allocated between the parties and each Member other than the majority and minority leaders and the minority whip limited to 5 minutes, but in no event shall debate continue beyond 11:50 a.m.

RECOGNIZING NEBRASKA MANUFACTURING MONTH

The SPEAKER pro tempore. The Chair recognizes the gentleman from Nebraska (Mr. FLOOD) for 5 minutes.

Mr. FLOOD. Mr. Speaker, today, I rise to honor manufacturers across the First District of Nebraska.

Manufacturing is Nebraska's largest industry. According to the National Association of Manufacturers, manufacturing accounts for 11.81 percent of the total output in Nebraska, employing 9.8 percent of our workforce.

Across the First District, these manufacturers are creating jobs. Nucor in Norfolk, Nebraska, produced 33.6 million tons of steel over the last 50 years. Plattsmouth is home to the first creatine manufacturer in the United States. Blazer Athletic fabricates sports equipment in Columbus. Kawasaki makes train cars in Lincoln that ship to Washington, D.C., and New York City. You should also know that Fremont is producing rotisserie chickens and other products for Costco stores across North America.

On behalf of the people of Nebraska's First Congressional District, I extend our sincere thanks to all the manufacturers that are helping make our communities a great place to live, work, and raise a family. Keep up the great work.

CONGRATULATING NORTHEAST COMMUNITY COLLEGE ON ITS 50TH ANNIVERSARY

Mr. FLOOD. Mr. Speaker, I rise today to honor Northeast Community College as they celebrate their 50th anniversary.

Our community college system plays a critical role in educating the next generation of Nebraska's workforce, and Northeast Community College is leading the way.

The college started with six buildings on its main campus on the edge of Norfolk in 1973. Today, it boasts campuses in South Sioux City, West Point, Norfolk, and O'Neill.

Under the leadership of President Leah Barrett, the college has been making moves. A $22 million investment at the Acklie Family College Farm is setting the college up to become a leader in veterinary technology.

In the spring, Northeast announced the launch of a new agriculture-diesel mechanic apprenticeship program. This fall, the college broke ground on a new facility in South Sioux City to add welding booths and a CDL training building.

On behalf of the people of Nebraska's First Congressional District, I extend our sincere congratulations to Northeast Community College on five great decades.

MARKING 90TH ANNIVERSARY OF COLUMBUS SALES PAVILION

Mr. FLOOD. Mr. Speaker, I rise today to honor the Columbus Sales Pavilion as they celebrate their 90th anniversary.

Founded by M.H. Vanburg in 1933, it is now owned by a fourth-generation family. In a day and age when people switch jobs frequently, the sales pavilion has a local and loyal workforce with some employees boasting over 30 years with their team.

Nebraska is the beef State, and sale barns like the Columbus Sales Pavilion are not only critical to our community, but they are also at the heart of our ag community.

I recently visited the Columbus Sales Pavilion during an auction. I can tell you that the sales pavilion is more than a market. It is a place of connection and community for producers across the area.

This doesn't happen by accident. It happens because the owners have made it their stated mission to make Columbus a better place.

On behalf of the people of Nebraska's First Congressional District, I extend our sincere congratulations to the Columbus Sales Pavilion on 90 great years.

CELEBRATING 100 YEARS OF MEMORIAL STADIUM

Mr. FLOOD. Mr. Speaker, I rise today to recognize one of the most iconic places in Nebraska: Memorial Stadium.

This fall, the Huskers are celebrating 100 years of the stadium. Through these gates pass the greatest fans in college football. That has been proven for the last century.

On game days, Memorial Stadium becomes the third largest city in Nebraska, with more than 90,000 fans gathering at every home game. Since 1962, we have sold out every single game. That is 390 consecutive sellouts.

Printed on recycled paper.

The love for Husker athletics was shown once again at Memorial Stadium just weeks ago when 92,003 fans attended a Husker volleyball match on Osborne Field, setting a world record for the most attended women's sporting event.

Some of the greatest college football coaches of all time have called plays at Memorial Stadium, like former Congressman Tom Osborne and Bob Devaney. This season begins with the Matt Rhule era, and he got his first win in the stadium last week.

Congratulations to the university. Go Big Red.

RECOGNIZING BELLEVUE WOMEN'S CLUB

Mr. FLOOD. Mr. Speaker, I rise today to wish the Bellevue Women's Club a happy anniversary as they approach 100 years in service.

In 1924, the Bellevue Women's Club began serving their community. By 1929, they were already taking on big projects like helping start the first Bellevue library and the city's first swimming pool.

Through their 100 years, this nonprofit has contributed their time and money to some of Sarpy County's most significant organizations and events, like the Arrows to Aerospace Parade, Habitat for Humanity, and the Ronald McDonald House.

Their club members' support for a wide array of organizations in Sarpy County is unmatched as they give back through the senior community center, Books for Babies, and the Bellevue Food Pantry. The scope of their work through the years is very impressive.

On behalf of Nebraska's First Congressional District, congratulations to the Bellevue Women's Club on their first century, and here is to the next.

ENCOURAGING MEXICO'S COMPLIANCE WITH WATER TREATY

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from Texas (Ms. DE LA CRUZ) for 5 minutes.

Ms. DE LA CRUZ. Mr. Speaker, I stand before you today to address a critical issue that is affecting the livelihoods of countless Americans across south Texas. The drought conditions and water scarcity we are witnessing in the Rio Grande Valley are causing untold hardships for our farmers and our residents.

As stipulated in the Mexican Water Treaty of 1944, Mexico is obligated to provide the United States with an average of 350,000 acre-feet of water annually over a 5-year cycle. Unfortunately, Mexico has consistently delayed fulfilling this commitment, leaving American farmers in dire straits.

This year, south Texas farmers are poised to plant their crops, but they need water now. Without it, they face the prospect of harvesting only half of what they would yield in a typical year.

This has far-reaching consequences, impacting our national food supply, increasing food costs for families, and heightening our dependency on foreign agriculture.

Moreover, communities in south Texas are now facing water restrictions, exacerbating the strain on families and businesses alike.

The Mexican Government bears a responsibility to honor the terms of this treaty. American farmers and ranchers should not bear the burden of Mexico's failure to uphold its end of the bargain.

I implore the Biden administration to take immediate action and hold Mexico accountable. Failure to convene official meetings addressing this issue will result in catastrophic consequences for south Texas farmers.

Just last week, I had the privilege of introducing a bipartisan House resolution aimed at bolstering diplomatic relations to encourage Mexico's compliance with the Mexican Water Treaty of 1944. This historic resolution underscores our support for negotiations that ensure more predictable water deliveries to the United States, and it urges new commitments to guarantee at least 350,000 acre-feet of water are delivered annually.

I extend my deepest gratitude to my colleagues from both sides of the aisle who have cosponsored this crucial resolution.

I also thank all the local officials from my community who have been working closely with me on this matter.

Together, we are sending a powerful message: Clean water is not a partisan issue. This is an American issue.

Through collaboration and diplomatic engagement, we can forge a framework for responsible water management that benefits both of our great Nations.

Let us stand united in ensuring that the promises of the Mexican Water Treaty of 1944 are not just ink on paper but a lifeline for the American farmers who feed our Nation.

CELEBRATING 150TH ANNIVERSARY OF BENNETT COLLEGE

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from North Carolina (Ms. MANNING) for 5 minutes.

Ms. MANNING. Mr. Speaker, I rise today to celebrate the 150th anniversary of Bennett College, which I have the privilege of representing in Congress.

In 1873, Bennett got its start as a school for elementary and secondary students in the basement of Warnersville Methodist Episcopal Church.

Now, Bennett College, located in Greensboro, North Carolina, stands as one of only two all-women's HBCUs in the Nation.

In the 150 years since its founding, Bennett College and its alumni have made history. Bennett played a pivotal role in the civil rights movement in North Carolina. Before Dr. Martin Luther King, Jr., gave his famous March on Washington speech, he traveled to Greensboro, North Carolina, in February 1958. There, he was met with an overflowing crowd of young women, the Bennett Belles, at the Annie Merner Pfeiffer Chapel on Bennett's campus.

This speech, Martin Luther King, Jr.'s first speech ever given in Greensboro, had a lasting impact on the entire Triad community.

Mr. Speaker, 2 years after his speech on Bennett's campus, Bennett Belles participated in the famous Woolworth counter sit-in, the demonstration that ignited a movement of sit-ins for racial equality across the South and across the country and changed the entire course of American history.

In the years since then, Bennett's alumni have continued to make history.

Bennett had the first Black woman president of a 4-year college in the United States, Dr. Willa B. Player.

Former Bennett College President Johnnetta Cole went on to lead the Smithsonian Institution's National Museum of African Art.

Maidie Ruth Gamble Norman was an early Hollywood film star in the 1930s.

Dr. Dorothy Brown was the first woman to practice general surgery in the South in the 1940s.

Carolyn Robertson Payton led the Peace Corps under President Jimmy Carter.

Marian Tasco was Pennsylvania's first Black county commissioner.

Many more Bennett Belles have broken down barriers and have been the first to accomplish amazing feats. Today, Bennett continues to educate young minds and produce changemakers.

Bennett has been an influential institution in our Nation's history, as well as a pillar of outstanding education in Greensboro, North Carolina.

Congratulations to the Bennett Belles on 150 years of excellence.

HONORING BASIS ORO VALLEY SCHOOL

The SPEAKER pro tempore. The Chair recognizes the gentleman from Arizona (Mr. CISCOMANI) for 5 minutes.

Mr. CISCOMANI. Mr. Speaker, I rise today in honor of BASIS Oro Valley, a school in my district that has been included in U.S. News & World Report's 2023 Best Public High Schools, securing the 21st position.

This accomplishment is a testament to the hard work and dedication of our students, educators, and the entire school community.

BASIS Oro Valley prides themselves on their award-winning STEM curriculum and liberal arts program to help children pursue their dreams.

From advanced AP courses to high-level music classes, this school has something for everyone.

□ 1015

The average ACT score for BASIS Oro Valley students is a 32 and the average SAT score is 1368. This is one of

the best high schools in the country and it is located right in Arizona-06, my district.

This school, which has only been around since 2010, has made a huge impact on our community. I am so proud of the teachers who make this a great experience for the kids and the kids that push themselves to be better every single day.

I am proud to represent this outstanding school in Congress and to recognize the BASIS Oro Valley school here today.

CONGRATULATING PRESIDENT CHRIS BAILEY ON HIS RETIREMENT

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from Washington (Ms. PEREZ) for 5 minutes.

Ms. PEREZ. Mr. Speaker, today, I rise to thank president Chris Bailey, who is retiring after dedicating 12 years to Lower Columbia College. Throughout his tenure, he diligently served students, staff, and the community, transforming Lower Community College into a vital educational hub in the region.

As a testament to Chris' leadership, Lower Columbia College developed the Lower Columbia Regional Center, enabling folks to work and access higher education pathways. Chris was pivotal in introducing the college's first two bachelor of applied science degrees, as well as a vocational skills center, reflecting his commitment to expanding career opportunities for those at the college.

We have been lucky to have a leader like Chris at Lower Columbia College. Mr. Speaker, I thank Chris for his dedication and wish him all the best in a well-deserved retirement.

RECOGNIZING MALLONEE FARMS

Ms. PEREZ. Mr. Speaker, I rise today to recognize Mallonee Farms, a family-owned dairy farm in my district. A few weeks ago, I was able to visit the farm in Curtis, Washington, where I met the farm's owner, Maynard Mallonee. Maynard is a third-generation dairy farmer and a member of the Organic Valley co-op.

During my visit, I toured their farm, saw their new robotic milkers, and heard how Congress can support small, organic farms. Maynard is passionate about working for something bigger than himself. He works to be a good steward of his land, and he is already taking steps with his son, Jack, to ensure that the family farm continues for generations to come.

Everyone at Mallonee Farms is fighting hard for their farm, and I am grateful to be in this fight with them. My focus is to ensure that Federal policy supports small, family farms like theirs.

COWLITZ COMPLEX FIRES IN GIFFORD PINCHOT NATIONAL FOREST

Ms. PEREZ. Mr. Speaker, I rise today to address the Cowlitz Complex fires in the Gifford Pinchot National Forest. Thirty fires might sound like a bad movie plot, but with 695 acres in flames and 342 hardworking folks trying to keep it all under control, it is the reality of our community.

To the diligent task forces—the California Incident Management Team 13 and Rocky Mountain Incident Management Team 2—patrolling and monitoring the fires, especially around Pothole, Jackpot, and the Adams Fork regions—your steadfastness does not go unnoticed.

We are thankful that potential threats, like the heat near Pothole, turned out to be benign. The task forces' preemptive actions are the backbone of our community's safety.

Mr. Speaker, I thank the folks working these fires. Their tireless efforts protect our homes, our forests, and our future. Their commitment to contain these forests showcases the resilience of our community.

HONORING A DEDICATED PUBLIC SERVANT, SERGEANT RICHARD KELLY

Ms. PEREZ. Mr. Speaker, I rise today to pay tribute to a dedicated public servant and cherished member of our community, Sergeant Richard Kelly.

On August 10, we lost Sergeant Kelly unexpectedly due to a medical emergency while in the line of duty. He was only 54.

Sergeant Kelly's commitment to safeguarding our community was unwavering. He served the Battle Ground Police Department since 2005, where he ultimately rose to the rank of sergeant in 2019.

Not only was he an officer of the law, he was a husband, father, brother, and a pillar of our community. He was respected and loved by all who had the privilege of knowing him.

I personally recall his attentive presence at my Battle Ground townhall, a testament to his deep sense of duty and connection to the people that he served. His loss leaves a void in our community and in the hearts of all who knew him.

Today, I ask my colleagues to join me in honoring the life and service of Sergeant Richard Kelly. Our thoughts and prayers are with his family, his colleagues, and the entire Battle Ground community during this time. May his dedication serve as a lasting inspiration to us all.

REMEMBERING AND HONORING CORPORAL ZACHARY ''ZAC'' CLAYTON MERRILL

Ms. PEREZ. Mr. Speaker, I rise today to remember and honor Corporal Zachary ''Zac'' Clayton Merrill, who passed away on August 20.

After graduating from college, Zac joined the Army, distinguishing himself as captain of the 82nd Airborne and leading an explosive ordnance team in Afghanistan.

His commitment and valor earned him the Bronze Star, among other commendations. After the Army, Zac's call to service led him to the Vancouver Police Department, where he became an integral member of the crisis negotiation team and was eventually named unit leader. However, beyond the badges and commendations, Zac was a loving husband, son, brother, and uncle.

He also had a profound bond with his grandfather, Stanley Merrill, also a Korean war veteran, which speaks volumes about his deep roots in service and sacrifice.

Corporal Merrill's legacy of service, both on the battlefield and on our streets, will forever inspire and remind us of the sacrifices made by those who choose to serve.

Mr. Speaker, I send my deepest condolences to his family, friends, and all who had the privilege of knowing him.

RECOGNIZING DR. THOMAS J. WALTERS

The SPEAKER pro tempore. The Chair recognizes the gentleman from Georgia (Mr. CARTER) for 5 minutes.

Mr. CARTER of Georgia. Mr. Speaker, I rise today to recognize the director of the Federal Law Enforcement Training Centers, Dr. Thomas J. Walters, for his 44 years of service to the United States.

Director Walters oversaw the training and management program for new law enforcement officers across the country, including those at the Glynco, Georgia, campus in my district.

Mr. Walters dedicated his entire four-decade career to defending our national security, serving as a Border Patrol agent, and in various leadership positions. He embodies both patriotism and leadership, and the next generation of officers is undoubtedly grateful for his expertise and the example he set. Director Walters emphasized that serving as the FLETC director was an honor and a career highlight.

I know I speak for the whole First District when I say we appreciate his dedication to law enforcement and his service to others. I welcome the new FLETC director, Benjamine ''Carry'' Huffman, and I wish him the best of luck.

REMEMBERING LIEUTENANT COLONEL DAVID LEONARD SHARPE

Mr. CARTER of Georgia. Mr. Speaker, I rise today in remembrance of Lieutenant Colonel David Leonard Sharpe. At the age of 81, he leaves behind a legacy of bravery, leadership, and selflessness. In 1966, he graduated from the U.S. Army Ranger School and became the first Army Ranger in the Georgia National Guard. He served in the U.S. Army Reserves in the Georgia National Guard for 41 years, from 1960 to 2001.

We remember him not only for his military accomplishments, but also for his dedication to his community. He excelled as a mechanical drawing teacher at Glynn Academy high school in Brunswick. In the summers, he worked on commercial and residential planning.

I know Mr. Sharpe's legacy will live on in the positive impact he had on his

community, and I extend my deepest condolences to his family.

CONGRATULATING DALE GREENE ON HIS RETIREMENT

Mr. CARTER of Georgia. Mr. Speaker, I rise today to celebrate the University of Georgia's Forestry and Natural Resources dean, Dale Greene, for his decades of accomplishments before he retires at the end of the year.

Greene has consistently displayed his passion for his students and teaching throughout his time working at UGA, and he has been a key factor in the success of many young leaders. Greene joined the University of Georgia in 1986, and since then has won several awards, including but not limited to, the Herrick Award for Superior Teaching, the Wise Owl Award, the Silver Beaver Award from the Georgia Boy Scouts of America, and the Billy Hudson Distinguished Citizen Award.

Greene was also inducted into the Georgia Foresters Hall of Fame in 2007 for his efforts in expanding research and funding to his university. I am proud to commemorate such a hard-working individual that has aided in so many Georgians' postgraduate successes in agriculture.

CONGRATULATING THE CRAB SHACK

Mr. CARTER of Georgia. Mr. Speaker, I rise today to congratulate The Crab Shack for being named one of the best seafood restaurants in the United States by the Food Network.

On the charming Tybee Island of Georgia sits The Crab Shack, known for its outstanding fresh seafood, river views on the marsh of Chimney Creek, and extensive choice of in-house events.

This unique restaurant is a perfect spot for vacationing families with a wide range of food options, activities, and incredible southern hospitality service. Savannah locals, Jack and Belinda Flanigan, developed The Crab Shack from nothing more than a few tables and some friends, and since then it has developed into an iconic river spot for all to enjoy.

An alligator enclosure on the property's outer boundaries attracts numerous people who come to feed the young gators.

I am proud to celebrate the accomplishments of this local restaurant, which brings many visitors to the beautiful islands of Georgia.

COMMEMORATING 50 YEARS SINCE THE COUP IN CHILE

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from California (Ms. PELOSI) for 5 minutes.

Ms. PELOSI. Mr. Speaker, this month we observe the 50th anniversary of the coup in Chile. It is important to note the role that the House played in declassifying documents relating to the United States' role in the coup of Allende and the Presidency of Pinochet.

I rise to pay tribute to our former colleague, Maurice Hinchey, who in 1999 introduced legislation to declassify documents related to the coup in Chile. Following his leadership, I took his legislation to the House Intelligence Committee conference.

In our markup of the conference report of the Intelligence Authorization Act for fiscal year 2000, I was successful in getting an amendment passed in committee that mirrored the Hinchey legislation. This language was sustained on the floor and when the FY 2000 Intelligence bill was signed by President Clinton, it became law.

The legislation stated that no longer than 270 days following enactment—we wanted a shorter period of time, they wanted a longer period of time. This was the compromise—270 days following the enactment, the CIA had to submit a report on all of its activities in various events in Chile in three categories: the assassination of President Salvador Allende; the ascension of Pinochet to the Presidency; and the violation of human rights committed by the henchman of President Pinochet.

In 2001, therefore, the CIA prepared 16,000 documents for declassification. Since then, thousands more documents—maybe up around 23,000 documents—have been declassified.

During the debate on the FY 2000 legislation, it was argued that the search for documents related to human rights violations in Chile—now, we are talking about murder, disappearances, imprisonment, torture; that is what we are talking about—directed by the National Security Council was sufficient. They said we did that. It is sufficient. They said nothing further was needed and raised the question of how much money will this cost and how much time will it take for the Director of Central Intelligence to produce an adequate report.

However, Maurice Hinchey argued, in these words: ''It is time that the Central Intelligence Agency accounted for its role in the military coup that toppled the democratically elected government of Salvador Allende and led to his death. The American people need to know how our government supported the rise of Augusto Pinochet, a ruthless dictator who systematically murdered and tortured his enemies.''

In May 2016, I had the privilege of leading a strongly bipartisan congressional delegation to Chile. When we visited the Museum of Memory and Human Rights—and I would recommend that if you get to Chile you certainly see that—it was emotional and gratifying for some of us to see the documents that we had declassified under Maurice Hinchey's leadership helping bring the truth to light.

To this day in Chile there is still great sadness about the loss of life and other crimes against humanity perpetrated by Pinochet's henchman. Last week was the 50th anniversary, and at the observance—an event marking 50 years since the coup—President Gabriel Boric spoke eloquently about the importance of reconciliation and democracy. Democracy—he said it again and again. Thankfully, the President had also called for a plan to find the nearly 1,500 people who are still missing or unaccounted for, for their families.

It is my hope that this spirit will lead to more revelations and accountability.

As we mark 50 years since the coup, I salute the leadership of Maurice Hinchey. He was a champion of justice; not only in Chile but in Argentina and in other countries suffering under similar despotic regimes, including those affected by Operation Condor.

Operation Condor was how all these vicious dictators coordinated their activities. Maurice Hinchey saw the connection and coordination among the dictatorships in the death and violence in their countries, and in relentlessly speaking out against it, he made a difference.

His family is still active in the civic life of New York State. He passed away on November 22, 2017, but his leadership in the fight for truth and justice continues to be an inspiration to us all.

□ 1030

RURAL HEALTHCARE

The SPEAKER pro tempore. The Chair recognizes the gentleman from Pennsylvania (Mr. THOMPSON) for 5 minutes.

Mr. THOMPSON of Pennsylvania. Mr. Speaker, before I was elected to serve in the House of Representatives, I spent nearly 30 years in the nonprofit healthcare field assisting those facing life-changing diseases and disabilities with therapists, rehabilitation service managers, and a licensed nursing home administrator.

I am acutely aware of the challenges many face when it comes to obtaining reasonably priced healthcare. It is especially critical for rural America, like much of the 15th Congressional District of Pennsylvania that I am honored to serve.

As the Member of Congress representing nearly one-third of the land mass of Pennsylvania, one of the most rural districts east of the Mississippi, I am keenly aware of the problems that my constituents face when accessing medical services.

We are facing a healthcare crisis in our Nation's rural areas. These often disadvantaged populations are still struggling to access affordable, quality care. Many remain uninsured. Most are underinsured. However, access to quality care remains the largest challenge.

Even when people gain access to health insurance, it doesn't mean equal access to care. Rural hospitals across the country are closing, leaving patients without access to emergency rooms and long-term care facilities.

In addition to hospital closures, a workforce shortage plagues rural America. The patient-to-primary care

physician ratio in rural areas is only 39.8 physicians per 100,000 people compared to 53.3 physicians per 100,000 in urban areas. Recruitment and retention of experienced professionals, including primary care physicians, is an ongoing challenge.

Furthermore, the opioid epidemic that is sweeping the Nation has ravaged our rural communities, leaving even more of the population in need of crucial health services.

Adolescents and young adults living in rural areas are more vulnerable to opioid abuse than their urban counterparts. The prevalence of fatal drug overdoses has skyrocketed in rural areas. High unemployment and a greater rate of types of injuries that result in prescriptions for opioid medications have contributed to this.

On March 5, 2010, Congress passed sweeping legislation—the Affordable Care Act—which fundamentally realigned our Nation's healthcare system. Since passage of this bill, my worst nightmares have become a reality, as the law's interpretation continues to drive up costs, saddle small businesses with burdensome regulations, and impose unfunded mandates on people throughout the Commonwealth by shifting costs from the Federal Government to the States.

Unfortunately, what we have also seen since the passage of this law is the consolidation of providers in the healthcare industry. Small and independent providers were unable to bear the burden of the ACA's various mandates, and many of them were forced to merge with larger health systems that have dramatically consolidated care over the last decade.

Luckily, Congress has been able to repeal key components of this bill since it was first enacted, including the individual mandate. Additionally, as we emerge from the COVID–19 pandemic that uniquely strained rural healthcare systems in Pennsylvania and across the country, we must always look for ways to stabilize and recover from what has been a turbulent few years. Moving forward, we must provide commonsense reforms that improve our Nation's healthcare system and access across the country, including those in rural America.

One of the best ways to do this is by promoting access to telehealth. As part of the National Telehealth Awareness Week, this week I plan to reintroduce the HEALTH Act, which allows community health centers and rural health clinics to continue to provide telehealth services and receive fair reimbursement for doing so. It is these types of policies that promote access to care for all Americans, and I look forward to working with my colleagues to fix our flawed healthcare system.

Currently, healthcare costs have gone up, premiums have increased by double digits, but choices have decreased. That is not right. It is not fair, and it is not feasible. There must be a better way, and I know that together we will work to find a stable transition to a 21st century healthcare system that works for everyone in America, particularly those who live in rural regions where the need is great and services are scarce.

HONORING LISA ECK

The SPEAKER pro tempore (Mr. LANGWORTHY). The Chair recognizes the gentleman from California (Mr. KILEY) for 5 minutes.

Mr. KILEY. Mr. Speaker, I am taking a moment to recognize a cheerful, spirited, and vibrant community member residing in my district, Ms. Lisa Eck, for her 40 years of public service at the downtown Roseville library.

Ms. Eck embarked on her journey as a young teen, starting at the library as a quotidian shelver in 1983. In her tenure, she has become one of the most beloved librarians in our region.

She is well known for her ability to captivate the magic of childhood through her lively readings. Dressing in full costume and performing books theatrically are just some of the ways that she captures the attention and adoration of Roseville children and residents.

Ms. Eck's determination and dedication to bringing these stories to life knows no bounds, and her unique approach makes her storytime sessions a cherished tradition. Her special touch reaches all generations, as she has marked the lives of tens of thousands of people over the years.

Ms. Eck has an unfaltering commitment to promoting literacy and educational opportunities for our local youth, and her efforts have made an indelible impact in our communities.

As a former English teacher, I understand the importance of developing a love for reading in students and value the efforts of those like Ms. Eck to foster that passion through her creative and innovative storytelling abilities.

Therefore, on behalf of the United States House of Representatives, I am pleased to join the Roseville community in celebrating and recognizing Ms. Lisa Eck for her four decades of leadership as a librarian and her continued commitment to inspiring children and adults alike with a desire for knowledge and learning.

CELEBRATING VIRGINIA LAKES RESORT 100TH ANNIVERSARY

Mr. KILEY. Mr. Speaker, I am taking a moment to recognize the centennial anniversary of a special business in my district, the Virginia Lakes Resort in the heart of the High Sierra, located in Mono County, California.

In 1923, Walter Foster and Charles Foster signed an agreement with the Forestry Department to build a fish camp at Virginia Lakes. After the first year of operation, Walter Foster and his wife, Anita, became the sole owners and operated the business for 30 years.

They quickly found success, as within the first 5 years of the business they built several cabins that housed guests such as Hollywood stars Fred MacMurray, Betty White, and Lon Cheney. They are also known for hosting the 1938 USC football team for training before the team went on to win a national championship.

The resort had a few different owners, such as the Coopers and Bill Newman, before the current owners, John and Carolyn Webb, began their journey in 1974. The Webbs will celebrate their 50-year anniversary as owners next year and are well known by others for their commitment to community engagement and dedication to providing an exceptional experience for their visitors.

Today, the Virginia Lakes Resort offers key amenities such as rental cabins, boat rentals, tackle shop, and a cafe. Visitors enjoy the stunning scenery of the Sierra Nevadas while participating in a variety of recreational activities at the resort, such as camping, fishing, and hiking.

Therefore, on behalf of the United States House of Representatives, I am honored to recognize the Virginia Lakes Resort for their 100-year anniversary and commend them for their significant contributions throughout the years to their community and the local economy.

THANKING JAIME ROBLES

Mr. KILEY. Mr. Speaker, I recognize an exemplary individual who interned in my district office this summer.

Jaime Robles ensured that people's voices were heard, by taking down their concerns and sharing them with me. He even helped people renew their passport and access the services and benefits they are entitled to receive from the Federal Government.

Jaime is a recent graduate of Sierra College in Rocklin and will be attending UC Berkeley in the spring to major in economics. He served as vice president and student senator of the Sierra College Student Senate, vice president of student engagement for the social science club, and is a Phi Theta Kappa honor society member. Jaime is also bilingual, and I have repeatedly been impressed with his ability to utilize that skill and serve our Spanish-speaking constituents.

Mr. Speaker, Jaime has been a pleasure to have in my office and, like all our interns, has been a tremendous help to me and my team in serving the people of the Third Congressional District of California. I am incredibly grateful that he chose to invest his time and talents with us.

On behalf of the United States House of Representatives, I thank Jaime for his commitment to public service.

CONDEMNING THE ACTIONS OF NEW MEXICO GOVERNOR MICHELLE LUJAN GRISHAM

The SPEAKER pro tempore. The Chair recognizes the gentleman from Virginia (Mr. CLINE) for 5 minutes.

Mr. CLINE. Mr. Speaker, once again, the members of the far left are disregarding this document, the United

States Constitution, in order to undermine Americans' right to keep and bear arms.

Just a few weeks ago, New Mexico Governor Lujan Grisham issued an executive order suspending the right to carry firearms in public across Albuquerque and Bernalillo Counties for at least 30 days and fining those who don't comply.

This political power grab is a blatant attack on the Second Amendment and should infuriate every American. It sets a dangerous precedent for the rights of law-abiding Americans and threatens the very freedoms we hold so dear. We cannot allow it to go ignored.

That is why I urge my colleagues to join me in support of the resolution condemning the actions of Governor Lujan Grisham for attempting to deprive the citizens of New Mexico of their right to bear arms.

The people of this great country understand that the House Republican majority will always fight for their Second Amendment rights and uphold the Constitution.

CONGRATULATING THE CLARKE COUNTY HIGH SCHOOL WOMEN'S SOCCER TEAM

Mr. CLINE. Mr. Speaker, I rise to recognize the Clarke County High School women's soccer team for winning the Class 2 State title, the program's second State championship in 3 years.

After working hard all season, the Eagles left it all on the field and defeated the Central of Wise County Warriors by a score of 7–0.

These talented student athletes include Avery and Sidney Shinabery, Danyelle Franz, Makenna Jarvis, Kelsey Elrod, Ivana Betancourth, Heather Cartagena, Bailey Mayo, Olivia Morise, Summer and Madison Toone, Audrey Price, Campbell Neiman, Morgan Walker, Ella O'Donnell, Lilly Suling, Tatiana Garcia, Kyleigh Goforth, Leah Mitchell, Krysna Miranda, and Noelle Whalen.

Throughout the final game, the team overcame challenges, displayed superior skill, and dominated possession of the ball.

This was Coach Ray Hawkins' first year as head coach; and under his leadership, the coaches, players, and staff built up their confidence to achieve their goals, and they did just that.

Congratulations, again, to the Clarke County High School women's soccer team on this incredible achievement.

RECOGNIZING MARTHA'S MEALS ON WHEELS

Mr. CLINE. Mr. Speaker, I rise to recognize Martha's Meals on Wheels in Staunton, Virginia, for 50 years of service to our local community.

In 1973, Minister Jo Lotz of the Emmanuel Episcopal Church and Martha Wilkerson began preparing meals in the church for those in need for Staunton residents, and their efforts eventually became Martha's Meals on Wheels.

Five decades later, Martha's Meals on Wheels has gone from serving 20 people 5 days a week to now 30 to 35 people per day within the city limits with the help of Armstrong's Restaurant in Verona, which has been preparing the meals for 20 years.

In 2019, the program fed 4,900 people, and last year fed 7,700 people. With 60 to 80 dedicated volunteers today, the program is expected to feed 7,800 people this year.

Martha's Meals on Wheels' longevity stands as a testament to the civic spirit of the town and an example we should all follow: to always lend a helping hand to others.

I thank Martha's Meals on Wheels and the volunteers for their selfless service and wish them many years of success to come.

RECESS

The SPEAKER pro tempore. Pursuant to clause 12(a) of rule I, the Chair declares the House in recess until noon today.

Accordingly (at 10 o'clock and 43 minutes a.m.), the House stood in recess.

□ 1200

AFTER RECESS

The recess having expired, the House was called to order by the Speaker at noon.

PRAYER

The Chaplain, the Reverend Margaret Grun Kibben, offered the following prayer:

Lord, on this day, grant us Your wisdom, for who is wise and understanding among us? But Your wisdom is pure, peaceable, gentle, willing to yield, and full of mercy.

Enable us to show that in living a good life, free of envy and ambition, boastfulness or falsehood, all that we do in the course of our day is born of Your wisdom.

And in our discourse with one another, teach us to show love. May we harbor no hate in our hearts. May we not reprove our neighbor, lest we ourselves be found wanting. May we not take vengeance or bear a grudge, but instead, love our neighbor as we love ourselves.

In fact, may the love we first received from You abound more and more. Remind us that You call us to offer this love to one another in knowledge and discernment so that we may perceive what is best in our service to You and to this country.

May You be glorified as we offer this day and our prayers to You.

Amen.

THE JOURNAL

The SPEAKER. The Chair has examined the Journal of the last day's proceedings and announces to the House the approval thereof.

Pursuant to clause 1 of rule I, the Journal stands approved.

PLEDGE OF ALLEGIANCE

The SPEAKER. Will the gentleman from Massachusetts (Mr. MCGOVERN) come forward and lead the House in the Pledge of Allegiance.

Mr. MCGOVERN led the Pledge of Allegiance as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

ANNOUNCEMENT BY THE SPEAKER

The SPEAKER. The Chair will entertain up to 15 requests for 1-minute speeches on each side of the aisle.

DICTATORS OR DEMOCRACIES

(Mr. WILSON of South Carolina asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. WILSON of South Carolina. Mr. Speaker, sadly, the world is in a conflict we did not choose, between dictators with rule of gun opposing democracies with rule of law.

War criminal Putin began the current murderous conflict invading Ukraine in February 2022, shocked to find that the Ukrainians courageously resisted. President Donald Trump provided Javelin missiles and tried to deter Putin with troops in Poland.

Today, the West is united, with Sweden and Finland joining NATO, as the European Union surpasses American aid for Ukraine. Simultaneously, the Chinese Communist Party denies Taiwan's existence and the regime in Tehran continues nuclear missile development to achieve death to Israel, death to America.

Fellow dictators clearly see the conflict as dictator or democracy as North Korean Kim Jong-un joins Putin. Supporters of democracy must remain united as there is no third side to achieve peace through strength. The choice is clear: Dictators or democracy.

In conclusion, God bless our troops who successfully protected America for 20 years as the global war on terrorism continues, moving from the Afghanistan safe haven to America with Biden's open borders.

ELEVEN DAYS AWAY FROM A GOVERNMENT SHUTDOWN

(Mr. MCGOVERN asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. MCGOVERN. Mr. Speaker, we are 11 days—11 days—away from a government shutdown and the rightwing of the Republican Party is busy fighting with the far rightwing. The sham plan Republicans have cobbled together this week gets us nowhere closer to funding the government. It goes back on the bipartisan deal struck earlier this year and is dead on arrival in the Senate,

and it shows where Republican priorities are.

By imposing draconian cuts on domestic programs, their sham CR means massive cuts to programs for people living in poverty and everything from housing support to heating assistance to WIC benefits.

Make no mistake: If we don't reject these cuts and if we don't fully fund the Biden administration's $1.4 billion supplemental WIC request, eligible low-income people, primarily toddlers, preschoolers, and postpartum moms could be turned away from food. I can't for the life of me think of a more rotten thing to do.

Pregnant moms and their young families are counting on you, so let's drop the theatrics, come together, fully fund WIC, and work toward ending hunger now.

RECOGNIZING KAREN L. KRISCH

(Mr. THOMPSON of Pennsylvania asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. THOMPSON of Pennsylvania. Mr. Speaker, I rise today to recognize Karen L. Krisch of Centre County for being named the 2023 National Distinguished Principal of the Year.

An educator for 29 years, Principal Krisch has served in her current role as principal at Marion-Walker Elementary School in the Bellefonte Area School District since 2017. Previously, she was principal at Bellefonte Area Elementary School, principal and vice principal at the Bellefonte Area Middle School, and an assistant administrator for the Bald Eagle Area School District. She also taught vocational education at the secondary level for 6 years, specifically to high-poverty students.

Principal Krisch encourages the staff and teachers at her school to expand opportunities for students resulting in excellent representation at the annual reading competition, participation in Bellefonte READS, and raising nearly $10,000 per year for the Four Diamond Fund through the school's minithon.

Outside of the classroom, Karen participates in a polar plunge each year to raise funds for the YMCA antihunger program and she is a Pennsylvania Master Naturalist volunteering frequently for conservation and State park programs.

Mr. Speaker, I congratulate Principal Krisch on this tremendous achievement.

FIGHTING FOR OUR VETERANS' HEALTHCARE

(Mr. HARDER of California asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. HARDER of California. Mr. Speaker, I stand here today beyond frustrated by the crisis in veterans' healthcare in my community. Right now, we have just four physicians and only two mental health clinicians trying to provide care for over 27,000 veterans in San Joaquin County.

Veterans are waiting up to 90 days to even speak to a doctor or get something as simple as a prescription refilled. That is the longest wait time in the State of California and, frankly, it is a disgrace. One of our veterans recently had to have his leg amputated because he couldn't see a doctor to get his diabetes medication refilled. That is unacceptable.

I know our local VA staff are doing everything they can, but right now we need Secretary McDonough to step in and help. We need more doctors, and we need them now. I have petitions right here in my hand from veterans across our community begging for a response and an action plan from the Secretary and the VA. We need answers.

These brave men and women fought and sacrificed for our country, the last thing they need to do is fight for their healthcare right now. It is time to fix this.

STILLBIRTH PREVENTION

(Mrs. HINSON asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Mrs. HINSON. Mr. Speaker, I rise today in support of my bipartisan bill to recognize today as National Stillbirth Prevention Day. There are 21,000 babies stillborn in the U.S. each year, and the way I see it, that is 21,000 too many.

One in four stillbirths are preventable. Every baby lost to stillbirth is a heartbreak that we can prevent, but amidst this grief, there is hope. I am humbled to be joined today by women who have endured stillbirths. These women are some of the strongest people I have ever met. Out of their pain, they have found a purpose: preventing stillbirth and ensuring expecting moms have healthy pregnancies and healthy babies.

The stillbirth rate in the U.S. is unacceptably high. By leveraging Federal resources for evidence-based care, research, and education, we will save lives and save babies. We can and we must do more for moms and their babies, and together we can end the tragedy of stillbirth.

HISPANIC HERITAGE MONTH

(Ms. SALINAS asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. SALINAS. Mr. Speaker, as a proud Latina and the daughter of a Mexican immigrant, I rise in honor of Hispanic Heritage Month.

September 15 kicked off a month of recognition, celebration, and reflection. We recognize the struggles and contributions of our community. We celebrate our ancestry and rich cultures, and we reflect on the sacrifices Latinos have made throughout history.

Oregon's Sixth District is home to a thriving Latino community. Each year, more Latinos are starting businesses, raising families, and putting down roots in our State, however, as our community grows, so does our need for representation. I am honored to be one of the first Latinas to represent Oregon in Congress, but that is just the start.

We must break down barriers and hold the doors of opportunity open for future generations of Latino leaders because we deserve to have our voices heard wherever decisions are made—not just today, not just this month, but every single day of the year.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (Mr. DESJARLAIS). The Chair will remind all persons in the gallery that they are here as guests of the House, and that any manifestation of approval or disapproval of proceedings or other audible conversation is in violation of the rules of the House.

WE MUST END THE DISASTROUS BORDER POLICIES

(Mr. MOORE of Alabama asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. MOORE of Alabama. Mr. Speaker, last weekend more than 20,000 illegal immigrants crossed the U.S. southern border. President Biden's only solution to historically massive border numbers is to warn migrants not to come and to claim our border is secure.

Meanwhile, the cities that migrants end up in are forced to figure out where to house them and how to care for them, and the American taxpayer is footing that bill.

So far this year, over $200 million of Chicago's $500 million budget deficit has gone to migrant care costs.

New York City Mayor Eric Adams, recently warned citizens that the cost of migrant care could mean cuts to city services due to a financial tsunami.

The Governor of Massachusetts has declared a state of emergency due to the onslaught.

Leaders in sanctuary cities might have asked for this crisis by offering themselves up, but the American people did not. The United States is nearly $33 trillion in debt. Bidenomics has caused a 17 percent inflation on the American people, and 70 percent of them are now saying they are feeling financially stressed, but Biden still seems to think that taxpayers have millions to spend.

Let me say this to the administration: You can either close our border or we will close the government.

HONORING DR. NICHOLAS F. ROBERTS, SR.

(Mr. DAVIS of North Carolina asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. DAVIS of North Carolina. Mr. Speaker, today I rise to honor an extraordinary individual whose legacy has left an unforgettable mark on eastern North Carolina and the Nation—Dr. Nicholas F. Roberts, Sr.

Recently, we unveiled a historical marker, a testament to the remarkable life of Dr. Roberts, a man of significant influence. Dr. Roberts, a Shaw University alumnus, pastor, editor, and public servant, hailed from the town of Seaboard in Northampton County, North Carolina.

His dedication to education, faith, and community service set a standard that still inspires us today. I am glad to add that Dr. Roberts is also the great-grandfather of my esteemed colleague, the gentleman from Virginia, Representative BOBBY SCOTT.

As we commemorate Dr. Roberts, let us reflect on the tremendous impact one individual can have on the community and a nation. His contributions are a guiding light, reminding us that our community is only as strong as its people and our future is shaped by those who came before us.

ILLINOIS HISTORY MADE AS IT ELIMINATES CASH BAIL

(Mrs. RAMIREZ asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Mrs. RAMIREZ. Mr. Speaker, I rise today as the proud Representative of a congressional district in Illinois, a State committed to progress, justice, safety, and human rights.

Yesterday, Illinois made history as the first State in the Nation to eliminate cash bail, a standard used to punish poverty instead of upholding justice. A standard that kept those without means, especially Black and Brown Illinoisans, in jail for months as they awaited trial, while letting slip those who could afford bail independent of the crime that they were accused of.

Some may say we are reforming our criminal justice system, but we are doing more than that. I especially thank Senator Robert Peters, who led the effort in the Illinois General Assembly. We, unlike other States, are creating a justice system that protects the victims, ensures equal due process for everyone independent of their means. The Pretrial Fairness Act is a historic win for civil rights advocates across our Nation, and it is time Congress followed Illinois' lead toward progress.

□ 1215

COMMUNICATION FROM THE HONORABLE PRAMILA JAYAPAL, MEMBER OF CONGRESS

The SPEAKER pro tempore laid before the House the following communication from the Honorable PRAMILA JAYAPAL, Member of Congress:

CONGRESS OF THE UNITED STATES,
HOUSE OF REPRESENTATIVES,
Washington, DC, September 19, 2023.

Hon. KEVIN MCCARTHY,
Speaker, House of Representatives, Washington, DC.

DEAR MISTER SPEAKER: This is to notify you formally, pursuant to Rule VIII of the Rules of the House of Representatives, that I, the Honorable Pramila Jayapal, U.S. Representative for the 7th Congressional District of Washington, have been served with a third-party subpoena to produce documents in the United States District Court for the Southern District of Georgia.

After consultation with the Office of General Counsel, I have determined that only partial compliance with the subpoena is consistent with the privileges and rights of the House.

Sincerely,

PRAMILA JAYAPAL,
Member of Congress.

PROVIDING FOR CONSIDERATION OF H.R. 1435, PRESERVING CHOICE IN VEHICLE PURCHASES ACT; PROVIDING FOR CONSIDERATION OF H.R. 4365, DEPARTMENT OF DEFENSE APPROPRIATIONS ACT, 2024

Mr. COLE. Mr. Speaker, by direction of the Committee on Rules, I call up House Resolution 680 and ask for its immediate consideration.

The Clerk read the resolution, as follows:

H. RES. 680

Resolved, That upon adoption of this resolution it shall be in order to consider in the House the bill (H.R. 1435) to amend the Clean Air Act to prevent the elimination of the sale of internal combustion engines. All points of order against consideration of the bill are waived. The bill shall be considered as read. All points of order against provisions in the bill are waived. The previous question shall be considered as ordered on the bill and on any amendment thereto to final passage without intervening motion except: (1) one hour of debate equally divided and controlled by the chair and ranking minority member of the Committee on Energy and Commerce or their respective designees; and (2) one motion to recommit.

SEC. 2. At any time after adoption of this resolution the Speaker may, pursuant to clause 2(b) of rule XVIII, declare the House resolved into the Committee of the Whole House on the state of the Union for consideration of the bill (H.R. 4365) making appropriations for the Department of Defense for the fiscal year ending September 30, 2024, and for other purposes. The first reading of the bill shall be dispensed with. All points of order against consideration of the bill are waived. General debate shall be confined to the bill and shall not exceed one hour equally divided and controlled by the chair and ranking minority member of the Committee on Appropriations or their respective designees. After general debate the bill shall be considered for amendment under the five-minute rule. The bill shall be considered as read. All points of order against provisions in the bill are waived.

SEC. 3. (a) No amendment to the bill shall be in order except those printed in the report of the Committee on Rules accompanying this resolution, amendments en bloc described in section 4 of this resolution, and pro forma amendments described in section 5 of this resolution.

(b) Each amendment printed in the report of the Committee on Rules shall be considered only in the order printed in the report, may be offered only by a Member designated in the report, shall be considered as read, shall be debatable for the time specified in the report equally divided and controlled by the proponent and an opponent, shall not be subject to amendment except as provided by section 5 of this resolution, and shall not be subject to a demand for division of the question in the House or in the Committee of the Whole.

(c) All points of order against amendments printed in the report of the Committee on Rules or against amendments en bloc described in section 4 of this resolution are waived.

SEC. 4. It shall be in order at any time for the chair of the Committee on Appropriations or her designee to offer amendments en bloc consisting of amendments printed in the report of the Committee on Rules accompanying this resolution not earlier disposed of. Amendments en bloc offered pursuant to this section shall be considered as read, shall be debatable for 20 minutes equally divided and controlled by the chair and ranking minority member of the Committee on Appropriations or their respective designees, shall not be subject to amendment except as provided by section 5 of this resolution, and shall not be subject to a demand for division of the question in the House or in the Committee of the Whole.

SEC. 5. During consideration of the bill for amendment, the chair and ranking minority member of the Committee on Appropriations or their respective designees may offer up to 10 pro forma amendments each at any point for the purpose of debate.

SEC. 6. At the conclusion of consideration of the bill for amendment the Committee shall rise and report the bill to the House with such amendments as may have been adopted. The previous question shall be considered as ordered on the bill and amendments thereto to final passage without intervening motion except one motion to recommit.

The SPEAKER pro tempore. The gentleman from Oklahoma is recognized for 1 hour.

Mr. COLE. Mr. Speaker, for the purpose of debate only, I yield the customary 30 minutes to the gentlewoman from New Mexico (Ms. LEGER FERNANDEZ), my very good friend, pending which I yield myself such time as I may consume. During consideration of this resolution, all time yielded is for the purpose of debate only.

GENERAL LEAVE

Mr. COLE. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks on House Resolution 680.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Oklahoma?

There was no objection.

Mr. COLE. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, last week the Rules Committee met and reported out a

rule, House Resolution 680, consideration of H.R. 4365, the Department of Defense Appropriations Act for fiscal year 2024, under a structured rule.

It provides 1 hour of general debate equally divided and controlled by the chair and ranking member of the Committee on Appropriations or their designees. It also makes in order 184 amendments; more than 75 percent of those eligible for consideration. Finally, it provides for a motion to recommit.

I rise today in support of the rule and the underlying legislation.

Mr. Speaker, our democracy remains a beacon of hope to the entire world. Billions of people across the globe look to the United States as a leader in freedom and liberty and as a protector of peace. From the very moment our Nation was conceived, a strong national defense has been a differentiator of democracy. Essential to protecting the homeland, international order, and the American people from those who would seek to do us harm, we must never lose sight of the need to maintain a strong defense.

Although our men and women in uniform give of themselves every day, they cannot do their jobs unless Congress does its job. Only Congress can provide the funding our military needs to fulfill its duties. That is our responsibility. Today we move forward with that commitment as we take up H.R. 4365, the Department of Defense Appropriations Act for fiscal year 2024. We must do our duty and make sure that our brave military members can move forward with theirs.

With evolving threats, we continue to face a struggle seen throughout time. The contest between freedom and tyranny is not far from us. From Vladimir Putin's unjust and illegal invasion of Ukraine, to China's posturing in the South China Sea, to continued threats posed by extremists and terrorists, hostile actors are looking for weakness. Yet, America's Armed Forces remain ready to meet any challenge wherever it may arise. Continuing to meet those threats requires an appropriate investment of national resources. With today's measure, we fulfill that commitment and ensure that our Armed Forces will have the resources they need to meet any foe anywhere in the world at any time.

The bill before us provides full funding for the national defense. It appropriates $826 billion in new discretionary spending, which is a modest increase of $300 million over the President's budget request and nearly $29 billion, or 3.6 percent, over the fiscal year 2023 enacted level.

H.R. 4365 makes targeted investments that support critical priorities. Perhaps the most important of these priorities is to reinvest in our servicemen and -women. The bill provides a 5.2 percent pay raise for our servicemembers. For junior enlisted servicemembers, we provide an historic pay increase of an average of 30 percent, ensuring that we not only offset the effects of President Biden's inflationary crisis for these younger and most junior servicemembers, but also ensuring that we can retain servicemembers who are at the beginning of their military careers.

I would be remiss, Mr. Speaker, not to give credit to the gentleman from California (Mr. MIKE GARCIA), my good friend and fellow defense appropriator, for this particular measure, both in the appropriations bill and, frankly, in the NDAA, as well. His work on behalf of younger servicepeople has been exemplary, relentless, and effective.

The bill also makes continued and necessary investments to ensure that we will continue to have the best equipped and best-trained fighting force now and into the future. We fund continued expansion of the Navy, making sure that we will be able to continue to protect freedom of the seas around the globe and fund development and acquisition of next-generation weapons systems.

However, it doesn't stop there, Mr. Speaker. H.R. 4365 also ensures that the Biden administration cannot continue to put politics ahead of national security. It preserves existing and longstanding bipartisan bans on taxpayer funding for abortions. It also ensures that Federal dollars cannot be used to indoctrinate our troops with progressive ideology like critical race theory training, and instead ensures that the Pentagon's focus is where it should be: on military readiness and preparedness so that our warfighters can defeat aggression and defend freedom anywhere in the world.

All in all, there is much to like in today's bill, Mr. Speaker. I look forward to advancing this measure through a robust amendment process on the floor and onward to final passage. I urge Members to support both the rule and the underlying legislation, and I reserve the balance of my time.

Ms. LEGER FERNANDEZ. Mr. Speaker, I thank Chair COLE for the dignity and respect that he shows each of his colleagues on the Rules Committee. It is a great honor to be debating this rule with him this afternoon.

I must, however, rise in opposition to the rule because we only have six legislative days left to fund the government, and we are considering only one of the eleven bills that we must pass to fully fund our Federal Government.

I completely agree with our chair that our country is a beacon of hope and that we must, indeed, fund our military in the way that they need in order to continue to provide that beacon of hope and that strength that we must communicate both to our allies and those who would do us harm.

Indeed, America is facing significant security threats from a rampaging Russia, the Chinese Communist Party, and a soon-to-be nuclear North Korea. Instead of uniting us, however, against those very real threats, extreme MAGA Republicans are putting Americans at war with each other with this divisive Defense appropriations bill.

Extreme MAGA Republicans are weakening our military readiness. In the Senate, Republicans are refusing to allow votes on flag officers, so we don't have the generals, admirals, and top military officers we need to lead our troops. Here in the House, instead of passing what should be and has historically been a bipartisan Defense appropriations bill, extreme Republicans are inserting the kitchen sink of culture war issues that we have seen too often.

Indeed, when we talk about women, this bill is another step in their march toward a national abortion ban. If this bill is enacted, a servicewoman in a State with a total abortion ban that doesn't have exceptions for rape would not be able to take leave and get help to travel to a place like New Mexico where a woman's right to receive the full access to reproductive healthcare is honored. Fourteen States have a total ban on abortion. In each of those 14 States, we will find servicewomen who are honorably serving our Nation.

In addition, this bill sets up minorities and our servicemembers who are gay, lesbian, and all individuals of the LGBTQ community to harassment.

At a moment when we know that some of our bases are under threat from climate change, this bill cuts $714 million from climate resiliency programs. I have been to our bases in the Pacific islands, and I recognize that we must have climate resilience if we don't want our bases to be under water. By giving up on preparing for climate resiliency, we are giving up a strategic military advantage that we should take advantage of.

□ 1230

Instead of focusing on how we can improve recruitment from our diverse communities in America when we are failing to meet our recruitment goals, this appropriation prohibits funding for diversity, equity, inclusion, and accessibility.

We know that people of color answer the call to service at disproportionately higher rates, and those numbers are not reflected in military leadership. This bill tells my Latino and Native American communities they are not valued.

Congressman NEGUSE asked the Defense Subcommittee chair why he would cut funding for the chief diversity officer, a position that he had voted to create. The chair responded that it was the best way to get attention.

That is how we legislate now, to get attention?

Last week, in the Rules Committee, we tried to remedy some of these awful and unnecessary riders. Republicans voted our amendments down.

All of these divisive riders harm our military readiness and hurt our servicemembers, servicemembers who put their lives on the line to protect us. It is never enough to just thank our servicemembers for their service. We need

to provide them with the benefits, quality of life, and respect that all of them deserve.

These extreme provisions are a trend this year, however. Perhaps that is the reason we have passed only one appropriations bill under Republican leadership in the House this year.

This Defense appropriations bill is the only one that we appear to be considering today. We are not considering a short-term funding package to ensure our government doesn't shut down. We are not considering something to cover all the appropriations bills.

Today, we are considering the Defense appropriations bill, and it should be focused solely on national security. It should be about making sure our Nation has the best and brightest force. It should be about serving all the individuals who protect us.

We should be unified in making sure our servicemembers have the resources they need and the respect they deserve. Instead, this bill attacks access to reproductive healthcare for our servicewomen and their families. It devalues the minorities, the Latinos, Black Americans, Native Americans, who serve and are looking for us to help them address the racism that still exists, unfortunately.

Mr. Speaker, I urge my colleagues to oppose this rule, and I reserve the balance of my time.

Mr. COLE. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I begin by returning my deep respect, my deep regards, to my good friend from New Mexico. It has been a delight to have her on the Rules Committee, and we have found a lot of common ground working on Native American issues, where, frankly, she is an acknowledged national expert. I look forward to a long and good relationship with my friend.

When it comes to this rule and bill, obviously, we have disagreements. Let me talk first about the point my friend makes about timing and how many bills have gotten done and where we are in the process. There is actually a great deal that I agree with her on.

Sadly, we ought to also remember the Democratic Congress of last year didn't finish the appropriations process until December. If you looked at it the year before, it didn't finish until March the next year, after the end of the fiscal year. Being late around here is not new for either party, but our friends set the standard last time, I think. We will see how we end up.

My friend made a comment that we had only done one bill. I will say that is one more than the Democratic United States Senators managed to do.

The reality is the Senate didn't produce, under Democratic control, any bills for the last 2 years—none out of subcommittee, none out of full committee, none across the floor.

We are dealing with a very difficult body on the other side of the rotunda. These timing issues, hopefully, we can all get better at this and work together. I actually think we have something this year in the debt ceiling agreement that will be helpful in that regard.

The reality is if we don't get our work done by January 1, which is about the time Democrats got their work done last year, we will have a yearlong CR with a 1 percent across-the-board cut.

I don't know any appropriator on either side of the aisle who wants to see that happen. I don't think most people who care deeply about the defense of the United States do. We have some forcing mechanisms in place. Hopefully, we will continue to make some better progress there.

In terms of my friend's point about divisive social policy, I will point out where this started. It is the executive branch that made decisions to do things much differently than we have done before, and usually with no consultation with the Congress of the United States.

Most of the things my friend disagrees with we consider corrective of executive overreach, including violation of the Hyde amendment, which is essentially, in my view, what the Department of Defense has decided on its own to do without discussion or consultation with the Congress of the United States. That is unfortunate. That is something, hopefully, we can work through and resolve in the months ahead.

I will also say that we are just very different in terms of where we think the focus ought to be. This bill focuses on weapons acquisition, training, and readiness. We live in a very dangerous world. We think there is a big difference, for instance, between climate resilience and actively pushing climate change legislation, which we believe the original administration budget does.

We want to refocus on the things that we think matter. We are not going to beat our adversaries if, God forbid, we find ourselves in a contest with any of them and our forces aren't well trained, aren't well armed, and aren't well prepared for the challenges they are going to face. That should be the main focus of the Department of Defense. We think the administration has lost its focus. We see this bill as a useful corrective.

Finally, I point out to my friends on both sides of the aisle that, quite frankly, whatever we pass, we are going to sit down and negotiate with the United States Senate and with the President of the United States. As my friends know, the Democrats control the United States Senate, and we have a Democrat as the President of the United States. Wherever we end up, it is going to be a process of give-and-take and discussion, but it is important that the House have an opening position.

The last point to make on this is if we get this bill across the floor—and I do say ''if'' because there is some controversy about whether or not we will make it, even on our own side. Even though nobody disagrees with the rule or disagrees with the bill, they have other points sometimes they want to make. Sadly, it shouldn't be with this bill. However, my friends never got the Defense bill across the floor by themselves when they were in the majority. There were too many divisions and splits within their Caucus to even bring it to the floor.

If we manage to get this bill across the floor, we will actually, in that single action, have moved across the floor a larger percentage of the discretionary budget of the United States than my friends were ever able to do when they were in the majority.

It is a complex bill, over half of the discretionary spending of the United States. There are lots of barriers and flash points where we disagree, but it is important that we continue the dialogue and the motion forward.

I think we have the opportunity, in passing the rule and the underlying legislation, to do that today, and I urge my colleagues on both sides of the aisle to vote accordingly.

Mr. Speaker, I reserve the balance of my time.

Ms. LEGER FERNANDEZ. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I am also thinking about last week's committee hearing and this discussion about the history of where we were with regard to the appropriations process. I think there is a very different mood this year than we had in the last cycle, and that is the fact that Democrats have never called to shut it down. That is exactly what we are hearing from Republicans on the other side of the aisle.

We never took that position. We were always trying to work it out, not shut it down. Even though we might not have passed all the bills by September 30, we were working across the aisle with our colleagues, working with the Senate on the other side, so we never had a shutdown. What we had was constant movement toward an agreement.

Indeed, the passed appropriations bills passed with overwhelming bipartisan support, both in the Senate and the House. We had hundreds of Republicans voting with the Democrats to pass the last appropriations bills.

Mr. Speaker, I yield 2 minutes to the gentleman from Massachusetts (Mr. MCGOVERN), the ranking member of the Committee on Rules and my good friend, who I hold in high regard.

Mr. MCGOVERN. Mr. Speaker, I thank the gentlewoman for yielding.

Mr. Speaker, I rise in support of a bipartisan amendment that is made in order and will be offered by Representatives GAETZ and JACOBS to prohibit the transfer of cluster munitions.

Since 2009, the United States has refused to use, produce, transfer, or sell cluster munitions. As a Nation, we could take pride in this decision.

Cluster munitions are indiscriminate weapons. They explode when touched

by a soldier, a farmer, or a child. They contaminate an entire field of combat, and they remain a deadly threat long past the end of a conflict. Rain and other events can move them from where they first landed to who knows where.

Yet, the Biden administration recently chose to send cluster munitions to Ukraine. I condemn Russia's use of cluster munitions on Ukraine, but two evils do not add up to a greater good. The United States should not have provided cluster munitions to Ukraine, and this amendment is necessary to ensure such a transfer does not happen again.

I also support this amendment because it is not specific to Ukraine. Now that the United States has opened the door to using cluster munitions, we have no idea where else the U.S. might decide to send them.

An international treaty exists to ban cluster munitions. Mr. Speaker, 112 countries have ratified the Convention on Cluster Munitions since May 2008, and 12 more have signed. Nigeria ratified the convention on February 28, and South Sudan did so on August 3.

The United States and Russia are not parties to the treaty, and now each of us has brought these terrible weapons into play inside Ukraine.

Mr. Speaker, the only thing that can undermine the ban on cluster munitions is the willingness of governments to use or transfer these terrible, indiscriminate weapons.

Mr. Speaker, I urge my colleagues to support the Gaetz-Jacobs amendment and prohibit the United States from any further transfers of cluster munitions.

Mr. COLE. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I both agree and disagree with my friend from New Mexico about shutting down the government. I personally could not agree more with her. I think it is a dumb thing to do. I think it is a dangerous thing to do.

I have never favored shutting down the government, and I have argued against it. The tactic doesn't work. I think it won't work this time. The American people expect us to keep the essential services of government going while we negotiate and get to a final solution.

I will correct my friend on one thing. The Democrats have shut down the government. Frankly, they shut it down over DACA in 2017.

Now, I always hand the Democrats this: When they shut it down or do something stupid, they are pretty quick to realize it, and they back off. I think they shut it down on a Friday and reopened it on a Monday, but they did indeed shut it down.

It is simply an inappropriate tool in the toolbox, in my opinion. I have seen both sides use it. My side, sadly, has used it more. I hope we don't do it this time.

Certainly, the great majority of our Members and the Speaker do not want to see a shutdown, and I think they have made that apparent over and over again.

I hadn't particularly intended to comment on the ranking member's amendment because I know how passionately my good friend feels about this. I respect those feelings. Honestly, I respect the feelings of all those who hold that view.

I find myself in the unusual position of agreeing with President Biden when my good friend, the ranking member, is disagreeing with him. It shows it is not really a partisan issue. I think it is an issue of judgment.

I have no doubt the President of the United States agonized before making this decision. It was clearly a decision he did not want to make, but I think he was compelled by two factors that probably decided the case for him, although I don't presume to speak for the President.

Number one, we ought to always remember the enemies of Ukraine, Russia, introduced these weapons on the other side first and was using those weapons indiscriminately.

Second, Ukraine is using these weapons in defense of its own territory and its own people in its own territory. That is not what the Russians are doing. They are aggressively, on the other side, using these in another country.

Finally, again, just to be fair about the President's dilemma, we have used an extraordinary amount of ammunition trying to support Ukraine. I think we have some strains on our own stockpiles, and I suspect that was part of the decisionmaking. When you are in a war, you are in it to win it.

Frankly, it was not the Ukrainians or the Americans that introduced this first. It was not the Ukrainians or the Americans or the European allies, who were there in vast numbers, that started this conflict. It is to the advantage of all that it ends as quickly as it can. The level of casualties on both sides is horrific, but the person who bears responsibility is Vladimir Putin. Frankly, the country that is the aggressor is Russia, and I am not going to begrudge the Ukrainians for getting what they need.

As critical as I can sometimes be of President Biden, I will certainly not criticize him in this case because I think, in this case, he reluctantly made a tough decision, a decision he probably didn't want to make, but I think he made it for the right reasons. Therefore, I won't be supporting my friend's amendment later on today.

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Although, again, I am glad we were able to make it in order. I think it is an important issue for us to discuss, and I look forward to a very vigorous debate on that later this afternoon.

Mr. Speaker, I reserve the balance of my time.

Ms. LEGER FERNANDEZ. Mr. Speaker, I yield myself such time as I may consume.

As we just noted, the chair of the committee has once again showed both his dignity and respect to his colleagues.

I do want to point out that you are right, I did forget about that 72-hour shutdown because it was very brief, and I agree with you, it is a stupid thing to do. No, I am sorry, I think you said it is a dumb thing to do, and it is because it causes so much pain for the people back home. They expect us to do our job, and the primary thing we are supposed to do is fund our government because it is not just the really hard-working employees who keep our airplanes flying in the air, who make sure that our food is inspected so we don't get sick, it is also the teachers in our schools who receive Title I funding in New Mexico.

So many of my schools receive Title I funding. Those are the schools that have the fewest resources, so the Federal Government helps them out to make sure all our children, wherever they live, can get a good education. Those are the things that will be lost if we shut down the Federal Government.

I point out that in contrast to the 72 hours, in 1995 under Republican leadership, 21 days the government was shut down; in 2013 the government was shut down for 16 days; and then in 2018 they shut it down for 35 days. This is a refrain we hear over and over again. It happens under House Republican leadership so often as we just saw.

Mr. Speaker, I yield 2 minutes to the gentlewoman from Oregon (Ms. SALINAS), a wonderful Member of our freshman class this year.

Ms. SALINAS. Mr. Speaker, I thank my good colleague from New Mexico for her leadership and for yielding me some time.

Mr. Speaker, each year, hundreds of Oregonians die after overdosing on fentanyl. This drug has torn communities apart, from Salem to Sheridan and everywhere in between. It is not just our State. It is all across the U.S.

Fentanyl and other synthetic opioids account for more than 85 percent of all opioid-involved deaths in the U.S. This is an issue that harms all of us, and I think Members of both parties can agree that stemming the flow of these drugs into our communities is a bipartisan imperative.

The appropriations process is one of our best opportunities to deliver critical funding to the organizations and agencies on the front lines of this fentanyl fight.

Yet sadly, this process has been needlessly politicized by far-right politicians who would rather notch political victories than policy ones—and this shameful Defense appropriations bill is a prime example of that.

By attaching anti-LGBTQ2SIA+ and anti-choice riders to this bill, extremists in this body have turned what should be a straightforward funding package into a political wedge issue.

That needless politicization is especially concerning, given that this piece

of legislation contains critical funding to stop the flow of fentanyl into our country.

Mr. Speaker, we cannot afford to let politics stand in the way of our fight against the fentanyl epidemic. As a new Member of this esteemed body, I did not come here for political gamesmanship. We should all be prioritizing people over partisanship.

This is an all-hands-on-deck emergency, and I urge my colleagues to dispense with their partisan antics and focus on passing government funding legislation that meets the moment and delivers for all of our communities.

Mr. COLE. Mr. Speaker, I yield myself such time as I may consume.

Again, there are some areas where I agree with my good friends and some areas where I disagree. Nobody disagrees on the importance of the fentanyl crisis and the importance of dealing in any way we can through whatever means we have with those who engage in trafficking that illegal drug that has killed tens of thousands of Americans.

Quite frankly, I suspect later this week or next week we will give our friends the opportunity to work with us on homeland security measures that will deal with just that.

I would point to, frankly, the abject failure of the Biden administration to defend the southern border. The green light that has been put out there is a huge cost for this massive influx of drugs into our own country.

We passed H.R. 2 on this floor, Mr. Speaker, to try and deal with that, and we are going to provide our friends with some opportunities where maybe we can find some common ground. You can be pro-immigration and pro-border security at the same time. I think this administration has had a hard time doing that, and quite frankly, most of the policies that it reversed—whether it was building the wall or remain in Mexico—from the last administration were effective. You can tell by the record numbers of illegal entries we have, the record amount of trafficking we have in drugs, and sadly, in human beings across the border to know that the Biden border policy, which my friends have supported, has been a disaster. It is one that, again, we hope they not only recognize that disaster, but will work with us to correct some of those measures.

Again, I am going to agree with my friend from New Mexico. I don't believe in shutting down the government. I know we occasionally have some people who believe that, although it is a very small number, it can be a very influential number in a House that is very narrowly divided.

We are going to provide some opportunities both to our own Members and to our colleagues on the other side to avoid that and to negotiate in good faith, but again, I just reiterate a point where I know my friend and I agree: It is not an appropriate tool. It does not work. I would hope that we can avoid that.

We also need to sit down and work together where we can, and there are a lot of areas in this bill that we can work on.

The last point I will make—my friends talk about the conflicts that we have in the Defense bill—remember, we had a conflict in the last Congress when my friends in the House tried to unilaterally overturn the Hyde language, a bipartisan agreement that goes all the way back to 1975 or 1976, as I recall, Mr. Speaker, and when that was struck, there were less than 150 Republicans in the House, so it was genuinely bipartisan. It wasn't just something we crammed down.

My friends have changed their mind over the issue of using Federal dollars for abortion over the years. We have not changed our position, and we were able to beat that back even when we were in the minority because, at the end of the day, they couldn't pass the bills without Republican support.

I think the administration has tried to go around Congress in this case and use Federal dollars without congressional consent to facilitate abortion, other than in cases where we are talking about rape, incest, or the life of the mother. We have no debate over the appropriate use of Federal dollars in those cases. We do in others. It doesn't mean people can't travel; we just shouldn't be using Federal dollars in this area. That is a longstanding principle that I would argue the Biden administration is trying to subvert.

By the way, it is a principle that President Biden, until 2019 when he was running for President, accepted throughout his entire career. He was a champion of that until 2019 when his own party moved so far left he had to change his longstanding position in pursuit of the nomination.

Again, this is politics, people are allowed to do what they want, but please don't chastise us for being consistent with a position we assumed in 1975 and have not changed. It is our friends who have changed their mind on this issue, and frankly, it is the administration that tried to subvert the will and the authority of Congress by moving around it.

Mr. Speaker, I reserve the balance of my time.

Ms. LEGER FERNANDEZ. Mr. Speaker, I yield myself such time as I may consume.

The concern that we have with the bill with regards to a woman's right to be able to determine for herself in conversation with her own faith, her own family, and her own doctors what kind of reproductive healthcare she wants access to is the fact that this bill would prevent servicewomen and their families from taking paid leave or traveling to obtain an abortion or related services if those services are not provided where she is assigned.

Remember, servicewomen don't get to choose where they live and where they work. There have already been multiple legal opinions that using paid leave and traveling and getting assistance to get to a State where you can get medical care does not violate the Hyde amendment.

Indeed, the Hyde amendment would allow you to get that kind of care if you were raped. Well, guess what? In 14 States if you were raped, you cannot get that care. That would violate the Hyde amendment in a sense when you cannot get access to it.

Last week in the Rules Committee, Representative MCCOLLUM told the story of a woman in Texas who was told by her doctor that she would not perform a surgical procedure to remove a dead fetus because of the State's abortion ban. That servicewoman did not have the options she was entitled to.

Mr. Speaker, I ask unanimous consent to enter into the RECORD the 2023 New York Times article: ''As Abortion Laws Drive Obstetricians From Red States, Maternity Care Suffers.''

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from New Mexico?

There was no objection.

[From the New York Times, Sept. 6, 2023]

AS ABORTION LAWS DRIVE OBSTETRICIANS FROM RED STATES, MATERNITY CARE SUFFERS

(By Sheryl Gay Stolberg)

One by one, doctors who handle high-risk pregnancies are disappearing from Idaho—part of a wave of obstetricians fleeing restrictive abortion laws and a hostile state legislature. Dr. Caitlin Gustafson, a family doctor who also delivers babies in the tiny mountain town of McCall, is among those left behind, facing a lonely and uncertain future.

When caring for patients with pregnancy complications, Dr. Gustafson seeks counsel from maternal-fetal medicine specialists in Boise, the state capital two hours away. But two of the experts she relied on as backup have packed up their young families and moved away, one to Minnesota and the other to Colorado.

All told, more than a dozen labor and delivery doctors—including five of Idaho's nine longtime maternal-fetal experts—will have either left or retired by the end of this year. Dr. Gustafson says the departures have made a bad situation worse, depriving both patients and doctors of moral support and medical advice.

''I wanted to work in a small family town and deliver babies,'' she said. ''I was living my dream—until all of this.''

Idaho's obstetrics exodus is not happening in isolation. Across the country, in red states like Texas, Oklahoma and Tennessee, obstetricians—including highly skilled doctors who specialize in handling complex and risky pregnancies—are leaving their practices. Some newly minted doctors are avoiding states like Idaho.

The departures may result in new maternity care deserts, or areas that lack any maternity care, and they are placing strains on physicians like Dr. Gustafson who are left behind. The effects are particularly pronounced in rural areas, where many hospitals are shuttering obstetrics units for economic reasons. Restrictive abortion laws, experts say, are making that problem much worse.

''This isn't an issue about abortion,'' said Dr. Stella Dantas, the president-elect of the American College of Obstetricians and Gynecologists. ''This is an issue about access to

comprehensive obstetric and gynecologic care. When you restrict access to care that is based in science, that everybody should have access to—that has a ripple effect.''

Idaho doctors operate under a web of abortion laws, including a 2020 ''trigger law'' that went into effect after the Supreme Court eliminated the constitutional right to abortion by overturning Roe v. Wade last year. Together, they create one of the strictest abortion bans in the nation. Doctors who primarily provide abortion care are not the only medical professionals affected; the laws are also impinging on doctors whose primary work is to care for expectant mothers and babies, and who may be called upon to terminate a pregnancy for complications or other reasons.

Idaho bars abortion at any point in a pregnancy with just two exceptions: when it is necessary to save the life of the mother and in certain cases of rape or incest, though the victim must provide a police report. A temporary order issued by a federal judge also permits abortion in some circumstances when a woman's health is at risk. Doctors convicted of violating the ban face two to five years in prison.

Dr. Gustafson, 51, has so far decided to stick it out in Idaho. She has been practicing in the state for 20 years, 17 of them in McCall, a stunning lakeside town of about 3,700 people.

She sees patients at the Payette Lakes Medical Clinic, a low-slung building that evokes the feeling of a mountain lodge, tucked into a grove of tall spruces and pines. It is affiliated with St. Luke's Health System, the largest health system in the state.

On a recent morning, she was awakened at 5 a.m. by a call from a hospital nurse. A pregnant woman, two months shy of her due date, had a ruptured membrane. In common parlance, the patient's water had broken, putting the mother and baby at risk for preterm delivery and other complications.

Dr. Gustafson threw on her light blue scrubs and her pink Crocs and rushed to the hospital to arrange for a helicopter to take the woman to Boise. She called the maternal-fetal specialty practice at St. Luke's Boise Medical Center, the group she has worked with for years. She did not know the doctor who was to receive the patient. He had been in Idaho for only one week.

''Welcome to Idaho,'' she told him.

In rural states, strong medical networks are critical to patients' well-being. Doctors are not interchangeable widgets; they build up experience and a comfort level in working with one another and within their health care systems. Ordinarily, Dr. Gustafson might have found herself talking to Dr. Kylie Cooper or Dr. Lauren Miller on that day.

But Dr. Cooper left St. Luke's in April for Minnesota. After ''many agonizing months of discussion,'' she said, she concluded that ''the risk was too big for me and my family.''

Dr. Miller, who had founded the Idaho Coalition for Safe Reproductive Health Care, an advocacy group, moved to Colorado. It is one thing to pay for medical malpractice insurance, she said, but quite another to worry about criminal prosecution.

''I was always one of those people who had been super calm in emergencies,'' Dr. Miller said. ''But I was finding that I felt very anxious being on the labor unit, just not knowing if somebody else was going to second-guess my decision. That's not how you want to go to work every day.''

The vacancies have been tough to fill. Dr. James Souza, the chief physician executive for St. Luke's Health System, said the state's laws had ''had a profound chilling effect on recruitment and retention.'' He is relying in part on temporary, roving doctors known as locums—short for the Latin phrase locum tenens, which means to stand in place of.

He likens labor and delivery care to a pyramid, supported by nurses, midwives and doctors, with maternal-fetal specialists at its apex. He worries the system will collapse.

''The loss of the top of a clinical pyramid means the pyramid falls apart,'' Dr. Souza said.

Some smaller hospitals in Idaho have been unable to withstand the strain. Two closed their labor and delivery units this year; one of them, Bonner General Health, a 25-bed hospital in Sandpoint, in northern Idaho, cited the state's ''legal and political climate'' and the departure of ''highly respected, talented physicians'' as factors that contributed to its decision.

Other states are also seeing obstetricians leave. In Oklahoma, where more than half of the state's counties are considered maternity care deserts, three-quarters of obstetrician-gynecologists who responded to a recent survey said they were either planning to leave, considering leaving or would leave if they could, said Dr. Angela Hawkins, the chair of the Oklahoma section of the American College of Obstetricians and Gynecologists.

The previous chair, Dr. Kate Arnold, and her wife, also an obstetrician, moved to Washington, D.C., after the Supreme Court overturned Roe in Dobbs v. Jackson Women's Health Organization. ''Before the change in political climate, we had no plans on leaving,'' Dr. Arnold said.

In Tennessee, where one-third of counties are considered maternity care deserts, Dr. Leilah Zahedi-Spung, a maternal-fetal specialist, decided to move to Colorado not long after the Dobbs ruling. She grew up in the South and felt guilty about leaving, she said.

Tennessee's abortion ban, which was softened slightly this year, initially required an ''affirmative defense,'' meaning that doctors faced the burden of proving that an abortion they had performed was medically necessary—akin to the way a defendant in a homicide case might have to prove he or she acted in self-defense. Dr. Zahedi-Spung felt as if she had ''quite the target on my back,'' she said—so much so that she hired her own criminal defense lawyer.

''The majority of patients who came to me had highly wanted, highly desired pregnancies,'' she said. ''They had names, they had baby showers, they had nurseries. And I told them something awful about their pregnancy that made sure they were never going to take home that child—or that they would be sacrificing their lives to do that. I sent everybody out of state. I was unwilling to put myself at risk.''

Perhaps nowhere has the departure of obstetricians been as pronounced as in Idaho, where Dr. Gustafson has been helping to lead an organized—but only minimally successful—effort to change the state's abortion laws, which have convinced her that state legislators do not care what doctors think. ''Many of us feel like our opinion is being discounted,'' she said.

Dr. Gustafson worked one day a month at a Planned Parenthood clinic in a Boise suburb until Idaho imposed its near-total abortion ban; she now has a similar arrangement with Planned Parenthood in Oregon, where some Idahoans travel for abortion care. She has been a plaintiff in several lawsuits challenging Idaho's abortion policies. Earlier this year, she spoke at an abortion rights rally in front of the State Capitol.

In interviews, two Republican state lawmakers—Representatives Meqan Blanksma, the House majority leader, and John Vander Woude, the chair of the House Health and Welfare Committee—said they were trying to address doctors' concerns. Mr. Vander Woude acknowledged that Idaho's trigger law, written before Roe fell, had affected everyday medical practice in a way that lawmakers had not anticipated.

''We never looked that close, and what exactly that bill said and how it was written and language that was in it,'' he said. ''We did that thinking Roe v. Wade was never going to get overturned. And then when it got overturned, we said, 'OK, now we have to take a really close look at the definitions.' ''

Mr. Vander Woude also dismissed doctors' fears that they would be prosecuted, and he expressed doubt that obstetricians were really leaving the state. ''I don't see any doctor ever getting prosecuted,'' he said, adding, ''Show me the doctors that have left.''

During its 2023 session, the Legislature clarified that terminating an ectopic pregnancy or a molar pregnancy, a rare complication, would not be defined as abortion—a move that codified an Idaho Supreme Court ruling. Lawmakers also eliminated an affirmative defense provision.

But lawmakers refused to extend the tenure of the state's Maternal Mortality Review Committee, an expert panel on which Dr. Gustafson served that investigated pregnancy-related deaths. The Idaho Freedom Foundation, a conservative group, testified against it and later called it an ''unnecessary waste of tax dollars''—even though the annual cost, about $15,000, was picked up by the federal government.

That was a bridge too far for Dr. Amelia Huntsberger, the Idaho obstetrician who helped lead a push to create the panel in 2019. She recently moved to Oregon. ''Idaho calls itself a quote 'pro-life state,' but the Idaho Legislature doesn't care about the death of moms,'' she said.

Most significantly, the Legislature rejected a top priority of Dr. Gustafson and others in her field: amending state law so that doctors would be able to perform abortions when the health—not just the life—of the mother is at risk. It was almost too much for Dr. Gustafson. She loves living in Idaho, she said. But when asked if she had thought about leaving, her answer was quick: ''Every day.''

Ms. LEGER FERNANDEZ. Because what has changed is that now we have 14 States that have total bans on abortion, so we must do more to honor our commitment to our servicewomen.

Mr. Speaker, I yield 2 minutes to the gentlewoman from Texas (Ms. JACKSON LEE).

Ms. JACKSON LEE. I thank the gentlewoman for yielding. This is a question, Mr. Speaker, of readiness. That is what we believe in. That is what a Defense appropriations bill is. It is grounded in the readiness of the most powerful Armed Forces in the world. It is to ensure that they are ready.

Unfortunately for the Defense appropriations, we are being forced to put this bill on the floor today by the majority. It is unbelievable that they would cut vital civilian positions when the department is struggling to meet its readiness goals.

Civilians are a crucial part of ensuring that our men and women, our combat soldiers, are ready to serve around the world.

These are hateful policies. They want to undermine and attack the LGBTQ+ community, who have served in valor. We know them well. They have served without question. They have worn the uniform without question.

It is to stop a logistical provision that has nothing to do with abortion. It is to allow for that military person to receive reproductive medical services, which may come to be in many different facets; to ensure that someone is able to ensure the reproductive life that they may desire to have.

How ludicrous is it in this emerging, wonderful, diverse Nation that many look to as a place and a bastion of freedom, that we would eliminate funding for diversity, equity, and inclusion; that we eliminate climate change to ensure that our vehicles are well equipped for the new generation; that we would not ensure, again, that our personnel, our families get the medical care that they desire?

Mr. Speaker, what have we done in years past? We have provided Defense appropriations to be able to support our military. We now have a bill on the floor that is undermining our military. I am saddened by this. I am grateful for the Triple-Negative amendment that has been allowed to be in providing for breast cancer, and I look forward to that amendment.

Mr. Speaker, I rise in strong opposition to the rule governing House consideration of H.R. 4365, the Department of Defense Appropriations Act of 2024.

I oppose the rule, and the underlying legislation, for the following reasons:

1. The bill, which should be earnestly attempting to best support the Department of Defense, is being used by Republicans to sneak partisan and damaging policies under our noses.

2. The underlying bill does not reflect the input of nearly half the Members of this body and is strongly opposed by the ranking members who sit on the very committee this bill originated from.

Mr. Speaker, in order to further promote a culture war, the Members who oversaw this bill are going to put many Americans at risk.

First, they are targeting the many brave servicewomen currently employed by the Department of Defense by directly going against the Secretary of Defense's promises for them to have access to reproductive healthcare regardless of their station.

Women currently make up one in five members of our military.

Denying them their previously promised ability to check their reproductive health is not only dangerous, but also grossly irresponsible.

The loss of these rights also increases the risk for low retention amongst female servicemembers who need these benefits this bill would strip away.

Second, the bill targets the LGBTQ+ community, who are increasingly victimized by Republican agendas around the country.

Regardless of your beliefs, it is important to treat everyone with respect and equality, which this bill does not do.

This bill would prohibit hormone therapy or surgical treatment for gender affirming care, directly affecting those who experience gender dysphoria.

Individuals who feel they do not belong in their own body is a serious issue and has led to one in five transgender and nonbinary young people attempting suicide in the past year.

Our priority as the legislative body of this country is to protect the wellbeing of all citizens, regardless of personal beliefs and ideologies.

The language in this legislation would further embolden those who wish to commit harm and violence against a minority group already facing so much hardship, both socially and legally.

This is unacceptable.

The lives and wellbeing of those who live across the country should not be put at risk simply to push a regressive agenda that does not promote the diversity of our Nation but rather seeks to suppress it.

This brings me to my third point, which is the underhanded way the sponsors of the bill sought to eliminate Critical Race Theory.

Let me be clear: Republicans have a warped understanding of what this term means, and they are using it as a means to remove any diversity in education.

Critical Race Theory is a collegiate field of study that examines the complex ways in which race fits into the structures of our society.

Critical Race Theory is not an attack on white people for their history, just as it does not victimize Black people based on ours.

Based on an incorrect definition, Republican leaders at all levels of government have worked to eliminate all diverse viewpoints providing a complete framework of the history of this country, and instead wash over the negative to present a false narrative.

At the same time, legislation aimed at elementary schools against Critical Race Theory—which again, is only offered at the collegiate level—deprives diverse students of hearing their voice reflected accurately in the history of this multicultural Nation.

Another issue with this bill is the cut of $714 million to adapt military equipment to be more climate friendly.

Climate change is a crisis that requires global attention and efforts.

The refusal to even allow for updating our military alternative source of energy is regressive and promoted under a false message.

It was not Biden who indicated that he wanted an ''all electric'' fleet of tanks as is commonly stated, but rather the United States Army.

This part of the bill stands directly in the way of innovation as well as keeping us from doing our part in the world to strive towards a net zero future.

In 2020 alone, the United States military was responsible for 51 million tons of carbon dioxide released into the atmosphere; more than most countries.

But now, when the U.S. Army decides for themselves that they want to scale back on their emissions, certain Members in Congress want to limit their choice.

One bright spot of this bill—though it is short-lived—is the Jackson Lee amendment #233 that was made in order by the committee.

The Jackson Lee amendment #233 seeks to allocate $10 million to fund triple negative breast cancer research.

This issue is extremely important, especially for the brave men and women in the military, who are up to 20–40% more likely to develop breast cancer.

I must offer my appreciation to both the military and the Biden administration for making research into breast cancer a priority, but there is still work to be done.

This amendment would allow for more research so we can one day hopefully learn a way to reduce the number of military personnel affected by breast cancer.

Several initiatives I have designed in the past have aided active-duty service-men and -women along with veterans, such as enforcing accurate reporting of maternity mortality rates among the Armed Forces, addressing physical and mental health concerns, and securing authorization for triple negative breast cancer as well as post-traumatic stress disorder.

I am very proud of the work that Congress and I have done to address the health concerns of active-duty and veteran service-men and -women, but there are still improvements to be made.

The men and women who are on the front lines or have already completed their valiant service to this country have many pressing issues and challenges they already must face; breast cancer should not be one of them.

While this amendment is important, the negatives of this bill vastly outweigh the positives.

I strongly urge my colleagues to oppose this bill.

Mr. COLE. Mr. Speaker, I yield myself such time as I may consume.

Nobody is arguing against diversity in the military. The American military has actually usually been the leader in this area, whether it was desegregation or certainly addressing the inequities between men and women, and we haven't gotten it right, but I think broadly it has worked in the right direction and quite often ahead of the rest of society.

The real problem here is we want to focus on training and weapons, not on culture wars. We think the administration has gone around Congress in some cases—the Hyde amendment being one of them. My friends have their lawyers, we have our lawyers. I guess they will go to court and sort that out.

□ 1300

There wasn't any consultation with the Congress, any discussion on this. That was a decision made unilaterally by the administration. I think Congress has every right to be consulted. They don't have money by their own right in the executive branch. They have what we give them for the purposes that are specified by the Congress of the United States. They don't get to just make it up on their own.

I know there was at least some discussion back and forth where people warned: Don't open this door without a discussion and without a green light from Congress. That didn't occur, and so we are in this discussion.

Now, over the course of reaching a bill, I suspect we will find some sort of solution or work it through one way or the other. I hope we do, because I don't think anything is more important, in what I think is a very dangerous world, than equipping, training, and preparing the men and women who protect us all.

On that, we have a lot more common ground than division. Again, I think this was a choice by the administration. It provoked a response by Congress. We will try to work it through

by normal legislative means and see where we end up.

Mr. Speaker, I will reserve the balance of my time.

Ms. LEGER FERNANDEZ. Mr. Speaker, I yield 3 minutes to the gentlewoman from Virginia (Ms. MCCLELLAN).

Ms. MCCLELLAN. Mr. Speaker, I want to follow up on the negative impact that the restrictions on funding for travel to receive abortion services will have on our servicemembers and their families, women of childbearing years.

Unfortunately, in the South, between New Mexico and Virginia, you have a ban on abortion. In some cases total, and in some cases there are exceptions for rape or the life of the mother, but the mother's life has to be on the verge of death. Unfortunately, in these States, they make no distinction between miscarriage management, and they apply to cases, like you heard, where there has been fetal demise and a miscarriage. If you do not remove the fetal tissue, then the mother can go septic and die. If she loses her amniotic fluid and you do not terminate that pregnancy, she can go septic and die.

I represent a State that has over 170,000 Federal employees and 130,000 Active-Duty military personnel. With the Hyde amendment in place, we are already telling pregnant people in that situation: You have to pay for that service yourself. Their insurance won't pay for it. Many hospitals will consider them uninsured and won't let them have those procedures in the hospital, so they have to go find a clinic which, in many cases, is getting harder.

Now, if they are in a State that has banned abortion in that situation, they have got to, on top of that, pay to travel somewhere where they can get, in some cases, lifesaving care. In addition, we have seen that these abortion bans have led to fewer OB/GYNs in those States.

How are we going to recruit women of childbearing years when we say to them: If you get the worst news ever in your life, that you have suffered a miscarriage or you have to choose between your life or continuing a pregnancy, when you are already willing to make the ultimate sacrifice to keep this country safe, you are on your own. That is what this bill with that amendment will do.

Our servicemen and -women deserve better. In a country that already has an atrocious maternal mortality rate, this will lead to even more maternal deaths. I don't know how we are going to recruit the women that we need.

I don't have enough time to talk about how the anti-DEI amendments will make it harder to recruit a service force that is as fully diverse as the country they serve, but this amendment, in particular, will be dangerous for our military servicewomen or families of our servicemen. That is why I ask that we vote against the rule.

Mr. COLE. Mr. Speaker, I reserve the balance of my time.

Ms. LEGER FERNANDEZ. Mr. Speaker, I yield 3 minutes to the gentleman from Massachusetts (Mr. MCGOVERN), our ranking member on the Rules Committee.

Mr. MCGOVERN. Mr. Speaker, I thank the gentlewoman for yielding so I can vent a little bit.

Mr. Speaker, I just saw a Roll Call story that is reporting that Republicans are pulling their continuing resolution today to weigh more cuts. I mean, are you kidding me? Their crummy CR contained an 8 percent across-the-board cut in almost every program that helps people, everything from medical research, WIC, Head Start, housing. Even border security is cut by 8 percent. The only thing that is exempt is the military budget, the biggest bureaucracy in our government.

They are okay with cutting fuel assistance for poor people by 65 percent. Money to help people be able to heat their homes in the winter, they are okay with cutting that, but they believe you can't find one penny of savings in a missile system in the Pentagon with huge cost overruns. I mean, it is pathetic. As the Republican whip said: The patients are running the hospital around here.

The gentleman from Oklahoma said this is about a negotiation. My Republican friends can't even negotiate with themselves, and we have 11 days to go before there is a shutdown, and they are going in the wrong direction. It has become more and more difficult to get to an agreement.

Enough, I mean, enough. The Republican leadership of this House is incompetent. They are so incompetent; it takes my breath away. They are letting the clowns run the circus. It is time the Speaker of the House develop a spine and stand up to the most extreme elements on the Republican side and actually sit down and negotiate an agreement that deals with the reality of our government.

The Republicans only control barely just one branch of our government, the House. The Senate is under Democratic control. The White House is run by a Democrat. You are going to have to negotiate, and you are moving in the wrong direction. Time is running out. Stop this nonsense. Get serious. Get to the negotiating table. Enough of this.

Mr. COLE. Mr. Speaker, I yield myself such time as I may consume.

I have great affection and respect for my friend, the ranking member and formerly the chairman of the full Rules Committee.

I will start where I began this debate. Remember, my friends, Democrats didn't finish the appropriations process on their side until December of last year, and Democrats controlled all three parts of government. They had the Senate, the House, and the Presidency, and they didn't get done until December. The year before that, they didn't get done until March of the year after.

I wish the process went easier and smoother as well, but I don't think it goes much differently, regardless of who happens to be in control. I do think that we are trying to make some progress here.

Now, my friends are worried about what is cut. They ought to be worried about what was spent. We are running a $1.7 trillion deficit. That deficit is bigger than the entire discretionary budget of the United States of America. It is not just bigger than the defense budget; it is bigger than everything.

It got a lot worse when my friends controlled the executive branch and both houses of Congress. You did over $3 trillion worth of spending outside the normal appropriations process; $1.9 trillion for an unneeded American Rescue Plan when we were coming out of COVID, roughly $700 billion from the much-misnamed Inflation Reduction Act, which even the President now says was misnamed because it really had to do more with climate change. That was money we didn't have, money that fueled inflation that made life worse for every single American.

I don't even get to the knockoffs, like transportation bills that don't pay for themselves. I had voted for every other major transportation agreement in my time here, two of them under President Obama, but they paid for themselves either through gasoline taxes or ticket fees, what have you. Now, we have got a trillion dollars here, but it is not enough. We will just throw another several hundred billion dollars on in debt. We are paying for that now.

I am not going to be critical of my party for trying to push down some of the spending; $1.7 trillion this year. You guys can't find anywhere to cut.

Now you want to talk about defense? I am happy to talk about defense. My dad was a career noncommissioned officer at the height of the Cold War. You know what we spent on defense then? Fifty percent of the Federal budget, 9 percent of the GDP. You know what we spent during the great Reagan buildup? Six percent of the GDP, about a third of the Federal budget. You know what we spend today? About 3 percent of the GDP and about 15 percent of the budget.

Believe me, there has been an explosion of domestic spending over the decades, largely driven by my friends, and it is unsustainable. We cannot stay on the path we are on.

We can argue about this or that. I have a bill I would invite my friend to look at, try and go back and do with Social Security what we did in 1983 on a bipartisan basis. We need to start getting the spending under control. The spending that is driving us out of balance is largely not in the Pentagon. It is largely in entitlement spending, which I would be the first to say that both sides have been reluctant to deal with. Neither of the last two Presidents have been willing. This President actually voted for a Social Security commission that reformed and stabilized it when he was a Senator. Now,

the White House rules these things out. No, we can't talk about it, can't do it. By the way, his predecessor was exactly the same, so Republican and Democrat alike.

I would love to be more restrained in the spending, and I think that is what my colleagues are trying to do, even when I don't always agree with the tactics they use. They are motivated in the right direction, which is to deal with a $1.7 trillion deficit.

We are trying to make some appropriate decisions. Again, we work in the legislative process. I remind my friends, they control two-thirds of it. By the way, the Defense bill last year, which was passed almost exclusively with Democratic votes, the omni, to be fair, actually had a larger increase in the defense budget than my friends pushed, $45 billion—I actually agree with that, by the way—than this year, where we are basically at the President's number.

We can all play this game with numbers and what have you. Let's try to work toward a deal. I think we can get there, but I don't have any illusions it will be easy along the way. I certainly have seen both sides make missteps, in my view, in handling these situations over the years. I hope we don't do that again.

Mr. Speaker, I reserve the balance of my time.

Ms. LEGER FERNANDEZ. Mr. Speaker, I yield myself such time as I may consume.

I think what Americans know is that for too long, Republicans have been protecting the rich and the corporations who do not pay their taxes. When we start talking about spending, we need to talk about what we are spending that money for.

Democrats are investing in rural America. They are investing in our children. They are investing in our infrastructure. What are Republicans doing? Yes, they are adding to that deficit. Republicans put $2 trillion on that credit card in tax cuts for the rich.

The leader they worship, Donald Trump, put $7.5 trillion onto that deficit. The very first bill they brought to the floor of this Congress, what did it add? $114 billion to that cut.

That is what we need to talk about, not just how they want to cut investments and important things like heating for our families who need it, our seniors, and our veterans. What are they doing? They are trying to make sure that they don't have to tax the rich and wealthy corporations. Many, as we heard last night, don't pay anything in taxes.

Yes, we do want to talk about Social Security. I am so glad the chair brought this up because, Mr. Speaker, Republicans often swear that they are not going to cut Social Security and Medicare. Last night, when we met on the continuing resolution, there is an 8 percent cut across the board for everything but defense and veterans. Their continuing resolution has a 66 percent cut to heating assistance. They have said border security is their top priority, but the very CR we are scheduled to consider cuts funding for DHS by over 8 percent.

While they claim they won't cut Social Security and Medicare, their own continuing resolution, the language in the bill itself, demonstrates that nothing is sacred to them.

I am going to offer my friends, my dear friends, a chance to show the American people that they are serious about preserving Social Security and Medicare.

I urge you all to join us in defeating the previous question. If we defeat the previous question, I will offer an amendment to the rule to provide for consideration of a resolution which plainly states that the people's House won't cut a single cent from these crucial programs that so many of my constituents, so many of your constituents, rely on.

Mr. Speaker, I ask unanimous consent to insert the text of my amendment into the RECORD, along with any extraneous material, immediately prior to the vote on the previous question.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from New Mexico?

There was no objection.

□ 1315

Ms. LEGER FERNANDEZ. Mr. Speaker, I yield 1 minute to the gentleman from California (Mr. MULLIN) to discuss our proposal.

Mr. MULLIN. Mr. Speaker, I rise in strong opposition to the majority's manufactured shutdown threat. For this reason, I ask my colleagues to defeat the previous question so we can bring up legislation that commits to protecting vital programs, like Social Security.

Our most vulnerable communities will suffer as a result of this shortsighted attempt to hold our most important Federal programs hostage. For example, my California bay area district is home to over 127,000 senior citizens, many of whom rely on Social Security.

Under a Republican shutdown, new applicants to the Social Security program wouldn't be able to enroll in this bedrock American program. While Social Security payments would continue during a shutdown, seniors would experience even more delays and lengthy phone queues when contacting the Social Security Administration. Many seniors already struggle to find help, and a Republican shutdown would only exacerbate this problem.

Modern Republicans are playing roulette with essential constituent services and creating yet another manufactured crisis.

I urge the majority to bring a serious bipartisan proposal to the table to prevent this avoidable crisis.

Mr. COLE. Mr. Speaker, I reserve the balance of my time.

Ms. LEGER FERNANDEZ. Mr. Speaker, I yield myself such time as I may consume.

I think what we need to do is look at this appropriations bill, look at where we are in our discussions about funding the government and recognize that nothing exists in a vacuum.

Last night, as we were talking about the Committee on Appropriations, we were talking about the extreme cuts that are being made, and we know that our military, when they sort of show up at our bases, they are not showing up at a base that is not connected to the rest of the places they live in.

In Clovis, New Mexico, where we have Cannon Air Force Base, and in Alamogordo, where we have an Air Force base, those communities are connected, and we need to recognize that the other bills that they are looking at are going to cut funding in a way that is going to hurt our readiness.

The Agriculture appropriations bill is a good opportunity to talk about this. The bill that they have brought forward would fund world development programs, right? Nope. That is going to get cut. It would also cut nutrition to women, infants, and children. It would cut the funding we need for our ranchers and farmers.

Indeed, the cuts that they are proposing would be $8 billion in cuts, in the Agriculture appropriations bill. This would bring the funding level for the Agriculture appropriations bill to a level not seen since 2007.

The bill would cut broadband programs by 23 percent. It would hurt something that is incredibly important to my district, which are rural electric co-ops that serve 268,403 residents. Well, those rural electric co-ops, they serve people throughout our districts, and they serve our military bases. We must fight these kinds of threats.

Mr. Speaker, in closing, we cannot talk about readiness; we cannot talk about what we need to do in this country to support our military if we don't talk about our servicemembers and what we must do to protect them and to respect them, because they are protecting us.

So when we are talking about our servicewomen, we must remember the number of servicewomen who are serving. It is about 20 percent right now, and the number of women who are serving in those 14 States which have a total ban on abortion is significant. It is 80,000 women—80,000 women, who, if something happens to them like what Representative MCCOLLUM discussed, they could die of sepsis.

For those of us who have given birth, for those of us who have had to make really difficult decisions about our health and how we are going to deal with the complications of pregnancy, we feel it viscerally, because we know that it is such a wonderful thing to give birth, but it is such a dangerous thing to be pregnant.

And what they would do to our servicewomen is deny them the ability to

go to a State like New Mexico when they want reproductive healthcare services.

Mr. Speaker, I yield back the balance of my time.

Mr. COLE. Mr. Speaker, I yield myself the balance of my time to close.

I urge all my colleagues to support the resolution.

Today's rule will make in order the Department of Defense Appropriations Act for fiscal year 2024. It will provide full and complete funding for our national defense needs, ensuring that our servicemembers are fairly paid, and supporting the well-being of military families.

It also makes certain that our troops will never face a fair fight by giving them every advantage possible. We make appropriate investments in the development and acquisition of weapons systems needed to preserve and defend freedom around the globe and restrict the Biden administration from forcing progressive ideology on the Armed Forces and circumventing the authority of Congress when it does so.

Bottom line, the bill targets resources to its new core mission, protecting our homeland and security interests and making sure that our forces are the best trained, the best equipped, and the best prepared in the world.

To my friends, it has been an interesting debate, as always. I enjoy exchanging observations with my good friend from New Mexico, and we strayed sometimes off this bill and off this rule.

I do want to mention a couple of things. The rule, I think even my friends would agree, is a pretty robust rule. We are going to have 184 amendments, a very thorough debate, so I look forward to that.

Second, it is lost sometimes, but we actually basically fund the military at the level that the President requested, so those people who think it is over the top probably should have their argument with the White House as opposed to us. Personally, I would have liked to have done more, but we are going to go with the President's number, essentially.

Finally, we do disagree about the manner in which the administration is using the military. We think they are advancing progressive ideology when they ought to be focused on weapons acquisition, training, and warfighting, and we think that ultimately weakens the country.

We live in a very dangerous world right now. I would actually argue we are not spending enough on defense when we look at what is happening in the Western Pacific with China; when we look at what the Russians are doing, the acts they are engaged in, in Ukraine. I want a robust budget, and I want one that we come together on.

In the end, I think we will be able to achieve that, and I look forward to working with my friends to accomplish that objective.

The material previously referred to by Ms. LEGER FERNANDEZ is as follows:

AN AMENDMENT TO H. RES. 680 OFFERED BY MS. LEGER FERNANDEZ OF NEW MEXICO

At the end of the resolution, add the following:

SEC. 7. Immediately upon adoption of this resolution, the House shall proceed to the consideration in the House of the resolution (H. Res. 178) affirming the House of Representatives' commitment to protect and strengthen Social Security and Medicare. The resolution shall be considered as read. The previous question shall be considered as ordered on the resolution and preamble to adoption without intervening motion or demand for division of the question except one hour of debate equally divided and controlled by the chair and ranking minority member of the Committee on Ways and Means or their respective designees.

SEC. 8. Clause 1 (c) of rule XIX sha11 not apply to the consideration of H. Res. 178.

Mr. COLE. Mr. Speaker, I yield back the balance of my time, and I move the previous question on the resolution.

The SPEAKER pro tempore (Mr. ROUZER). The question is on ordering the previous question.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Ms. LEGER FERNANDEZ. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, further proceedings on this question are postponed.

RECESS

The SPEAKER pro tempore. Pursuant to clause 12(a) of rule I, the Chair declares the House in recess subject to the call of the Chair.

Accordingly (at 1 o'clock and 23 minutes p.m.), the House stood in recess.

□ 1425

AFTER RECESS

The recess having expired, the House was called to order by the Speaker pro tempore (Mr. ROUZER) at 2 o'clock and 25 minutes p.m.

MOTION TO GO TO CONFERENCE ON H.R. 2670, NATIONAL DEFENSE AUTHORIZATION ACT FOR FISCAL YEAR 2024

Mr. ROGERS of Alabama. Mr. Speaker, pursuant to clause 1 of rule XXII, and by direction of the Committee on Armed Services, I have a motion at the desk.

The SPEAKER pro tempore. The Clerk will report the motion.

The Clerk read as follows:

Mr. Rogers of Alabama moves to take from the Speaker's table the bill H.R. 2670, with the Senate amendment thereto, disagree with the Senate amendment, and request a conference with the Senate thereon.

The SPEAKER pro tempore. The gentleman from Alabama is recognized for 1 hour.

Mr. ROGERS of Alabama. Mr. Speaker, I yield back the balance of my time, and I move the previous question on the motion.

The previous question was ordered.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Alabama.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Mr. SMITH of Washington. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 9 of rule XX, this 15-minute vote on the motion will be followed by 5-minute votes on:

A motion to close portions of the conference pursuant to clause 12 of rule XXII, if offered;

Ordering the previous question on House Resolution 680; and

Adoption of House Resolution 680, if ordered.

The vote was taken by electronic device, and there were—yeas 393, nays 27, not voting 13, as follows:

[Roll No. 395]

YEAS—393

Adams	Cherfilus-McCormick	Foster
Aderholt	Chu	Foushee
Aguilar	Ciscomani	Foxx
Alford	Clark (MA)	Frankel, Lois
Allen	Cleaver	Franklin, C. Scott
Allred	Cline	Fry
Amodei	Cloud	Fulcher
Armstrong	Clyburn	Gaetz
Arrington	Clyde	Gallagher
Auchincloss	Cohen	Gallego
Babin	Cole	Garamendi
Bacon	Collins	Garbarino
Baird	Comer	Garcia (TX)
Balderson	Connolly	Garcia, Mike
Banks	Correa	Gimenez
Barr	Costa	Golden (ME)
Barragán	Courtney	Goldman (NY)
Bean (FL)	Craig	Gomez
Beatty	Crane	Gonzales, Tony
Bentz	Crawford	Gonzalez, Vicente
Bera	Crockett	Good (VA)
Bergman	Crow	Gooden (TX)
Beyer	Cuellar	Gosar
Bice	Curtis	Gottheimer
Biggs	D'Esposito	Granger
Bilirakis	Davids (KS)	Graves (LA)
Bishop (GA)	Davidson	Graves (MO)
Bishop (NC)	Davis (IL)	Green (TN)
Blumenauer	Davis (NC)	Green, Al (TX)
Blunt Rochester	De La Cruz	Greene (GA)
Boebert	Dean (PA)	Griffith
Bonamici	DeGette	Grothman
Bost	DeLauro	Guest
Boyle (PA)	DelBene	Guthrie
Brecheen	Deluzio	Hageman
Brown	DesJarlais	Harder (CA)
Brownley	Diaz-Balart	Harris
Buchanan	Dingell	Harshbarger
Buck	Doggett	Hayes
Bucshon	Donalds	Hern
Budzinski	Duarte	Higgins (LA)
Burchett	Duncan	Higgins (NY)
Burgess	Dunn (FL)	Hill
Burlison	Edwards	Himes
Calvert	Ellzey	Hinson
Cammack	Emmer	Horsford
Caraveo	Escobar	Houchin
Carbajal	Eshoo	Houlahan
Cárdenas	Estes	Hoyer
Carey	Ezell	Hoyle (OR)
Carl	Fallon	Hudson
Carson	Feenstra	Huffman
Carter (GA)	Ferguson	Huizenga
Carter (LA)	Finstad	Hunt
Carter (TX)	Fischbach	Issa
Cartwright	Fitzgerald	Ivey
Case	Fitzpatrick	Jackson (IL)
Casten	Fleischmann	Jackson (NC)
Castor (FL)	Fletcher	Jackson (TX)
Castro (TX)	Flood	
Chavez-DeRemer		

Jackson Lee
Jacobs
James
Jeffries
Johnson (LA)
Johnson (OH)
Johnson (SD)
Jordan
Joyce (OH)
Joyce (PA)
Kean (NJ)
Keating
Kelly (IL)
Kelly (MS)
Kelly (PA)
Khanna
Kiggans (VA)
Kildee
Kiley
Kilmer
Kim (CA)
Kim (NJ)
Krishnamoorthi
Kustoff
LaHood
LaLota
Lamborn
Landsman
Langworthy
Larsen (WA)
Larson (CT)
Latta
LaTurner
Lawler
Lee (FL)
Lee (NV)
Leger Fernandez
Lesko
Letlow
Levin
Lieu
Lofgren
Loudermilk
Luetkemeyer
Luttrell
Lynch
Mace
Malliotakis
Mann
Manning
Massie
Mast
Matsui
McBath
McCarthy
McCaul
McClain
McClellan
McClintock
McCollum
McCormick
McGarvey
McHenry
Meeks
Menendez
Meng
Mfume
Miller (IL)
Miller (OH)
Miller (WV)
Miller-Meeks
Mills
Molinaro
Moolenaar
Mooney
Moore (AL)
Moore (UT)
Moore (WI)
Moran
Morelle
Moskowitz
Moulton
Mrvan
Mullin
Murphy
Nadler
Napolitano
Neal
Neguse
Nehls
Newhouse
Nickel
Norcross
Norman
Nunn (IA)
Obernolte
Ogles
Owens
Pallone
Palmer
Panetta
Pappas
Pascrell
Payne
Pelosi
Pence
Perez
Perry
Peters
Pettersen
Pfluger
Phillips
Pingree
Porter
Posey
Quigley
Raskin
Reschenthaler
Rodgers (WA)
Rogers (AL)
Rogers (KY)
Rose
Rosendale
Ross
Rouzer
Roy
Ruiz
Ruppersberger
Rutherford
Ryan
Salinas
Sánchez
Santos
Sarbanes
Scanlon
Schiff
Schneider
Scholten
Schrier
Schweikert
Scott (VA)
Scott, Austin
Scott, David
Self
Sessions
Sewell
Sherman
Sherrill
Simpson
Slotkin
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (WA)
Smucker
Sorensen
Soto
Spanberger
Spartz
Stansbury
Stanton
Stauber
Steel
Stefanik
Steil
Steube
Stevens
Strickland
Strong
Swalwell
Sykes
Takano
Tenney
Thanedar
Thompson (CA)
Thompson (MS)
Thompson (PA)
Timmons
Titus
Tokuda
Tonko
Torres (CA)
Torres (NY)
Trahan
Turner
Underwood
Valadao
Van Drew
Van Duyne
Van Orden
Vasquez
Veasey
Velázquez
Wagner
Walberg
Waltz
Wasserman Schultz
Waters
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Wexton
Wild
Williams (GA)
Williams (NY)
Williams (TX)
Wilson (FL)
Wilson (SC)
Wittman
Womack
Yakym
Zinke

NAYS—27

Balint
Bowman
Bush
Casar
Clarke (NY)
DeSaulnier
Espaillat
Evans
Frost
García (IL)
Garcia, Robert
Grijalva
Jayapal
Johnson (GA)
Kamlager-Dove
Lee (CA)
Lee (PA)
McGovern
Ocasio-Cortez
Omar
Pocan
Pressley
Ramirez
Schakowsky
Tlaib
Vargas
Watson Coleman

NOT VOTING—13

Crenshaw
Kaptur
Kuster
LaMalfa
Lucas
Luna
Magaziner
Meuser
Peltola
Salazar
Scalise
Tiffany
Trone

□ 1452

Mrs. WATSON COLEMAN, Mr. FROST, Mses. CLARKE of New York and KAMLAGER-DOVE changed their vote from ''yea'' to ''nay.''

So the motion was agreed to.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

Stated for:

Ms. KUSTER. Mr. Speaker, had I been present, I would have voted "yea" on rollcall No. 395.

MOTION TO PERMIT CLOSED CONFERENCE MEETINGS

Mr. ROGERS of Alabama. Mr. Speaker, pursuant to clause 12 of rule XXII, I move that meetings of the conference between the House and Senate on H.R. 2670 may be closed to the public at such times as classified national security information may be discussed, provided that any sitting Member of Congress shall be entitled to attend any meeting of the conference.

The SPEAKER pro tempore. Pursuant to clause 12 of rule XXII, the motion is not debatable, and the yeas and nays are ordered.

This is a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 401, nays 19, not voting 13, as follows:

[Roll No. 396]

YEAS—401

Adams
Aderholt
Aguilar
Alford
Allen
Allred
Amodei
Armstrong
Arrington
Auchincloss
Babin
Baird
Balderson
Banks
Barr
Barragán
Bean (FL)
Beatty
Bentz
Bera
Bergman
Beyer
Bice
Biggs
Bilirakis
Bishop (GA)
Bishop (NC)
Blumenauer
Blunt Rochester
Boebert
Bonamici
Bost
Boyle (PA)
Brown
Brownley
Buchanan
Buck
Bucshon
Budzinski
Burchett
Burgess
Burlison
Calvert
Cammack
Caraveo
Carbajal
Cárdenas
Carey
Carl
Carson
Carter (GA)
Carter (LA)
Carter (TX)
Cartwright
Case
Casten
Castor (FL)
Castro (TX)
Chavez-DeRemer
Cherfilus-McCormick
Chu
Ciscomani
Clark (MA)
Cleaver
Cline
Cloud
Clyburn
Clyde
Cohen
Cole
Collins
Comer
Connolly
Correa
Costa
Courtney
Craig
Crane
Crawford
Crockett
Crow
Cuellar
Curtis
D'Esposito
Davids (KS)
Davidson
Davis (IL)
Davis (NC)
De La Cruz
Dean (PA)
DeGette
DeLauro
DelBene
Deluzio
DeSaulnier
DesJarlais
Diaz-Balart
Dingell
Doggett
Donalds
Duarte
Duncan
Dunn (FL)
Edwards
Ellzey
Emmer
Escobar
Eshoo
Espaillat
Estes
Evans
Ezell
Fallon
Feenstra
Ferguson
Finstad
Fischbach
Fitzgerald
Fitzpatrick
Fleischmann
Fletcher
Flood
Foster
Foushee
Foxx
Frankel, Lois
Franklin, C. Scott
Fry
Fulcher
Gaetz
Gallagher
Gallego
Garamendi
Garbarino
Garcia (TX)
Garcia, Mike
Gimenez
Golden (ME)
Goldman (NY)
Gomez
Gonzales, Tony
Gonzalez, Vicente
Good (VA)
Gooden (TX)
Gosar
Gottheimer
Granger
Graves (LA)
Graves (MO)
Green (TN)
Green, Al (TX)
Greene (GA)
Griffith
Grijalva
Grothman
Guest
Guthrie
Hageman
Harder (CA)
Harris
Harshbarger
Hayes
Hern
Higgins (LA)
Higgins (NY)
Hill
Himes
Hinson
Horsford
Houchin
Houlahan
Hoyer
Hoyle (OR)
Hudson
Huffman
Huizenga
Hunt
Issa
Ivey
Jackson (IL)
Jackson (NC)
Jackson (TX)
Jackson Lee
Jacobs
James
Jeffries
Johnson (LA)
Johnson (OH)
Johnson (SD)
Jordan
Joyce (OH)
Joyce (PA)
Kamlager-Dove
Kean (NJ)
Keating
Kelly (IL)
Kelly (MS)
Kelly (PA)
Khanna
Kiggans (VA)
Kildee
Kiley
Kilmer
Kim (CA)
Kim (NJ)
Krishnamoorthi
Kuster
Kustoff
LaHood
LaLota
LaMalfa
Lamborn
Landsman
Langworthy
Larsen (WA)
Larson (CT)
Latta
LaTurner
Lawler
Lee (FL)
Lee (NV)
Leger Fernandez
Lesko
Letlow
Lieu
Lofgren
Loudermilk
Luetkemeyer
Luttrell
Lynch
Mace
Malliotakis
Mann
Manning
Massie
Mast
Matsui
McBath
McCarthy
McCaul
McClain
McClellan
McClintock
McCollum
McCormick
McGarvey
McGovern
McHenry
Meeks
Menendez
Meng
Meuser
Mfume
Miller (IL)
Miller (OH)
Miller (WV)
Miller-Meeks
Mills
Molinaro
Moolenaar
Mooney
Moore (AL)
Moore (UT)
Moore (WI)
Moran
Morelle
Moskowitz
Moulton
Mrvan
Mullin
Murphy
Nadler
Napolitano
Neal
Neguse
Nehls
Newhouse
Nickel
Norcross
Norman
Nunn (IA)
Obernolte
Ocasio-Cortez
Ogles
Owens
Pallone
Palmer
Panetta
Pappas
Pascrell
Payne
Pelosi
Pence
Perez
Perry
Peters
Pettersen
Pfluger
Phillips
Pingree
Porter
Posey
Quigley
Raskin
Reschenthaler
Rodgers (WA)
Rogers (AL)
Rogers (KY)
Rose
Rosendale
Ross
Rouzer
Roy
Ruiz
Ruppersberger
Rutherford
Ryan
Salazar
Salinas
Sánchez
Santos
Sarbanes
Scanlon
Schakowsky
Schiff
Schneider
Scholten
Schrier
Schweikert
Scott (VA)
Scott, Austin
Scott, David
Self
Sessions
Sherman
Sherrill
Simpson
Slotkin
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (WA)
Smucker
Sorensen
Soto
Spanberger
Spartz
Stansbury
Stanton
Stauber
Steel
Stefanik
Steil
Steube
Stevens
Strickland
Strong
Swalwell
Sykes
Takano
Tenney
Thanedar
Thompson (CA)
Thompson (MS)
Thompson (PA)
Tiffany
Timmons
Titus
Tokuda
Tonko
Torres (CA)
Torres (NY)
Trahan
Turner
Underwood
Valadao
Van Drew
Van Duyne
Van Orden
Vasquez
Velázquez
Wagner
Walberg
Waltz
Wasserman Schultz
Waters
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Wexton
Wild
Williams (GA)
Williams (NY)
Williams (TX)
Wilson (FL)
Wilson (SC)
Wittman
Womack
Yakym
Zinke

NAYS—19

Balint
Bowman
Bush
Casar
Clarke (NY)
Frost
Garcia (IL)
Garcia, Robert
Jayapal
Johnson (GA)
Lee (CA)
Lee (PA)
Omar
Pocan
Pressley
Ramirez
Tlaib
Vargas
Watson Coleman

NOT VOTING—13

Bacon
Brecheen
Crenshaw
Kaptur
Levin
Lucas
Luna
Magaziner
Peltola
Scalise
Sewell
Trone
Veasey

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (during the vote). There are 2 minutes remaining.

□ 1459

So the motion was agreed to.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

Stated for:

Mr. VEASEY. Mr. Speaker, had I been present, I would have voted "yea" on rollcall No. 396.

PROVIDING FOR CONSIDERATION OF H.R. 1435, PRESERVING CHOICE IN VEHICLE PURCHASES ACT AND PROVIDING FOR CONSIDERATION OF H.R. 4365, DEPARTMENT OF DEFENSE APPROPRIATIONS ACT, 2024

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, the unfinished business is the vote on ordering the previous question on the resolution (H. Res. 680) providing for consideration of the bill (H.R. 1435) to amend the Clean Air Act to prevent the elimination of the sale of internal combustion engines, and providing for consideration of the bill (H.R. 4365) making appropriations for the Department of Defense for the fiscal year ending September 30, 2024, and for other purposes, on which the yeas and nays were ordered.

The Clerk read the title of the resolution.

The SPEAKER pro tempore. The question is on ordering the previous question.

This is a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 217, nays 209, not voting 7, as follows:

[Roll No. 397]

YEAS—217

Aderholt
Alford
Allen
Amodei
Armstrong
Arrington
Babin
Bacon
Baird
Balderson
Banks
Barr
Bean (FL)
Bentz
Bergman
Bice
Biggs
Bilirakis
Bishop (NC)
Boebert
Bost
Brecheen
Buchanan
Buck
Bucshon
Burchett
Burgess
Burlison
Calvert
Cammack
Carey
Carl
Carter (GA)
Carter (TX)
Chavez-DeRemer
Ciscomani
Cline
Cloud
Clyde
Cole
Collins
Comer
Crane
Crawford
Curtis
D'Esposito
Davidson
De La Cruz
DesJarlais
Diaz-Balart
Donalds
Duarte
Duncan
Dunn (FL)
Edwards
Ellzey
Emmer
Estes
Ezell
Fallon
Feenstra
Ferguson
Finstad
Fischbach
Fitzgerald
Fitzpatrick
Fleischmann
Flood
Foxx
Franklin, C. Scott
Fry
Fulcher
Gaetz
Gallagher
Garbarino
Garcia, Mike
Gimenez
Gonzales, Tony
Good (VA)
Gooden (TX)
Gosar
Granger
Graves (LA)
Graves (MO)
Green (TN)
Greene (GA)
Griffith
Grothman
Guest
Guthrie
Hageman
Harris
Harshbarger
Hern
Higgins (LA)
Hill
Hinson
Houchin
Hudson
Huizenga
Hunt
Issa
Jackson (TX)
James
Johnson (LA)
Johnson (OH)
Johnson (SD)
Jordan
Joyce (OH)
Joyce (PA)
Kean (NJ)
Kelly (MS)
Kelly (PA)
Kiggans (VA)
Kiley
Kim (CA)
Kustoff
LaHood
LaLota
LaMalfa
Lamborn
Langworthy
Latta
LaTurner
Lawler
Lee (FL)
Lesko
Letlow
Loudermilk
Luetkemeyer
Luttrell
Mace
Malliotakis
Mann
Massie
Mast
McCarthy
McCaul
McClain
McClintock
McCormick
McHenry
Meuser
Miller (IL)
Miller (OH)
Miller (WV)
Miller-Meeks
Mills
Molinaro
Moolenaar
Mooney
Moore (AL)
Moore (UT)
Moran
Murphy
Nehls
Newhouse
Norman
Nunn (IA)
Obernolte
Ogles
Owens
Palmer
Pence
Perry
Pfluger
Posey
Reschenthaler
Rodgers (WA)
Rogers (AL)
Rogers (KY)
Rose
Rosendale
Rouzer
Roy
Rutherford
Salazar
Santos
Schweikert
Scott, Austin
Self
Sessions
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smucker
Spartz
Stauber
Steel
Stefanik
Steil
Steube
Strong
Tenney
Thompson (PA)
Tiffany
Timmons
Turner
Valadao
Van Drew
Van Duyne
Van Orden
Wagner
Walberg
Waltz
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Williams (NY)
Williams (TX)
Wilson (SC)
Wittman
Womack
Yakym
Zinke

NAYS—209

Adams
Aguilar
Allred
Auchincloss
Balint
Barragán
Beatty
Bera
Beyer
Bishop (GA)
Blumenauer
Blunt Rochester
Bonamici
Bowman
Boyle (PA)
Brown
Brownley
Budzinski
Bush
Caraveo
Carbajal
Cárdenas
Carson
Carter (LA)
Cartwright
Casar
Case
Casten
Castor (FL)
Castro (TX)
Cherfilus-McCormick
Chu
Clark (MA)
Clarke (NY)
Cleaver
Clyburn
Cohen
Connolly
Correa
Costa
Courtney
Craig
Crockett
Crow
Cuellar
Davids (KS)
Davis (IL)
Davis (NC)
Dean (PA)
DeGette
DeLauro
DelBene
Deluzio
DeSaulnier
Dingell
Doggett
Escobar
Eshoo
Espaillat
Evans
Fletcher
Foster
Foushee
Frankel, Lois
Frost
Gallego
Garamendi
García (IL)
Garcia (TX)
Garcia, Robert
Golden (ME)
Goldman (NY)
Gomez
Gonzalez, Vicente
Gottheimer
Green, Al (TX)
Grijalva
Harder (CA)
Hayes
Higgins (NY)
Himes
Horsford
Houlahan
Hoyer
Hoyle (OR)
Huffman
Ivey
Jackson (IL)
Jackson (NC)
Jackson Lee
Jacobs
Jayapal
Jeffries
Johnson (GA)
Kamlager-Dove
Keating
Kelly (IL)
Khanna
Kildee
Kilmer
Kim (NJ)
Krishnamoorthi
Kuster
Landsman
Larsen (WA)
Larson (CT)
Lee (CA)
Lee (NV)
Lee (PA)
Leger Fernandez
Levin
Lieu
Lofgren
Lynch
Manning
Matsui
McBath
McClellan
McCollum
McGarvey
McGovern
Meeks
Menendez
Meng
Mfume
Moore (WI)
Morelle
Moskowitz
Moulton
Mrvan
Mullin
Nadler
Napolitano
Neal
Neguse
Nickel
Norcross
Ocasio-Cortez
Omar
Pallone
Panetta
Pappas
Pascrell
Payne
Pelosi
Perez
Peters
Pettersen
Phillips
Pingree
Pocan
Porter
Pressley
Quigley
Ramirez
Raskin
Ross
Ruiz
Ruppersberger
Ryan
Salinas
Sánchez
Sarbanes
Scanlon
Schakowsky
Schiff
Schneider
Scholten
Schrier
Scott (VA)
Scott, David
Sewell
Sherman
Sherrill
Slotkin
Smith (WA)
Sorensen
Soto
Spanberger
Stansbury
Stanton
Stevens
Strickland
Swalwell
Sykes
Takano
Thanedar
Thompson (CA)
Thompson (MS)
Titus
Tlaib
Tokuda
Tonko
Torres (CA)
Torres (NY)
Trahan
Trone
Underwood
Vargas
Vasquez
Veasey
Velázquez
Wasserman Schultz
Waters
Watson Coleman
Wexton
Wild
Williams (GA)
Wilson (FL)

NOT VOTING—7

Crenshaw
Kaptur
Lucas
Luna
Magaziner
Peltola
Scalise

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (during the vote). There are 2 minutes remaining.

□ 1506

Ms. WATERS changed her vote from ''yea'' to ''nay.''

So the previous question was ordered.

The result of the vote was announced as above recorded.

The SPEAKER pro tempore. The question is on the resolution.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

RECORDED VOTE

Ms. LEGER FERNANDEZ. Mr. Speaker, I demand a recorded vote.

A recorded vote was ordered.

The SPEAKER pro tempore. This is a 5-minute vote.

The vote was taken by electronic device, and there were—ayes 212, noes 214, not voting 7, as follows:

[Roll No. 398]

AYES—212

Aderholt
Alford
Allen
Amodei
Armstrong
Arrington
Babin
Bacon
Baird
Balderson
Banks
Barr
Bean (FL)
Bentz
Bergman
Bice
Bilirakis
Boebert
Bost
Brecheen
Buchanan
Bucshon
Burchett
Burgess
Burlison
Calvert
Cammack
Carey
Carl
Carter (GA)
Carter (TX)
Chavez-DeRemer
Ciscomani
Cline
Cloud
Clyde
Cole
Collins
Comer
Crane
Crawford
Curtis
D'Esposito
Davidson
De La Cruz
DesJarlais
Diaz-Balart
Donalds
Duarte
Duncan
Dunn (FL)
Edwards
Ellzey
Emmer
Estes
Ezell
Fallon
Feenstra
Ferguson
Finstad
Fischbach
Fitzgerald
Fitzpatrick
Fleischmann
Flood
Foxx
Franklin, C. Scott
Fry
Fulcher
Gaetz
Gallagher
Garbarino
Garcia, Mike
Gimenez
Gonzales, Tony
Good (VA)
Gooden (TX)
Gosar
Granger
Graves (LA)
Graves (MO)
Green (TN)
Greene (GA)
Griffith
Grothman
Guest
Guthrie
Hageman
Harris
Harshbarger
Hern
Higgins (LA)
Hill
Hinson
Houchin
Hudson
Huizenga
Hunt
Issa
Jackson (TX)
James
Johnson (LA)
Johnson (OH)
Johnson (SD)
Jordan
Joyce (OH)
Joyce (PA)
Kean (NJ)
Kelly (MS)
Kelly (PA)
Kiggans (VA)
Kiley
Kim (CA)
Kustoff
LaHood
LaLota
LaMalfa
Lamborn
Langworthy
Latta
LaTurner
Lawler
Lee (FL)
Lesko
Letlow
Loudermilk
Luetkemeyer
Luttrell
Mace
Malliotakis
Mann
Massie
Mast
McCarthy
McCaul
McClain
McClintock
McCormick
McHenry
Meuser
Miller (IL)
Miller (OH)
Miller (WV)
Miller-Meeks
Mills
Molinaro
Moolenaar
Mooney
Moore (AL)
Moore (UT)
Moran
Murphy

Nehls
Newhouse
Nunn (IA)
Obernolte
Ogles
Owens
Palmer
Pence
Perry
Pfluger
Posey
Reschenthaler
Rodgers (WA)
Rogers (AL)
Rogers (KY)
Rose
Rouzer
Roy
Rutherford
Salazar
Santos
Schweikert
Scott, Austin
Self
Sessions
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smucker
Spartz
Stauber
Steel
Stefanik
Steil
Steube
Strong
Tenney
Thompson (PA)
Tiffany
Timmons
Turner
Valadao
Van Drew
Van Duyne
Van Orden
Wagner
Walberg
Waltz
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Williams (NY)
Williams (TX)
Wilson (SC)
Wittman
Womack
Yakym
Zinke

NOES—214

Adams
Aguilar
Allred
Auchincloss
Balint
Barragán
Beatty
Bera
Beyer
Biggs
Bishop (GA)
Bishop (NC)
Blumenauer
Blunt Rochester
Bonamici
Bowman
Boyle (PA)
Brown
Brownley
Buck
Budzinski
Bush
Caraveo
Carbajal
Cárdenas
Carson
Carter (LA)
Cartwright
Casar
Case
Casten
Castor (FL)
Castro (TX)
Cherfilus-McCormick
Chu
Clark (MA)
Clarke (NY)
Cleaver
Clyburn
Cohen
Connolly
Correa
Costa
Courtney
Craig
Crockett
Crow
Cuellar
Davids (KS)
Davis (IL)
Davis (NC)
Dean (PA)
DeGette
DeLauro
DelBene
Deluzio
DeSaulnier
Dingell
Doggett
Escobar
Eshoo
Espaillat
Evans
Fletcher
Foster
Foushee
Frankel, Lois
Frost
Gallego
Garamendi
García (IL)
Garcia (TX)
Garcia, Robert
Golden (ME)
Goldman (NY)
Gomez
Gonzalez, Vicente
Gottheimer
Green, Al (TX)
Grijalva
Harder (CA)
Hayes
Higgins (NY)
Himes
Horsford
Houlahan
Hoyer
Hoyle (OR)
Huffman
Ivey
Jackson (IL)
Jackson (NC)
Jackson Lee
Jacobs
Jayapal
Jeffries
Johnson (GA)
Kamlager-Dove
Keating
Kelly (IL)
Khanna
Kildee
Kilmer
Kim (NJ)
Krishnamoorthi
Kuster
Landsman
Larsen (WA)
Larson (CT)
Lee (CA)
Lee (NV)
Lee (PA)
Leger Fernandez
Levin
Lieu
Lofgren
Lynch
Manning
Matsui
McBath
McClellan
McCollum
McGarvey
McGovern
Meeks
Menendez
Meng
Mfume
Moore (WI)
Morelle
Moskowitz
Moulton
Mrvan
Mullin
Nadler
Napolitano
Neal
Neguse
Nickel
Norcross
Norman
Ocasio-Cortez
Omar
Pallone
Panetta
Pappas
Pascrell
Payne
Pelosi
Perez
Peters
Pettersen
Phillips
Pingree
Pocan
Porter
Pressley
Quigley
Ramirez
Raskin
Rosendale
Ross
Ruiz
Ruppersberger
Ryan
Salinas
Sánchez
Sarbanes
Scanlon
Schakowsky
Schiff
Schneider
Scholten
Schrier
Scott (VA)
Scott, David
Sewell
Sherman
Sherrill
Slotkin
Smith (WA)
Sorensen
Soto
Spanberger
Stansbury
Stanton
Stevens
Strickland
Swalwell
Sykes
Takano
Thanedar
Thompson (CA)
Thompson (MS)
Titus
Tlaib
Tokuda
Tonko
Torres (CA)
Torres (NY)
Trahan
Trone
Underwood
Vargas
Vasquez
Veasey
Velázquez
Wasserman Schultz
Waters
Watson Coleman
Wexton
Wild
Williams (GA)
Wilson (FL)

NOT VOTING—7

Crenshaw
Kaptur
Lucas
Luna
Magaziner
Peltola
Scalise

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (during the vote). There are 2 minutes remaining.

□ 1526

So the resolution was not agreed to.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

BENEFITS FOR CERTAIN CHILDREN OF VIETNAM VETERANS AND CERTAIN OTHER VETERANS

The SPEAKER pro tempore. The unfinished business is the question on suspending the rules and passing the bill (S. 112) to amend title 38, United States Code, to strengthen benefits for children of Vietnam veterans born with spina bifida, and for other purposes.

The Clerk read the title of the bill.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Illinois (Mr. BOST) that the House suspend the rules and pass the bill.

The question was taken.

The SPEAKER pro tempore. In the opinion of the Chair, two-thirds being in the affirmative, the ayes have it.

Mr. BOST. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. This is a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 422, nays 0, not voting 11, as follows:

[Roll No. 399]

YEAS—422

Adams
Aderholt
Aguilar
Alford
Allen
Allred
Amodei
Armstrong
Arrington
Auchincloss
Babin
Bacon
Baird
Balderson
Balint
Banks
Barr
Barragán
Bean (FL)
Beatty
Bera
Bergman
Beyer
Bice
Biggs
Bilirakis
Bishop (GA)
Bishop (NC)
Blumenauer
Blunt Rochester
Boebert
Bonamici
Bost
Bowman
Boyle (PA)
Brecheen
Brown
Brownley
Buchanan
Buck
Bucshon
Budzinski
Burchett
Burgess
Burlison
Bush
Calvert
Cammack
Caraveo
Carbajal
Cárdenas
Carey
Carl
Carson
Carter (GA)
Carter (LA)
Carter (TX)
Cartwright
Casar
Case
Casten
Castor (FL)
Castro (TX)
Chavez-DeRemer
Cherfilus-McCormick
Chu
Ciscomani
Clark (MA)
Clarke (NY)
Cleaver
Cline
Cloud
Clyburn
Clyde
Cohen
Cole
Collins
Comer
Connolly
Correa
Costa
Courtney
Craig
Crane
Crawford
Crockett
Crow
Cuellar
Curtis
D'Esposito
Davids (KS)
Davidson
Davis (IL)
Davis (NC)
De La Cruz
Dean (PA)
DeGette
DeLauro
DelBene
Deluzio
DeSaulnier
DesJarlais
Diaz-Balart
Dingell
Doggett
Donalds
Duarte
Duncan
Dunn (FL)
Edwards
Ellzey
Emmer
Escobar
Eshoo
Espaillat
Estes
Evans
Ezell
Fallon
Feenstra
Ferguson
Finstad
Fischbach
Fitzgerald
Fitzpatrick
Fleischmann
Fletcher
Flood
Foster
Foushee
Foxx
Frankel, Lois
Franklin, C. Scott
Frost
Fry
Fulcher
Gaetz
Gallagher
Gallego
Garamendi
Garbarino
García (IL)
Garcia (TX)
Garcia, Mike
Garcia, Robert
Gimenez
Golden (ME)
Goldman (NY)
Gomez
Gonzales, Tony
Gonzalez, Vicente
Good (VA)
Gooden (TX)
Gosar
Gottheimer
Granger
Graves (LA)
Graves (MO)
Green (TN)
Green, Al (TX)
Greene (GA)
Griffith
Grijalva
Grothman
Guest
Guthrie
Hageman
Harder (CA)
Harris
Harshbarger
Hayes
Hern
Higgins (LA)
Higgins (NY)
Hill
Himes
Hinson
Horsford
Houchin
Houlahan
Hoyer
Hoyle (OR)
Hudson
Huffman
Huizenga
Hunt
Issa
Ivey
Jackson (IL)
Jackson (NC)
Jackson (TX)
Jackson Lee
Jacobs
James
Jayapal
Jeffries
Johnson (GA)
Johnson (LA)
Johnson (OH)
Johnson (SD)
Jordan
Joyce (OH)
Joyce (PA)
Kamlager-Dove
Kean (NJ)
Keating
Kelly (IL)
Kelly (MS)
Kelly (PA)
Khanna
Kiggans (VA)
Kildee
Kiley
Kilmer
Kim (CA)
Kim (NJ)
Krishnamoorthi
Kuster
Kustoff
LaHood
LaLota
LaMalfa
Lamborn
Landsman
Langworthy
Larsen (WA)
Larson (CT)
Latta
LaTurner
Lawler
Lee (CA)
Lee (FL)
Lee (NV)
Lee (PA)
Leger Fernandez
Lesko
Letlow
Levin
Lieu
Lofgren
Loudermilk
Luetkemeyer
Luttrell
Lynch
Mace
Malliotakis
Mann
Manning
Massie
Mast
Matsui
McBath
McCarthy
McCaul
McClain
McClellan
McClintock
McCollum
McCormick
McGarvey
McGovern
McHenry
Meeks
Menendez
Meng
Meuser
Mfume
Miller (IL)
Miller (OH)
Miller (WV)
Miller-Meeks
Mills
Molinaro
Moolenaar
Mooney
Moore (AL)
Moore (UT)
Moore (WI)
Moran
Morelle
Moskowitz
Moulton
Mrvan
Mullin
Murphy
Nadler
Napolitano
Neal
Neguse
Nehls
Newhouse
Nickel
Norcross
Norman
Nunn (IA)
Obernolte
Ocasio-Cortez
Ogles
Omar
Owens
Pallone
Palmer
Panetta
Pappas
Pascrell
Payne
Pelosi
Pence
Perez
Perry
Peters
Pettersen
Phillips
Pingree
Pocan
Porter
Posey
Pressley
Quigley
Ramirez
Raskin
Reschenthaler
Rodgers (WA)
Rogers (AL)
Rogers (KY)
Rose
Rosendale
Ross
Rouzer
Roy
Ruiz
Ruppersberger
Rutherford
Ryan
Salazar
Salinas
Sánchez
Santos
Sarbanes
Scanlon
Schakowsky
Schiff
Schneider
Scholten
Schrier
Schweikert
Scott (VA)
Scott, Austin
Scott, David
Self
Sessions
Sewell
Sherman
Sherrill
Simpson
Slotkin
Smith (MO)
Smith (NJ)
Smith (WA)
Smucker
Sorensen
Soto
Spanberger
Spartz
Stansbury
Stanton
Stauber
Steel
Stefanik
Steil
Steube
Stevens
Strickland
Strong
Swalwell
Sykes
Takano
Tenney
Thanedar
Thompson (CA)
Thompson (MS)
Thompson (PA)
Tiffany
Timmons
Titus
Tlaib
Tokuda
Tonko
Torres (CA)
Torres (NY)
Trahan
Trone
Turner
Underwood
Valadao
Van Drew
Van Duyne
Van Orden
Vargas
Vasquez
Veasey
Velázquez
Wagner
Walberg
Waltz
Wasserman Schultz
Watson Coleman

Weber (TX)	Wild	Wilson (SC)
Webster (FL)	Williams (GA)	Wittman
Wenstrup	Williams (NY)	Womack
Westerman	Williams (TX)	Yakym
Wexton	Wilson (FL)	Zinke

NOT VOTING—11

Bentz	Luna	Scalise
Crenshaw	Magaziner	Smith (NE)
Kaptur	Peltola	Waters
Lucas	Pfluger	

□ 1538

So (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

APPOINTMENT OF CONFEREES ON H.R. 2670, NATIONAL DEFENSE AUTHORIZATION ACT FOR FISCAL YEAR 2024

The SPEAKER pro tempore (Mrs. FISCHBACH). Without objection, the Chair appoints the following conferees on H.R. 2670:

From the Committee on Armed Services, for consideration of the House bill and the Senate amendment, and modifications committed to conference: Messrs. Rogers of Alabama, Wilson of South Carolina, Lamborn, Wittman, Austin Scott of Georgia, Ms. Stefanik, Messrs. DesJarlais, Kelly of Mississippi, Gallagher, Gaetz, Bacon, Banks, Bergman, Waltz, Johnson of Louisiana, Mrs. McClain, Mr. Jackson of Texas, Fallon, Gimenez, Mses. Mace and Greene of Georgia, Messrs. Smith of Washington, Courtney, Garamendi, Norcross, Gallego, Moulton, Carbajal, Khanna, Keating, Kim of New Jersey, Mses. Houlahan, Slotkin, Sherrill, and Escobar.

From the Permanent Select Committee on Intelligence, for consideration of matters within the jurisdiction of that committee under clause 11 of rule X: Messrs. Turner, Wenstrup, and Himes.

From the Committee on Education and the Workforce, for consideration of secs. 636, 651–55, 658–61, 1041, and 1042 of the House bill and secs. 303, 563, 592, 593, 1079, 1090K, 1099JJ, 1726, and 3142 of the Senate amendment and modifications committed to conference: Ms. Foxx, Messrs. Owens and Scott of Virginia.

From the Committee on Energy and Commerce, for consideration of secs. 224, 749, and 3121 of the House bill, and secs. 314, 712 of division A, 1087, 1088, 1090A, 1090G, 1099II, 3122–24, 3143, 3144, 6074, 8141, and sec. 11009 of division J of the Senate amendment and modifications committed to conference: Messrs. Carter of Georgia, Pfluger, and Pallone.

From the Committee on Financial Services, for consideration of subtitle J of title X of division A, sec. 1086, title LXVIII of division F, division I, and division J of the Senate amendment, and modifications committed to conference: Messrs. McHenry and Luetkemeyer, and Ms. Waters.

From the Committee on Foreign Affairs, for consideration of secs. 217, 1009, 1080K, 1210, 1211, 1213, 1214, 1216, 1220, 1220A, 1220C, 1220G, 1220K, 1220L, 1221–24, 1234, 1245, 1250, 1310L, 1505, and 1883 of the House bill, and secs. 212, 1085, 1302, 1397, 1399B, 1399D, 1399E, 1399F, 1399I, 1399J, 1399K, 1399L, subtitles H–K of title XIII of division A, secs. 1634, 6031, 6242, 6293, division F, and secs. 11104 and 11105 of the Senate amendment and modifications committed to conference: Messrs. McCaul, McCormick, and Meeks.

From the Committee on the Judiciary, for consideration of secs. 542, 822, 1049, 1689, and 3116 of the House bill, and secs. 1041, 1090H, subtitles I and K of title X of division A, subtitle I of title XIII of division A, secs. 6031, 6075, 6082, 6084, subtitle H of title LX of division E, secs. 6813, 6816, 6821, 6831 of division E, secs. 9007, 9011, 9012, 9014, and title LXXI of the Senate amendment and modifications committed to conference: Mr. Issa, Ms. Lee of Florida, and Mr. Nadler.

From the Committee on Natural Resources, for consideration of secs. 261, 510, 1853, 1865, 2843, 2844, 2847, and 3515 of the House bill, and secs. 312, 1041, 1090G, 2805, 6711, 11002 of division J, division K, and sec. 11341 of the Senate amendment and modifications committed to conference: Mr. Carl, Ms. Hageman, and Mr. Grijalva.

From the Committee on Oversight and Accountability, for consideration of secs. 364, 834, 891, 899C, 921, 922, 1047, 1101–10, 1116–18, 1122, 1221, 1222, 1521, 1523, 1805, and 1880 of the House bill, and secs. 537, 867, subtitle H of title X of division A, secs. 1201–03, 1206–09, 1211–13, 1215, 1512, 11133, 6101, 6202, 6203, 6607, sec. 6831 of division E, 8141, 9005, 11331–33, and secs. 601, 603, 605, 703, 704, 715–18, 802, and 1001 of division M, and secs. 11001 and 11002 of division L of the Senate amendment and modifications committed to conference: Messrs. Grothman, Perry, and Raskin.

From the Committee on Science, Space, and Technology, for consideration of secs. 886, 1608, 1875, and 1879 of the House bill, and secs. 308, 845, 1090E, 1090G, 3144, 5204, and title X of division M of the Senate amendment, and modifications committed to conference: Messrs. Mike Garcia of California and Collins, and Ms. Lofgren.

From the Committee on Small Business, for consideration of secs. 223, 853, 881, 882, 884, and 886 of the House bill, and secs. 141, 823, 831, 841–45, 849–52, and 5841 of the Senate amendment, and modifications committed to conference: Messrs. Molinaro and Alford, and Ms. Velazquez.

From the Committee on Transportation and Infrastructure, for consideration of secs. 315, 707, 723, 866, 1602, 1608, 1804, 1854, 3501, 3511–13, 3515, 3531, and 3533 of the House bill, and secs. 314, 1083, 1090D, 1399N, 1606, 1644, 2814, title XXXV of division C, secs. 6079, 6226, 8141, and division H of the Senate amendment, and modifications committed to conference: Messrs. Graves of Missouri, Webster of Florida, and Larsen of Washington.

From the Committee on Veterans' Affairs, for consideration of secs. 571, 572, 579, 1118, 1413, 1733, and 1885 of the House bill, and secs. 1084, 1090B, 1521, 1833, 1852, 6071, 6077, and 11020 of the Senate amendment, and modifications committed to conference: Messrs. Bost, Luttrell, and Takano.

There was no objection.

□ 1545

PAID SICK LEAVE FOR RAILROAD WORKERS

(Mr. PAYNE asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. PAYNE. Madam Speaker, I rise today to discuss the need for the Freight Rail Workforce Health and Safety Act.

I introduced this bill to give our critical railroad workers 7 days of paid sick leave. It would allow them to care for their health and the health of family members without using their vacation time. It is a benefit enjoyed by millions of American workers every single day. Yet, for some reason, railroad companies have refused to provide it to railroad workers, but they do provide it to railroad management.

Our railroad workers should have the right to paid sick leave. They risked their health and safety to keep food and medicine on store shelves during the COVID–19 pandemic.

This bill would allow them to take care of their health without worrying about their income, and I encourage all of my colleagues to support it.

We have it here in the Congress, our staff has it here in the Congress. The railroad workers need it as well.

REPRODUCTIVE FREEDOM FOR SERVICEWOMEN

(Ms. LOIS FRANKEL of Florida asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. LOIS FRANKEL of Florida. Madam Speaker, my, my, my.

The Republican attacks on reproductive freedom never end. The latest target: our servicewomen in the military. Many of our over 500 military bases are located in States that now ban or severely restrict abortion. That is why the Department of Defense established a travel allowance for servicemembers and dependents who need to go to another State to access an abortion.

Now, shamelessly, the Republicans are seeking to block that effort. These military women leave their homes, families, and friends. They train hard. They have dreams and goals.

We trust them with Black Hawks and Special Ops. We should trust them with the very personal decision of whether or when to start a family. They stand for our freedom. It is time for us to stand for theirs.

ADJOURNMENT

Mr. KELLY of Pennsylvania. Madam Speaker, I move that the House do now adjourn.

The motion was agreed to; accordingly (at 3 o'clock and 54 minutes p.m.), under its previous order, the House adjourned until tomorrow, Wednesday, September 20, 2023, at 10 a.m. for morning-hour debate.

REPORTS OF COMMITTEES ON PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XIII, reports of committees were delivered to the Clerk for printing and reference to the proper calendar, as follows:

Mr. RESCHENTHALER: Committee on Rules. House Resolution 699. Resolution providing for consideration of the bill (H.R. 1130) to repeal restrictions on the export and import of natural gas; providing for consideration of the resolution (H. Res. 684) condemning the actions of Governor of New Mexico, Michelle Lujan Grisham, for subverting the Second Amenment to the Constitution and depriving the citizens of New Mexico of their right to bear arms; and providing for consideration of the bill (H.R. 5525)

making continuing appropriations for fiscal year 2024, and for other purposes (Rept. 118–201). Referred to the House Calendar and ordered to be printed.

Mr. WILLIAMS of Texas: Committee on Small Business. H.R. 3511. A bill to amend the Small Business Act to require training on increasing contract awards to small business concerns owned and controlled by service-disabled veterans, and for other purposes (Rept. 118–202). Referred to the Committee of the Whole House on the state of the Union.

PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XII, public bills and resolutions of the following titles were introduced and severally referred, as follows:

By Ms. SEWELL (for herself, Mr. JEFFRIES, Ms. CLARK of Massachusetts, Mr. AGUILAR, Mr. CLYBURN, Mr. HORSFORD, Ms. BARRAGÁN, Ms. CHU, Mr. NADLER, Mr. MORELLE, Mr. VEASEY, Mr. SCOTT of Virginia, Ms. WILLIAMS of Georgia, Ms. JACKSON LEE, Mr. LARSEN of Washington, Ms. ADAMS, Mrs. BEATTY, Mr. CARTWRIGHT, Mr. CASTRO of Texas, Mr. BISHOP of Georgia, Mr. GREEN of Texas, Mr. GRIJALVA, Mr. JOHNSON of Georgia, Ms. LEE of California, Ms. BONAMICI, Mr. CARBAJAL, Mr. CARSON, Ms. CASTOR of Florida, Ms. CLARKE of New York, Mrs. DINGELL, Mr. FOSTER, Mr. GALLEGO, Mr. HIGGINS of New York, Ms. WATERS, Mr. LARSON of Connecticut, Mr. LIEU, Mr. MCGOVERN, Mr. MEEKS, Ms. MOORE of Wisconsin, Ms. NORTON, Mr. PALLONE, Mr. PAYNE, Mr. POCAN, Mr. RASKIN, Mr. SMITH of Washington, Mr. TAKANO, Mr. THOMPSON of Mississippi, Mr. TONKO, Mr. VARGAS, Ms. VELÁZQUEZ, Ms. WASSERMAN SCHULTZ, Mrs. WATSON COLEMAN, Ms. WILSON of Florida, Mr. ALLRED, Mr. AUCHINCLOSS, Ms. BALINT, Mr. BERA, Mr. BEYER, Mr. BLUMENAUER, Ms. BLUNT ROCHESTER, Mr. BOWMAN, Mr. BOYLE of Pennsylvania, Ms. BROWN, Ms. BROWNLEY, Ms. BUDZINSKI, Ms. BUSH, Ms. CARAVEO, Mr. CÁRDENAS, Mr. CARTER of Louisiana, Mr. CASAR, Mr. CASE, Mr. CASTEN, Mrs. CHERFILUS-MCCORMICK, Mr. CLEAVER, Mr. COHEN, Mr. CONNOLLY, Mr. CORREA, Mr. COSTA, Mr. COURTNEY, Ms. CRAIG, Ms. CROCKETT, Mr. CROW, Mr. CUELLAR, Ms. DAVIDS of Kansas, Mr. DAVIS of Illinois, Mr. DAVIS of North Carolina, Ms. DEAN of Pennsylvania, Ms. DEGETTE, Ms. DELAURO, Ms. DELBENE, Mr. DELUZIO, Mr. DESAULNIER, Mr. DOGGETT, Ms. ESCOBAR, Ms. ESHOO, Mr. ESPAILLAT, Mr. EVANS, Mrs. FLETCHER, Mrs. FOUSHEE, Ms. LOIS FRANKEL of Florida, Mr. FROST, Mr. GARAMENDI, Mr. ROBERT GARCIA of California, Ms. GARCIA of Texas, Mr. GARCÍA of Illinois, Mr. GOLDEN of Maine, Mr. GOLDMAN of New York, Mr. GOMEZ, Mr. VICENTE GONZALEZ of Texas, Mr. GOTTHEIMER, Mrs. HAYES, Ms. HOULAHAN, Mr. HOYER, Ms. HOYLE of Oregon, Mr. IVEY, Mr. JACKSON of North Carolina, Mr. JACKSON of Illinois, Ms. JACOBS, Ms. JAYAPAL, Ms. KAMLAGER-DOVE, Ms. KAPTUR, Mr. KEATING, Ms. KELLY of Illinois, Mr. KILDEE, Mr. KILMER, Mr. KIM of New Jersey, Ms. KUSTER, Mr. LANDSMAN, Ms. LEE of Pennsylvania, Ms. LEE of Nevada, Ms. LEGER FERNANDEZ, Mr. LEVIN, Ms. LOFGREN, Mr. LYNCH, Mr. MAGAZINER, Ms. MANNING, Mrs. MCBATH, Ms. MCCLELLAN, Ms. MCCOLLUM, Mr. MCGARVEY, Mr. MENENDEZ, Ms. MENG, Mr. MFUME, Mr. MOSKOWITZ, Mr. MRVAN, Mr. MULLIN, Mr. HARDER of California, Mr. HUFFMAN, Mr. KHANNA, Mr. KRISHNAMOORTHI, Mrs. NAPOLITANO, Mr. NEAL, Mr. NEGUSE, Mr. NICKEL, Mr. NORCROSS, Ms. OMAR, Mr. PANETTA, Mr. PAPPAS, Mr. PASCRELL, Ms. PELOSI, Mrs. PELTOLA, Ms. PEREZ, Mr. PETERS, Ms. PETTERSEN, Mr. PHILLIPS, Ms. PINGREE, Ms. PLASKETT, Ms. PORTER, Ms. PRESSLEY, Mr. QUIGLEY, Mrs. RAMIREZ, Ms. ROSS, Mr. RUPPERSBERGER, Mr. RYAN, Mr. SABLAN, Ms. SALINAS, Ms. SÁNCHEZ, Mr. SARBANES, Ms. SCANLON, Ms. SCHAKOWSKY, Mr. SCHIFF, Mr. SCHNEIDER, Ms. SCHOLTEN, Ms. SCHRIER, Mr. DAVID SCOTT of Georgia, Mr. SHERMAN, Ms. SHERRILL, Ms. SLOTKIN, Mr. SORENSEN, Mr. SOTO, Ms. SPANBERGER, Ms. STANSBURY, Mr. STANTON, Ms. STEVENS, Ms. STRICKLAND, Mr. SWALWELL, Mrs. SYKES, Mr. THOMPSON of California, Ms. TITUS, Ms. TLAIB, Ms. TOKUDA, Mrs. TORRES of California, Mr. TORRES of New York, Mrs. TRAHAN, Mr. TRONE, Ms. UNDERWOOD, Mr. VASQUEZ, Ms. WEXTON, Ms. WILD, Mr. HIMES, Ms. MATSUI, Mr. MOULTON, Mr. RUIZ, Mr. THANEDAR, and Ms. OCASIO-CORTEZ):

H.R. 14. A bill to amend the Voting Rights Act of 1965 to revise the criteria for determining which States and political subdivisions are subject to section 4 of the Act, and for other purposes; to the Committee on the Judiciary.

By Mrs. MILLER-MEEKS (for herself, Mr. TONKO, and Mrs. HINSON):

H.R. 5555. A bill to direct the Secretary of Health and Human Services to provide for certain adjustments to Medicare payment for items of durable medical equipment that were formerly included in round 2021 of the DMEPOS competitive bidding program; to the Committee on Energy and Commerce, and in addition to the Committee on Ways and Means, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. CURTIS:

H.R. 5556. A bill to make exclusive the authority of the Federal Government to regulate the labeling of products made in the United States and introduced in interstate or foreign commerce, and for other purposes; to the Committee on Energy and Commerce.

By Mr. HIMES:

H.R. 5557. A bill to impose sanctions against certain persons engaged in the proliferation or use of foreign commercial spyware, and for other purposes; to the Committee on Foreign Affairs, and in addition to the Committees on the Judiciary, and Financial Services, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. BOST:

H.R. 5558. A bill to establish the Prairie du Rocher French Colonial National Historical Park in the State of Illinois, and for other purposes; to the Committee on Natural Resources.

By Mr. BOST:

H.R. 5559. A bill to amend title 38, United States Code, to establish certain rules of evidence in certain claims under laws administered by the Secretary of Veterans Affairs; to the Committee on Veterans' Affairs.

By Ms. CHU (for herself, Mr. SMITH of Washington, Ms. CROCKETT, Ms. BONAMICI, Mr. JOHNSON of Georgia, Ms. CLARKE of New York, Ms. MENG, Ms. JAYAPAL, Mr. GARCÍA of Illinois, Ms. SCHAKOWSKY, Mr. QUIGLEY, Mr. TAKANO, Mr. CASTRO of Texas, Ms. BARRAGÁN, Ms. WASSERMAN SCHULTZ, Mr. LIEU, Ms. CASTOR of Florida, Ms. TOKUDA, Mr. GOMEZ, Ms. MATSUI, Mr. SCHIFF, Ms. OMAR, Mr. RASKIN, Mr. FROST, Mr. NADLER, Mr. VARGAS, Mr. KRISHNAMOORTHI, Mr. BOWMAN, Ms. BALINT, Mrs. RAMIREZ, Mr. GREEN of Texas, Ms. VELÁZQUEZ, Ms. SÁNCHEZ, Ms. NORTON, Mr. CASAR, Mr. MCGOVERN, and Mr. ESPAILLAT):

H.R. 5560. A bill to amend the Immigration and Nationality Act to promote family unity, and for other purposes; to the Committee on the Judiciary.

By Mr. CLOUD (for himself, Mr. ARRINGTON, Mr. DAVIDSON, Mr. CRAWFORD, Mr. ROSENDALE, Mr. WOMACK, Mr. WALBERG, Ms. VAN DUYNE, Mr. NORMAN, Mr. ROGERS of Alabama, Mr. BISHOP of North Carolina, Mr. OGLES, Mrs. BOEBERT, Mr. ADERHOLT, Mr. KELLY of Pennsylvania, Mrs. LESKO, Mr. HIGGINS of Louisiana, Mr. GOODEN of Texas, Mr. YAKYM, Mr. GALLAGHER, Mr. KUSTOFF, Mr. FITZGERALD, Mr. FEENSTRA, Mrs. MILLER of Illinois, Mr. GROTHMAN, Mrs. HINSON, Mr. SESSIONS, Mr. HARRIS, Mr. MOONEY, and Mr. STEIL):

H.R. 5561. A bill to prohibit the President and the Secretary of Health and Human Services from declaring certain emergencies or disasters for the purpose of imposing gun control; to the Committee on Transportation and Infrastructure, and in addition to the Committee on Energy and Commerce, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. DAVIS of Illinois (for himself and Mr. KRISHNAMOORTHI):

H.R. 5562. A bill to amend the Higher Education Act of 1965 to provide formula grants to States to improve higher education opportunities for foster youth and homeless youth, and for other purposes; to the Committee on Education and the Workforce.

By Ms. DELAURO (for herself, Ms. SCHAKOWSKY, Ms. NORTON, Ms. LEE of California, Ms. BUDZINSKI, Mr. DAVIS of Illinois, Mr. CLEAVER, and Mr. LYNCH):

H.R. 5563. A bill to permit employees to request changes to their work schedules without fear of retaliation and to ensure that employers consider these requests, and to require employers to provide more predictable and stable schedules for employees in certain occupations with evidence of unpredictable and unstable scheduling practices that negatively affect employees, and for other purposes; to the Committee on Education and the Workforce, and in addition to the Committees on House Administration, Oversight and Accountability, and the Judiciary, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. DOGGETT (for himself, Mr. BLUMENAUER, Ms. BONAMICI, Ms. CHU, Ms. CLARKE of New York, Mr. CLEAVER, Mr. COHEN, Mr. ESPAILLAT, Mr. GOMEZ, Ms. JACKSON LEE, Ms. JAYAPAL, Mr. JOHNSON of Georgia, Mr. KRISHNAMOORTHI, Mr. LARSON of Connecticut, Ms. LEE of California, Mr. LIEU, Mr. NADLER, Ms. NORTON, Mr. PAYNE, Ms. PINGREE, Mr.

QUIGLEY, Mr. RASKIN, Ms. SÁNCHEZ, Mr. SCHIFF, Mrs. WATSON COLEMAN, and Ms. WILSON of Florida):

H.R. 5564. A bill to amend the Internal Revenue Code of 1986 to establish an excise tax on plastics; to the Committee on Ways and Means, and in addition to the Committees on Energy and Commerce, Natural Resources, and Transportation and Infrastructure, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. FITZGERALD (for himself, Mr. HERN, and Mr. NUNN of Iowa):

H.R. 5565. A bill to require a report regarding the scope of efforts by the People's Republic of China and Chinese Communist Party to utilize the Belt and Road Initiative to undermine the United States-led international world order and a detailed strategy regarding how the United States Government intends to counter such Initiative, and for other purposes; to the Committee on Foreign Affairs.

By Mr. JOHNSON of Georgia (for himself, Ms. SCHAKOWSKY, Mr. SCHIFF, Ms. LEE of California, Mr. THANEDAR, Mr. NADLER, and Mr. GOLDMAN of New York):

H.R. 5566. A bill to amend title 28, United States Code, to provide for the duration of active service of justices of the Supreme Court, and for other purposes; to the Committee on the Judiciary.

By Mr. JOYCE of Ohio (for himself, Ms. STEFANIK, Mr. CASE, Mr. WILLIAMS of New York, Mr. DIAZ-BALART, Mr. ARMSTRONG, Mr. BALDERSON, Mr. D'ESPOSITO, Mr. GIMENEZ, Mrs. MCCLAIN, Mr. CAREY, Mrs. HINSON, and Mrs. GONZÁLEZ-COLÓN):

H.R. 5567. A bill to prohibit elementary and secondary schools from accepting funds from or entering into contracts with the Government of the People's Republic of China and the Chinese Communist Party, and for other purposes; to the Committee on Education and the Workforce.

By Ms. KELLY of Illinois (for herself, Ms. DEAN of Pennsylvania, Ms. SEWELL, Mr. VEASEY, Mr. JOHNSON of Georgia, Ms. PLASKETT, Mr. TRONE, Ms. CLARKE of New York, Ms. LEE of California, Ms. NORTON, Mrs. CHERFILUS-MCCORMICK, Mr. COHEN, Mr. JACKSON of Illinois, Mr. PAYNE, Mr. BISHOP of Georgia, Mrs. WATSON COLEMAN, Ms. SCHAKOWSKY, Ms. CROCKETT, Mr. GRIJALVA, Ms. JACKSON LEE, Mr. EVANS, Mr. DAVIS of North Carolina, Ms. MENG, Mr. VARGAS, Ms. MOORE of Wisconsin, and Mr. NADLER):

H.R. 5568. A bill to improve Federal efforts with respect to the prevention of maternal mortality, and for other purposes; to the Committee on Energy and Commerce, and in addition to the Committees on Education and the Workforce, and Ways and Means, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. LANDSMAN (for himself, Ms. BONAMICI, Mr. CUELLAR, Ms. PRESSLEY, Ms. JACOBS, and Mr. NEGUSE):

H.R. 5569. A bill to amend the Richard B. Russell National School Lunch Act with respect to reimbursements under the child and adult care food program, and for other purposes; to the Committee on Education and the Workforce.

By Mr. MILLS (for himself and Ms. KAMLAGER-DOVE):

H.R. 5570. A bill to establish and implement a multi-year Legal Gold and Mining Partnership Strategy to reduce the negative environmental and social impacts of illicit gold mining in the Western Hemisphere, and for other purposes; to the Committee on Foreign Affairs, and in addition to the Committee on Financial Services, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. NORMAN (for himself and Mr. GROTHMAN):

H.R. 5571. A bill to amend the Congressional Budget and Impoundment Control Act of 1974 to provide for fair-value credit estimates, and for other purposes; to the Committee on the Budget, and in addition to the Committee on Rules, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. OCASIO-CORTEZ (for herself, Mr. CASAR, Mr. KHANNA, Mr. NADLER, Ms. NORTON, Ms. PRESSLEY, Mr. CÁRDENAS, Mr. MULLIN, Ms. STANSBURY, Ms. TOKUDA, Mrs. NAPOLITANO, Ms. SCHAKOWSKY, Mr. CONNOLLY, Mr. CLEAVER, Ms. CROCKETT, Mr. ROBERT GARCIA of California, Mrs. RAMIREZ, Mr. PAYNE, Ms. WILSON of Florida, Mr. MCGOVERN, Mr. ESPAILLAT, Mr. FROST, Mr. RASKIN, Ms. BARRAGÁN, Ms. VELÁZQUEZ, Mr. GOMEZ, Mr. DESAULNIER, Ms. LEE of California, Ms. CLARKE of New York, Mr. GRIJALVA, Mrs. WATSON COLEMAN, Mr. BOWMAN, Mr. LIEU, Mr. MCGARVEY, Mr. POCAN, Ms. LEE of Pennsylvania, Mr. HUFFMAN, Mr. TRONE, Ms. MENG, Ms. OMAR, Mr. DOGGETT, Ms. TLAIB, Ms. JAYAPAL, Ms. BUSH, Mr. TONKO, and Mr. COHEN):

H.R. 5572. A bill to amend the National and Community Service Act of 1990 to establish a Civilian Climate Corps to help communities respond to climate change and transition to a clean economy, and for other purposes; to the Committee on Education and the Workforce, and in addition to the Committee on Ways and Means, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. OMAR (for herself, Mr. BOWMAN, Mr. JOHNSON of Georgia, Ms. CROCKETT, Ms. NORTON, Mrs. WATSON COLEMAN, Ms. MOORE of Wisconsin, Ms. JACOBS, Ms. PRESSLEY, Ms. LEE of California, Ms. TLAIB, Ms. WILLIAMS of Georgia, Ms. CLARKE of New York, Mr. VARGAS, Ms. ADAMS, Mr. CARTER of Louisiana, Mr. TORRES of New York, Mr. CLEAVER, Ms. MCCOLLUM, Ms. KAMLAGER-DOVE, Mr. LYNCH, Ms. KELLY of Illinois, Mrs. BEATTY, Mrs. DINGELL, Mr. LIEU, Mrs. RAMIREZ, Mr. CARSON, Ms. SEWELL, Ms. OCASIO-CORTEZ, Mr. PAYNE, Ms. CASTOR of Florida, Mr. ESPAILLAT, Mrs. CHERFILUS-MCCORMICK, Ms. BUSH, Ms. JACKSON LEE, Ms. BLUNT ROCHESTER, Ms. CRAIG, Ms. STRICKLAND, Ms. BROWN, Mr. GREEN of Texas, Mr. EVANS, Mrs. HAYES, Mr. FROST, Ms. WATERS, Ms. MCCLELLAN, Ms. ESCOBAR, Mr. DAVID SCOTT of Georgia, Mr. MFUME, Mr. GARCÍA of Illinois, Mr. BISHOP of Georgia, Mr. SCOTT of Virginia, Mrs. FOUSHEE, Mr. MEEKS, Mr. NEGUSE, Mr. IVEY, Mr. VEASEY, Mr. MULLIN, Mr. HORSFORD, Mr. JACKSON of Illinois, Mr. THOMPSON of Mississippi, and Mr. MCCLYBURN):

H.R. 5573. A bill to establish within the Department of Justice an Office for Missing and Murdered Black Women and Girls; to the Committee on the Judiciary.

By Ms. PETTERSEN (for herself and Mr. LAMALFA):

H.R. 5574. A bill to amend the Internal Revenue Code of 1986 to increase the dollar threshold applicable to information reporting with respect to payments for qualified natural disaster expenses; to the Committee on Ways and Means.

By Mr. POSEY:

H.R. 5575. A bill to direct the Secretaries of Health and Human Services, Defense, and Veterans Affairs to end American over-dependence on Chinese pharmaceuticals by encouraging the growth of a robust domestic medicine supply chain for generic drugs, to empower the Food and Drug Administration to issue boxed warnings in the case of critical contamination, and for other purposes; to the Committee on Energy and Commerce, and in addition to the Committees on Armed Services, Veterans' Affairs, and Ways and Means, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. ROSS:

H.R. 5576. A bill to empower independent music creator owners to collectively negotiate with dominant online platforms regarding the terms on which their music may be distributed; to the Committee on the Judiciary.

By Mr. ROY (for himself, Mr. DUNCAN, Mr. LAMALFA, Mrs. HARSHBARGER, Mr. BANKS, Mr. SMITH of New Jersey, Mrs. LESKO, Mrs. MILLER of Illinois, Mr. BABIN, Mr. BIGGS, Mr. MOYLAN, Mr. DAVIDSON, Mr. MOONEY, Mr. BUCK, Mr. CLYDE, Mr. GOOD of Virginia, Mrs. LUNA, Mr. GOSAR, Mr. ROSENDALE, Mr. BRECHEEN, Mr. MOORE of Alabama, Mr. SELF, Mr. BURLISON, Mr. LAMBORN, Mr. GREEN of Tennessee, and Mr. TIMMONS):

H.R. 5577. A bill to amend title 18, United States Code, to repeal prohibitions relating to freedom of access to clinic entrances, and for other purposes; to the Committee on the Judiciary.

By Ms. SCHAKOWSKY (for herself, Ms. DELAURO, Mr. DOGGETT, Mr. BOWMAN, Ms. PORTER, Mr. MCGOVERN, Ms. NORTON, Ms. PRESSLEY, Ms. LEE of California, Mr. DAVIS of Illinois, Mr. GARCÍA of Illinois, and Ms. CHU):

H.R. 5578. A bill to extend protections to part-time workers in the areas of family and medical leave and to ensure equitable treatment in the workplace; to the Committee on Education and the Workforce, and in addition to the Committees on House Administration, Oversight and Accountability, and the Judiciary, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. STEUBE:

H.R. 5579. A bill to provide that certain changes to the Manual of Military Decorations and Awards shall have no force or effect; to the Committee on Armed Services.

By Ms. TENNEY (for herself, Mr. HIGGINS of New York, Mr. LAWLER, and Mr. RYAN):

H.R. 5580. A bill to amend the Internal Revenue Code of 1986 to exclude certain discharges of indebtedness secured by real property from income; to the Committee on Ways and Means.

By Mr. PAYNE (for himself, Mr. FITZPATRICK, Ms. ADAMS, Ms. CROCKETT, Mr. JACKSON of Illinois, Mr. MEEKS, Mr. CARTER of Louisiana, Mr. BACON, Mr. VEASEY, Mr. DAVIS of North Carolina, Ms. CLARKE of New

York, Mr. CARSON, Ms. WILLIAMS of Georgia, Mr. GRIJALVA, Mr. HUNT, Mr. JOHNSON of Georgia, Mr. DUNN of Florida, Mr. LIEU, Mr. GROTHMAN, Mr. MENENDEZ, Mr. VALADAO, Mr. WESTERMAN, Ms. CARAVEO, and Mr. BISHOP of Georgia):

H. Res. 700. A resolution expressing support for the designation of September 2023 as ''National Prostate Cancer Awareness Month''; to the Committee on Energy and Commerce.

By Mr. SCHNEIDER (for himself, Mrs. WAGNER, Mrs. RODGERS of Washington, and Mr. TRONE):

H. Res. 701. A resolution encouraging further deepening and broadening of the Abraham Accords on occasion of the third anniversary of their signing to continue building bridges towards a lasting peace; to the Committee on Foreign Affairs.

By Ms. TLAIB (for herself, Mr. CARTER of Louisiana, Ms. LEE of California, Mr. BOWMAN, Mr. ESPAILLAT, Ms. CLARKE of New York, Ms. BUSH, Ms. OCASIO-CORTEZ, Ms. PRESSLEY, Mr. CASAR, Mrs. RAMIREZ, Mr. MCGOVERN, Ms. OMAR, Mr. GARCÍA of Illinois, Mr. GRIJALVA, Mr. DAVIS of Illinois, Ms. SCHAKOWSKY, and Ms. JACKSON LEE):

H. Res. 702. A resolution recognizing the duty of the Federal Government to protect the rights of restaurant workers; to the Committee on Education and the Workforce, and in addition to the Committees on Ways and Means, the Judiciary, Financial Services, Energy and Commerce, Agriculture, Oversight and Accountability, Armed Services, Veterans' Affairs, Natural Resources, Foreign Affairs, and House Administration, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. VEASEY (for himself, Ms. CLARKE of New York, Mr. JOHNSON of Georgia, Ms. MENG, Ms. DELBENE, Mr. EVANS, Ms. NORTON, Ms. BARRAGÁN, Mrs. NAPOLITANO, Ms. SCHAKOWSKY, Mr. COSTA, Mr. DAVID SCOTT of Georgia, Ms. MOORE of Wisconsin, Mr. RASKIN, Mr. CÁRDENAS, Ms. SEWELL, Ms. STEVENS, Ms. WILLIAMS of Georgia, Mr. CARTER of Louisiana, Mr. GRIJALVA, Mr. DOGGETT, Mr. TONKO, Mr. KRISHNAMOORTHI, Mr. ESPAILLAT, Ms. PLASKETT, Mr. TAKANO, Ms. WILSON of Florida, Mr. KIM of New Jersey, Mr. SARBANES, Ms. LEE of California, Ms. TLAIB, Ms. ADAMS, Mr. CARSON, Ms. BROWN, Mr. GREEN of Texas, Mr. MULLIN, Mr. JACKSON of Illinois, and Mr. SCOTT of Virginia):

H. Res. 703. A resolution supporting the designation of September 2023 as ''National Voting Rights Month''; to the Committee on the Judiciary, and in addition to the Committee on House Administration, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

CONSTITUTIONAL AUTHORITY AND SINGLE SUBJECT STATEMENTS

Pursuant to clause 7(c)(1) of rule XII and Section 3(c) of H. Res. 5 the following statements are submitted regarding (1) the specific powers granted to Congress in the Constitution to enact the accompanying bill or joint resolution and (2) the single subject of the bill or joint resolution.

By Ms. SEWELL:

H.R. 14.

Congress has the power to enact this legislation pursuant to the following:

Section 5 of the Fourteenth Amendment to the Constitution.

Section 2 of the Fifteenth Amendment, and

Article I, Section 4, Clause 1 of the United States Constitution

The single subject of this legislation is:

This bill advances the accesiblity of voting rights for all Americans.

By Mrs. MILLER-MEEKS:

H.R. 5555.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8

The single subject of this legislation is:

Providing payment rate updates for durable medical equipment under Medicare.

By Mr. CURTIS:

H.R. 5556.

Congress has the power to enact this legislation pursuant to the following:

Article 1 Section 8

The single subject of this legislation is:

Regulates and standardizes the labeling of ''Made in America'' and Made in the U.S.A.'' products

By Mr. HIMES:

H.R. 5557.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8

The single subject of this legislation is:

This bill would authorize sanctions on individuals and entities who facilitate spyware that could enable the targeting of United States Government officials or personnel of the intelligence community.

By Mr. BOST:

H.R. 5558.

Congress has the power to enact this legislation pursuant to the following:

Article IV, Section 3, Clause 2

The single subject of this legislation is:

Establishing Prairie du Rocher French Colonial National Park in Illinois

By Mr. BOST:

H.R. 5559.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the United States Constitution, which states ''[t]he Congress shall have power to lay and collect taxes, duties, imposts and excises, to pay the debts and provide for the common defense and general welfare of the United States; but all duties, imposts and excises shall be uniform throughout the United States''

The single subject of this legislation is:

The rights of veterans and survivors to pursue claims for VA benefits and to submit evidence in support of their claims.

By Ms. CHU:

H.R. 5560.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, clause 3 of the United States Constitution

The single subject of this legislation is:

To amend the Immigration and Nationality Act to promote family unity by recapturing unused visas, and for other purposes.

By Mr. CLOUD:

H.R. 5561.

Congress has the power to enact this legislation pursuant to the following:

The power granted to Congress under Article I, Section 8 of the United States Constitution.

The single subject of this legislation is:

To prevent gun control through public health emergencies.

By Mr. DAVIS of Illinois:

H.R. 5562.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 18 of the Constitution: To make all laws which shall be necessary and proper for carrying into Execution the powers enumerated under section 8 and all other Powers vested by the Constitution in the Government of the United States, or in any Department or Officer thereof.

The single subject of this legislation is:

Education

By Ms. DELAURO:

H.R. 5563.

Congress has the power to enact this legislation pursuant to the following:

Artlcle I, Section 8, clause 3 provides Congress with the power to ''regulate commerce with foreign nations, and among the several states, and with the Indian tribes.''

The single subject of this legislation is:

This bill will provide stability and predictability for working people and their families, remedying many of the problems facing workers by promoting employee input into work scheules.

By Mr. DOGGETT:

H.R. 5564.

Congress has the power to enact this legislation pursuant to the following:

Clause 1 of Section 8 of Article I of the United States Constitution.

The single subject of this legislation is:

Reducing singe-use plastics waste.

By Mr. FITZGERALD:

H.R. 5565.

Congress has the power to enact this legislation pursuant to the following:

clause 18 of section 8 of article I of the Constitution.

The single subject of this legislation is:

This bill requires a report on the Chinese Communist Party's use of the Belt and Road Initiative to undermine U.S.-led international order.

By Mr. JOHNSON of Georgia:

H.R. 5566.

Congress has the power to enact this legislation pursuant to the following:

Article I Section 1.

The single subject of this legislation is:

This bill amends Title 28, United States Code, to provide for 18-year terms of active service for justices of the Supreme Court, to regularize the nomination of justices, and for other purposes.

By Mr. JOYCE of Ohio:

H.R. 5567.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 18

The single subject of this legislation is:

To prohibit elementary and secondary schools from accepting funds from or entering into contracts with the Government of the People's Republic of China and the Chinese Communist Party.

By Ms. KELLY of Illinois:

H.R. 5568.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, clause 18

The single subject of this legislation is:

Maternal health legislation

By Mr. LANDSMAN:

H.R. 5569.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 1

The single subject of this legislation is:

This bill increases reimbursements for meals under the Child and Adult Care Food Program.

By Mr. MILLS:

H.R. 5570.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8 of the Constitution.

The single subject of this legislation is:

To establish and implement a multi-year Legal Gold and Mining Partnership Strategy to reduce the negative environmental and social impacts of illicit gold mining in the Western Hemisphere, and for other purposes.

By Mr. NORMAN:
H.R. 5571.
Congress has the power to enact this legislation pursuant to the following:
Article 1 Section 8
The single subject of this legislation is:
To amend the Congressional Budget and Impoundment Control Act of 1974 to provide for fair-value credit estimates, and for other purposes.

By Ms. OCASIO-CORTEZ:
H.R. 5572.
Congress has the power to enact this legislation pursuant to the following:
Article 1 , Section 8
The single subject of this legislation is:
To amend the National and Community Service Act of 1990 to establish a Civilian Climate Corps to help communities respond to climate change and transition to a clean economy, and for other purposes.

By Ms. OMAR:
H.R. 5573.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8
The single subject of this legislation is:
Judiciary

By Ms. PETTERSEN:
H.R. 5574.
Congress has the power to enact this legislation pursuant to the following:
Clause 18 of Section 8 of Article 1. To make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or in any Department or Officer thereof.
The single subject of this legislation is:
Tax

By Mr. POSEY:
H.R. 5575.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8
The single subject of this legislation is:
A bill to direct the Secretaries of Health and Human Services, Defense, and Veterans Affairs to end American over dependence on Chinese pharmaceuticals by encouraging the growth of a robust domestic medicine supply chain for generic drugs, to empower the Food and Drug Administration to issue boxed warnings in the case of critical contamination.

By Ms. ROSS:
H.R. 5576.
Congress has the power to enact this legislation pursuant to the following:
Article 1, Section 8, Clause 3 of the United States Constitution; Article 1, Section 8, Clause 8 of the United States Constitution; and Article 1 Section 8 Clause 18 of
The single subject of this legislation is:
To empower independent music creator owners to collectively negotiate with dominant online platforms and generative artificial intelligence developers regarding the terms on which their music may be distributed.

By Mr. ROY:
H.R. 5577.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8
The single subject of this legislation is:
Criminal Code

By Ms. SCHAKOWSKY:
H.R. 5578.
Congress has the power to enact this legislation pursuant to the following:
The Congress shall have Power . . . To regulate Commerce with foreign Nations, and among the several States, and with the Indian Tribes.
The single subject of this legislation is:
This Part-Time Worker Bill of Rights Act modifies various employment and leave rules with respect to part-time workers to ensure their fair treatment.

By Mr. STEUBE:
H.R. 5579.
Congress has the power to enact this legislation pursuant to the following:
Article 1 Section 8
The single subject of this legislation is:
To provide that certain changes to the Manual of Military Decorations and Awards shall have no force or effect.

By Ms. TENNEY:
H.R. 5580.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8
The single subject of this legislation is:
It would amend Section 108 of the Tax Code to provide tax relief for the cancellation of commercial and retail indebtedness.

ADDITIONAL SPONSORS

Under clause 7 of rule XII, sponsors were added to public bills and resolutions, as follows:

H.R. 16: Mr. TRONE and Mr. NORCROSS.
H.R. 38: Mr. MEUSER.
H.R. 41: Mr. WENSTRUP.
H.R. 82: Mr. EZELL.
H.R. 303: Mr. PAPPAS.
H.R. 374: Mr. MASSIE.
H.R. 415: Mr. NADLER.
H.R. 427: Mr. CRENSHAW.
H.R. 530: Mr. SMITH of Nebraska.
H.R. 539: Mr. FINSTAD.
H.R. 584: Mr. LYNCH.
H.R. 603: Mrs. FOUSHEE.
H.R. 648: Mr. LAHOOD, Mr. DAVIS of North Carolina, and Ms. UNDERWOOD.
H.R. 666: Ms. PRESSLEY.
H.R. 709: Mr. CLYBURN.
H.R. 748: Mr. PAPPAS.
H.R. 760: Mr. SHERMAN and Mr. DAVID SCOTT of Georgia.
H.R. 802: Mrs. CHAVEZ-DEREMER.
H.R. 809: Mr. LAHOOD and Mr. CLINE.
H.R. 830: Ms. LEE of California.
H.R. 882: Mr. TRONE.
H.R. 911: Mr. MOYLAN.
H.R. 1200: Mr. LOUDERMILK and Mr. ALFORD.
H.R. 1213: Mr. PAYNE.
H.R. 1222: Ms. NORTON, Ms. MOORE of Wisconsin, Mrs. FOUSHEE, and Mrs. CHERFILUS-MCCORMICK.
H.R. 1273: Mr. KIM of New Jersey and Mr. LAWLER.
H.R. 1428: Ms. PETTERSEN.
H.R. 1453: Ms. CASTOR of Florida, Mr. CARL, and Ms. BARRAGÁN.
H.R. 1477: Mr. VAN DREW.
H.R. 1490: Mr. CARTER of Georgia.
H.R. 1495: Mr. TRONE.
H.R. 1526: Mr. MORELLE.
H.R. 1570: Ms. KUSTER and Mrs. RADEWAGEN.
H.R. 1610: Ms. LEE of Florida.
H.R. 1754: Mr. POCAN.
H.R. 1826: Ms. MCCOLLUM, Mr. LAWLER, Ms. WILD, Ms. DAVIDS of Kansas, Mrs. CHERFILUS-MCCORMICK, and Ms. LEE of California.
H.R. 1832: Mr. THOMPSON of California.
H.R. 2407: Mr. NORCROSS, Mr. STEIL, and Ms. CRAIG.
H.R. 2412: Mr. COHEN.
H.R. 2441: Mr. PAPPAS.
H.R. 2583: Ms. LEE of California.
H.R. 2584: Mr. SESSIONS, Mr. DUNN of Florida, and Mr. COHEN.
H.R. 2601: Mr. POSEY.
H.R. 2629: Mr. KEATING.
H.R. 2708: Ms. BUDZINSKI, Ms. DELAURO, and Ms. OCASIO-CORTEZ.
H.R. 2723: Mr. HARDER of California and Mr. SORENSEN.
H.R. 2756: Mr. LAHOOD.
H.R. 2784: Ms. SCANLON.
H.R. 2816: Mr. MFUME.
H.R. 2871: Mr. CASTEN.
H.R. 2949: Mr. TRONE.
H.R. 2987: Mr. NEGUSE.
H.R. 3036: Mr. MANN, Mr. BUCSHON, Mr. YAKYM, and Ms. LEE of Nevada.
H.R. 3159: Mr. FITZPATRICK.
H.R. 3183: Ms. BROWNLEY.
H.R. 3199: Mr. VAN ORDEN.
H.R. 3202: Mr. GREEN of Tennessee.
H.R. 3215: Mr. GOOD of Virginia.
H.R. 3240: Ms. KUSTER.
H.R. 3354: Mr. CLINE.
H.R. 3378: Mr. SHERMAN and Mr. BARR.
H.R. 3470: Ms. MCCLELLAN.
H.R. 3479: Mr. TRONE and Mr. BACON.
H.R. 3494: Ms. LOFGREN and Ms. TLAIB.
H.R. 3519: Ms. PRESSLEY.
H.R. 3538: Mr. PAPPAS, Ms. WILD, and Mr. NICKEL.
H.R. 3539: Mr. BLUMENAUER.
H.R. 3548: Mr. DOGGETT.
H.R. 3639: Ms. PETTERSEN.
H.R. 3649: Mr. PAPPAS.
H.R. 3653: Mr. LAHOOD.
H.R. 3713: Mr. MULLIN and Mr. NORCROSS.
H.R. 3781: Ms. PETTERSEN.
H.R. 3852: Mr. CARTER of Texas.
H.R. 3859: Ms. DAVIDS of Kansas.
H.R. 3875: Mr. HARDER of California.
H.R. 3894: Mr. MCGOVERN and Ms. DAVIDS of Kansas.
H.R. 3907: Ms. SALAZAR and Ms. WILLIAMS of Georgia.
H.R. 3916: Mr. COHEN and Ms. BROWN.
H.R. 3949: Mrs. LESKO.
H.R. 3955: Ms. PETTERSEN.
H.R. 3962: Ms. SCHRIER.
H.R. 3970: Mr. TAKANO.
H.R. 3988: Mr. MASSIE.
H.R. 4034: Mr. LYNCH, Ms. OMAR, and Mr. BACON.
H.R. 4046: Mr. SMITH of Washington.
H.R. 4110: Mr. GARCÍA of Illinois and Mr. SABLAN.
H.R. 4149: Mr. COHEN and Ms. TOKUDA.
H.R. 4198: Mr. STEUBE.
H.R. 4235: Mr. COSTA.
H.R. 4278: Mr. CARTER of Georgia.
H.R. 4315: Mr. COHEN.
H.R. 4329: Mr. MOULTON.
H.R. 4334: Mr. BISHOP of Georgia.
H.R. 4400: Mr. CROW.
H.R. 4424: Mr. DELUZIO.
H.R. 4425: Ms. TOKUDA.
H.R. 4448: Mr. BEAN of Florida.
H.R. 4519: Mr. LARSON of Connecticut, Mr. NORCROSS, Mr. LARSEN of Washington, Ms. WILLIAMS of Georgia, and Ms. CLARKE of New York.
H.R. 4534: Ms. CRAIG.
H.R. 4561: Ms. SCHAKOWSKY, Ms. TOKUDA, and Ms. SCHRIER.
H.R. 4563: Mr. DUNN of Florida.
H.R. 4564: Mrs. LESKO.
H.R. 4567: Mr. CARSON.
H.R. 4619: Mr. BERGMAN, Mr. COLE, and Mr. NORCROSS.
H.R. 4660: Mr. LAWLER.
H.R. 4736: Mr. NUNN of Iowa and Ms. SALINAS.
H.R. 4744: Mr. BAIRD.
H.R. 4750: Mr. KEATING.
H.R. 4769: Mr. CASTEN.
H.R. 4844: Ms. TOKUDA.
H.R. 4933: Ms. TLAIB.
H.R. 4943: Ms. PINGREE and Mr. LAWLER.
H.R. 5008: Mr. CASAR and Mr. LIEU.
H.R. 5012: Mr. GOLDMAN of New York.
H.R. 5044: Ms. SCHRIER.
H.R. 5048: Ms. LOIS FRANKEL of Florida.
H.R. 5073: Mr. WENSTRUP and Mr. WILLIAMS of Texas.
H.R. 5082: Mr. POSEY.
H.R. 5097: Mr. RASKIN and Mr. CARSON.
H.R. 5100: Ms. PETTERSEN.

H.R. 5110: Mr. VAN ORDEN and Mr. RUTHERFORD.
H.R. 5163: Mr. NORCROSS.
H.R. 5239: Mr. BILIRAKIS.
H.R. 5249: Ms. MOORE of Wisconsin and Mr. NORCROSS.
H.R. 5259: Mr. LAWLER.
H.R. 5260: Mr. LAWLER.
H.R. 5261: Mr. LAWLER.
H.R. 5262: Mr. LAWLER.
H.R. 5263: Mr. LAWLER.
H.R. 5292: Mr. NEGUSE.
H.R. 5340: Mrs. HOUCHIN.
H.R. 5353: Mr. TRONE, Mr. NORCROSS, Mr. DELUZIO, and Mr. CLEAVER.
H.R. 5361: Ms. BONAMICI.
H.R. 5399: Mr. BLUMENAUER, Mr. BERA, Ms. DAVIDS of Kansas, Ms. TOKUDA, Ms. SCANLON, Ms. ROSS, and Ms. JAYAPAL.
H.R. 5402: Mr. NORCROSS.
H.R. 5403: Mrs. CHAVEZ-DEREMER, Mr. WILLIAMS of Texas, and Mr. FERGUSON.
H.R. 5406: Mr. GREEN of Tennessee and Mr. BARR.
H.R. 5409: Mr. SHERMAN and Mr. BARR.
H.R. 5420: Ms. ADAMS and Mr. SCHIFF.
H.R. 5433: Ms. DELBENE, Ms. MENG, and Mr. NEGUSE.
H.R. 5434: Ms. BARRAGÁN.
H.R. 5448: Mr. HARRIS.
H.R. 5486: Ms. NORTON.
H.R. 5524: Mr. SHERMAN.
H.R. 5527: Mr. KHANNA.
H.R. 5530: Mr. ZINKE, Mr. TIFFANY, and Ms. MACE.
H.J. Res. 66: Mr. GUEST and Mr. YAKYM.
H.J. Res. 88: Mr. LOUDERMILK.
H.J. Res. 89: Mr. LANDSMAN.
H. Con. Res. 16: Mr. GREEN of Texas.
H. Con. Res. 59: Mr. KEATING and Mr. PHILLIPS.
H. Res. 149: Ms. PETTERSEN.
H. Res. 259: Mr. GARAMENDI.
H. Res. 651: Mr. HUDSON.
H. Res. 674: Mr. HARDER of California, Ms. DE LA CRUZ, Ms. DAVIDS of Kansas, and Mr. YAKYM.
H. Res. 675: Mr. BILIRAKIS.
H. Res. 679: Ms. TOKUDA.
H. Res. 683: Mr. WILLIAMS of Texas, Mr. MEUSER, Mrs. HOUCHIN, and Mr. ALLRED.

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Congressional Record

PROCEEDINGS AND DEBATES OF THE 118th CONGRESS, FIRST SESSION

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Senate

The Senate met at 10 a.m. and was called to order by the Honorable RAPHAEL G. WARNOCK, a Senator from the State of Georgia.

PRAYER

The Chaplain, Dr. Barry C. Black, offered the following prayer:

Let us pray.

O God of us all, who is above all yet in us all, make us ever sensitive to all of the expressions of Your Grace. Lord, thank You for the glory of a sunrise and sunset, for the refreshment of the breezes that invigorate, and for the technicolor in trees, shrubs, sky, and sea. May the challenges of these times never blind us to life's wonders.

Prepare our lawmakers for today's journey. May they strive to stay within the circle of Your will as You guide their steps. Lord, help them to be ready to solve problems, receiving inspiration from the creative power of Your love. Let business be done on Capitol Hill that will address itself to the real issues and not to games. May the work of our Senators become an expression of Your truth, righteousness, and justice.

We pray in Your merciful Name. Amen.

PLEDGE OF ALLEGIANCE

The Presiding Officer led the Pledge of Allegiance, as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

APPOINTMENT OF ACTING PRESIDENT PRO TEMPORE

The PRESIDING OFFICER. The clerk will please read a communication to the Senate from the President pro tempore (Mrs. MURRAY).

The senior assistant legislative clerk read the following letter:

U.S. SENATE,
PRESIDENT PRO TEMPORE,
Washington, DC, September 19, 2023.

To the Senate:

Under the provisions of rule I, paragraph 3, of the Standing Rules of the Senate, I hereby appoint the Honorable RAPHAEL G. WARNOCK, a Senator from the State of Georgia, to perform the duties of the Chair.

PATTY MURRAY,
President pro tempore.

Mr. WARNOCK thereupon assumed the Chair as Acting President pro tempore.

RESERVATION OF LEADER TIME

The ACTING PRESIDENT pro tempore. Under the previous order, the leadership time is reserved.

CONCLUSION OF MORNING BUSINESS

The ACTING PRESIDENT pro tempore. Morning business is closed.

EXECUTIVE SESSION

EXECUTIVE CALENDAR

The ACTING PRESIDENT pro tempore. Under the previous order, the Senate will proceed to executive session to resume consideration of the following nomination, which the clerk will report.

The senior assistant legislative clerk read the nomination of Vernon D. Oliver, of Connecticut, to be United States District Judge for the District of Connecticut.

RECOGNITION OF THE MAJORITY LEADER

The ACTING PRESIDENT pro tempore. The Democratic leader is recognized.

GOVERNMENT FUNDING

Mr. SCHUMER. Mr. President, we are days away from another MAGA government shutdown. Avoiding one will require the House majority to quickly accept a bipartisan solution. Yet, this week, House Republicans are trying everything but bipartisanship.

Everyone knows that the GOP's proposed CR is a nonstarter here in the Senate. Let me say that again. Everyone knows that the House GOP's proposed CR will not pass the Senate because, instead of even pretending to aim for bipartisanship, this bill had zero—zero—Democratic input. It calls for a crushing 8-percent cut to virtually all nondefense spending—8 percent. The House Republican proposal, drafted and put together by the MAGA hard-right wing is slapdash, reckless, and cruel.

It includes cutting investments to the Social Security Administration, to law enforcement, to nutrition assistance, to K–12 education, to small business, to rural communities, to protections for drinking water, to lifesaving medical research—cancer and other research—and much more.

The American people need to know just how bad this MAGA Republican CR truly is. This slapdash CR would decimate investments in lifesaving research, hollowing out the National Institutes of Health.

This reckless CR would lower public safety, cutting back on drug and food inspection; weakening wildfire prevention; and eliminating law enforcement officers in the Federal Government, weakening our battle against violent crime and the scourge of fentanyl.

And this cruel CR would gut investments in K–12 education, slash resources for suicide support services, upend Tribal investments, and cut loans to small businesses and rural communities.

Slapdash, reckless, cruel—that is the hallmark of this MAGA Republican proposal in the House.

Then there is Ukraine, which the House GOP bill completely abandons. At the very same time that President Zelenskyy comes to the United States to make the case for standing firm

● This "bullet" symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

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against Putin, the Republican leadership in the House of Representatives is essentially telling him: You are on your own.

Nothing would make Putin happier right now than to see the United States waver in our support for the Ukrainian people. Nothing would make Putin happier. Providing aid is not just a matter of Ukrainian security but of American security, too, because a victorious Putin would be an emboldened Putin. That would make the world less safe for democracy and for America. For MAGA House Republicans to oppose Ukrainian aid is a terrible, dangerous mistake that could come back to haunt U.S. security.

Ukrainian aid could have been an opportunity for bipartisanship, but the hard right—against what, I imagine, is the majority of Republicans in the House—has prevented that from happening, too.

So let me say it again: The House package is slapdash, reckless, and cruel, and everyone knows it has no chance of passing the Senate.

The more time House Republicans waste trying to pass this MAGA wish list, while ignoring chances for real bipartisanship, the greater the odds they will push us into a costly government shutdown.

The last government shutdown lasted 35 days and began when then-President Trump said to me and Speaker PELOSI in the Oval Office: ''I am proud to shut down the government.'' That is what he said.

In the 2 years that Democrats held the House, the Senate, and the White House, we didn't have a government shutdown. We didn't have a debt limit crisis. We didn't have the kind of chaos that we see when MAGA Republicans seem to control so much of the Republican agenda. And, this year, we have already seen both: a debt limit crisis and a looming shutdown crisis, just months apart.

Only one thing has changed since last year, when there was none of this chaos: a House controlled by MAGA Republicans. They are back to their old ways.

And, of course, former President Trump is trying to add to the crisis—it is typical of what he always does—practically commanding his MAGA House sycophants to ''shut down the government if they can't make an appropriate deal—absolutely.''

This is the problem with MAGA extremism: It is not capable of governing. It is only capable of chaos, and this year, sadly, chaos has reigned in the House.

It doesn't have to be that way. It doesn't have to be a MAGA Republican-only bill. It doesn't have to be the MAGA way or a shutdown. House Republicans have a choice in the matter, between pursuing real chances for bipartisanship and catering to the hard right. Each time, they have chosen to empower the hard right. They have chosen dysfunction and chaos. They have chosen to ignore bipartisanship.

But what was true months ago remains true today: There is no scenario where we avoid a shutdown without bipartisanship. If Democrats tried to do it only our way, there would be no bill. But now Republicans are trying to do it their way; Democrats are not. And there are plenty of Members on both sides of the aisle who, despite our disagreements, would like to give bipartisanship a chance, and that is what the American people would want us to do as well.

We only have a few days left for House Republicans to come to their senses and choose the more fruitful way. I urge them to reject chaos and choose to work with Democrats.

There are real people with real lives at stake here. Hundreds of thousands of Federal workers all across the country could be furloughed. Services that millions of Americans count on could be disrupted. Our communities will be less safe and our fellow Americans suffering from disasters less provided for. Those are a few of the tragic and unnecessary outcomes if the Republicans in the House let the MAGA extreme control their agenda.

The matter is simple. If both sides embrace bipartisanship, a shutdown will be avoided. If House Republicans reject bipartisanship, if the hard right is given license to run the show, a MAGA shutdown will be almost inevitable.

APPROPRIATIONS

Mr. President, now on the minibus, while chaos seems to define everything the Republican-controlled House does, here in the Senate we have shown that bipartisanship is key to getting things done, and, tomorrow, Democrats and Republicans will get a chance to make sure that that bipartisanship continues.

Unfortunately, last Thursday, a lone Senator, representing a very small group in this Chamber, tried to undermine the bipartisan appropriations process with procedural hurdles.

Yesterday, my colleague Senator MURRAY, the chair of the Appropriations Committee, moved to get things back on track with a motion to suspend rule XVI and filed cloture on that motion. We will vote on that motion tomorrow. I believe that a clear majority of Senators want to see us continue on the appropriations process. I hope they vote to keep the appropriations process going tomorrow.

Our colleagues on the other side have asked for regular order, and we have worked with them to make sure that that happens, just as it did on the NDAA bill. Our colleagues on the other side have asked for amendments, and we have worked with them to consider amendments. In fact, Senators COLLINS and MURRAY had a list of amendments that was going to go forward with the OK, I believe, of both the minority and majority leaders, until Senator JOHNSON threw the log in the tracks.

Our Republican and Democratic leaders of the Appropriations Committee have asked to consider appropriations bills on the floor, and it is with their cooperation that these three bills—MILCON-VA, Agriculture, and Transportation-HUD—have been brought to the floor for consideration.

Democrats want to work with our Republican colleagues whenever possible. No one pretends that we don't have disagreements—we do—but the important part is that, so far, disagreements have not stymied the process. Tomorrow's vote will be a chance to ensure that we keep that bipartisanship going.

I thank my colleagues on the Appropriations Committee, especially Chair MURRAY and Vice Chair COLLINS, for their excellent work and hope we can see strong support tomorrow to continue the appropriations process here on the floor.

I yield the floor.

I suggest the absence of a quorum.

The ACTING PRESIDENT pro tempore. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The ACTING PRESIDENT pro tempore. Without objection, it is so ordered.

RECOGNITION OF THE MINORITY LEADER

The Republican leader is recognized.

CHINA

Mr. MCCONNELL. Mr. President, in the past 2 months, the Chinese Government has reminded the world just how an authoritarian communist state operates.

In July, President Xi announced he had replaced the PRC's Foreign Minister after the official hadn't been seen in public in a month. Then, the senior official responsible for the PLA strategic missile force, who hadn't been seen for even longer, was replaced. And then the Chinese Defense Minister went missing for weeks before Beijing announced he had been fired and detained for investigation. The purge of senior leaders, growing economic volatility, bellicose foreign policy—these are concerning developments in a country with a reputation for repression at home and belligerence abroad.

China's neighbors and global powers alike are increasingly skeptical of official economic and budget numbers from a dictatorship that suppresses free speech, mocks the rule of law, and simply disappears its senior leaders—and rightly so.

One thing has long been certain: The PRC is arming itself at an alarming rate. Recent estimates suggest China spends close to $700 billion per year on defense. That is concerning for a number of reasons. First, a much larger percentage of China's defense budget than ours goes to modernization and capabilities. Further, since Chinese geostrategic ambitions—for now at least—are focused primarily on challenging the status quo in its immediate region, the PRC doesn't face the resource constraints that the United

States does due to our global interests and power projection requirements.

Beijing's decades-long modernization campaign has paid dividends for the PRC. Just last week, the Wall Street Journal detailed the significant progress China has made in testing and fielding hypersonic weapons and how such efforts have outpaced those of our own country. America also lags in shipbuilding. The infrastructure constraints that keep us from building more ships, testing more hypersonic vehicles, and training more pilots are well known. But the cold truth is that China, which has a shipbuilding capacity more than 200 times that of the United States, is set to reach 400 ships in 2 years, while the U.S. Navy is aiming for 350 ships—listen to this—by 2045.

This is precisely why Senate Republicans, led by Senator Shelby and Senator WICKER, pushed for an amendment to the 2021 Bipartisan Infrastructure Framework to create a Defense Infrastructure Fund and expand our capacity for testing, training, and production. Unfortunately, the Democratic leader did not allow this amendment to receive a vote.

For what it is worth, I appreciate the Pentagon's recent efforts to catch up. For example, the Deputy Secretary of Defense recently announced an initiative to dramatically accelerate production of autonomous systems to help level the playing field with the PLA. Her remarks were titled ''The Urgency to Innovate.'' But closing the gap with China and outcompeting our biggest strategic adversary will require more than innovation theater or speeches about revolutions in military affairs. Real progress will require real investments in long-range strike capabilities, real expansion of our defense production capacity, and real defense technology cooperation with our closest allies that increasingly share our concerns about the PLA.

The conflict in Ukraine has finally motivated efforts in America, Europe, and Asia to invest in our defense industrial bases, but if we truly take competition with the PRC seriously, there is a lot more that needs to be done. AUKUS, our technology-sharing partnership with Australia and the United Kingdom, is a step in the right direction. In fact, it will hopefully serve as a model for expanding defense cooperation with other allies. But these efforts cannot come at the expense of properly funding America's own requirements for crucial systems like attack submarines.

The Department's interest in autonomous systems, hypersonic weapons, and long-range fire is welcome, but the Pentagon needs to move at the speed of relevance to field these capabilities as soon as possible, and the Biden administration needs to stop sending Congress defense budget requests that cut funding after inflation and start prioritizing serious investments in the weapons that we actually need.

BIDENOMICS

Mr. President, on an entirely different matter, in a speech last month, President Biden claimed that American wages were growing faster than inflation, saying, ''That's Bidenomics.'' Unfortunately, for working families, the truth of Bidenomics is quite the opposite.

Even as nominal wages continue to rise, inflation is actually rising faster. For the third straight year, real median household income is declining. According to the Census Bureau, inflation-adjusted income declined last year alone—listen to this—by $1,750. In other words, Washington Democrats' historic inflation has swallowed the gains of a tight labor market and stuck workers across the country with a massive pay cut.

Worst of all, this Bidenomics tax is hitting low-income workers the hardest. The wealthiest 5 percent of households are earning 4.1 percent less than they were 4 years ago, but—listen to this—the poorest 10 percent are earning 6.3 percent less, and wage gains for manufacturing workers are lagging even further behind those of other industries.

One contract worker in Michigan said of his job at a hardware store: ''Every time my wage goes up, the price of everything else goes up, and it does me no good'' and that the price for some construction materials are only beginning to come down by ''cents when they went up dollars.''

So that is Bidenomics, and working Americans have every reason to be sick of it.

The ACTING PRESIDENT pro tempore. The Republican whip.

SOUTH DAKOTA

Mr. THUNE. Mr. President, there is nothing like summertime in South Dakota.

While I am in Sioux Falls almost every weekend, August gives me the opportunity to spend more time at home. It gives me a chance to travel South Dakota's wide-open spaces to meet with constituents and have important conversations that shape a lot of what I work on here in the Senate. It is a busy month. We covered a lot of ground this August, both figuratively and literally.

To begin with, August is fair season in South Dakota. So this year, I made it to the Turner County Fair, the Brown County Fair, where I got my usual Tubby burger, and the Sioux Empire Fair. Fairs showcase a lot of the best of South Dakota, but they are an especially big deal for our agricultural community. Whether I am serving lunch to producers at the Sioux Empire Fair's Agriculture Appreciation Day or giving an update on the farm bill at Dakotafest, which happens every year in Mitchell, SD, I appreciate opportunities to hear directly from farmers and ranchers. I do this every year, but it is especially important in a farm bill year like this one.

Many of my farm bill priorities come directly from these discussions. In fact, these discussions can often get into the weeds on policy. But the bottom line from farmers and ranchers this year was really quite simple: We need to get the farm bill done. Farmers and ranchers need certainty that the programs they depend on will be there when they need them. And finishing the farm bill is one of the most important things on the agenda for the end of this year.

Agriculture is the lifeblood of South Dakota, but there is a lot more that keeps South Dakota moving. This August, I had the chance to meet with electric cooperatives that provide power in South Dakota communities. I joined Midco Communications as they announced a new broadband expansion in the Black Hills to bring faster internet to more homes. I was on hand for the new I–29 exit 130 interchange ribbon-cutting in Brookings, SD.

Throughout the month, I also visited a lot of local businesses and talked with business owners from across the State. I visited Showplace Cabinetry in Harrisburg, SD, Load King Manufacturing in Elk Point, Dimock Cheese in Dimock, Dady Drug in Mobridge, and I met with startup leaders in Sioux Falls. We had some important conversations. It was clear that business owners are facing some headwinds at the moment.

Business leaders in Yankton, for example, discussed challenges arising from the workforce shortages in South Dakota. With unemployment at 1.9 percent in South Dakota, there are workforce challenges in just about every sector. At the Midwest Agricultural Export Summit, we talked about the importance of trade and how the Biden administration has put expanding market access on the back burner, unfortunately. Business owners across the State expressed frustration with high interest rates and higher costs. Of course, we learned last week that inflation has ticked back up. Gas prices are on the rise as well.

And a majority of Americans say the Biden administration has made the economy worse. Bidenomics is making life harder for families and businesses around the country. If the President really wanted to help working families, he would abandon the tax-and-spending agenda that has been the hallmark of his administration for the last 2½ years.

As I travel around South Dakota, I know I can depend on South Dakotans to keep me informed and South Dakota restaurants to keep me fueled. Often, August becomes a bit of a tour or a bit of, I should say, ''taste of South Dakota'' tour. Sometimes I describe it as eating my way across South Dakota—Chislic from Waddy's in Hudson, SD; a milkshake from Mr. Bob's Drive-In in Selby; coffee from Black Hills Bagels in Rapid City. There is nothing like South Dakota hospitality and a good meal to keep you going during long days.

As much as I love summer in South Dakota, I always get particularly excited when summer turns to fall because there are few things I enjoy more than cheering on South Dakota's athletes. Kids go back to school; and high schools, college teams start competing. My grandkids' sports seasons have begun in earnest. I made it to football games in Brookings for South Dakota State University and Vermillion for the University of South Dakota to support the Jackrabbits and Coyotes in a couple of big wins as their seasons get underway.

And, of course, it is not long until pheasant season comes around next month.

Winter, spring, summer, or fall, there is always something to look forward to in South Dakota. I am lucky to be a son of our State.

I yield the floor.

I suggest the absence of a quorum.

The ACTING PRESIDENT pro tempore. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. TUBERVILLE. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Mr. PADILLA). Without objection, it is so ordered.

FARM BILL

Mr. TUBERVILLE. Mr. President, this is my third year serving on the Senate Ag Committee. This is my first time getting to work on a farm bill. The farm bill comes around every 5 years. It sets national policy on agriculture, nutrition, conservation, and forestry.

In less than 2 weeks, at the end of this fiscal year, the current farm bill will expire.

In 2018, this bill had a pricetag of $867 billion, right—$867 billion 5 years ago, in 2018. Now, we used to think that was a lot of money, but the upcoming farm bill is almost double that amount at roughly $1.5 trillion. This is the first trillion-dollar farm bill in our Nation's history.

The enormous pricetag of the bill is driven by an 84-percent increase in SNAP, or Federal nutrition assistance, and a 58-percent increase in conservation programs—in other words, a huge increase in welfare and climate spending. Most of this new spending does not offer support for farmers.

The $559 billion increase in SNAP funding was done directly by the Department of Agriculture through updates to the Thrifty Food Plan. In other words, nobody in Congress voted for this. The $35 billion in conservation funding was done through the Inflation Reduction Act of last year. Democrats are pushing through priorities that cater to climate activists and lead Americans to become dependent on welfare benefits. Approximately 82 percent of the upcoming farm bill goes to SNAP, commonly known as food stamps. Four percent goes to conservation.

Just yesterday, we hit $33 trillion in debt for this country—yes, I said that—$33 trillion. That will be picked up—this tab—by our grandkids and their kids.

This graph here, developed by the Farm Bureau Federation, showcases the enormous increase in nutrition spending and the steady decline of farm spending over the last 50 years. As you can see, SNAP spending has almost doubled what it was 5 years ago. How is this even possible? Has poverty doubled in our country in the last 5 years? Of course, it hasn't.

The poverty rate has been between 10 and 20 percent during my lifetime—10 to 20 percent. We spent $20 trillion in the war on poverty, and we have not even moved the needle. What does that mean? That means we are not doing our job. All we are doing is we are paying for somebody else to do it. So it doesn't work.

Yet I never hear my Democratic colleagues consider how we fight poverty. We just give out money. If my colleagues on the left cared about poverty, then they would want better results. But nobody wants better results here. They want votes. Welfare spending—if we would ever get it in our heads—welfare spending does not lift people out of poverty. Are we ever going to realize that? It simply makes people more comfortable remaining in poverty, and that makes it wrong. It makes it wrong for this body that we continue down this path of poverty and not helping poverty.

Food stamps are supposed to help people stay afloat while they work to become self-sufficient, help them get through tough times—not a free walk in society. It should not be an incentive to stay home other than to train and want to get a job, but that is exactly what it has done. Making someone dependent on government is not helping them; it is hurting them.

The whole purpose of the farm bill is supposed to be to help farmers. What an idea. Yet $7 out of $8—$7 out of $8 in the farm bill is for something else. Our farmers depend on crop insurance; commodity programs such as the Agricultural Risk program—ARC, as we call it—and price-loss coverage, which is the PLC program; and disaster programs to help them deal with difficult crop yields, markets, and rising input costs.

Farmers can't control the weather or the price, and that is the reason they need help. We have to remember farmers put food on the table. But there is a lot of people who don't understand that.

These are some of the hardest working people in America, and they have too little to show for it. Back home in my State of Alabama, I have heard the struggles facing our row croppers and our specialty crop producers. They need help to deal with inflation and rising input costs. Farm production costs have increased—have increased 28 percent since Joe Biden took office less than 3 years ago. That is embarrassing. How in the world can we increase prices 28 percent in this country in 2½ years and expect the people in this country to survive, the hard-working people? Farmers included.

Fuel and fertilizer are 60 percent to 130 percent higher than they were in 2021. Folks, we can't survive with that; but my colleagues on the left are not even concerned about it—not one bit. We are just going to cut back on digging oil and gas and buy it from other countries and charge the heck out of taxpayers in the United States of America for oil and gas that we can produce here.

Other farm expenses like land, cash rents, labor, and equipment are all adding up. As a result, net farm income is projected to decrease by roughly 23 percent this year. Costs are up, incomes are down, and farmers are struggling to survive.

We are on a direct collision in this country of closing our farmers out and having to completely depend on other countries for our food and other things that we eat. Think about that—completely depend on other countries.

We just found out going through this COVID crisis that we were completely dependent on other countries for our drugs. We said: We have got to overcome that. We have got to redo that. Now, we are doing the same thing to our farmers. We do away with our food, it is over, because if you think prices are high now, they will be completely a lot higher than they are now.

The only thing that is keeping our farmers afloat is called the Farm Safety Net, but the current support levels for title I commodity programs, like cotton, peanuts, and soybeans, are not high enough to sustain our farmers over the next 5 years.

In other words, this safety net is a level of pricing. If the price goes under a certain amount, we help our farmers overcome that cutback where they can survive. The problem is, that safety net price has not risen since 2012. And we don't think the prices haven't gone up? We have lost our minds.

If we don't raise those reference prices—and right now, my colleagues on the left don't want to raise our reference prices for farmers—we are going to be buying all of our food and everything we eat from other countries. It is coming. We have got to raise our reference prices.

We have got to help out our farmers. These programs and these reference prices allow farmers to continue clothing, feeding, and fueling every citizen in this country and a lot of other countries.

Now, we don't need to idly sit by while our hard-working producers work tirelessly and barely survive under this Joe Biden economy. I ask my colleagues—I beg my colleagues—on the left to wake up, open your eyes, and support our farmers and fight for this farm bill. Raise the reference prices. Help them out. Because if we don't,

there won't be a need for another farm bill. Our Nation's food security is going to depend on it, and the lives of all American citizens are going to depend on it.

I yield the floor.

NOMINATION OF VERNON D. OLIVER

Mr. DURBIN. Mr. President, today, the Senate will vote to confirm Judge Vernon Oliver to the U.S. District Court for the District of Connecticut. Judge Oliver's long career on the bench and in public service make him an outstanding nominee to the Federal bench.

Born and raised in Connecticut, Judge Oliver received his B.A. and J.D. from the University of Connecticut. After spending approximately 3 years in private practice, Judge Oliver devoted the rest of his legal career to public service, serving as an Assistant State's Attorney in the division of criminal justice and as an Assistant Attorney General in the child protection unit of the Connecticut Office of the Attorney General.

In 2009, Judge Oliver was appointed to be a judge on the Connecticut Superior Court, presiding over criminal, civil, habeas corpus, and housing matters. On the bench, he has presided over more than 320 trials that have gone to verdict or judgment. He has also sat by designation on the Connecticut Appellate Court in three matters.

Judge Oliver has strong support from his home State Senators, Mr. BLUMENTHAL and Mr. MURPHY. In addition, he was unanimously rated ''well qualified'' by the American Bar Association. Judge Oliver's deep ties to Connecticut and significant courtroom experience, as a longtime litigator and on the bench, make him well-positioned to serve the District of Connecticut with distinction.

I urge my colleagues to support Judge Oliver's nomination.

NOMINATION OF RITA F. LIN

Mr. President, today, the Senate will vote to confirm Judge Rita Lin to the U.S. District Court for the Northern District of California. Judge Lin attended Harvard College and Harvard Law School before clerking for Judge Sandra Lynch on the U.S. Court of Appeals for the First Circuit. During her 10 years in private practice, she focused on complex civil litigation and worked on a variety of matters, including copyright, trade secret misappropriation, unfair competition, breach of contract, and real estate.

She then joined the U.S. Attorney's Office for the Northern District of California and served as a Federal prosecutor for 4 years. In this role, Judge Lin investigated and prosecuted Federal criminal cases involving public corruption, organized crime, illegal firearms, child pornography, and violent crime. She also led teams of agents in dismantling drug trafficking networks and developed the Northern District of California's program for investigating doctors who had illegally prescribed opioids. In 2018, she was appointed to serve as a judge on the Superior Court of California, County of San Francisco. In her time on the bench, Judge Lin has presided over hundreds of felony criminal cases and several jury trials.

Judge Lin has strong support from Senators FEINSTEIN and PADILLA and was unanimously rated ''well qualified'' by the American Bar Association. Her evenhanded approach to judicial decisionmaking and significant experience litigating both civil and criminal matters in Federal court will serve the Northern District of California well.

I look forward to supporting Judge Lin's nomination and urge my colleagues to do the same.

Mr. TUBERVILLE. I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. REED. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

VOTE ON OLIVER NOMINATION

Under the previous order, the question is, Will the Senate advise and consent to the Oliver nomination?

Mr. REED. I ask for the yeas and nays, please.

The PRESIDING OFFICER. Is there a sufficient second?

There appears to be a sufficient second.

The clerk will call the roll.

The legislative clerk called the roll.

Mr. DURBIN. I announce that the Senator from California (Mrs. FEINSTEIN) and the Senator from Arizona (Mr. KELLY) are necessarily absent.

Mr. THUNE. The following Senator is necessarily absent: the Senator from South Carolina (Mr. SCOTT).

The result was announced—yeas 53, nays 44, as follows:

[Rollcall Vote No. 230 Ex.]

YEAS—53

Baldwin	Heinrich	Rosen
Bennet	Hickenlooper	Sanders
Blumenthal	Hirono	Schatz
Booker	Kaine	Schumer
Brown	King	Shaheen
Cantwell	Klobuchar	Sinema
Cardin	Luján	Smith
Carper	Manchin	Stabenow
Casey	Markey	Tester
Collins	Menendez	Tillis
Coons	Merkley	Van Hollen
Cortez Masto	Murkowski	Warner
Duckworth	Murphy	Warnock
Durbin	Murray	Warren
Fetterman	Ossoff	Welch
Gillibrand	Padilla	Whitehouse
Graham	Peters	Wyden
Hassan	Reed	

NAYS—44

Barrasso	Daines	Marshall
Blackburn	Ernst	McConnell
Boozman	Fischer	Moran
Braun	Grassley	Mullin
Britt	Hagerty	Paul
Budd	Hawley	Ricketts
Capito	Hoeven	Risch
Cassidy	Hyde-Smith	Romney
Cornyn	Johnson	Rounds
Cotton	Kennedy	Rubio
Cramer	Lankford	Schmitt
Crapo	Lee	Scott (FL)
Cruz	Lummis	Sullivan
Thune	Tuberville	Wicker
	Vance	Young

NOT VOTING—3

Feinstein	Kelly	Scott (SC)

The nomination was confirmed.

The PRESIDING OFFICER (Mr. HICKENLOOPER). Under the previous order, the motion to reconsider is considered made and laid upon the table, and the President will be immediately notified of the Senate's action.

CLOTURE MOTION

The PRESIDING OFFICER. Pursuant to rule XXII, the Chair lays before the Senate the pending cloture motion, which the clerk will state.

The senior assistant legislative clerk read as follows:

CLOTURE MOTION

We, the undersigned Senators, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, do hereby move to bring to a close debate on the nomination of Executive Calendar No. 37, Rita F. Lin, of California, to be United States District Judge for the Northern District of California.

Charles E. Schumer, Richard J. Durbin, Richard Blumenthal, Christopher A. Coons, Benjamin L. Cardin, Tina Smith, Christopher Murphy, Mazie K. Hirono, Tammy Baldwin, Margaret Wood Hassan, John W. Hickenlooper, Sheldon Whitehouse, Catherine Cortez Masto, Brian Schatz, Gary C. Peters, Alex Padilla, Michael F. Bennet.

The PRESIDING OFFICER. By unanimous consent, the mandatory quorum call has been waived.

The question is, Is it the sense of the Senate that debate on the nomination of Rita F. Lin, of California, to be United States District Judge for the Northern District of California, shall be brought to a close?

The yeas and nays are mandatory under the rule.

The clerk will call the roll.

The senior assistant legislative clerk called the roll.

Mr. DURBIN. I announce that the Senator from California (Mrs. FEINSTEIN) and the Senator from Arizona (Mr. KELLY) are necessarily absent.

Mr. THUNE. The following Senator is necessarily absent: the Senator from South Carolina (Mr. SCOTT).

The yeas and nays resulted—yeas 52, nays 45, as follows:

[Rollcall Vote No. 231 Ex.]

YEAS—52

Baldwin	Heinrich	Rosen
Bennet	Hickenlooper	Sanders
Blumenthal	Hirono	Schatz
Booker	Kaine	Schumer
Brown	King	Shaheen
Cantwell	Klobuchar	Sinema
Cardin	Luján	Smith
Carper	Manchin	Stabenow
Casey	Markey	Tester
Collins	Menendez	Van Hollen
Coons	Merkley	Warner
Cortez Masto	Murkowski	Warnock
Duckworth	Murphy	Warren
Durbin	Murray	Welch
Fetterman	Ossoff	Whitehouse
Gillibrand	Padilla	Wyden
Graham	Peters	
Hassan	Reed	

NAYS—45

Barrasso	Fischer	Paul
Blackburn	Grassley	Ricketts
Boozman	Hagerty	Risch
Braun	Hawley	Romney
Britt	Hoeven	Rounds
Budd	Hyde-Smith	Rubio
Capito	Johnson	Schmitt
Cassidy	Kennedy	Scott (FL)
Cornyn	Lankford	Sullivan
Cotton	Lee	Thune
Cramer	Lummis	Tillis
Crapo	Marshall	Tuberville
Cruz	McConnell	Vance
Daines	Moran	Wicker
Ernst	Mullin	Young

NOT VOTING—3

Feinstein	Kelly	Scott (SC)

The PRESIDING OFFICER (Mr. LUJÁN). The yeas are 52, the nays are 45.

The motion is agreed to.

RECESS

The PRESIDING OFFICER. Under the previous order, the Senate stands in recess until 2:15 p.m.

Thereupon, the Senate, at 1:16 p.m., recessed until 2:15 p.m. and reassembled when called to order by the Presiding Officer (Mr. LUJÁN).

EXECUTIVE CALENDAR—Continued

The PRESIDING OFFICER. The clerk will report the nomination.

The senior assistant legislative clerk read the nomination of Rita F. Lin, of California, to be United States District Judge for the Northern District of California.

VOTE ON LIN NOMINATION

The PRESIDING OFFICER. Under the previous order, the question is, Will the Senate advise and consent to the Lin nomination?

Mr. CARDIN. I ask for the yeas and nays.

The PRESIDING OFFICER. Is there a sufficient second?

There appears to be a sufficient second.

The clerk will call the roll.

The senior assistant legislative clerk called the roll.

Mr. DURBIN. I announce that the Senator from California (Mrs. FEINSTEIN) and the Senator from Arizona (Mr. KELLY) are necessarily absent.

Mr. THUNE. The following Senator is necessarily absent: the Senator from South Carolina (Mr. SCOTT).

The result was announced—yeas 52, nays 45, as follows:

[Rollcall Vote No. 232 Ex.]

YEAS—52

Baldwin	Gillibrand	Murphy
Bennet	Graham	Murray
Blumenthal	Hassan	Ossoff
Booker	Heinrich	Padilla
Brown	Hickenlooper	Peters
Cantwell	Hirono	Reed
Cardin	Kaine	Rosen
Carper	King	Sanders
Casey	Klobuchar	Schatz
Collins	Luján	Schumer
Coons	Manchin	Shaheen
Cortez Masto	Markey	Sinema
Duckworth	Menendez	Smith
Durbin	Merkley	Stabenow
Fetterman	Murkowski	Tester
Van Hollen	Warren	Wyden
Warner	Welch	
Warnock	Whitehouse	

NAYS—45

Barrasso	Fischer	Paul
Blackburn	Grassley	Ricketts
Boozman	Hagerty	Risch
Braun	Hawley	Romney
Britt	Hoeven	Rounds
Budd	Hyde-Smith	Rubio
Capito	Johnson	Schmitt
Cassidy	Kennedy	Scott (FL)
Cornyn	Lankford	Sullivan
Cotton	Lee	Thune
Cramer	Lummis	Tillis
Crapo	Marshall	Tuberville
Cruz	McConnell	Vance
Daines	Moran	Wicker
Ernst	Mullin	Young

NOT VOTING—3

Feinstein	Kelly	Scott (SC)

The nomination was confirmed.

The PRESIDING OFFICER (Mr. WELCH). Under the previous order, the motion to reconsider is considered made and laid upon the table, and the President will be immediately notified of the Senate's action.

LEGISLATIVE SESSION

MILITARY CONSTRUCTION, VETERANS AFFAIRS, AND RELATED AGENCIES APPROPRIATIONS ACT, 2024—Resumed

The PRESIDING OFFICER. Under the previous order, the Senate will resume legislative session and the consideration of H.R. 4366, which the clerk will report.

The senior assistant legislative clerk read as follows:

A bill (H.R. 4366) making appropriations for military construction, the Department of Veterans Affairs, and related agencies for the fiscal year ending September 30, 2024, and for other purposes.

Pending:

Schumer (for Murray-Collins) amendment No. 1092, in the nature of a substitute.

Murray amendment No. 1205 (to amendment No. 1092), to change the effective date.

Murray motion to suspend rule XVI for the consideration of Schumer (for Murray-Collins) amendment No. 1092 (listed above) to the bill.

Schumer motion to commit the bill to the Committee on Appropriations, with instructions, Schumer amendment No. 1230, to change the effective date.

The PRESIDING OFFICER. The Senator from Kentucky.

UNANIMOUS CONSENT REQUEST—S. RES. 336

Mr. PAUL. Mr. President, the Senate still mandates a COVID booster vaccine for pages. The Senate COVID vaccine mandate for pages continues despite the fact that the Senate voted 83 to 11 to repeal the military COVID vaccine mandate. So why in the world would we continue a mandate on pages that we have repealed for our soldiers? Is there any science to support continuing this mandate? The answer is an emphatic no.

The science has been clear since the early spring of 2020. Healthy children are not seriously affected by COVID. In fact, several large studies show that healthy children are rarely hospitalized and that deaths from COVID in healthy children are virtually nonexistent.

Dr. Martin Makary of Johns Hopkins describes a large, nationwide study in Israel that found that the risk of COVID death in people under 30 with two vaccines was essentially zero. A nationwide study from Germany showed zero COVID deaths among children over 5 who had no comorbidities. Even the head of the WHO, Soumya Swaminathan, concluded that there is no evidence right now that suggests healthy children and adolescents need boosters. Yet here we are, with Democrats desperately clinging to COVID vaccine mandates for young people who have essentially zero risk of dying from COVID.

Common sense should prevail, and the Senate should repeal this mandate, just as we did for our young soldiers. We shouldn't allow politics to infect and cloud commonsense judgment.

The vaccine committees that make recommendations for vaccines actually don't recommend COVID boosters for young, healthy individuals. The FDA's Vaccines and Related Biological Products Advisory Committee voted to limit COVID vaccines to adults over 65. They wanted, because of the risk profile of the COVID vaccine, to limit it to people who were at risk for dying from COVID. A CDC vaccine panel also voted against recommending boosters for young, healthy individuals. But these committees that have lifelong scientists on them who voted not to advise the booster vaccine for adolescents were overruled by a political appointee, Biden appointee Rochelle Walensky.

Dr. Paul Offit, who is the director of the Vaccine Education Center and professor of pediatrics and infectious disease at Children's Hospital in Philadelphia, wrote that ''a healthy young person with [two COVID vaccines] is extremely unlikely to be hospitalized with covid, so the case for risking any side effects—such as myocarditis—diminishes substantially.'' Dr. Offit, a lifelong proponent of vaccines, even advised his own son not to get the COVID booster.

The argument against mandating COVID boosters on young, healthy people is not just that they are unnecessary but that the COVID boosters may actually harm young individuals. Reports of heart inflammation or myocarditis after COVID vaccines have been consistent and worldwide.

A study in the Journal of the American Medical Association Cardiology examined 23 million people across Denmark, Finland, Norway, and Sweden and found that the risk of myocarditis increased with COVID vaccination, particularly after the second dose. This is exactly why several European countries, including Germany, France, Sweden, Denmark, and Norway, restrict the use of COVID vaccines among young, healthy people. Some countries, such as South Africa and England, recommend only one COVID vaccine to avoid the risk of myocarditis.

A study in the Journal of Medical Ethics similarly found about 1.5 cases of myocarditis per 10,000 COVID vaccines but with 80 percent of the kids who suffer from a heart inflammation still having symptoms 3 months later.

Drs. Prasad and Knudsen looked at 29 studies across 3 continents and also found an increase in myocarditis after COVID vaccines. The studies reviewed by Prasad and Knudsen showed a little more than 2 cases of myocarditis per 15,000 vaccines.

Even the CDC admits that myocarditis occurs about once per 15,000 vaccines.

Dr. Tracey Beth Hoeg looked at the Vaccine Adverse Event Reporting System and found 1.62 adverse cardiac events per 10,000 vaccines. Now, that doesn't sound like a high number, but we are talking about a perfectly healthy kid. How would you feel if your perfectly healthy young football player or band member is given the vaccine and comes home with a heart inflammation? It is actually diagnosed with rising heart enzymes the same way that a heart attack is diagnosed. Hoeg found that the risk of myocarditis was five times greater than the risk of hospitalization from COVID.

So you are asking yourself, well, could my kid go to the hospital or could he get a heart inflammation? Both are rare, but the chance of your kid getting a heart inflammation from the vaccine is five times greater than your kid being hospitalized from COVID.

The Vaccine Safety Datalink similarly found a little over 2 cases of myocarditis per 15,000 vaccines.

This is across the scientific literature, across all the continents, across the world, and is a consistent finding that even our government admits to. But the Democrats want submission. They don't want you to have the choice to keep your kid safe and make a decision whether or not your kid, who may well have already had COVID, needs yet another vaccine.

Why are we forcing these kids to do something that I would say is against medical advice to be a page in our program here? The Senate continues to look away from all the evidence of myocarditis. In each of these studies, the risk of myocarditis increases with each vaccine. About 90 percent of the myocarditis or heart inflammation occurs after the second vaccine. Yet, inexplicably, the Senate pages are being mandated to take three vaccines. There are all kinds of compromises. You could say one; you could say two; but three—you are increasing the risk with each successive vaccine. Not only are three COVID vaccines unwarranted for young, healthy individuals, this mandate actually risks their health.

It is the height of malpractice to subject young, healthy kids to three COVID vaccines. In fact, nowhere in the examination or discussion of whether they should have the vaccine is there any discussion of whether they have had COVID.

So what is a vaccine? It is meant to simulate having had the infection. Shouldn't they tell us the data on children or adults? If you have had the infection, what is your chance of getting it again? What is your chance of going to the hospital? What is your chance of dying from COVID if you have already had it? They won't tell us for adolescents because the answer is zero.

Originally, the logic of advocates for the COVID vaccine mandates argue that the vaccines were not necessarily for the children but to protect their parents and grandparents. This argument now holds no water, as even the zealous advocates of mandates, such as Biden's CDC Director Rochelle Walensky, admit that COVID vaccines do not anymore prevent transmission. So the side of the people promoting these mandates admits they don't stop transmission. Now, they may well still reduce hospitalization and death if you are in the target category—the elderly or those with health disease—but for young, healthy kids, there is no effect other than to increase their risk of a heart inflammation.

A Danish study confirms that by December 2021, the COVID vaccine's effectiveness was less than 10 percent. The virus had mutated on, and the vaccine had not been changed.

A study from January 2022 of over 1.2 million children in New York shows that the vaccine effectiveness was 10 percent. It wasn't stopping transmission, it wasn't stopping them from getting the disease, and it wasn't protecting their health.

No serious scientist now argues that COVID vaccines stop transmission—no one. Yet here we are, with Democrats saying: You are not smart enough to make your own decisions. We will make these medical choices for you.

When we look at the effectiveness of the COVID booster, we ask, what is the science toward whether or not a booster is effective? Isn't this booster now formulated against the newer variants? Yes, the booster is directed against newer variants, but about every 3 months or so, the virus changes enough that the latest vaccine is no longer effective.

In fact, the CDC has largely given up testing the boosters and the new vaccines for effectiveness. Instead, in pushing for all children to get COVID booster vaccines, the CDC doesn't argue that the booster stops transmission; it doesn't argue that it prevents hospitalization or death. So what argument does the CDC have for continuing to promote boosters on our children? The CDC readily admits the vaccines don't stop transmission in any group.

As to hospitalization and death, the CDC can't show any evidence that the booster lessens hospitalization or death among young people. Why? Because the rate is already virtually zero. It is hard to prove that the booster is helping anything when no healthy kids are dying from COVID.

The CDC can't prove that the booster helps because it is impossible to improve upon the already low incidence of severe disease among young people. In fact, when the CDC approved the COVID booster for children, they didn't even argue that it was effective or that it prevented anything; what they argued is that the kids will make antibodies if you give them a vaccine, which means absolutely nothing.

I have challenged Anthony Fauci on this, on the lack of effectiveness. An antibody response simply means that the vaccine generates an immune response but tells you nothing about disease prevention. It tells you nothing about preventing hospitalization. It tells you nothing about infectiousness. It tells you nothing about death rate. In fact, you could give every kid in the country 100 different COVID boosters, and they will make antibodies each time. That doesn't mean they need 100 boosters.

What they have done is they have given up on trying to prove that the booster has any effect on their health, and they just want you to shut your eyes, be quiet, and do as you are told. This is the Democrat policy. This is the Democrat medical policy for you: Shut up and do as you are told. Take the injection. We don't care if your kid might get sick. We don't care if you might have a choice. We don't care if you have any say in your kid's medical care.

In a free society, no one should be forced to undergo a medical procedure against their will. In a free society, no one should be forced to receive an injection into their body that they do not wish to have.

The Democratic Party's support for medical choice seems selective and inconsistent. What ever happened to my body, my choice?

Vaccine mandates for children, who are at virtually no risk for COVID death, create vaccine hesitancy among the public. The public is well aware that healthy children do not die from COVID, and they rightly have resisted COVID vaccines on their children. But the vast overreach of vaccine mandates actually creates among the public a tendency to doubt and disbelieve the government's overall vaccine message. Because of the dishonest, over-the-top mandates on children, the public wonders if the government messengers are downplaying other risks.

It is, however, true that the vast majority of people at risk for serious COVID have indeed already been vaccinated. Over 97 percent of people over 65 watched the news, learned of their friends, watched their neighbors, found out who is dying, and they took the vaccine voluntarily.

If vaccine advocates want the public to continue to listen to public health pronouncements, then they need to end the nonsensical vaccine mandates on our kids. A good start would be ending the ill-advised COVID booster mandate for our Senate pages.

So, Mr. President, I ask unanimous consent that the Committee on Rules and Administration be discharged from further consideration and the Senate now proceed to S. Res. 336; further, that the resolution be agreed to, the preamble be agreed to, and the motions to reconsider be considered made and laid upon the table.

The PRESIDING OFFICER. Is there objection?

The Senator from Connecticut.

Mr. MURPHY. Mr. President, reserving the right to object, I heard a very similar speech last week when Senator PAUL came to the floor to offer this exact same resolution, and I came to the floor to offer the exact same objection. I guess we are going to be here next week and the week after having this same back-and-forth on the Senate floor.

I don't know that this is the most important problem facing the country today, the question of whether a small number of Senate pages has a vaccine or not. I think Senator PAUL's obsession with the page vaccine policy is a little weird and not squared with the actual priorities of the American public. But I will continue to come down here and object because it is important to know that there is no legal mandate that pages be vaccinated. It is a policy, not a mandate. Senator PAUL is proposing a mandate—a mandate—through this resolution that under no circumstances can pages be required to have a vaccination as a condition of their employment here.

I find Senator PAUL's recitation of his body of evidence interesting. I don't dispute the fact that the vaccine today is much more efficacious on preventing serious illness and is not, like prior vaccines, effective at preventing transmission. But here are two things to say about that. Senator PAUL says over and over again that if you are a healthy kid, you have nothing to worry about, that no healthy kids are dying. OK, that is broadly true. It is true that healthy children have very little risk of dying of COVID. But the assumption, then, is that every single page that is part of this program has no preexisting conditions, that every single page comes here with a clean bill of health. That is not true.

There are pages here—just like our employees—who have preexisting conditions, and we have a responsibility for the young people who work for us. We have a long history in this country of requiring vaccinations for young people. Senator PAUL objects to that policy, but it is long accepted that young people, during their school-age years, should have a set of vaccinations to keep them healthy. And if you have a preexisting condition, even as a child, you have a potential of dying from COVID.

Guess what. COVID is the eighth leading cause of death for young people today. That is not insignificant. And so it is perfectly consistent with the general policy we have in this country of requiring students to get vaccines to require the same of the page population—who, by the way, are students.

The second thing to say about this resolution is this: Even if Senator PAUL is correct—and I broadly would submit that he is—that this vaccine is really about preventing serious illness, not about preventing transmission, this resolution is permanent. This says that under no circumstances should a Senate page be required to have a vaccination.

But what if a follow-on vaccine is more effective at preventing transmission? What if the next COVID variant is a more significant threat to children?

This is a mandate. This says: No matter what the scientific recommendations are, under no circumstances—under no circumstances, no matter what the scientific recommendation is—can you mandate, can you require that a Senate page, as a condition of working in the Senate, have a vaccination.

That is bad policy. I would rather have this question be up to the Attending Physician, to the adults who run the Page Program, than have mandates from the U.S. Senate about the healthcare policy of our pages.

I think this is really bad policy, but I also think it is super dangerous because, really, the question of whether a handful of pages in the Senate have a vaccine is not worthy of a half an hour of back and forth between two U.S. Senators. What this ends up being is yet another wedge to try to drive apart the American public from a belief in science and vaccines.

This is a longstanding effort by Senator PAUL and others to question the efficacy of vaccines. It feeds into a broader narrative about the efficacy of science writ large, and that has devastating consequences for this country because, as people lose faith in medical recommendations, as fewer people get vaccines because they come under the belief that the vaccine will do more harm than good, people die.

And so, by itself, this is bad policy, because this is part of a broad consensus in this country that students should get vaccinated for significant conditions, and this policy stands no matter what the future recommendations of medical professionals are.

But I object to it just as strongly because of how it fits into this broader, incredibly dangerous narrative to try to undermine people's faith in science and vaccines. And for that reason, I would object.

The PRESIDING OFFICER. Objection is heard.

The Senator from Kentucky.

Mr. PAUL. Mr. President, the accusation has been made that my purpose is somehow to undermine vaccines and have people question vaccines. But, obviously, the arguments were not listened to because in no part of my arguments or any of my public statements have I ever said anything in general that vaccines are bad. In fact, as a physician, I am most fascinated by the development of vaccines. The stories of the development of the smallpox vaccine and the polio vaccine were all tremendous scientific successes, and there continue to be. My argument is simply for medical freedom.

Now, there has been a disingenuous argument made by the other side. They say that I am proposing a mandate, that this will be a legal mandate and that there is no mandate.

If you want to be a page, there is a mandate. Now, they say you can just choose not to be a page, but this affects the rest of our society.

So if your kid gets into Yale or Princeton or Harvard or the University of Chicago, many of those schools follow the lead of the Senate, follow the lead of the Senate doctors, and say your kid has to have three vaccines. But if you look at the evidence carefully that I have laid out, you will find that the scientific studies across all continents, across the world, across the United States—studies of millions of people—show that the vaccines have some downside and danger, particularly for children.

Not once have I said that the elderly shouldn't be vaccinated. In fact, for my 92-year-old and 86-year-old in-laws, we suggested and tried to get them the vaccine as soon as we could. My wife was vaccinated. Now, I chose not to be vaccinated because I had the disease in the first couple weeks of COVID and had immunity.

And the studies turned out—and these are studies of over a million people in California and New York. The studies turned out to show that actually having had the disease does give you immunity, and it is actually twice as potent as the vaccine.

When I say that, the left gets apoplectic, and they say: Oh, my goodness, you are saying people should just get sick to get immunity.

I am not saying that at all. But I am saying that, if you have gotten sick, you have immunity. And we should be honest with people because some people have had two vaccines and they want to know: Do I need a third one?

Well, let's release the data on people who have had two vaccines plus COVID, and tell us how many people are subsequently getting it again, going to the hospital, or dying. Wouldn't you want to know that before you take your third, fourth, fifth, six, seventh, eighth, ninth, tenth vaccine? Release the data. But, in a free country, we make these decisions.

The other side argued that, well, what if one of the pages has health conditions. No part of our resolution says anything about them not getting a vaccine. Anybody in this country can freely get a vaccine. If their parents and they decide to get a vaccine, by all means, do it. Nothing in my resolution would prevent pages or anyone else from getting a vaccine. What I am arguing for is freedom.

As far as the idea that this will be permanent and unwavering and won't be able to recognize what new diseases come upon us, every new disease requires reevaluation—every new disease. It doesn't mean the concept of freedom changes. What would happen is everyone will still evaluate this.

The evaluation of this vaccine when it first came out at the end of 2020, early 2021, was different than it is now, frankly. It is also different if you have had it. People should just be honest with you.

I am not saying don't take a booster or that you can't take a booster. Go take all you want. I am saying the government's job should be to give you information, and I am saying the opposite of what he actually made a point of.

Vaccine hesitancy or people undermining the belief that vaccines work comes from people who tell you things that are dishonest and untrue. There is no science—and I am adamant about what I am saying here. There is no science that the booster for your children reduces the transmission of the disease. There is no reduction in your child's ability to get COVID if they take a COVID booster—zero. The other side accepts this. Rochelle Walensky, Biden's nominee, accepts this—no change in transmission with the vaccine.

How about hospitalization and death? There is still some data that people at risk for this can have reduced hospitalization, not transmission. They can still catch it, but maybe reduced hospitalization and death.

Most of this data came in the previous iterations, when we had the wild variety in 2020. Then we got Delta. Then we got Omicron. But we have now advanced two or three iterations out. And the one thing we are lucky about that the government should be honest with you is that with each successive iteration, with each successive mutation and variant, the good news is this: It has become less deadly. It has become less deadly because the virus is now less deadly but also because the community has more immunity. So immunity has developed; the virus has evolved to become less deadly, and we are in a much better situation.

But government medicine and government health policy shouldn't be about telling Americans what to do. It should be about giving information. The government should never be in the business of mandating, whether it is masks or vaccines or any of this other stuff. You wear it. You do it if you want—your body, your choice.

But there is a lot of conflicting data here, and you really need to be informed to make an informed choice. There is some data the government is still preventing from being released so you can't tell.

With regard to the masks, we now know that there was a meta-analysis of 78 different randomized controlled studies called the Cochrane analysis, and they found that masks did not prevent the transmission in public. In fact, what they found was there was no evidence that more significant mandates or more significant use changed the transmission at all.

This had been the accepted conclusion by all of the medical world before 2020. We had never advised masks in public for influenza because with influenza, the size of the virus—the same as the size of COVID—is much smaller than the pores of the mask. We found people really cannot wear the masks without touching them. We found that air goes around the mask. But, ultimately, we looked at public, large populations, and we found that they just didn't prevent the disease.

Does that mean you can't wear a mask? No. Wear a mask if you think it makes you more healthy. In the hospital, they said: Well, doctors wear them.

Of course we do. If you go into a COVID patient's room—and I volunteered in the hospital after I got COVID. I got it very early, and I felt comfortable going in there because I had already had the disease. But wearing a mask made sense to go into the room of someone with COVID. We wore the N95 mask because it actually, if worn properly, will protect from the particles. We also washed our hands, wore gloves, and wore gowns. And as we came out, we took off the gloves, the gowns, and the masks and threw them away immediately. And we did it again into the next patient's room.

Done properly, there can be some—it still doesn't work completely because, still, a lot of doctors and nurses got COVID, but it is probably worth a try.

In the public setting, it just doesn't work, frankly. Nobody can do that. A lot of people don't know this, but the N95 mask—in which, actually, the pores are small enough—works with something called an electrostatic charge. And after you breathe into it for about 4 hours, the moisture from your exhaled breath actually changes the electrostatic charge, and it is not as effective in preventing the ingress or egress of the COVID virus.

But, really, what we are arguing here—there can be two sides to every argument. What we are arguing about, what we are discussing is who should make the choice. The Democratic majority believes that they should make the choices for your healthcare and that kids belong to them.

This is the same argument we had in education in Virginia, when you had the parents in Northern Virginia saying, ''We want to be involved in our children's education,'' and you had the Democratic nominee for Governor in Virginia come out in a debate and say that kids don't belong to their parents; the school will make these decisions; it is none of your business; stay out of it.

That is what they are telling the pages and their parents—that it is none of their business, their healthcare.

And it could be different for any of them. If a page had a kidney transplant or has leukemia and their parents want them to have the vaccine, it is probably a reasonable thing to do. But if they are young and healthy and have no medical problems, it turns out, if you look objectively at the data, that they have five times greater risk of getting a heart inflammation than they do of being hospitalized for COVID. These are the statistics. People should just be aware of that.

And good, honest people could still disagree on this. But what happens in a free country is you make your decision. You make your decision of which doctor you take them to. If you don't appreciate the opinion of that doctor and you don't trust that doctor, you go to another. And sometimes, it is complicated. Sometimes, mothers and fathers don't agree.

But who wants to give a political party the power to make these decisions for your children? How would you feel if your young, healthy football player or band member or choir member got the COVID vaccine and then has a heart problem that permanently impairs them for the rest of their life, when they had zero chance of dying from COVID and virtually no chance of being hospitalized?

Wouldn't you want your government to release the data on what it means if your kid has already had COVID? Let's say your kid has already had one or two vaccines and they have already had COVID. What does that mean? Don't you think having COVID might replace the need for more vaccines?

Your immunity is also broader. The vaccine gives immunity to one protein on the surface, the S protein on the surface of the cell. When you actually get infected, your body destroys the cells that have the virus in, and, as the virus empties out its inner contents, nucleic capsids and nuclear proteins, you actually get a broader immunity.

Now, the left misinterprets this. The left says: You want everybody to get sick, and people are going to die.

I don't want anybody to get sick. All I am telling you is people should be given the information. Most of us have had COVID. What does it mean? What does it mean if you have had two vaccines and COVID? What does that mean toward your future? What does it mean toward your need for more vaccines?

But, ultimately, what we are talking about here is freedom. What we are talking about is who should make the medical choices: the government, the Democratic Party, or whether or not we should leave this to parents and their kids. And I, for one, say that we ought to have medical freedom. In a free country, every individual should be free to make those decisions.

The PRESIDING OFFICER. The Senator from Ohio.

UNITED AUTO WORKERS STRIKE

Mr. BROWN. Mr. President, right after workers for Stellantis—the old name of Stellantis was Chrysler, DaimlerChrysler. Their plant is in Toledo. They make the Jeep Cherokee. It

is made by union workers in Toledo, OH, my State. My wife and I each drive Jeep Cherokees. One of those cars once saved my life when a young high school kid, at 40 miles an hour in the middle of the day, ran a stop sign and hit the side of the car where I was sitting. There were essentially no injuries because these are well-made American cars by union labor.

I was over to the picket line Friday morning. I talked with a lot of workers. I know many of them. There are 6,000 at this plant. And 1,000—actually, 1,100 of these workers are at this Chrysler plant, this Stellantis plant in Toledo. Those 1,100 workers at the Jeep plant are on what is called a tiered wage system where they make fewer than $19-and-something an hour. They have been at this Jeep plant, some of them for 1 year, some of them 3 years, some of them 5 or 6 years, yet they make less than $40,000 a year as union workers.

The reason for that is some years ago, when Chrysler—then Chrysler—and GM were in real serious economic trouble, the union—the government helped, but the union, in order to save these plants, in order to save, essentially, the American automobile industry—they did major givebacks of their wages and their benefits.

They set up—management insisted and the workers went along because they wanted to save these companies—they took major pay cuts and set up a tiered wage system. So new workers, hundreds and hundreds—over 1,000 from this plant of 6,000 union workers—were making substandard wages.

That is troubling enough that those workers, years later, are still making those substandard wages. In some cases, you can't support a family on these wages. Yet that is when Chrysler and GM were in such economic trouble.

Since then, we know how well Chrysler—Stellantis now—and GM are doing. We know how well they are doing by a number of measurements. No. 1, Chrysler—sorry, Stellantis; I always think of them as Chrysler and Jeep in my State. Stellantis made $12 billion just in this calendar alone. This company made $12 billion. When they were in trouble, the workers, by giving up a lot and making sacrifices, saved them. Now these companies are so profitable—$12 billion just this year alone, Stellantis—they have essentially given nothing back to the workers, and they are unwilling to provide the workers a decent benefit—benefits, wages, all of those things.

At the same time, I met an entry-level worker there. She just started. The CEO of Stellantis makes 850 times what this worker makes—850 times what this worker makes. The CEO of Stellantis makes 365 times what the average worker in Chrysler—the average worker in Stellantis makes in that plant and other plants around the country.

The fact is, these workers—clearly, we come down on the side of these workers. The industry has done very well because of America's economic system. The industry has done very well because they have had the opportunity to do well in this country because the workers sacrifice so much. That is why I will go back to the picket line.

There may be picket lines and shutdowns and strikes in other parts of the auto industry. The public clearly sides with these workers. The public understands that these CEOs are making between $22- and $29 million a year. The three CEOs have gotten 30-percent, 40-percent increases since the industry did so well.

Again, a decade ago, workers were willing to give up a lot to keep these companies going. Now, they are immensely profitable—$12 billion in profits this year alone with the CEO making $22–23 million. The auto industry is simply not willing to come to the table and negotiate in good faith so these workers can share in the prosperity they created.

We know it not only hurts those workers when they are making $16 an hour; it hurts the community. It hurts Toledo, Lucas County, Wood County—those communities that don't have the taxes they would if these workers were making decent wages. And they don't have the economic prosperity they would if workers were making decent wages and buying—spending a little more at the grocery store, on movies, on clothes, and on all the things that help create a prosperous economy.

No question, I will continue to stand with workers. I think most of the Senate stands with workers. I know most of the American people stand with these workers.

I implore GM and Stellantis and Ford to come to the table and make a good faith, decent offer and get these workers back to work. They don't want to strike. Their backs are to the wall. They had to strike.

I yield the floor.

The PRESIDING OFFICER (Mr. MARKEY). The Senator from Nebraska.

BIDENOMICS

Mrs. FISCHER. Mr. President, when it comes to the economy, we hear a lot of statistics. Since President Biden took office and put his Bidenomics plan into action, prices have risen by 17.37 percent. Rent is up by 17 percent, grocery prices by 25 percent, and energy costs by 43 percent. Gas prices have risen by an unbelievable 65 percent.

As alarming as those percentages are, I am most concerned about the individuals who are hurting because of these increases. That is why I was struck by new numbers I saw last week from the Census Bureau. Bidenomics is making life harder for children in Nebraska.

The number of children living in poverty in my home State increased by almost 5,000 from 2021 to 2022—5,000 more kids living in poverty. That is thousands more families who are living below the poverty line, thousands of families who are struggling to pay bills, to buy food, to afford a place to sleep. Some of these 5,000 children are from families who cannot afford any of these things. They are going hungry. They are couch surfing—or worse. That is Bidenomics in Nebraska.

Bidenomics is making life harder for the more rural parts of Nebraska. Soaring prices caused by inflation are especially affecting those areas in my State. They are especially affecting kids in more rural areas. According to an analysis by an Omaha nonprofit, from 2021 to 2022, there was a 25-percent increase in the number of kids below the poverty line who are located in nonmetro areas of Nebraska. A quarter more kids living outside urban areas come from families that are barely getting by.

Some of these children live in sparsely populated areas where it can really take hours to get to the grocery store, the pharmacy, or to a hospital. When gas is 65 percent more expensive and groceries will break the bank, families are going to struggle with those long trips. They are in dire need of resources. But inflation is ripping away their ability to access those resources. That is Bidenomics in Nebraska.

Bidenomics is making life harder for anyone who pays rent, mortgage, or utilities in Nebraska. The most basic of necessities—affording a place to live—is now a huge financial strain. Close to half of the renters in Nebraska are spending more than 30 percent of their income on housing. Almost 20,000 more renting households are considered ''financially burdened.'' That is 20,000 more in just 1 year. That is Bidenomics in Nebraska.

Bidenomics is making life harder for businesses and their employees. As rent encroaches on a larger percentage of people's incomes, the incomes themselves are getting smaller. Nebraska's median income declined by 3.6 percent in 2022. Businesses can't pay their employees as much when all of their money is being spent on rising utility and rent prices. Rising inflation means higher costs, lower salaries, and a harder time earning a living. That is Bidenomics in Nebraska.

Mr. President, I am thankful that my home State of Nebraska has many nonprofits that are ready to help those who are struggling from inflation. These organizations make a real difference in people's lives, and they are part of a rich tradition of charity in my State. Charities can do good work to minimize damage, but they cannot do surgery on an injured economy. The only way to stitch our economy back up is to get rid of this administration's suffocating regulations once and for all. The Biden administration must hear. It is time for a new approach to the economy.

So how do we heal the economy? We roll back the regulations that are still poisoning it, including those from the ironically named Inflation Reduction Act. We unleash American energy, which will lower the gas prices that

have climbed by 65 percent. We can heal our economy by turning the page on Bidenomics and adopting a new economic strategy, one focused on getting rid of wasteful policies and bringing down costs for everyday Americans.

Nebraskans are experiencing Bidenomics. The American people are experiencing Bidenomics. Bidenomics is an economic plan that inflates prices, hurts real families, real children, real businesses, and real employees. The American people don't want to experience Bidenomics anymore.

I yield the floor.

The PRESIDING OFFICER. The Senator from Texas.

BORDER SECURITY

Mr. CORNYN. Mr. President, I remember when title 42 went away—the COVID public health order that the Border Patrol used to expel people from the border region in the interest of public health. There were many people who expected a surge of migration recognizing what a moneymaking opportunity that human smuggling and drug smuggling is for the cartels that control much of the U.S.-Mexican border.

And for a while it looked like maybe—just maybe—that surge would not happen. But despite the administration's best efforts to downplay or distract from the situation at the southern border, we now see the Biden border crisis in full flower.

Preliminary data secured by the Washington Post shows that last month—last month—a record number of migrant families illegally crossed the southern border.

In August, the Border Patrol arrested more than 91,000 migrants—in August—people who entered the United States as part of a family unit, the highest number we have seen in a single month. But it is not just the families; apprehension numbers have increased dramatically over the past couple of months in all categories.

We have gone from just under 100,000 detentions in June to 132,000 in July, to more than 177,000 in August. I would point out that much of the migration we have seen into Texas has been seasonal because it has been very hot, and it is dangerous for migrants to make the dangerous trip from their home to our border. But that hasn't happened this year. It got worse and worse the hotter the summer months got.

So when you include migrants processed through the ports of entry, the Washington Post is estimating roughly 230,000 migrant encounters in August—230,000.

This would make it the busiest month for border crossings this calendar year. As I said, since title 42 ended in May, the Biden administration has tried to spike the ball and declare victory. They pointed to a temporary drop in border crossings and said this is the proof that their situation was under their control, but that is obviously not the case.

We have just experienced the busiest month in family crossings on record and likely the busiest month for overall crossings this calendar year. As the New York Times reported, in August alone, nearly 82,000 migrants passed through the Darien Gap, the sole land route to the United States from South America, describing it as ''by far the largest single-month total on record.''

And the border crisis isn't getting any better. If anything, it is getting worse, and communities in Texas and those across the Nation are beginning to feel the strain. El Paso, for example, right across the border from Juarez, in West Texas, is in the midst of a surge in border crossings. It is seeing an average of 1,200 encounters per day.

The leader of Rescue Mission El Paso, which provides migrants with food, clothing, and shelter, said:

> We've lost track of what capacity means. We are beyond full.

Further down the Texas-Mexico border is Eagle Pass, which experienced a mass crossing earlier this week. Between midnight on Sunday and Monday morning, more than 2,200 migrants crossed illegally. That is 2,200 in 1 night. The migration surge is happening along the entire U.S.-Mexico border, but two areas in particular are under tremendous strain. One is the Tucson Sector, which covers most of the Arizona-Mexico border. Border crossings in this sector have been on the rise, with agents apprehending as many as 2,000 migrants a day. This includes migrants from all over the world, even those from Senegal.

It reminds me of, when I was in Yuma, AZ, with four Democratic Senators and four Republican Senators, we were welcomed by the Acting Border Patrol Chief, who said: Welcome to the Yuma Sector. Last year, we encountered people from 174 countries, speaking more than 200 languages.

Senator KELLY, the Senator from Arizona, was there and noted that Mexicali is a city in Northern Mexico with an airport. And so it was explained to us that what likely was happening is that human smugglers were facilitating the travel of migrants to Mexicali, where they could simply Uber over to the Border Patrol and claim asylum, and the Biden administration would make sure they were successfully deposited in the United States of America, perhaps to await an asylum hearing that may never occur.

Well, given the spike in border crossings, the Border Patrol—it is no surprise—is struggling. The Agency doesn't have the facilities, the resources, or the personnel to manage an influx this large, and, actually, that is part of the plan.

If you are a transnational criminal organization that profits from smuggling migrants and drugs across the border, what a tremendous idea: Let's flood the zone with migrants, and then when the Border Patrol is distracted or diverted elsewhere, then here come the drugs. And we saw last year alone 108,000 Americans died of drug overdoses, 71,000 from synthetic opioids like fentanyl.

We know where it is coming from. The precursors come from China. It goes to Mexico. It is manufactured there, largely, to look like traditional pharmaceuticals, but they are contaminated with fentanyl. I was in Houston just last week, meeting with some parents who lost their children to fentanyl poisoning. I wear on my wrist—I typically don't wear things like this, but I have for the last 9 months. A father in Carrollton-Farmers Branch asked me to wear this band around my wrist in memory of his daughter who lost her life to fentanyl poisoning. It says, among other things, ''One pill can kill.''

Now, the children who die of fentanyl poisoning, they don't know they are taking fentanyl. They think it is maybe something more innocuous, and that is part of the insidiousness of what the cartels are doing. They are using industrial-sized pill presses to make it look like things that certainly wouldn't kill you. Maybe it is not optimal, things like Xanax or Percocet or some other pharmaceutical drug, but, in fact, it is counterfeit and contaminated with fentanyl. And as I said, 71,000 Americans died last year alone as a result of synthetic opioid poisoning.

So the Border Patrol can't keep up with the flooding of the zone, and here come the drugs, only to be distributed across the country in each of our communities by various criminal gangs. Well, because the Border Patrol can't keep up with the influx of people, they simply are now releasing them. That is right. Instead of returning them across the border, they are releasing them onto U.S. streets every day.

And it is unclear, really, who these individuals are or how they are being released. How many of these migrants are asylum seekers who have completed a credible fear screening? How many are simply being paroled into the country with flimsy instructions and told to appear at an ICE office, Immigrations and Customs office, in the interior at their destination.

How many are given a date to appear before an immigration judge, and how far away is that court date? I read recently in New York, an immigration court date could be as far as 10 years off. We don't have answers to these questions because the Biden administration has not been candid about exactly what is happening.

They basically have hoped nobody is noticing what is going on, but we are noticing. And, oh, by the way, people like the Governor in Massachusetts, the mayors of New York City, of Chicago, and Washington, DC, they are noticing because these migrants, once they pass the border region, they go somewhere, and what we are seeing is the impact on cities very far away from the southern border.

Well, the Biden administration keeps sweeping the problem under the rug and expecting us not to ask questions and conduct appropriate oversight. Last week alone, agents released 100 to

200 migrants a day near Nogales, AZ. The Tucson Sector is not alone. San Diego is also seeing a spike in border crossings. Last week, Customs and Border Protection closed one of two pedestrian crossings at the San Ysidro Port of Entry so personnel could help with the migration surge.

Again, the Border Patrol doesn't have the space or the personnel to accommodate the flood of humanity coming across. Videos show hundreds of migrants are being released into the streets and sidewalks of San Diego, including migrants from as far away as Pakistan and China.

Now, one of the things that amazes me, when President Biden appointed Vice President Kamala Harris as the border czar, she claimed that all of the flow of illegal immigration was as a result of local circumstances in Mexico or South America and as if we couldn't fix our border problems without basically nation building in one of those states. But either she does not understand or is unwilling to acknowledge that this is a global phenomenon. And who can blame some of these people coming across? If you think, Well, for a few thousand bucks, maybe I can make my way into the United States and stay there—well, maybe it is a good bet.

But it is a disaster when our immigration system is basically handed over to transnational criminal organizations that care nothing about the people and that care nothing about the drugs that are coming across; all they care about is the money. And they are getting richer by the day as a result of Biden border policies.

Well, if there was any question about whether the Biden administration understands what is going on, recently, a migrant asked an agent if he could travel to Chicago, and the agent replied:

You can do whatever you want. You're free.

That is the Biden administration's border enforcement policies.

You can do whatever you want. You're free.

If there was any confusion about the Biden administration's catch-and-release policies, well, that statement cleared it up.

You can do whatever you want. You're free.

This interaction happened to be captured on video, and it has made the rounds on social media and national news. And it has been viewed by people around the world. And, you know, when other people see that, do you think they are discouraged or deterred from coming to the United States through this illegal route? No. They are encouraged. It is like a magnet, which is why we are seeing the huge numbers that we continue to see.

Again, it makes me think the Biden administration simply does not understand the dynamics at the border or, which is more likely the case, they simply don't care. You have to imagine there are people out there who are debating whether or not to make this dangerous journey.

If they had any doubts about whether or not their journey would be successful, well, this video statement pretty much cleared that up. The secret is out.

You know, it is ironic when I hear Secretary Mayorkas of the Department of Homeland Security or the President or the Vice President say: ''Don't come. Don't come,'' when almost every other message that people around the world are receiving is ''Come. You can make it. Just pay the money; take the dangerous journey; take the risk; pay these criminal organizations the cash they demand; and you can make it into the United States.''

And, boy, have they come. People around the world see that America's borders are open. They see videos of migrants from all over the world being released in the United States and told ''you're free.''

The Biden administration continues to create new incentives for migrants to make the dangerous journey to the border. President Biden has proven he is not only incapable of addressing this crisis, he is completely uninterested. He doesn't care. He apparently has no desire to enforce the law and secure the border. And the reason I conclude that is because if he did care, if he were willing to work with us to solve that problem, we are here ready to meet him halfway, but all we hear are crickets.

He would rather appease the open borders base in his political party than take the steps needed to protect the American people.

Border communities have endured the Biden border crisis for more than 2½ years now, and they are bracing for yet another migration surge.

Given the administration's complete and utter failure to address the crisis, it is time for Congress to step up. I am proud to cosponsor the Secure the Border Act, which was introduced by my friend and fellow Texan, Senator CRUZ. This legislation would give the Border Patrol the tools they need in order to secure the border and safeguard the American people. It includes more agents to enforce the law to stop anyone or anything that doesn't legally enter the United States.

It restricts the Biden administration's ability to release thousands of migrants into the United States under the weak guise of parole. This is not parole in the criminal law sense where somebody is released from jail. This is a mechanism under our immigration laws where people are simply released and told: You have 2 years in the United States, and come back and check with us later on about staying longer. There is no such thing as a temporary program. All of this becomes permanent.

But this legislation tightens asylum standards that prevent migrants with frivolous asylum claims from gaming the system. This legislation implements a range of reforms that address the humanitarian and security crisis at the border. It passed the House in May and has been cosponsored by more than half of the Republican conference in the Senate.

My hope was that this would serve as a starting point for the Senate to begin discussing ways to secure the border and protect the American people. It would also be nice—and I have had this conversation with the chairman of the Senate Judiciary Committee, on which I serve, the Senator from Illinois, who so far has declined to consider a markup of any immigration bills or border security bills. In the Senate, that is the committee of jurisdiction on which I sit, and I happen to be the ranking member of the Immigration and Border Security Subcommittee.

Well, it is clear that President Biden's approach to the border is not sustainable. His administration has rolled out one incentive after another to encourage—not discourage, not deter, but to encourage—people from around the world to come to our borders and enter our country.

That is the reason we are experiencing a humanitarian and security crisis. The record migration levels of the last year have tested law enforcement, tested our cities and nonprofits in ways that I have never seen before—a record number of migrants, soaring demands for resources, dwindling budgets, overworked personnel—and we haven't even talked about the impact of this uncontrolled migration on our local hospitals and our education systems and the like. All of them have been operating under incredible strain for more than 2 years. So it is past time to adopt policies that impose consequences. That is what the Border Patrol said we need, is we need consequences to illegal immigration.

Look, I think that legal immigration—orderly, humane legal immigration—has been one of the greatest things that America has ever embraced. It has made us the country we are today, the most prosperous in the world, the most diverse. But surrendering our legal immigration system to drug cartels and human smuggling organizations is a recipe for disaster—what we are seeing right now.

Well, any time the Biden administration would like to engage on this topic, I am standing ready, willing, and able to do that, but so far, even when we have bipartisan legislation like the Bipartisan Border Solutions Act that Senator SINEMA and I and Congressman CUELLAR and Congressman TONY GONZALES introduced a couple of years ago, there has been zero interest by the Biden administration and no markups in the Judiciary Committee simply to consider that and come up with some consensus on how to deal with this disaster.

I yield the floor.

The PRESIDING OFFICER (Ms. DUCKWORTH). The Senator from Vermont.

FEMA

Mr. WELCH. Madam President, I want to thank my colleagues, and I want to thank the administration for the response to the devastating floods that we experienced in Vermont this August.

I am here to make a report and also to make a plea that we replenish the Disaster Relief Fund in the FEMA budget so that the work that needs to be done in Vermont to help our farms, our families, our communities recover will continue to be done.

Today, I had a telephone conversation that was set up by Senator SANDERS. Our Governor was on the phone, and my colleague Congresswoman BALINT was on the phone with the FEMA Administrator. And she has been doing a tremendous job. She has been extremely responsive. We are all grateful to her for that work. But what she did make very clear is that it is absolutely essential to the well-being of FEMA's capacity to continue to provide a response that this budget be supplemented and the FEMA supplemental be passed.

So I urge my colleagues—and, again, I want to thank them—from both sides of the aisle who have approached me and said: Peter, your folks have been hammered by the natural disaster, and we will be here to help you. But there is a long way from where we are with the precarious activities going on in the House.

First of all, we are pretty proud of the response. President Coolidge, who was our President in 1927 and was a Vermonter from Plymouth, VT, toured the flood damage when we had a catastrophic flood in 1927. And he nicknamed the State ''a brave little State.'' And that is who we are in Vermont. And his appellation of that term was his recognition of the indomitable spirit that our people in Vermont have to pick themselves up, to pull together, and to rebuild.

Nearly a century later, of course, this August we experienced another devastating flood. What we experienced in July and August was nothing short of catastrophic. Towns across the State were devastated, with homes and businesses and farms completely destroyed.

You can see here, this is our capital, Montpelier. And that was right after the rains that were parked over Montpelier and just would never leave. It is dry now, but these businesses along Main Street have not reopened. Some have; many haven't. To some extent, their decision is, will the FEMA aid be there so that they have a chance to open those doors and make up for the lost income and, hopefully, revive that downtown.

Damage estimates are still coming in; but, currently, it is totaling in the hundreds of millions of dollars for our very, very small State.

The impact on Vermont's farmland is stunning. This is Paul Mazza's farm. That farm, with vegetables, row crops, that was under tremendous amounts of water. When the water receded—the crops, the berries, the pick-your-own crops are not only important to families and nutrition, but it was a revered activity by families in Vermont to come to Paul's farm and pick their berries with their kids. He is not going to be able to harvest any berries this year.

By the way, in terms of the damage that was done, USDA's Natural Resources Conservation Service estimates anywhere between 145,000 and 686,000 acres of agricultural land in the State was impacted by flooding.

The Conant's Riverside Farm, which I visited along with the Governor and Senator SANDERS, half their hay and corn was impacted by the flooding—silk from the flood-covered corn that was used to feed their cows. There is real question about how they are going to make it through the winter because what they do is grow the crop and store it to feed to their animals over the winter.

The Foote Brook Farm, which is owned by Joie and Tony Lehouillier in Johnson, VT, is one of the main services of food for that community in Johnson. The grocery store in that town was totally flooded out but will be reopening. Their farm was flooded, too. They had over $100,000 in losses. And what was really bad this time, they also lost a lot of their equipment.

I do thank the administration, President Biden, and FEMA. I acknowledge the tremendous work that Governor Scott and his team have been doing staying on top of this. And there has been a tremendous effort on the part of Senator SANDERS, who has been the leader of our delegation of three here in the U.S. Congress, but we have got to get that FEMA supplemental passed.

While $16 billion in FEMA's Disaster Relief Fund is critical, the Vermont delegation, as I mentioned, is pushing for more because, with what has happened, regrettably, to our colleagues in Hawaii and the hurricane in Florida has added to the challenge and of the need. We need to increase FEMA's cap for hazard mitigation. We need to make small business loans forgivable.

If you are a small business and you have just implemented a plan to expand and you borrowed money from the bank in order to do it, you can't afford to take out more loans. So it is really essential that we make it possible for folks to get grants—these businesses that are so critical to our communities—rather than saddle our small businesses with more debt.

We also need to expand the USDA's Emergency Grant Relief Program for our farmers.

(Mr. MARKEY assumed the Chair.)

Mr. President, even if the world has moved on for other parts of the country, Vermont still needs help.

One of the heartbreaking situations that you see, we visit when there is a farm, there is a family whose home has been destroyed, a business that can't open, and do all we can to make certain the relief gets there. But if it is your home that you can't get back into, if it is your business that you are not certain at all you can reopen, if it is your farm where the crops have been destroyed, there is a lot of suffering that continues. And it takes an immense amount of courage. What we have to do is make certain that folks who are willing to rebuild and come up from the floodwaters to do their work again, that we make certain we do our work here. That means getting the FEMA supplemental passed and enacted into law with the signature of President Biden.

Our farmers, like the seventh generation Conant family farm, they need the support of Congress to get through the flooding. Our businesses on Main Street that hope to reopen need the support of Congress and the FEMA resources. And, of course, our homeowners, including folks who have mobile homes that were washed away, they absolutely need the assistance in order to get back into a safe and secure home.

So my request to my colleagues is to do what all of us have done for each other when the people we represent have been on the receiving end of a catastrophic natural disaster, and that is to make certain that we come to the aid of our fellow citizens. And the way we can do that is by the passage of the FEMA supplemental request.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. WHITEHOUSE. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

The Senator from Rhode Island is recognized.

U.S. SUPREME COURT

Mr. WHITEHOUSE. Mr. President, I will call this my ''let's say'' speech. Lawyers know what a hypothetical is. We will talk about some hypotheticals related to the scheme to capture the Court.

Let's say, Mr. President, that you are a creepy billionaire and it is your plan to capture and control the Supreme Court, to take it over just like 19th-century robber barons would have taken over and captured the railroad commission that set the rates for their own railroad.

Let's say you sent millions of dollars—secret dollars—to the Federalist Society for it to funnel money to its employee and your operative, Leonard Leo.

Let's say that Leonard Leo got his cred with you and your rightwing billionaire pals when he helped you kill the nomination to the Supreme Court of President George W. Bush's friend and White House Counsel Harriet

Miers— a political hit job from the far right against a Republican President's nominee, which produced none other than Sam Alito.

Let's say you also sent millions of dollars to Leonard Leo's Judicial Crisis Network, a fictitious-named front group for another front group operating out of the same hallway, on the same floor, in the same building as the Federalist Society.

Let's say you sent the Judicial Crisis Network secret millions of dollars—checks as big as $15 million, checks as big as $17 million—to run ads against Merrick Garland to help MITCH MCCONNELL block his confirmation by the Senate.

Let's say you also sent millions of dollars, secret dollars, identity-laundered through front groups, like 501(c)(4)s and Donors Trust, which exist for the purpose of scrubbing off your identity from your money, and through the 501(c)(4)s and through Donors Trust to Republican political groups, like super PACs controlled by MITCH MCCONNELL.

Let's say, with those secret millions funneled into those super PACs, you acquired loyalty and obedience from Republican political figures.

Let's say that worked. Let's say that for your millions of dollars to the Federalist Society, the Federalist Society allowed you to use its name on a list of Supreme Court nominees that you and your rightwing billionaire pals and Leonard Leo cooked up—a list that the Federalist Society never considered or approved, never an agenda item, never a vote, but a list from some back room of the Federalist Society, pulled together by Leo and the billionaires that Candidate Trump promised to follow.

Let's say that for that Trump promise to let you pick Supreme Court Justices, you agreed to hold your nose and not object to Trump's candidacy.

Let's say that Trump kept that promise and nominated your chosen ones to the Supreme Court, and let's say that when Trump kept that promise and nominated your chosen ones, you sent millions more to the Judicial Crisis Network and to MITCH MCCONNELL's political operation, not just to stop Merrick Garland but to push the confirmation of your chosen ones: Neil Gorsuch, Brett Kavanaugh, and Amy Coney Barrett.

Let's say that you funded dozens of front groups to bring cases and to file briefs at the Supreme Court at your orchestrated direction—10, 11, 12, and in one case, it is 50 at a time—like piano keys on the piano, and you sent that message through those front groups in those briefs to remind your chosen ones what it is exactly that you wanted them to do in those cases.

Let's say that the chosen ones produced an amazing, statistically stunning record of doing, in the opinions they produced, just what your front groups asked.

Let's say you and your fellow billionaires played your front groups like piano keys and your chosen Justices harmonized perfectly with their direction.

Let's say that to keep your chosen ones loyal and happy and entertained, you secretly paid for their personal lives. You paid for family tuitions. You bought family houses and let family members live rent-free. You paid for ''Lifestyles of the Rich and Famous''-level vacations, including free travel to resorts on private jets, travel on private yachts. You gave them expensive gifts, and you directed money to their spouses, and, of course, you hung out with them.

Let's say that last part—keeping them loyal and happy and entertained with all those gifts—was illegal. Illegal.

Let's say that your loyalty gifts program required the chosen ones to file false Federal disclosure forms and perhaps even false tax returns.

Let's say that your loyalty gifts program might put you in trouble with the tax man for claiming false business expenses. How could that be?

Let's say that the chosen ones were calling this bonanza of freebies ''personal hospitality.'' ''Personal hospitality''—a term of art allowing nondisclosure under the disclosure laws.

Let's say that they were all calling it ''personal hospitality,'' but you were calling the bonanza ''deductible business expenses of corporate yachts and jets.'' Then it wouldn't all add up.

That is a lot of ''let's say,'' I know, but that is about what we are looking at with the Supreme Court right now. We know it is not one rightwing billionaire but a little bunch of them. We don't know all the freebies yet. Maybe we only know 10 percent of the freebies. We know that there has been no meaningful investigation of this, so there is lots left to learn. That is our job in Congress, to investigate malfeasance in government and expose abuse so the citizens can see what has been going on and laws can be changed to better protect against that kind of abuse.

So let's say Congress starts doing its job and starts asking nosy questions. What is a creepy billionaire to do? That is easy. You lawyer up. You refuse to cooperate. You are a billionaire, remember, so you can pay lawyers a thousand dollars an hour until the cows come home and not even notice it. A thousand hours of thousand-dollar lawyering wouldn't cost you a thousandth of your wealth. You live above the law, sheltered by your billions. You actually direct the law through your chosen ones on the Supreme Court.

The impertinence of being investigated is insufferable, so this is what you send.

Here are two actual lawyer letters. One was sent by the lawyer for the billionaire Harlan Crow. The other was sent by the lawyer for the billionaire's operative and his painting mate, Leonard Leo.

When I say ''painting mate,'' I mean this painting that Harlan Crow, the billionaire, has of his time with Clarence Thomas, one of the chosen ones, and Leonard Leo, the operative. Couldn't be more cozy.

So you send these letters.

Leo, by the way, has himself joined your billionaire boys' club. He did so when one of your billionaires, Barre Seid, set him up with his own $1.6 billion slush fund, held through a Utah 501(c)(4) front group confected for that transaction.

Let's walk through what these letters say because the arguments are so preposterous, it is hard to imagine they could be made in good faith.

As you can imagine, when letters come from lawyers for billionaires in the billionaire Court-packing boys' club, the letters are pretty alike.

The first one for Crow says:

> Congress does not have the constitutional power to impose ethics rules and standards on the Supreme Court.

The second one for Mr. Leo says:

> Your inquiry exceeds the limits placed by the Constitution on the Committee's investigative authority.

Then there is a third one for another billionaire where they just did one paragraph. Basically, it just says: Yeah, what Leonard Leo's lawyer says.

> This inquiry exceeds the limits placed on the legislature by the Constitution.
>
> We refer you to the relevant portions of the letter . . . directed to you on behalf of Mr. Leo.

I feel kind of bad for these lawyers because I don't think you can bill very much for one paragraph, whereas these guys can bill quite a lot. Anyway, poor fellas.

So let's look at these other letters

I ask unanimous consent that the first page of the letter of lawyer Bopp for billionaire Crow and the first page of the letter of lawyer Rivkin for billionaire operative Leo—as exhibits at the end of my remarks—with the short, one-paragraph letter, the tagalong letter from attorney Clark, be printed in the RECORD.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. WHITEHOUSE. Lawyers Bopp and Rivkin both tell me that investigating their clients' activities is unconstitutional under the separation of powers. We can't legislate about Supreme Court ethics, so we can't investigate Supreme Court ethics.

First, remember that alongside separation of powers is its twin, checks and balances, which requires branches, like the legislative branch, to check and balance the behavior of other branches, like, in this case, the judicial branch.

That is what we are doing here—checks and balances. Let's dive down into the specifics a little bit more.

There are primarily three topics. One, did the billionaire or the operative take improper advantage of the Tax Code in their dealings with the Justices? That is what we are looking into. The Finance Committee has its own investigation, along with the Judiciary Committee, to focus on the tax side of this.

Well, I have to say it is hard to see how abuse of the Tax Code by a private citizen in his tax filings could raise any separation of powers concern. That is between the tax filer, the government, and the law. The Justices are simply not a party to that. Even if we were looking at the Justices' own tax filings, were it to come to that, they would be investigated in their roles not as Justices but as taxpayers. Being a Justice doesn't allow you to violate the tax laws or immunize you from tax investigation or permit you to make actionable false statements in your tax returns any more than being a Justice would allow you to commit any other offense. So there is tax abuse, issue 1—no visible separation-of-powers angle to it.

Issue 2, did the Justices receiving gifts and emoluments from the billionaire or the operative properly report them, or did the judicial gifts reporting system fail here? The billionaires' lawyers say that is not our business. Well, that is Congress's business for two pretty obvious reasons. First, the reporting requirements are a law passed by Congress whose implementation we can absolutely oversee like any other law passed by Congress, and this law includes Justices. Second, the implementing body of that law is the Judicial Conference, a body created by Congress whose activities we can absolutely oversee—we created it. The notion that Congress cannot investigate to see if an Agency it created is properly implementing laws Congress passed is ludicrous on its face.

Peripherally, it is worth noting that the Supreme Court has never objected on constitutional grounds to that body or to those laws. The Chief Justice actually chairs the Judicial Conference without objection to its congressional nature.

When questions about Justice Thomas's first round of free yacht and jet travel from Harlan Crow were raised a decade ago, those concerns went, under the law, to the Financial Disclosure Committee of the Judicial Conference for review, without objection to the power of review by Justice Thomas.

And when Thomas's recent round of billionaire-funded free yacht and jet travel—Crow-Thomas 2.0, you might call it—raised questions anew, again, those questions went to the Financial Disclosure Committee of the Judicial Conference for review, where those questions pend now, again, without objection. Nobody said: The Judicial Conference is unconstitutional. The reporting laws are unconstitutional. You can't look at this. Congress could never pass those laws. Congress could not create judicial conflict.

Nobody said that.

Additionally, when Justice Scalia's trick came to light of obtaining dozens of free hunting vacations and not disclosing them because it was supposedly a ''personal invitation,'' which supposedly made it ''personal hospitality'' that didn't have to be disclosed, the question of that trip's propriety went to the Financial Disclosure Committee of the Judicial Conference for review. The conference shut that trick down firmly, and Justice Thomas conceded he would abide by the Judicial Conference's determination—again, with no assertion that there was anything unconstitutional about it. So the separation-of-powers argument, in addition to making no sense, founders on the decades-long acceptance in real life by Supreme Court Justices of our congressional role through these laws and through the Judicial Conference.

Here is another argument they make. This is an interesting one. We have been too mean. We have been too mean looking into these facts. They tart that argument up in constitutional terminology, but that is it in a nutshell. I have used the analogy, describing Leonard Leo's role, in the billionaires' Court-capture scheme, of a spider in a web. They think that is too mean.

The problem with that ''too mean'' argument is that it assumes the result. If, in fact, there is a secret operation to capture and control the Supreme Court for the benefit of special interests, and if, in fact, Leo is its key operative, it is not actually all that mean to make an analogy to a spider and a web. It is actually pretty mild and quite descriptive.

The accusation that we are doing this just to be mean and it is unfair to ask questions presumes that there is nothing secret and sordid and wrong that would be revealed by our investigation. It is a little like saying the police can't investigate me because it would be unconstitutionally unfair because I am so innocent. Well, that is what the police investigation would reveal, just as this congressional investigation, unless successfully obstructed by the billionaires, might very well reveal a dark episode of secret corruption of our highest Court—perhaps, even the most covert, most persistent effort at judicial corruption in our country's history.

To be continued. I will be back with more of this story.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

GIBSON DUNN,
Confidential, May 22, 2023.

Re Response to May 8, 2023, Letters to Harlan R. Crow, CH Asset Company, Carey Commercial Ltd., and Topridge Holdings, LLC.

Hon. DICK DURBIN,
Chairman, U.S. Senate, Committee on the Judiciary, Washington, DC.

DEAR CHAIRMAN DURBIN: We represent Harlan Crow in relation to your letters of May 8, 2023 (the ''Letters''). Today, we also are responding on behalf of CH Asset Company, Carey Commercial Ltd., and Topridge Holdings, LLC. We recognize the important role the Senate Judiciary Committee has in considering legislation related to our federal court system, and we appreciate the opportunity to engage with the Committee.

After careful consideration, we do not believe the Committee has the authority to investigate Mr. Crow's personal friendship with Justice Clarence Thomas. Most importantly, Congress does not have the constitutional power to impose ethics rules and standards on the Supreme Court. Doing so would exceed Congress's Article I authority and violate basic separation of powers principles. That precludes the Committee from pursuing an investigation in support of such legislation.

Separately, the Committee has not identified a valid legislative purpose for its investigation and is not authorized to conduct an ethics investigation of a Supreme Court Justice. The Committee's stated purpose of crafting new ethics guidelines for the Supreme Court is inconsistent with its actions and the circumstances in which this investigation was launched, all of which suggest that the Committee is targeting Justice Thomas for special and unwarranted opprobrium. Moreover, any information the Committee might legitimately need to draft legislation on this subject is readily available from other sources, the use of which would not trigger the same separation of powers concerns created by the Committee's requests to Mr. Crow.

We address each of these points in greater detail below.

BAKERHOSTETLER,
July 25, 2023.

Re Response to July 11, 2023 Letter to Leonard Leo.

Hon. RICHARD DURBIN,
Chairman, Senate Judiciary Committee, U.S. Senate, Washington, DC.
Hon. SHELDON WHITEHOUSE,
Chairman, Subcommittee on Federal Courts, Oversight, Agency Action, and Federal Rights, U.S. Senate, Washington, DC.

DEAR CHAIRMAN DURBIN AND SENATOR WHITEHOUSE: We write on behalf of Leonard Leo in response to your letter of July 11, 2023, which requested information concerning Mr. Leo's interactions with Supreme Court Justices. We understand this inquiry is part of an investigation certain members of the Senate Judiciary Committee have undertaken regarding ethics standards and the Supreme Court. While we respect the Committee's oversight role, after reviewing your July 11 Letter, the nature of this investigation, and the circumstances surrounding your interest in Mr. Leo, we believe that your inquiry exceeds the limits placed by the Constitution on the Committee's investigative authority.

Your investigation of Mr. Leo infringes two provisions of the Bill of Rights. By selectively targeting Mr. Leo for investigation on a politically charged basis, while ignoring other potential sources of information on the asserted topic of interest who are similarly situated to Mr. Leo but have different political views that are more consistent with those of the Committee majority, your inquiry appears to be political retaliation against a private citizen in violation of the First Amendment. For similar reasons, your inquiry cannot be reconciled with the Equal Protection component of the Due Process Clause of the Fifth Amendment. And regardless of its other constitutional infirmities, it appears that your investigation lacks a valid legislative purpose, because the legislation the Committee is considering would be unconstitutional if enacted.

ERICKSONSEDERSTROM,
ATTORNEYS AT LAW,
July 25, 2023.

Re Response to Letter Dated July 11, 2023, to Robin P. Arkley, II, Our File No.: 00018.010802.

Hon. RICHARD DURBIN,
Chairman, Senate Judiciary Committee, U.S. Senate, Washington, DC.
Hon. SHELDON WHITEHOUSE,
Chairman, Subcommittee on Federal Courts Oversights, Agency Action and Federal Rights, U.S. Senate, Washington, DC.

DEAR CHAIRMAN DURBIN AND SENATOR WHITEHOUSE: We write this letter on behalf of Robin P. Arkley, II in response to your letter dated July 11, 2023, which requested information concerning Mr. Arkley's interactions with Supreme Court Justices. While we respect the Senate Committee's oversight role, we believe that this inquiry exceeds the limits placed on the legislature by the Constitution. For our stated reasons, we refer you to the relevant portions of the letter dated July 25, 2023, from Baker & Hostetler directed to you on behalf of Mr. Leo.

Thank you very much.

Sincerely,

SAMUEL E. CLARK.

Mr. WHITEHOUSE. I yield the floor. I suggest the absence of a quorum.

The ACTING PRESIDENT pro tempore. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. REED. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Mr. OSSOFF). Without objection, it is so ordered.

MORNING BUSINESS

HONORING LAVERNE PARRISH

Mr. TESTER. Mr. President, today I would like to honor the life and service of a distinguished Montanan and one of Montana's five World War II Medal of Honor recipients: Technician Fourth Grade Laverne Parrish.

Laverne and his family moved to the Mission Valley of Montana in 1934, and he graduated from Ronan High School in 1937. Never one to shy away from service or sacrifice, Laverne joined the Washington Army National Guard in the March of 1941, just months before the attack on Pearl Harbor. He served as a medical aidman in Company C of the 161st Infantry Regiment where he achieved the rank of technician fourth grade, the noncommissioned officer equivalent of sergeant.

In August of 1942, his Army National Guard unit was activated and deployed to Hawaii for training. Soon after, his unit was mobilized and deployed to the Pacific Theater with the 25th Infantry Division. Known as ''Tropic Lightning'' for specializing in jungle warfare, his division saw combat in five different military campaigns, moving from Guadalcanal, to the Northern Solomon Islands, and eventually joining General MacArthur's campaign to recapture the Philippines.

In January of 1945, his division landed on the island of Luzon in the Philippines. During heavy fighting in Binalonan, Laverne risked his life rushing onto the battlefield to bring in his wounded brother in arms to safety. While treating casualties, he noticed two wounded soldiers from his company still in the field. Without hesitation, he crawled back onto the battlefield amidst intense enemy fire to successfully rescue both men.

Six days later, under withering enemy fire, Laverne's unit was ordered to withdraw to the cover of a ditch. Seeing two wounded soldiers unable to move, Laverne quickly left his position and pulled them to safety. In that same field, he also delivered aid to 12 casualties, crossing and recrossing an open area raked by enemy fire in the process and finally bringing an additional three men who were critically wounded back to the unit.

Shortly after treating nearly all 37 of the casualties suffered by his company, Laverne was mortally wounded by mortar fire and died on the battlefield, just 6 months before the war ended. He was 26 years old, and his body was returned to Montana, where he was laid to eternal rest at the Mountain View Cemetery in Ronan. While Laverne passed, the story of the heroic ''Montana Medic'' quickly spread through the 25th Infantry Division as they bravely carried on facing more continuous combat than any other Infantry Division in the 6th Army.

Laverne pitted heroism and bravery against great odds, saving the lives of many of his fellow soldiers at the cost of his own. In honor of his incredible bravery and sacrifice, Laverne was awarded the Medal of Honor by President Harry S. Truman, our Nation's highest military awarded to the men and women in uniform who have gone above and beyond protecting our freedoms. He was one of just six medical corpsman to receive this honor in World War II, and the six were credited with saving the lives of more than 150 military personnel.

In the fall of 1948, the town of Ronan came together to honor Laverne by naming the athletic field the Sergeant Laverne Parrish Memorial Field. Naming this field in Laverne's honor was a small token of our appreciation for his heroic service and sacrifice, but it ensured he will be remembered generation after generation in Ronan—and all across the Treasure State.

Seventy-five years later, Laverne's memory lives on in each of us—in the freedoms of our children, our children's children, and right here with us on this football field.

On behalf of myself and a grateful nation, I commend Mr. Laverne Parrish and extend our deepest appreciation to him. He is a true patriot who made Montana proud, and we will never forget him.

Today and every day, let us remember that we are standing here today, in a free country, because of Laverne, the sacrifices he made, and the sacrifices of our military men and women have made every generation since.

TRIBUTE TO PETTY OFFICER FIRST CLASS DUANE B. PEARSON

Mr. LANKFORD. Mr. President, I rise today to honor Navy Petty Officer First Class Duane B. Pearson. HM1 Duane Pearson originally hailed from the Bronx, NY, and as an Army family, he moved throughout the Nation; in Lawton, OK, he decided to enlist in the U.S. Navy and follow his family history of military service.

His initial oath was in November 2001 in Oklahoma City, OK; he completed Navy boot camp and Hospital Corps School in Great Lakes, IL, and went on to Expeditionary Medical Facility Training, Cherry Point, NC, and Physical Therapy Technician School, San Antonio, TX, where he was also promoted to third class petty officer.

His enlisted assignments include Naval Hospital Cherry Point, NC; National Naval Medical Center Bethesda, MD, where he was deployed to Camp Lemonnier to Djibouti, Africa; Naval Hospital Yokosuka, Japan; and the Office of Attending Physician, Washington, DC.

While at the Office of Attending Physician, he continued providing expert physical therapy services, but also managed an emergency response medical call center, and provided advanced cardiac life support response to multiple Nation special security events, including three Presidential inaugurations, nine State of the Union Addresses, seven Peace Officers Memorials, and scores of gold medal ceremonies and summer concerts. Additionally, he was instrumental in administering over 30,000 Covid vaccines in direct support of both the Supreme Court of the United States, and U.S. Congress.

His military decorations include the Navy and Marine Corps Commendation Medal, Navy and Marine Corps Achievement Medal, Joint Meritorious Unit Award, Navy Unit Commendation, Navy Meritorious Unit Commendation, Armed Forces Service Medal, Humanitarian Service Medal, and various other personal and unit awards.

His military career has been successful because of the support and confidence of Jasmine, his wife and best friend of 18 years. He also has two supportive children, who are both talented athletes—Micah and Imani.

In May 2019, he received his bachelor of arts Degree, with honors, from Southern Illinois University in healthcare management and will complete his master's in healthcare administration from the University of Baltimore this December.

ADDITIONAL STATEMENTS

RECOGNIZING THE HISTORIC WESTSIDE SCHOOL

● Ms. CORTEZ MASTO. Mr. President, I rise today to commemorate the centennial celebration of the Historic Westside School in Las Vegas, NV. This

school holds a special place in the history of Las Vegas and is a symbol of resilience, education, and strength in this community.

The Historic Westside School's story began in 1923 when it opened its doors as the Las Vegas Grammar School No. 1, consisting of just two rooms. Over the years, this unassuming structure played a significant role in the history of Las Vegas, particularly in the city's Black community.

Initially established to serve local Paiute children, the school's purpose evolved as the Black American population in Las Vegas grew substantially. With the opening of the Gunnery Range, known today as Nellis Air Force Base, and the construction of the Hoover Dam, the population of Las Vegas expanded dramatically. During this period, the school primarily educated Black children, reflecting the changing demographics of the city.

It is important to acknowledge the discrimination and persecution the Black community suffered during this era. In a stark reminder of the racial prejudice that stained our Nation, the city of Las Vegas forced Black families to move to the Westside and refused to allow the renewal of Black-owned business licenses unless they relocated. Despite this, the Westside School became a symbol of hope and perseverance for the Black community as it provided education and opportunity.

As the city of Las Vegas eventually moved towards desegregation, the school was closed. However, in 1979, the significance of the Historic Westside School was formally recognized when it was listed in the National Register of Historic Places. This designation highlighted the school's historical importance and its role in shaping the local community and preserving the heritage of the Westside of Las Vegas.

In 2015, the city of Las Vegas, with the assistance of Federal funds, embarked on a commendable effort to restore this historic landmark. Today, the Historic Westside School has been transformed into a vibrant community center, home to KCEP-FM and the Economic Opportunity Board, and a hub for various charitable foundations. It is a testament to the resilience of our community and the commitment to preserving our history.

As we celebrate the centennial of the Historic Westside School, let us reflect on the enduring legacy of this institution and its importance in shaping the history of Las Vegas. It serves as a reminder of the progress we have made in the fight for equality and the importance of preserving our history, no matter how challenging the chapters may be.

I commend the city of Las Vegas and the Historic Westside School Alumni Association for their dedication to preserving the memory of this historic school and for organizing the centennial celebration. It truly is an opportunity for our community to come together, learn from our past, and work toward a brighter future where equality and opportunity are accessible to all.●

RECOGNIZING KPI CONCEPTS

● Ms. ERNST. Mr. President, as ranking member of the Senate Committee on Small Business and Entrepreneurship, each week I recognize an outstanding Iowa small business that exemplifies the American entrepreneurial spirit. This week it is my privilege to recognize KPI Concepts of West Burlington, IA, as the Senate Small Business of the Week.

KPI Concepts was founded by Craig Upton in 1984 out of his garage in Burlington, IA, building cabinetry for local businesses. Two years later, KPI Concepts moved to a 4,200-square-foot building with a workshop. The original building was expanded to 42,000 square feet between 1986 and 2006, and in 2007, they purchased an additional 65,000-square-foot location. The second location expanded a few years later. After starting as a commercial cabinetry business, they evolved to manufacture wind turbine blade components in 2008 with the KPI Composites division. In 2013, they added a west coast location in Hurricane, UT, while maintaining their West Burlington headquarters. Over the years, KPI Concepts has grown to include the KPI Metals division as well. Today, KPI Concepts is focused on providing innovative products to the wind energy industry. Throughout this history of business growth, the company's employees have been instrumental to its success.

As with many founders, Craig's journey to founding KPI Concepts had many chapters. After graduating from Burlington High School in 1973, he went on to attend Southeastern Community College, where he earned an associate's degree in mechanical technology. He later went on to work as a design draftsman, welder, and in the data processing department. When he lost his job, his father, who had a passion for woodworking, urged Craig to pursue his dream and start KPI Concepts. In addition to being the Founder of KPI Concepts, Craig Upton has given back to the community. In 2014, he was recognized by Southeastern Community College with the Distinguished Alumnus Award.

The KPI Concept's team has been awarded for their contributions to the industrial services industry. The KPI Metals team was awarded the Manufacturer of the Year Award by the Greater Burlington Partnership in 2017. Due to the hard work and dedication of the KPI Concepts employees, they celebrated their 39th business anniversary in 2023.

KPI Concept's commitment to providing high-quality wind turbine parts, commercial cabinetry, and metal manufacturing services to customers throughout the United States while maintaining their Iowa roots is clear. I want to congratulate the entire team at KPI Concepts for their continued dedication to providing industrial services to Iowans. I look forward to seeing their continued growth and success in Iowa.●

RECOGNIZING 100 YEARS OF MOTT COMMUNITY COLLEGE

● Mr. PETERS. Mr. President, I rise today to honor Mott Community College located in Flint, MI. Over the past 100 years, MCC has become a steadfast partner for local industry, providing high-quality, accessible, and affordable education opportunities. It is a privilege and honor to recognize the centennial milestone of the college on September 23, 2023.

Founded in 1923 by the Flint Board of Education, the institution was originally known as Flint Junior College. Tuition for the first year was a mere $20, and students could choose to study general literacy, pre-engineering, predental, pre-medicine, pre-law, or business administration, as the college was initially designed to prepare students to transfer to the University of Michigan Ann Arbor.

In 1950, Charles Stewart Mott donated $1 million to develop Flint Junior College into a 4-year institution in collaboration with the University of Michigan, a move that created the college and cultural center. C.S. Mott endowed the college with 32 acres of land and additional money for the establishment of an entirely new campus. In 1951, William Ballenger, Sr., left a trust of several million dollars, allowing the college to hire well-qualified instructors and elevate Flint Junior College into a true community college. Ballenger also gifted the college $200,000 for the construction of an athletic field house. The Ballenger Field House would become the first new building on the new campus.

In 1969, the college was successful in securing a millage, transforming it into a countywide institution, becoming Genesee Community College. After the passing of C.S. Mott, the institution received its name known by the community today, the Charles Stewart Mott Community College.

The college has a rich athletic history as well. Coach Steven Schmidt has led the men's basketball team to 753 victories over 30 seasons, the most by any men's coach in Michigan college basketball history. The program finished fifth in the Nation in 2021 and has won three national titles since 2007. The college is also where Justus Thigpen, Sr., the first athlete from Flint to play in the NBA, got his start as the basketball team's starting guard in 1965. Mott currently hosts five varsity men's sports teams, four varsity women's teams, and a co-ed e-sports team.

Today, MCC serves over 8,000 students seeking to gain knowledge and skills in a wide variety of occupational programs. Mott Community College continues to be a key partner that delivers on the workforce development

needs of the region through continual innovation and investment in their students' success. By creating programs such as the Mobile Learning Lab, Workforce Promise, and the operation of Applewood Cafe, the college has seized every opportunity to support the economic development in Flint by providing workforce training and experience to students and workers.

The college is also a leader in expanding diversity, equity, and inclusion in higher education. From the hiring of Dr. Beverly Walker-Griffea in 2014, its first African-American female president, to the building of the Lenore Croudy Family Life Center, which is focused on providing support to students and families experiencing housing and food insecurity, the college continually works to reduce barriers and challenges by investing in their students. MCC has also been chosen for the Aspen Institute Award six times as one of the top 150 community colleges in the Nation dedicated to excellence and equitable student success.

Mott Community College has greatly impacted the lives of generations of students and has positively shaped the city of Flint as we know it today. I ask you to join me in recognizing the college as they commemorate their centennial celebration.●

TRIBUTE TO GABRIELLE INDIA ASIIAG

● Mr. RUBIO. Mr. President, I recognize Gabrielle India Asiiag, a spring and summer 2023 intern with my Orlando office, for the hard work she has done for my office and the people of Florida.

Gabrielle is currently studying at the University of Central Florida, where she is completing a bachelor's degree in psychology. She is a dedicated and diligent worker who was devoted to getting the most out of her internship experience.

I extend my deepest gratitude to Gabrielle for her work with my office, and I look forward to hearing of her successes in the years to come.●

TRIBUTE TO THOMAS MATTHEW BATURA

● Mr. RUBIO. Mr. President, I recognize Thomas Matthew Batura, a summer 2023 intern with my Orlando office, for the hard work he has done for my office and the people of Florida.

Thomas is currently studying at the University of Central Florida, where he is completing a master's degree in public administration. He is a dedicated and diligent worker who was devoted to getting the most out of his internship experience.

I extend my deepest gratitude to Thomas for his work with my office, and I look forward to hearing of his successes in the years to come.●

TRIBUTE TO BENNETT AARON BERT

● Mr. RUBIO. Mr. President, I recognize Bennett Aaron Bert, a summer 2023 intern with my Orlando office, for the hard work he has done for my office and the people of Florida.

Bennett is currently studying at the Catholic University of America, where he is completing a bachelor's degree in politics with a minor in business. He is a dedicated and diligent worker who was devoted to getting the most out of his internship experience.

I extend my deepest gratitude to Bennett for his work with my office, and I look forward to hearing of his successes in the years to come.●

TRIBUTE TO GABRIELA SOFIA BRAVO

● Mr. RUBIO. Mr. President, I recognize Gabriela Sofia Bravo, a summer 2023 intern with my Orlando office, for the hard work she has done for my office and the people of Florida.

Gabriela is currently studying at the University of Central Florida, where she is completing a bachelor's degree in political science with an emphasis in intelligence and national security, as well as a minor in international and global studies. She is a dedicated and diligent worker who was devoted to getting the most out of her internship experience.

I extend my deepest gratitude to Gabriela for her work with my office, and I look forward to hearing of her successes in the years to come.●

TRIBUTE TO VICMARIE PALOMARES-COLON

● Mr. RUBIO. Mr. President, I recognize Vicmarie Palomares-Colon, a summer 2023 intern with my Orlando office, for the hard work she has done for my office and the people of Florida.

Vicmarie is currently studying at the University of Central Florida, where she is completing a bachelor's degree in legal studies. She is a dedicated and diligent worker who was devoted to getting the most out of her internship experience.

I extend my deepest gratitude to Vicmarie for her work with my office, and I look forward to hearing of her successes in the years to come.●

TRIBUTE TO FIONA FERRERO

● Mr. RUBIO. Mr. President, I recognize Fiona Ferrero, a spring and summer 2023 intern with my Orlando office, for the hard work she has done for my office and the people of Florida.

Fiona is currently studying at Ocoee High School. She is a dedicated and diligent worker who was devoted to getting the most out of her internship experience.

I extend my deepest gratitude to Fiona for her work with my office, and I look forward to hearing of her successes in the years to come.●

TRIBUTE TO ETHAN FOLKMAN

● Mr. RUBIO. Mr. President, I recognize Ethan Craig Folkman, a summer 2023 intern with my Gulf Coast regional office, for the hard work he has done for my office and the people of Florida.

Ethan is currently a student at Boston College, where he is majoring in political science. He is a dedicated and diligent worker who was devoted to getting the most out of his internship experience.

I extend my deepest gratitude to Ethan for his work with my office during these challenging times, and I look forward to hearing of his continued good work in the years to come.●

TRIBUTE TO PABLO ELIAS FORTICH

● Mr. RUBIO. Mr. President, I recognize Pablo Elias Fortich, a summer 2023 intern with my Orlando office, for the hard work he has done for my office and the people of Florida.

Pablo is currently studying at the University of Central Florida, where he is completing a bachelor's degree in political science with a concentration in national security and intelligence. He is a dedicated and diligent worker who was devoted to getting the most out of his internship experience.

I extend my deepest gratitude to Pablo for his work with my office, and I look forward to hearing of his successes in the years to come.●

TRIBUTE TO RHYAN FURDA

● Mr. RUBIO. Mr. President, I recognize Rhyan Furda, a summer 2023 intern with my Orlando office, for the hard work she has done for my office and the people of Florida.

Rhyan is currently studying at Colorado State University, where she is completing a bachelor's degree in political science with a minor in business administration. She is a dedicated and diligent worker who was devoted to getting the most out of her internship experience.

I extend my deepest gratitude to Rhyan for her work with my office, and I look forward to hearing of her successes in the years to come.●

TRIBUTE TO XIMENA RAFAELA HAKIME

● Mr. RUBIO. Mr. President, I recognize Ximena Rafaela Hakime, a summer 2023 intern with my Orlando office, for the hard work she has done for my office and the people of Florida.

Ximena is currently studying at the University of Central Florida, where she is completing a bachelor's degree in political science. She is a dedicated and diligent worker who was devoted to getting the most out of her internship experience.

I extend my deepest gratitude to Ximena for her work with my office, and I look forward to hearing of her successes in the years to come.●

TRIBUTE TO MATTHEW WILLIAM HOCHFELDER

● Mr. RUBIO. Mr. President, I recognize Matthew William Hochfelder, a summer 2023 intern with my Orlando office, for the hard work he has done for my office and the people of Florida.

Matthew is currently studying at the University of Central Florida, where he is completing a bachelor's degree in comparative politics with a concentration in international relations. He is a dedicated and diligent worker who was devoted to getting the most out of his internship experience.

I extend my deepest gratitude to Matthew for his work with my office, and I look forward to hearing of his successes in the years to come.●

TRIBUTE TO CAMRYN RIOS

● Mr. RUBIO. Mr. President, I recognize Camryn Elizabeth Rios, a summer 2023 intern with my Gulf Coast regional office.

Camryn is currently a student at The University of Mississippi, where she is majoring in public policy leadership with a minor in journalism.

I extend my gratitude to Camryn for her work with my office during this semester.●

TRIBUTE TO GIANNA SOFIA ROMAN

● Mr. RUBIO. Mr. President, I recognize Gianna Sofia Roman, a summer 2023 intern with my Orlando office, for the hard work she has done for my office and the people of Florida.

Gianna is currently studying at the University of Florida, where she is completing a bachelor's degree in political science and women's studies. She is a dedicated and diligent worker who was devoted to getting the most out of her internship experience.

I extend my deepest gratitude to Gianna for her work with my office, and I look forward to hearing of her successes in the years to come.●

TRIBUTE TO MADISON SHEPPARD

● Mr. RUBIO. Mr. President, I recognize Madison Joelle Sheppard, a summer 2023 intern with my Gulf Coast regional office, for the hard work she has done for my office and the people of Florida.

Madison is currently a student at Florida State University, where she is majoring in international affairs and political science. She is a dedicated and diligent worker who was devoted to getting the most out of her internship experience.

I extend my deepest gratitude to Madison for her work with my office during these challenging times, and I look forward to hearing of her continued good work in the years to come.●

TRIBUTE TO MAEGAN SMARKUSKY

● Mr. RUBIO. Mr. President, I recognize Maegan Smarkusky, a summer 2023 intern with my Gulf Coast regional office, for the hard work she has done for my office and the people of Florida.

Maegan is a recent graduate of J.W. Mitchell High School and will attend Florida State University, where she will major in political science. She is a dedicated and diligent worker who was devoted to getting the most out of her internship experience.

I extend my deepest gratitude to Maegan for her work with my office during these challenging times, and I look forward to hearing of her continued good work in the years to come.●

MESSAGES FROM THE PRESIDENT

Messages from the President of the United States were communicated to the Senate by Mrs. Stringer, one of his secretaries.

EXECUTIVE MESSAGES REFERRED

In executive session the Presiding Officer laid before the Senate messages from the President of the United States submitting sundry nominations which were referred to the appropriate committees.

(The messages received today are printed at the end of the Senate proceedings.)

MESSAGE FROM THE HOUSE

At 11:22 a.m., a message from the House of Representatives, delivered by Mr. McLaughlin, one of its reading clerks, announced that the House has passed the following bill, without amendment:

S. 475. An act to designate the clinic of the Department of Veterans Affairs in Gallup, New Mexico, as the Hiroshi ''Hershey'' Miyamura VA Clinic.

The message further announced that the House has passed the following bills, in which it requests the concurrence of the Senate:

H.R. 663. An act to amend the Indian Child Protection and Family Violence Prevention Act.

H.R. 3981. An act to amend title 38, United States Code, to improve the methods by which the Secretary of Veterans Affairs conducts oversight of certain educational institutions, and for other purposes.

MEASURES REFERRED

The following bill was read the first and the second times by unanimous consent, and referred as indicated:

H.R. 3981. An act to amend title 38, United States Code, to improve the methods by which the Secretary of Veterans Affairs conducts oversight of certain educational institutions, and for other purposes; to the Committee on Veterans' Affairs.

EXECUTIVE AND OTHER COMMUNICATIONS

The following communications were laid before the Senate, together with accompanying papers, reports, and documents, and were referred as indicated:

EC–2140. A communication from the Secretary of the Interior, transmitting, pursuant to law, a report relative to the Pelly Amendment to the Fisherman's Protective Act of 1967; to the Committee on Foreign Relations.

EC–2141. A communication from the Secretary of the Treasury, transmitting, pursuant to section 1705(e)(6) of the Cuban Democracy Act of 1992, as amended by Section 102(g) of the Cuban Liberty and Democratic Solidarity (LIBERTAD) Act of 1996, a semi-annual report relative to telecommunications-related payments made to Cuba during the period from January 1, 2023 through June 30, 2023; to the Committee on Foreign Relations.

EC–2142. A communication from the Assistant Secretary, Legislative Affairs, Department of State, transmitting, pursuant to law, the report of a rule entitled ''Amendment to the International Traffic in Arms Regulations: Prohibited Exports, Imports, and Sales to or from Certain Countries - Cyprus'' (RIN1400–AF69) received in the Office of the President of the Senate on September 13, 2023; to the Committee on Foreign Relations.

EC–2143. A communication from the Assistant Secretary, Legislative Affairs, Department of State, transmitting, pursuant to law, a notification of intent to provide assistance to Ukraine, including for self-defense and border security operations; to the Committee on Foreign Relations.

EC–2144. A communication from the Assistant Secretary of Defense (Legislative Affairs), transmitting additional legislative proposals that the Department of Defense requests be enacted during the first session of the 118th Congress; to the Committee on Foreign Relations.

EC–2145. A communication from the Assistant Secretary, Legislative Affairs, Department of State, transmitting, pursuant to law, a report entitled ''Direction Under Section 506(a)(3) of the Foreign Assistance Act of 1961 (FAA) to Provide Military Assistance to Taiwan''; to the Committee on Foreign Relations.

EC–2146. A communication from the Assistant Secretary, Legislative Affairs, Department of State, transmitting, pursuant to law, a notification of intent to provide assistance to Taiwan to strengthen its self-defense capabilities; to the Committee on Foreign Relations.

EC–2147. A communication from the Assistant Secretary, Legislative Affairs, Department of State, transmitting, pursuant to law, a notification of intent to provide assistance to Ukraine, including for self-defense and border security operations; to the Committee on Foreign Relations.

EC–2148. A communication from the Assistant Legal Adviser for Treaty Affairs, Department of State, transmitting, pursuant to the Case-Zablocki Act, 1 U.S.C. 112b, as amended, the report of the texts and background statements of international agreements, other than treaties (List 2023–0062 - 2023–0065); to the Committee on Foreign Relations.

EC–2149. A communication from the Assistant Legal Adviser for Treaty Affairs, Department of State, transmitting, pursuant to the Case-Zablocki Act, 1 U.S.C. 112b, as amended, the report of the texts and background statements of international agreements, other than treaties (List 2023–0066 - 2023–0073); to the Committee on Foreign Relations.

EC–2150. A communication from the Section Chief of the Diversion Control Division, Drug Enforcement Administration, Department of Justice, transmitting, pursuant to law, the report of a rule entitled ''Dispensing of Narcotic Drugs To Relieve Acute Withdrawal Symptoms of Opioid Use Disaster'' ((RIN1117–AB73) (Docket No. DEA–702)) received in the Office of the President of the

Senate on September 8, 2023; to the Committee on Health, Education, Labor, and Pensions.

EC–2151. A communication from the Section Chief of the Diversion Control Division, Drug Enforcement Administration, Department of Justice, transmitting, pursuant to law, the report of a rule entitled ''Partial Filling of Prescriptions for Schedule II Controlled Substances'' ((RIN1117–AB45) (Docket No. DEA–469)) received in the Office of the President of the Senate on September 8, 2023; to the Committee on Health, Education, Labor, and Pensions.

EC–2152. A communication from the Regulatory Policy Analyst, Food and Drug Administration, Department of Health and Human Services, transmitting, pursuant to law, the report of a rule entitled ''Nomenclature Change for Dockets Management; Technical Amendment'' (Docket No. FDA–2023–N–0963) received during adjournment of the Senate in the Office of the President of the Senate on August 23, 2023; to the Committee on Health, Education, Labor, and Pensions.

EC–2153. A communication from the General Counsel, United States Access Board, transmitting, pursuant to law, the report of a rule entitled ''Accessibility Guidelines for Pedestrian Facilities in the Public Right-of-Way'' (RIN3014–AA26) received in the Office of the President of the Senate on September 6, 2023; to the Committee on Health, Education, Labor, and Pensions.

EC–2154. A communication from the Senior Policy Advisor, Wage and Hour Division, Department of Labor, transmitting, pursuant to law, the report of a rule entitled ''Updating the Davis-Bacon Related Acts Regulations'' (RIN1235–AA40) received in the Office of the President of the Senate on September 6, 2023; to the Committee on Health, Education, Labor, and Pensions.

EC–2155. A communication from the Acting Director, Office of Federal Contract Compliance Programs, Department of Labor, transmitting, pursuant to law, the report of a rule entitled ''Pre-enforcement Notice and Conciliation Procedures'' (RIN1250–AA14) received during adjournment of the Senate in the Office of the President of the Senate on August 23, 2023; to the Committee on Health, Education, Labor, and Pensions.

EC–2156. A communication from the Ombudsman, Energy Employees Occupational Illness Compensation Program, Department of Labor, transmitting, pursuant to law, a report entitled ''2022 Annual Report to Congress''; to the Committee on Health, Education, Labor, and Pensions.

EC–2157. A communication from the Secretary of Labor and the Director of the Pension Benefit Guaranty Corporation, transmitting, pursuant to law, the Pension Benefit Guaranty Corporation's fiscal year 2022 Actuarial Evaluation of the Expected Operations and Status of the PBGC Funds; to the Committee on Health, Education, Labor, and Pensions.

EC–2158. A communication from the Assistant Secretary for Legislation, Department of Health and Human Services, transmitting, pursuant to law, an annual report relative to the implementation of the Age Discrimination Act of 1975 for fiscal year 2022; to the Committee on Health, Education, Labor, and Pensions.

EC–2159. A communication from the Assistant Secretary for Legislation, Department of Health and Human Services, transmitting, pursuant to law, a report entitled ''Administration for Community Living Traumatic Brain Injury Act Programs for Fiscal Years 2019 and 2020''; to the Committee on Health, Education, Labor, and Pensions.

EC–2160. A communication from the Board Members, Railroad Retirement Board, transmitting, pursuant to law, a report relative to the Board's budget request for fiscal year 2025; to the Committee on Health, Education, Labor, and Pensions.

PETITIONS AND MEMORIALS

The following petitions and memorials were laid before the Senate and were referred or ordered to lie on the table as indicated:

POM–55. A joint resolution adopted by the Legislature of the State of Wyoming reaffirming its commitment to the strong and deepening relationship between Taiwan and the State of Wyoming; to the Committee on Foreign Relations.

SENATE JOINT RESOLUTION NO. 7

Whereas, Taiwan and the United States are bonded by their shared commitment to democracy, human rights, the rule of law and a free market economy; and

Whereas, on March 5, 1984, the State of Wyoming adopted Taiwan as Wyoming's sister state; and

Whereas, Taiwan ranks as the United States' eighth largest trading partner, Taiwan ranks as the United States' sixth largest agricultural goods export destination and bilateral trade between the United States and Taiwan reached an estimated one hundred fourteen billion dollars ($114,000,000,000.00) in 2021; and

Whereas, the United States and Taiwan have welcomed the resumption of high-level trade engagement and have expressed a desire to work closely together; and

Whereas, Taiwan ranks as the State of Wyoming's eighth largest trading partner in Asia and both the State of Wyoming and Taiwan are committed to strengthening bilateral economic bonds; and

Whereas, the United States Congress passed the landmark Taiwan Relation Act in 1979 to sustain a close, bilateral relationship and to advance mutual security and commercial interests between the United States and Taiwan; and

Whereas, based on the principles of the United States' and Taiwan's Education Initiative in 2020, Taiwan's Ministry of Education and the State of Wyoming's Department of Education signed a memorandum of understanding on educational cooperation in 2022 to further promote teacher and student exchanges and cultural awareness; and

Whereas, the United States has previously assisted Taiwan in its participation with the World Health Organization, the International Civil Aviation Organization and the International Criminal Police Organization and the United States will continue to support Taiwan's meaningful participation in these and other international organizations; and

Whereas, Taiwan, as a willing and contributing member of the world community, has made countless contributions of technical and financial assistance in the wake of natural disasters worldwide: Now, therefore, be it

Resolved, By the Members of the Legislature of the State of Wyoming:

Section 1. That, Wyoming reaffirms its commitment to the strong and deepening relationship between Taiwan and the State of Wyoming.

Section 2. That Wyoming supports Taiwan's participation in internal organizations that impact the global trade, health, safety and well-being of twenty-three million (23,000,000) people in Taiwan.

Section 3. That Wyoming reiterates its support for a closer economic and trade partnership between the United States and Taiwan including signing the United States-Taiwan Bilateral Trade Agreement.

Section 4. That the Secretary of State of Wyoming transmit copies of this resolution to the President of the United States, to the President of the Senate and Speaker of the House of Representatives of the United States Congress, to Wyoming's Congressional Delegation, to Taiwan President Tsai Ing-wen and to the Taipei Economic and Cultural Office, Seattle, Washington.

POM–56. A resolution adopted by the House of Representatives of the State of Michigan urging the United States government and Michiganders to strengthen ties with Taiwan; to the Committee on Foreign Relations.

HOUSE RESOLUTION NO. 59

Whereas, the United States and Taiwan have strong ties based on shared ideals and robust bilateral trade. Taiwan shares the values of freedom, democracy, human rights, rule of law, peace, and prosperity with the United States and the state of Michigan. In 2021, the United States ranked as Taiwan's second-largest trading partner, while Taiwan was the eighth-largest trading partner of the United States, counting the European Union as a single trading partner. The countries shared 113.9 billion dollars in two-way goods trade and 19.8 billion dollars in two-way services trade in that year; and

Whereas, Taiwan is a particularly important trade partner for our nation's agricultural industry. Taiwan imported 3.9 billion dollars' worth of agricultural products from the United States in 2021, making it the sixth-largest market for United States food and agricultural products overall. Examining individual agricultural products, Taiwan was the seventh-largest market for United States soybeans and corn in 2021. Due to our high-quality produce, the United States remains one of Taiwan's largest sources of agricultural products, supplying more than one-fifth of the country's total agricultural imports in 2020; and

Whereas, the state of Michigan and Taiwan have enjoyed a mutually beneficial relationship, with strong bilateral trade and a long history of educational and cultural exchanges. Taiwan was Michigan's tenth-largest export market in Asia in 2022, with over 313 million dollars' worth of Michigan goods exported to Taiwan that year. Since 2006, the Michigan Department of Education and the Taiwanese Ministry of Education have had an English and Chinese language teacher exchange program, helping our citizens to grow closer and learn about each other's cultures. The Taiwan Friendship Caucus in the Michigan Legislature exists to strengthen ties between our governments, our economies, and our people. To ensure this relationship remains strong, Michigan businesses should increase their economic engagement with Taiwan; and

Whereas, the United States could take additional steps to strengthen bilateral trade with Taiwan, which would also enhance Taiwan's trade with the state of Michigan. Trade between our nations could be improved if the United States entered into a bilateral trade agreement and an avoidance of double taxation agreement with Taiwan. Taiwan could also be included in the Indo-Pacific Economic Framework for Prosperity (IPEF), a partnership between many Indo-Pacific nations and the United States that was created to strengthen economic cooperation. The United States invited other Indo-Pacific partners to join the IPEF in May 2022, and Taiwan should be invited to and included in this partnership; and

Whereas, Taiwan has adopted a policy of ''steadfast diplomacy'' in its foreign relations. This policy ''aims at mutual benefit and peace, creating sustainable partnerships with diplomatic allies, and strengthening

substantive ties in multiple fields with friendly and like-minded countries.'' Taiwan is clearly willing to collaborate with the world to deal with global challenges and seek a brighter future together; now, therefore, be it

Resolved by the House of Representatives, That we urge the United States government and Michiganders to strengthen ties with Taiwan; and be it further

Resolved, That copies of this resolution be transmitted to the President of the United States, the Speaker of the United States House of Representatives, the President of the United States Senate, and the members of the Michigan congressional delegation.

POM–57. A concurrent resolution adopted by the Legislature of the State of Louisiana urging and requesting the United States Congress and the National Security Council to conduct a formal review of the Status of Forces Agreement between the United States and Japan; to the Committee on Foreign Relations.

HOUSE CONCURRENT RESOLUTION NO. 52

Whereas, in 1960, the Treaty of Mutual Cooperation and Security between the United States and Japan was signed and established mutuality between the two nations; and

Whereas, the Treaty of Mutual Cooperation and Security has had the effect of establishing a military alliance between the United States and Japan; and

Whereas, under Article VI of the Treaty of Mutual Cooperation and Security, the government of Japan agrees to take necessary action to ensure the adequate security and protection of the United States Armed Forces while stationed in Japan; and

Whereas, there are over one hundred thousand American service members and dependents stationed in Japan, which is more than any other place in the world other than the United States; and

Whereas, active-duty American service members are, and will continue to be, stationed abroad in Japan while serving in the United States Armed Forces; and

Whereas, status of forces agreements are designed to ensure adequate and fair legal treatment of American service members stationed abroad; and

Whereas, the Status of Forces Agreement between the United States and Japan does not appear to provide adequate legal protection for American service members due to reports that Japan regularly violates the Status of Forces Agreement by detaining American service members without adequate cause or necessity prior to charges; and

Whereas, there are reports that Japanese authorities consistently deny legal counsel to service members during police interrogations and fail to provide adequate translation assistance during interrogations and trials, which would violate the Department of Defense policy regarding the legal rights of service members overseas; and

Whereas, the United States Congress through the United States House and Senate Committees on Armed Services are responsible for conducting oversight of the United States military and ensuring that international agreements are in the best interest of the American people and abided by the parties entering such agreements. Therefore, be it

Resolved, That the Legislature of Louisiana does hereby urge and request the United States Congress and the National Security Council to conduct a formal review of the Status of Forces Agreement between the United States and Japan to ensure that the agreement is in the best interest of the United States and adequately protects American service members in accordance with constitutional rights and the United States Department of Defense policy. Be it further

Resolved, That a copy of this Resolution be transmitted to the presiding officers of the Senate and the House of Representatives of the Congress of the United States of America and to each member of the Louisiana congressional delegation.

POM–58. A resolution adopted by the House of the Representatives of the State of Arkansas recognizing the importance of pregnancy help organizations in Arkansas; to the Committee on Health, Education, Labor, and Pensions.

HOUSE RESOLUTION NO. 1010

Whereas, the life-affirming impact of pregnancy help organizations on the women, men, children, and communities they serve is considerable and growing; and

Whereas, pregnancy help organizations serve women in Arkansas and across the United States with integrity and compassion; and

Whereas, more than two thousand seven hundred (2,700) pregnancy help organizations across the United States provide comprehensive care to women and men facing unplanned pregnancies, including resources to meet their physical, psychological, emotional, and spiritual needs; and

Whereas, pregnancy help organizations offer women free, confidential, and compassionate services, including pregnancy tests, peer counseling, 24-hour telephone hotlines, childbirth and parenting classes, referrals to community health care, and other support services; and

Whereas, many pregnancy help organizations offer ultrasounds and other medical services; and

Whereas, many pregnancy help organizations provide information on adoption and adoption referrals to pregnant women; and

Whereas, pregnancy help organizations encourage women to make positive life choices by equipping them with complete and accurate information regarding their pregnancy options and the development of their unborn children; and

Whereas, pregnancy help organizations provide women with compassionate and confidential peer counseling in a nonjudgmental manner regardless of their pregnancy outcomes; and

Whereas, pregnancy help organizations provide important support and resources for women who choose childbirth over abortion; and

Whereas, pregnancy help organizations ensure that women are receiving prenatal information and services that lead to the birth of healthy infants; and

Whereas, many pregnancy help organizations provide grief assistance for women and men who regret the loss of their children from past choices they have made; and

Whereas, many pregnancy help organizations work to prevent unplanned pregnancies by teaching effective abstinence education in public schools; and

Whereas, both federal and state governments are increasingly recognizing the valuable services of pregnancy help organizations through the designation of public funds for such organizations; and

Whereas, pregnancy help organizations operate primarily through reliance on the voluntary donations and time of individuals who are committed to caring for the needs of women and promoting and protecting life, Now therefore, be it

Resolved by the House of Representatives of the Ninety-Fourth General Assembly of the State of Arkansas:

That the House of Representatives:

(1) Strongly support pregnancy help organizations in their unique, positive contributions to the individual lives of women, men, and babies, both born and unborn;

(2) Commend the compassionate work of tens of thousands of volunteers and paid staff at pregnancy help organizations in Arkansas and across the United States;

(3) Strongly encourage the United States Congress and other federal and state government agencies to grant pregnancy help organizations assistance for medical equipment and abstinence education in a manner that does not compromise the mission or religious integrity of these organizations; and

(4) Disapprove of the actions of any national, state, or local groups attempting to prevent pregnancy help organizations from effectively serving women and men facing unplanned pregnancies; and be it further

Resolved, That upon its adoption a copy of this resolution be presented by the Chief Clerk of the House of Representatives to each pregnancy help organization in Arkansas, to the Governor, to the President of the United States, and to the Vice President of the United States, and the Speaker of the House of Representatives of the United States Congress.

POM–59. A resolution adopted by the House of Representatives of the State of Michigan urging the United States Congress to enact legislation that would ensure abortion is affordable and available for anyone who needs it and to support the President of the United States' efforts to protect abortion access across the country; to the Committee on Health, Education, Labor, and Pensions.

HOUSE RESOLUTION NO. 123

Whereas, Every person should have the freedom to make decisions about their bodies, their lives, and their futures with respect and dignity, including when and how to become parents, without barriers based on income or access. Abortion care, along with the full range of health care, should be affordable, available, and supported for everyone who needs it; and

Whereas, On June 24, 2022 the Supreme Court overturned Roe v. Wade and stripped away a right that had been held for nearly 50 years. Almost one third (29%) of the total U.S. population of women of reproductive age are now living in states where abortion is either unavailable or severely restricted, and a dozen other states are certain or likely to ban abortion in the future. All across the country, pregnant people now face delays when trying to access abortion care or are forced to travel hundreds of miles to states with less restrictive requirements and take on additional emotional and financial costs; and

Whereas, A 2022 report found that more than 66 clinics in 15 states have been forced to stop providing abortion care as a result of criminalization, impacting 22 million people of reproductive age who may be in need of abortion care. In these states, people are denied abortion care altogether and, without the means to travel to receive the care they need, are forced to carry a pregnancy against their will; and

Whereas, A person seeking an abortion that is denied is more likely to experience life-threatening maternal and infant health complications, more likely to have a household income below the poverty line and experience economic hardship, and more likely to stay in contact with violent partners, putting them and their children at greater risk than if they were able to receive the abortion; and

Whereas, Abortion is a safe and effective medical procedure. Leading public health organizations such as the American College of Obstetricians and Gynecologists, the American Medical Association, and the American

Academy of Family Physicians strongly oppose efforts to impede access to abortion care or interfere in the relationship between a person and health care provider; and

Whereas, Medication abortion is a FDA-approved, safe, and effective option for ending an early pregnancy up to 10 weeks and accounts for more than half of all abortions, yet anti-abortion lawmakers have enacted medically unnecessary laws to restrict and stigmatize the procedure. Congressional passage of the Women's Health Protection Act of 2023 would protect the right to abortion and prohibit governmental restrictions on abortion; and

Whereas, Abortion care should be made available without hurdles or stigma for people of color, young people, LGBTQ+ and nonbinary people, immigrants, and others. Systemic racism, economic insecurity, and punitive policies such as the Hyde amendment and insurance coverage bans have especially impacted people of color and marginalized groups. Congressional passage of the Equal Access to Abortion Coverage in Health Insurance (EACH) Act of 2023 would ensure equal, affordable access to abortion to all individuals no matter their race, how much money they make, how they are insured, who they are, or where they're from; and

Whereas, Immigrant families continue to struggle against low wages, unfair working conditions, a dehumanizing immigration system, and restrictions to access based on documentation status. Congressional passage of the Lifting Immigrant Families Through Benefits Access Restoration Act of 2021 and the Health Equity and Access under the Law (HEAL) for Immigrant Women and Families Act of 2021 would allow many immigrants to enroll in federal health programs like Medicaid without waiting periods and ensure that all immigrants can access affordable coverage for which they are otherwise eligible; and

Whereas, The Michigan House of Representatives stands committed to ensuring abortion is available for everyone who needs it by supporting and advancing policies that ensure abortion care is available without hurdles or stigma for all people in the communities in which they live, regardless of their race, gender, sexual orientation or socioeconomic status. The Michigan Legislature has already taken bold steps towards abortion justice by repealing the harmful and archaic 1931 law that criminalized abortion providers and adding protections so that no worker will have to face discrimination based on their reproductive health outcomes, including having an abortion; and

Whereas, Local leaders and stakeholders in Michigan are working to advance comprehensive abortion justice policies that address the lived realities of abortion access. Abortion providers in the state of Michigan offer quality and compassionate care, making Michigan a state that will always be a place for those in need of abortion care; Now, therefore, be it

Resolved by the House of Representatives, That we urge the United States Congress to enact legislation that would ensure abortion is affordable and available for anyone who needs it and to support the President of the United States' efforts to protect abortion access across the country; and be it further

Resolved, That copies of this resolution be transmitted to the President of the United States, the Speaker of the United States House of Representatives, the President of the United States Senate, and the members of the Michigan congressional delegation.

POM–60. A concurrent resolution adopted by the Legislature of the State of Louisiana urging and requesting the Louisiana Department of Health and the United States Food and Drug Administration to expand testing of imported shrimp products and increase public awareness of health risks associated with imported shrimp; to the Committee on Health, Education, Labor, and Pensions.

HOUSE CONCURRENT RESOLUTION NO. 105

Whereas, the harvesting of shrimp has been part of the cultural heritage of Louisiana since the nineteenth century; and

Whereas, according to a recent report by the University of Louisiana at Lafayette, the Louisiana seafood industry produces an economic impact of over $2.4 billion annually for the state; and

Whereas, the Louisiana shrimp fishery is the largest commercial fishery in the state by economic value and the second largest commercial fishery by volume of landings; and

Whereas, Louisiana's shrimp landings account for more than forty percent of all warmwater shrimp landed in the United States in 2022; and

Whereas, the Louisiana wild-caught shrimp fishery is losing domestic market share to an inferior, pond-raised, imported shrimp, which results in lower dockside prices for Louisiana fishers; and

Whereas, approximately ninety-four percent of seafood sold in the United States is imported and shrimp account for the highest percent of all seafood imports; and

Whereas, according to the National Oceanic and Atmospheric Administration (NOAA), imported shrimp products have risen from less than two hundred fifty million pounds in 1980, to nearly two billion pounds in 2022; and

Whereas, according to statistics from the United States Census Bureau and the NOAA, the price per pound for imported shrimp, adjusted for inflation, has decreased from nearly ten dollars in 1980, to just over four dollars in 2022, while the Gulf dockside value has declined from nearly five dollars in 1980, to approximately two dollars and fifty cents in 2022; and

Whereas, current food safety regulations and inspections are failing to prevent risks to human safety and, according to a report published in Environmental Science and Technology, only two percent of all seafood imported into the United States is tested for contamination, whereas the European Union inspects fifty percent, Japan inspects eighteen percent, and Canada inspects fifteen percent. Therefore, be it

Resolved, That the Legislature of Louisiana does hereby urge and request the Louisiana Department of Health and the United States Food and DrugAdministration to expand the testing of imported shrimp products for banned drugs, bacteria, and disease and to increase public awareness to the possible health risks associated with imported shrimp. Be it further

Resolved, That the Legislature of Louisiana does hereby urge the United States Congress to support legislation requiring the labeling of all shrimp sold at restaurants to be labeled with their country of origin and to take such actions as are necessary to hold foreign fisheries to the same standards as domestic fisheries and reduce the volume of shrimp products imported into the United States. Be it further

Resolved, That a copy of this Resolution be transmitted to the presiding officers of the Senate and the House of Representatives of the United States Congress and to each member of the Louisiana congressional delegation.

POM–61. A concurrent resolution adopted by the Legislature of the State of Louisiana urging the United States Congress to take such actions as are necessary to compel the United States Food and Drug Administration (FDA) to fulfill its duties regarding inspection and testing of imported seafood; to the Committee on Health, Education, Labor, and Pensions.

HOUSE CONCURRENT RESOLUTION NO. 88

Whereas, according to the National Oceanic and Atmospheric Administration, in 2019 the United States imported six billion pounds of edible seafood products, including one and one half billion pounds of shrimp, an increase of nearly six and one half million pounds more than the shrimp imported in 2018; and

Whereas, the 2019 shrimp imports alone, valued at six billion dollars, accounted for twenty-seven percent of the total value of imported seafood that year, which reached twenty-two billion dollars; and

Whereas, it is estimated that over half of the imported seafood consumed in the United States is from aquaculture, or seafood farming, rather than wild-caught; and

Whereas, the FDA is responsible for the safety of all fish and fishery products entering the United States and sold in Louisiana; and

Whereas, the FDA's seafood safety program is governed by its Hazard Analysis Critical Control Point regulations, which address food safety management through the analysis and control of biological, chemical, and physical hazards from raw material production and procurement and handling to manufacturing, distribution, and consumption of the finished product; and

Whereas, FDA regulations are supposed to measure the compliance of imported seafood with inspections of foreign processing facilities, sampling of seafood offered for import into the United States, domestic surveillance sampling of imported products, inspections of seafood importers, foreign country program assessments, and the use of information from foreign partners and FDA overseas offices; and

Whereas, in 2011 the FDA was only inspecting two percent of the seafood imported into the United States; and

Whereas, unfortunately 2011 is the last year for which data regarding the percentage of imports inspected is available due to a lack of transparency and inadequate assessment measures; and

Whereas, in 2011 the Government Accountability Office (GAO) noted that the FDA's assessment of foreign aquaculture operations was limited by the FDA's lack of procedures, criteria, and standards; and ten years later, a 2021 GAO report found that the agency was failing to monitor the effectiveness of its own enforcement policies and procedures; and

Whereas, in contrast, the European Union regularly conducts physical checks of approximately twenty percent of all imported fish products that are fresh, frozen, dry, salted, or hermetically sealed, and for certain fishery products, physical checks are conducted on approximately fifty percent of imports; and

Whereas, the Louisiana State University School of Renewable Natural Resources published a 2020 paper titled ''Determination of Sulfite and Antimicrobial Residue in Imported Shrimp to the USA'', which presented findings from a study of shrimp imported from India, Thailand, Indonesia, Vietnam, China, Bangladesh, and Ecuador and purchased from retail stores in Baton Rouge, Louisiana; and

Whereas, a screening of these shrimp for sulfites and residues from antimicrobial drugs found the following: (1) five percent of the shrimp contained malachite green, (2) seven percent contained oxytetracycline, (3) seventeen percent contained

fluoroquinolone, and (4) seventy percent contained nitrofurantoin, all of which have been banned by the FDA in domestic aquaculture operations; and

Whereas, although the FDA requires that food products exposed to sulfites must include a label with a statement about the presence of sulfites, of the forty-three percent of these locally purchased shrimp found to contain sulfites, not one package complied with this labeling requirement; and

Whereas, the drug and sulfite residues included in this screening can be harmful to human health during both handling and consumption and have been known to cause all of the following: liver damage and tumors, reproductive abnormalities, cardiac arrhythmia, renal failure, hemolysis, asthma attacks, and allergic reactions; and

Whereas, the results of this study confirm that existing screening and enforcement measures for imported seafood are insufficient; whatever the percentage of imports inspected may be, seafood is currently being imported that contains unsafe substances that put American consumers at risk; and

Whereas, because imported seafood is not held to the same standards as domestic seafood, domestic fishing industries are put at a distinct and significant disadvantage commercially; and

Whereas, according to the Louisiana Department of Wildlife and Fisheries, the average value of Louisiana shrimp fell from three dollars and eighty cents per pound in 1980 to one dollar fifty cents per pound in 2017; and

Whereas, this unfair competition allows foreign competitors to flood the United States market with seafood harvested under intensive farming practices using antimicrobial drugs, while devastating local industries and the coastal communities built around them. Therefore, be it

Resolved, That the Legislature of Louisiana does hereby memorialize the United States Congress to take such actions as are necessary to compel the United States Food and Drug Administration to fulfill its duties regarding inspection and testing of imported seafood. Be it further

Resolved, That a copy of this Resolution be transmitted to the presiding officers of the Senate and the House of Representatives of the Congress of the United States of America and to each member of the Louisiana congressional delegation.

POM–62. A resolution adopted by the City Council of Toledo, Ohio, urging the federal government and our nation to embrace the United Nations Treaty on the Prohibition of Nuclear Weapons and make nuclear disarmament the centerpiece of our national security policy; to the Committee on Foreign Relations.

POM–63. A resolution adopted by the Board of Commissioners of Washtenaw County, Michigan urging the President of the United States and the United States Congress to normalize trade and diplomatic relations with the Republic of Cuba by dissolving the current U.S. trade embargo, removing Cuba from the State Sponsors of Terrorism list and other barriers; to the Committee on Foreign Relations.

POM–64. A resolution adopted by the City Council of Monterey Park, California, condemning the military junta of Myanmar (Burma) for the oppression of civilians with excessive violence and standing firmly with the people of Burma in their pursuit for a fair, just, and sustainable democratic sovereign government; to the Committee on Foreign Relations.

INTRODUCTION OF BILLS AND JOINT RESOLUTIONS

The following bills and joint resolutions were introduced, read the first and second times by unanimous consent, and referred as indicated:

By Mr. CASEY:

S. 2836. A bill to amend subpart 1 of part B of title IV of the Social Security Act to support the mental health and well-being of children and youth in, and formerly in, foster care, and for other purposes; to the Committee on Finance.

By Mr. CASEY:

S. 2837. A bill to amend title XIX of the Social Security Act to ensure health insurance coverage continuity for former foster youth; to the Committee on Finance.

By Mr. MARKEY (for himself, Mr. SANDERS, Mr. MERKLEY, Mrs. GILLIBRAND, Mr. BLUMENTHAL, Ms. WARREN, Mr. WELCH, and Mr. VAN HOLLEN):

S. 2838. A bill to amend the National and Community Service Act of 1990 to establish a Civilian Climate Corps to help communities respond to climate change and transition to a clean economy, and for other purposes; to the Committee on Finance.

By Mr. BRAUN (for himself, Ms. KLOBUCHAR, Mr. MARSHALL, Mrs. SHAHEEN, Mr. LUJÁN, and Mr. BOOZMAN):

S. 2839. A bill to clarify the maximum hiring target for new air traffic controllers, and for other purposes; to the Committee on Commerce, Science, and Transportation.

By Mr. SANDERS (for himself and Mr. MARSHALL):

S. 2840. A bill to improve access to and the quality of primary health care, expand the health workforce, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

By Ms. KLOBUCHAR (for herself, Mrs. GILLIBRAND, Mr. PADILLA, Mr. BLUMENTHAL, Ms. WARREN, Mr. WYDEN, Mr. KAINE, Mr. MERKLEY, Ms. SMITH, Mr. BOOKER, Ms. HIRONO, Mr. MARKEY, Mr. CASEY, and Mr. MENENDEZ):

S. 2841. A bill to improve voter access to the ballot box through automatic voter registration, and for other purposes; to the Committee on Rules and Administration.

By Ms. KLOBUCHAR (for herself, Mr. KING, Mrs. GILLIBRAND, Mr. PADILLA, Mr. BLUMENTHAL, Ms. WARREN, Mr. WYDEN, Mr. KAINE, Mr. MERKLEY, Ms. SMITH, Mr. BOOKER, Mr. SANDERS, Mr. MURPHY, Ms. HIRONO, Mr. MARKEY, Mr. CASEY, Mr. VAN HOLLEN, Mr. BROWN, Mr. MENENDEZ, and Mrs. FEINSTEIN):

S. 2842. A bill to amend the National Voter Registration Act of 1993 to clarify that a State may not use an individual's failure to vote as the basis for initiating the procedures provided under such Act for the removal of the individual from the official list of registered voters in the State on the grounds that the individual has changed residence, and for other purposes; to the Committee on Rules and Administration.

By Ms. KLOBUCHAR (for herself, Mr. KING, Ms. CORTEZ MASTO, Mrs. GILLIBRAND, Mr. PADILLA, Mrs. FEINSTEIN, Mr. BLUMENTHAL, Mr. DURBIN, Ms. WARREN, Mr. WYDEN, Mr. KAINE, Mr. MERKLEY, Ms. SMITH, Mr. CARPER, Mr. BOOKER, Mr. SANDERS, Mr. MURPHY, Ms. HIRONO, Mr. BENNET, Mr. MARKEY, Mr. CASEY, Mr. VAN HOLLEN, Mr. BROWN, and Mr. MENENDEZ):

S. 2843. A bill to amend the Help America Vote Act of 2002 to require States to provide for same day voter registration; to the Committee on Rules and Administration.

By Mr. WHITEHOUSE (for himself, Mr. WYDEN, Mr. VAN HOLLEN, Mr. MENENDEZ, and Mr. BLUMENTHAL):

S. 2844. A bill to amend the Internal Revenue Code of 1986 to establish an excise tax on plastics; to the Committee on Finance.

By Mr. RUBIO (for himself and Mr. SCOTT of Florida):

S. 2845. A bill to prohibit recipients of disaster recovery relief assistance from the Department of Housing and Urban Development from penalizing applicants that declined assistance from the Small Business Administration; to the Committee on Banking, Housing, and Urban Affairs.

By Mr. DURBIN (for himself and Mr. VAN HOLLEN):

S. 2846. A bill to improve Federal efforts with respect to the prevention of maternal mortality, and for other purposes; to the Committee on Finance.

By Mr. RUBIO:

S. 2847. A bill to prohibit the importation of agricultural products, raw materials, and food from the Russian Federation if the Russian Federation prohibits the importation of such products, materials, and food from the United States, and for other purposes; to the Committee on Finance.

By Mr. RUBIO (for himself, Mr. GRASSLEY, and Mr. SCOTT of Florida):

S. 2848. A bill to block the property of Russian state-owned entities; to the Committee on Banking, Housing, and Urban Affairs.

By Mr. CASEY (for himself, Mr. BROWN, Ms. SMITH, Mr. LUJÁN, Ms. KLOBUCHAR, and Ms. STABENOW):

S. 2849. A bill to amend the Higher Education Act of 1965 to provide formula grants to States to improve higher education opportunities for foster youth and homeless youth, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

By Ms. WARREN (for herself, Mr. SANDERS, Mr. WHITEHOUSE, Mr. MARKEY, Mr. CASEY, Mr. BOOKER, Mr. WELCH, Mrs. MURRAY, and Mr. PADILLA):

S. 2850. A bill to extend protections to part-time workers in the areas of family and medical leave and to ensure equitable treatment in the workplace; to the Committee on Health, Education, Labor, and Pensions.

By Ms. WARREN (for herself, Mr. SANDERS, Mr. VAN HOLLEN, Ms. KLOBUCHAR, Mr. MERKLEY, Mr. WHITEHOUSE, Mr. DURBIN, Mr. FETTERMAN, Mr. BLUMENTHAL, Ms. BALDWIN, Mr. MURPHY, Ms. DUCKWORTH, Mr. CASEY, Mr. CARDIN, Mrs. MURRAY, Mr. BOOKER, Mr. WELCH, Ms. HIRONO, Mr. REED, and Mr. PADILLA):

S. 2851. A bill to permit employees to request changes to their work schedules without fear of retaliation and to ensure that employers consider these requests, and to require employers to provide more predictable and stable schedules for employees in certain occupations with evidence of unpredictable and unstable scheduling practices that negatively affect employees, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

By Mr. SCOTT of Florida:

S. 2852. A bill to establish a grace period for nonpayment of premiums for flood insurance coverage under the national flood insurance program until the Administrator of the Federal Emergency Management Agency implements the option for monthly payment of such premiums, and for other purposes; to the Committee on Banking, Housing, and Urban Affairs.

By Ms. ROSEN (for herself, Mr. BRAUN, and Ms. COLLINS):

S. 2853. A bill to require the Secretary of Health and Human Services and the Secretary of Labor to conduct a study and issue

a report on grant programs to support the nursing workforce; to the Committee on Health, Education, Labor, and Pensions.

By Mr. HOEVEN (for himself and Ms. SMITH):

S. 2854. A bill to require the Secretary of Veterans Affairs to enter into an agreement with the city of Fargo, North Dakota, for the conveyance of certain land of the Department of Veterans Affairs at Fargo National Cemetery, and for other purposes; to the Committee on Veterans' Affairs.

SUBMISSION OF CONCURRENT AND SENATE RESOLUTIONS

The following concurrent resolutions and Senate resolutions were read, and referred (or acted upon), as indicated:

By Mr. MERKLEY (for himself, Mr. BOOKER, and Mr. GRASSLEY):

S. Res. 349. A resolution supporting the designation of September 19, 2023, as ''National Stillbirth Prevention Day'', recognizing tens of thousands of American families that have endured a stillbirth, and seizing the opportunity to keep other families from experiencing the same tragedy; to the Committee on Health, Education, Labor, and Pensions.

By Mr. WYDEN (for himself, Mr. CARPER, Mrs. FEINSTEIN, Mr. MARKEY, Ms. CANTWELL, Ms. KLOBUCHAR, Mr. PADILLA, Mr. VAN HOLLEN, Mr. KAINE, Ms. STABENOW, Mr. CASEY, Mr. WHITEHOUSE, Ms. SMITH, Mr. LUJÁN, Mr. COONS, Mr. WELCH, Ms. HIRONO, Ms. BALDWIN, Mr. BLUMENTHAL, Mr. BOOKER, Mr. SANDERS, Mr. MENENDEZ, Mr. KING, Mr. FETTERMAN, Mr. DURBIN, Mr. REED, Mr. MERKLEY, Mr. WARNER, Mr. BROWN, Ms. DUCKWORTH, and Mr. CARDIN):

S. Res. 350. A resolution designating September 2023 as ''National Voting Rights Month''; to the Committee on the Judiciary.

By Mr. KING (for himself, Ms. COLLINS, Mrs. SHAHEEN, Ms. HASSAN, Ms. WARREN, Mr. MARKEY, Mr. WHITEHOUSE, Mr. REED, Mr. BLUMENTHAL, Mr. MURPHY, and Mr. SCOTT of Florida):

S. Res. 351. A resolution designating September 25, 2023, as ''National Lobster Day''; considered and agreed to.

By Mr. MANCHIN (for himself, Mr. SCOTT of South Carolina, Mr. REED, Mr. CASEY, Mrs. CAPITO, Mr. GRAHAM, and Mr. HAWLEY):

S. Res. 352. A resolution designating September 2023 as ''National Childhood Cancer Awareness Month''; considered and agreed to.

ADDITIONAL COSPONSORS

S. 135

At the request of Mr. LANKFORD, the name of the Senator from Alabama (Mrs. BRITT) was added as a cosponsor of S. 135, a bill to provide for a period of continuing appropriations in the event of a lapse in appropriations under the normal appropriations process, and establish procedures and consequences in the event of a failure to enact appropriations.

S. 359

At the request of Mr. WHITEHOUSE, the name of the Senator from Minnesota (Ms. SMITH) was added as a cosponsor of S. 359, a bill to amend title 28, United States Code, to provide for a code of conduct for justices of the Supreme Court of the United States, and for other purposes.

S. 474

At the request of Mrs. BLACKBURN, the name of the Senator from Oklahoma (Mr. LANKFORD) was added as a cosponsor of S. 474, a bill to amend title 18, United States Code, to strengthen reporting to the CyberTipline related to online sexual exploitation of children, to modernize liabilities for such reports, to preserve the contents of such reports for 1 year, and for other purposes.

S. 599

At the request of Mr. LUJÁN, the name of the Senator from Vermont (Mr. WELCH) was added as a cosponsor of S. 599, a bill to establish the Foundation for Digital Equity, and for other purposes.

S. 656

At the request of Mrs. FISCHER, the names of the Senator from Wisconsin (Ms. BALDWIN) and the Senator from Alabama (Mr. TUBERVILLE) were added as cosponsors of S. 656, a bill to amend title 38, United States Code, to revise the rules for approval by the Secretary of Veterans Affairs of commercial driver education programs for purposes of veterans education assistance, and for other purposes.

S. 740

At the request of Mr. BOOZMAN, the names of the Senator from Pennsylvania (Mr. CASEY), the Senator from California (Mrs. FEINSTEIN), the Senator from Arizona (Mr. KELLY) and the Senator from Oregon (Mr. WYDEN) were added as cosponsors of S. 740, a bill to amend title 38, United States Code, to reinstate criminal penalties for persons charging veterans unauthorized fees relating to claims for benefits under the laws administered by the Secretary of Veterans Affairs, and for other purposes.

S. 928

At the request of Mr. TESTER, the names of the Senator from Oregon (Mr. MERKLEY) and the Senator from Florida (Mr. RUBIO) were added as cosponsors of S. 928, a bill to require the Secretary of Veterans Affairs to prepare an annual report on suicide prevention, and for other purposes.

S. 1170

At the request of Mr. CORNYN, the name of the Senator from Oklahoma (Mr. LANKFORD) was added as a cosponsor of S. 1170, a bill to reauthorize and update the Project Safe Childhood program, and for other purposes.

S. 1176

At the request of Ms. BALDWIN, the name of the Senator from New Mexico (Mr. LUJÁN) was added as a cosponsor of S. 1176, a bill to direct the Secretary of Labor to issue an occupational safety and health standard that requires covered employers within the health care and social service industries to develop and implement a comprehensive workplace violence prevention plan, and for other purposes.

S. 1269

At the request of Mrs. SHAHEEN, the names of the Senator from Arizona (Mr. KELLY) and the Senator from Mississippi (Mr. WICKER) were added as cosponsors of S. 1269, a bill to reduce the price of insulin and provide for patient protections with respect to the cost of insulin.

S. 1274

At the request of Mrs. FISCHER, the names of the Senator from Indiana (Mr. BRAUN) and the Senator from Pennsylvania (Mr. CASEY) were added as cosponsors of S. 1274, a bill to permanently exempt payments made from the Railroad Unemployment Insurance Account from sequestration under the Balanced Budget and Emergency Deficit Control Act of 1985.

S. 1351

At the request of Mr. MERKLEY, the name of the Senator from West Virginia (Mrs. CAPITO) was added as a cosponsor of S. 1351, a bill to study and prevent child abuse in youth residential programs, and for other purposes.

S. 1400

At the request of Mr. BRAUN, the name of the Senator from California (Mr. PADILLA) was added as a cosponsor of S. 1400, a bill to amend the Food Security Act of 1985 to modify the delivery of technical assistance, and for other purposes.

S. 1472

At the request of Mrs. BLACKBURN, the name of the Senator from Mississippi (Mr. WICKER) was added as a cosponsor of S. 1472, a bill to amend title 5, United States Code, to designate September 11 Day of Remembrance as a legal public holiday.

S. 1482

At the request of Mr. BRAUN, the name of the Senator from Ohio (Mr. VANCE) was added as a cosponsor of S. 1482, a bill to provide for the reliquidation of certain entries of golf cart tires.

S. 1505

At the request of Mr. BENNET, the name of the Senator from Nevada (Ms. CORTEZ MASTO) was added as a cosponsor of S. 1505, a bill to reform and enhance the pay and benefits of Federal wildland firefighters, and for other purposes.

S. 1631

At the request of Mr. PETERS, the name of the Senator from Arizona (Mr. KELLY) was added as a cosponsor of S. 1631, a bill to enhance the authority granted to the Department of Homeland Security and Department of Justice with respect to unmanned aircraft systems and unmanned aircraft, and for other purposes.

S. 1753

At the request of Mr. BOOKER, the name of the Senator from New Mexico (Mr. HEINRICH) was added as a cosponsor of S. 1753, a bill to amend the Personal Responsibility and Work Opportunity Reconciliation Act of 1996 to allow individuals with drug offenses to receive benefits under the supplemental nutrition assistance program, and for other purposes.

S. 1809

At the request of Mr. BOOKER, the name of the Senator from Massachusetts (Mr. MARKEY) was added as a cosponsor of S. 1809, a bill to amend the Department of Agriculture Reorganization Act of 1994 to establish an Office of Small Farms, and for other purposes.

S. 1917

At the request of Mr. PADILLA, the name of the Senator from Massachusetts (Mr. MARKEY) was added as a cosponsor of S. 1917, a bill to amend the Clean Air Act to provide for the establishment of standards to limit the carbon intensity of the fuel used by certain vessels, and for other purposes.

S. 2039

At the request of Ms. SMITH, the name of the Senator from California (Mrs. FEINSTEIN) was added as a cosponsor of S. 2039, a bill to amend the Employee Retirement Income Security Act of 1974 to require a group health plan (or health insurance coverage offered in connection with such a plan) to provide for cost-sharing for oral anticancer drugs on terms no less favorable than the cost-sharing provided for anticancer medications administered by a health care provider.

S. 2085

At the request of Mr. CRAPO, the names of the Senator from Arkansas (Mr. BOOZMAN) and the Senator from Washington (Ms. CANTWELL) were added as cosponsors of S. 2085, a bill to amend title XVIII of the Social Security Act to provide for Medicare coverage of multi-cancer early detection screening tests.

S. 2090

At the request of Mr. MULLIN, the name of the Senator from North Carolina (Mr. BUDD) was added as a cosponsor of S. 2090, a bill to amend the Clean Air Act to prevent the elimination of the sale of motor vehicles with internal combustion engines.

S. 2378

At the request of Mr. MARKEY, the name of the Senator from Vermont (Mr. SANDERS) was added as a cosponsor of S. 2378, a bill to amend the Internal Revenue Code of 1986 to increase excise taxes on fuel used by private jets, and for other purposes.

S. 2413

At the request of Mr. MENENDEZ, the name of the Senator from Virginia (Mr. KAINE) was added as a cosponsor of S. 2413, a bill to expand and strengthen the Abraham Accords and the Negev Forum, and for other purposes.

S. 2444

At the request of Mrs. FISCHER, the name of the Senator from North Carolina (Mr. TILLIS) was added as a cosponsor of S. 2444, a bill to establish an interactive online dashboard to improve public access to information about grant funding related to mental health and substance use disorder programs.

S. 2501

At the request of Mr. BROWN, the name of the Senator from Rhode Island (Mr. WHITEHOUSE) was added as a cosponsor of S. 2501, a bill to direct the Secretary of Labor to promulgate an occupational safety and health standard to protect workers from heat-related injuries and illnesses.

S. 2551

At the request of Mr. RUBIO, the name of the Senator from Tennessee (Mr. HAGERTY) was added as a cosponsor of S. 2551, a bill to impose export controls and sanctions to address the security threat posed by the genetic mapping efforts of the Government of the People's Republic of China and other countries, and for other purposes.

S. 2583

At the request of Mr. BOOKER, the name of the Senator from Vermont (Mr. SANDERS) was added as a cosponsor of S. 2583, a bill to ban new corporate ownership of agricultural land, and for other purposes.

S. 2669

At the request of Ms. WARREN, the name of the Senator from Rhode Island (Mr. WHITEHOUSE) was added as a cosponsor of S. 2669, a bill to require the Financial Crimes Enforcement Network to issue guidance on digital assets, and for other purposes.

S. 2736

At the request of Mr. BARRASSO, the name of the Senator from Alabama (Mrs. BRITT) was added as a cosponsor of S. 2736, a bill to clarify that section 8526(7) of the Elementary and Secondary Education Act of 1965 does not apply with respect to the use of funds for sports clubs, teams, training, or related activities provided for students.

S. 2738

At the request of Mr. VANCE, the name of the Senator from Oklahoma (Mr. LANKFORD) was added as a cosponsor of S. 2738, a bill to prohibit through December 31, 2024, the imposition of a mask mandate on passengers of air carriers or public transit and in educational settings within the United States, and for other purposes.

S. 2741

At the request of Mr. CASEY, the name of the Senator from Oregon (Mr. MERKLEY) was added as a cosponsor of S. 2741, a bill to amend title II of the Social Security Act to increase survivors benefits for disabled widows, widowers, and surviving divorced spouses, and for other purposes.

S. 2770

At the request of Ms. KLOBUCHAR, the names of the Senator from Colorado (Mr. BENNET) and the Senator from Nebraska (Mr. RICKETTS) were added as cosponsors of S. 2770, a bill to prohibit the distribution of materially deceptive AI-generated audio or visual media relating to candidates for Federal office, and for other purposes.

S. 2777

At the request of Mrs. MURRAY, the names of the Senator from Colorado (Mr. BENNET) and the Senator from California (Mrs. FEINSTEIN) were added as cosponsors of S. 2777, a bill to increase child care options for working families and support child care providers.

S. 2797

At the request of Mr. RUBIO, the name of the Senator from North Carolina (Mr. BUDD) was added as a cosponsor of S. 2797, a bill to ensure religious freedom and rights of conscience for health care workers and other government employees, and to protect health care workers and other government employees from various forms of compelled speech.

S. 2825

At the request of Mr. CORNYN, the name of the Senator from Georgia (Mr. WARNOCK) was added as a cosponsor of S. 2825, a bill to award a Congressional Gold Medal to the United States Army Dustoff crews of the Vietnam War, collectively, in recognition of their extraordinary heroism and life-saving actions in Vietnam.

S. 2828

At the request of Mr. CORNYN, the name of the Senator from West Virginia (Mrs. CAPITO) was added as a cosponsor of S. 2828, a bill to amend the Elementary and Secondary Education Act of 1965 to clarify that the prohibition on the use of Federal education funds for certain weapons does not apply to the use of such weapons in certain programs for activities such as archery, hunting, other shooting sports, or culinary arts.

S. 2835

At the request of Mr. SULLIVAN, the name of the Senator from Mississippi (Mr. WICKER) was added as a cosponsor of S. 2835, a bill making continuing appropriations for military pay in the event of a Government shutdown.

S.J. RES. 43

At the request of Mr. CASSIDY, the names of the Senator from North Dakota (Mr. CRAMER) and the Senator from Nebraska (Mr. RICKETTS) were added as cosponsors of S.J. Res. 43, a joint resolution providing for congressional disapproval under chapter 8 of title 5, United States Code, of the rule submitted by the Department of Education relating to ''Improving Income Driven Repayment for the William D. Ford Federal Direct Loan Program and the Federal Family Education Loan (FFEL) Program''.

AMENDMENT NO. 1113

At the request of Ms. HIRONO, the name of the Senator from Oklahoma (Mr. LANKFORD) was added as a cosponsor of amendment No. 1113 intended to be proposed to H.R. 4366, a bill making appropriations for military construction, the Department of Veterans Affairs, and related agencies for the fiscal year ending September 30, 2024, and for other purposes.

AMENDMENT NO. 1130

At the request of Mrs. SHAHEEN, the name of the Senator from South Dakota (Mr. ROUNDS) was added as a cosponsor of amendment No. 1130 intended to be proposed to H.R. 4366, a

bill making appropriations for military construction, the Department of Veterans Affairs, and related agencies for the fiscal year ending September 30, 2024, and for other purposes.

AMENDMENT NO. 1131

At the request of Mrs. SHAHEEN, the name of the Senator from South Dakota (Mr. ROUNDS) was added as a cosponsor of amendment No. 1131 intended to be proposed to H.R. 4366, a bill making appropriations for military construction, the Department of Veterans Affairs, and related agencies for the fiscal year ending September 30, 2024, and for other purposes.

AMENDMENT NO. 1143

At the request of Mr. REED, the name of the Senator from Oregon (Mr. MERKLEY) was added as a cosponsor of amendment No. 1143 intended to be proposed to H.R. 4366, a bill making appropriations for military construction, the Department of Veterans Affairs, and related agencies for the fiscal year ending September 30, 2024, and for other purposes.

AMENDMENT NO. 1145

At the request of Mr. BENNET, the name of the Senator from Wisconsin (Ms. BALDWIN) was added as a cosponsor of amendment No. 1145 intended to be proposed to H.R. 4366, a bill making appropriations for military construction, the Department of Veterans Affairs, and related agencies for the fiscal year ending September 30, 2024, and for other purposes.

AMENDMENT NO. 1176

At the request of Mr. CRUZ, the name of the Senator from Texas (Mr. CORNYN) was added as a cosponsor of amendment No. 1176 intended to be proposed to H.R. 4366, a bill making appropriations for military construction, the Department of Veterans Affairs, and related agencies for the fiscal year ending September 30, 2024, and for other purposes.

AMENDMENT NO. 1179

At the request of Mr. BOOKER, the name of the Senator from Connecticut (Mr. BLUMENTHAL) was added as a cosponsor of amendment No. 1179 intended to be proposed to H.R. 4366, a bill making appropriations for military construction, the Department of Veterans Affairs, and related agencies for the fiscal year ending September 30, 2024, and for other purposes.

AMENDMENT NO. 1193

At the request of Mr. SCHATZ, the name of the Senator from Georgia (Mr. OSSOFF) was added as a cosponsor of amendment No. 1193 intended to be proposed to H.R. 4366, a bill making appropriations for military construction, the Department of Veterans Affairs, and related agencies for the fiscal year ending September 30, 2024, and for other purposes.

AMENDMENT NO. 1211

At the request of Mr. WHITEHOUSE, the name of the Senator from Wisconsin (Ms. BALDWIN) was added as a cosponsor of amendment No. 1211 intended to be proposed to H.R. 4366, a bill making appropriations for military construction, the Department of Veterans Affairs, and related agencies for the fiscal year ending September 30, 2024, and for other purposes.

AMENDMENT NO. 1241

At the request of Mr. CRAMER, the name of the Senator from West Virginia (Mrs. CAPITO) was added as a cosponsor of amendment No. 1241 intended to be proposed to H.R. 4366, a bill making appropriations for military construction, the Department of Veterans Affairs, and related agencies for the fiscal year ending September 30, 2024, and for other purposes.

STATEMENTS ON INTRODUCED BILLS AND JOINT RESOLUTIONS

By Mr. DURBIN (for himself and Mr. VAN HOLLEN):

S. 2846. A bill to improve Federal efforts with respect to the prevention of maternal mortality, and for other purposes; to the Committee on Finance.

Mr. DURBIN. Madam President, I ask unanimous consent that the text of the bill be printed in the RECORD.

There being no objection, the text of the bill was ordered to be printed in the RECORD, as follows:

S. 2846

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Community Access, Resources, and Empowerment for Moms Act'' or the ''CARE for Moms Act''.

SEC. 2. FINDINGS.

Congress finds the following:

(1) Every year, across the United States, nearly 4,000,000 women give birth, more than 1,000 women suffer fatal complications during pregnancy, while giving birth or during the postpartum period, and about 70,000 women suffer near-fatal, partum-related complications.

(2) The maternal mortality rate is often used as a proxy to measure the overall health of a population. While the infant mortality rate in the United States has reached its lowest point, the risk of death for women in the United States during pregnancy, childbirth, or the postpartum period is higher than such risk in many other high-income countries. The estimated maternal mortality rate (deaths per 100,000 live births) for the 48 contiguous States and Washington, DC, increased from 14.5 percent in 2000 to 32.0 in 2021. The United States is the only industrialized nation with a rising maternal mortality rate.

(3) The National Vital Statistics System of the Centers for Disease Control and Prevention has found that in 2021, there were 32.9 maternal deaths for every 100,000 live births in the United States. That ratio continues to exceed the rate in other high-income countries.

(4) It is estimated that more than 80 percent of maternal deaths in the United States are preventable.

(5) According to the Centers for Disease Control and Prevention, the maternal mortality rate varies drastically for women by race and ethnicity. There are about 26.6 deaths per 100,000 live births for White women, 69.9 deaths per 100,000 live births for non-Hispanic Black women, and 32.0 deaths per 100,000 live births for American Indian/Alaska Native women. While maternal mortality disparately impacts Black women, this urgent public health crisis traverses race, ethnicity, socioeconomic status, educational background, and geography.

(6) In the United States, non-Hispanic Black women are about 3 times more likely to die from causes related to pregnancy and childbirth compared to non-Hispanic White women, which is one of the most disconcerting racial disparities in public health. This disparity widens in certain cities and States across the country.

(7) According to the National Center for Health Statistics of the Centers for Disease Control and Prevention, the maternal mortality rate heightens with age, as women 40 and older die at a rate of 138.5 per 100,000 births compared to 20.4 per 100,000 for women under 25. This translates to women over 40 being 6.8 times more likely to die compared to their counterparts under 25 years of age.

(8) The COVID–19 pandemic has exacerbated the maternal health crisis. A study of the Centers for Disease Control and Prevention suggested that pregnant women are at a significantly higher risk for severe outcomes, including death, from COVID–19 as compared to non-pregnant women. The COVID–19 pandemic also decreased access to prenatal and postpartum care. A study by the Government Accountability Office found that COVID–19 contributed to 25 percent of maternal deaths in 2020 and 2021.

(9) The findings described in paragraphs (1) through (8) are of major concern to researchers, academics, members of the business community, and providers across the obstetric continuum represented by organizations such as—

(A) the American College of Nurse-Midwives;

(B) the American College of Obstetricians and Gynecologists;

(C) the American Medical Association;

(D) the Association of Women's Health, Obstetric and Neonatal Nurses;

(E) the Black Mamas Matter Alliance;

(F) the Black Women's Health Imperative;

(G) the California Maternal Quality Care Collaborative;

(H) EverThrive Illinois;

(I) the Illinois Perinatal Quality Collaborative;

(J) the March of Dimes;

(K) the National Association of Certified Professional Midwives;

(L) RH Impact: The Collaborative for Equity & Justice;

(M) the National Partnership for Women & Families;

(N) the National Polycystic Ovary Syndrome Association;

(O) the Preeclampsia Foundation;

(P) the Society for Maternal-Fetal Medicine;

(Q) the What To Expect Project;

(R) Tufts University School of Medicine Center for Black Maternal Health and Reproductive Justice;

(S) the Shades of Blue Project;

(T) the Maternal Mental Health Leadership Alliance;

(U) Tulane University Mary Amelia Center for Women's Health Equity Research;

(V) In Our Own Voice: National Black Women's Reproductive Justice Agenda; and

(W) Physicians for Reproductive Health.

(10) Hemorrhage, cardiovascular and coronary conditions, cardiomyopathy, infection or sepsis, embolism, mental health conditions (including substance use disorder), hypertensive disorders, stroke and cerebrovascular accidents, and anesthesia complications are the predominant medical causes of maternal-related deaths and complications.

Most of these conditions are largely preventable or manageable. Even when these conditions are not preventable, mortality and morbidity may be prevented when conditions are diagnosed and treated in a timely manner.

(11) According to a study published by the Journal of Perinatal Education, doula-assisted mothers are 4 times less likely to have a low-birthweight baby, 2 times less likely to experience a birth complication involving themselves or their baby, and significantly more likely to initiate breastfeeding and human lactation. Doula care has also been shown to produce cost savings resulting in part from reduced rates of cesarean and preterm births.

(12) Intimate partner violence is one of the leading causes of maternal death, and women are more likely to experience intimate partner violence during pregnancy than at any other time in their lives. It is also more dangerous than pregnancy. Intimate partner violence during pregnancy and postpartum crosses every demographic and has been exacerbated by the COVID–19 pandemic.

(13) Oral health is an important part of perinatal health. Reducing bacteria in a woman's mouth during pregnancy can significantly reduce her risk of developing oral diseases and spreading decay-causing bacteria to her baby. Moreover, some evidence suggests that women with periodontal disease during pregnancy could be at greater risk for poor birth outcomes, such as preeclampsia, pre-term birth, and low-birth weight. Furthermore, a woman's oral health during pregnancy is a good predictor of her newborn's oral health, and since mothers can unintentionally spread oral bacteria to their babies, putting their children at higher risk for tooth decay, prevention efforts should happen even before children are born, as a matter of pre-pregnancy health and prenatal care during pregnancy.

(14) In the United States, death reporting and analysis is a State function rather than a Federal process. States report all deaths—including maternal deaths—on a semi-voluntary basis, without standardization across States. While the Centers for Disease Control and Prevention has the capacity and system for collecting death-related data based on death certificates, these data are not sufficiently reported by States in an organized and standard format across States such that the Centers for Disease Control and Prevention is able to identify causes of maternal death and best practices for the prevention of such death.

(15) Vital statistics systems often underestimate maternal mortality and are insufficient data sources from which to derive a full scope of medical and social determinant factors contributing to maternal deaths, such as intimate partner violence. While the addition of pregnancy checkboxes on death certificates since 2003 have likely improved States' abilities to identify pregnancy-related deaths, they are not generally completed by obstetric providers or persons trained to recognize pregnancy-related mortality. Thus, these vital forms may be missing information or may capture inconsistent data. Due to varying maternal mortality-related analyses, lack of reliability, and granularity in data, current maternal mortality informatics do not fully encapsulate the myriad medical and socially determinant factors that contribute to such high maternal mortality rates within the United States compared to other developed nations. Lack of standardization of data and data sharing across States and between Federal entities, health networks, and research institutions keep the Nation in the dark about ways to prevent maternal deaths.

(16) Having reliable and valid State data aggregated at the Federal level are critical to the Nation's ability to quell surges in maternal death and imperative for researchers to identify long-lasting interventions.

(17) Leaders in maternal wellness highly recommend that maternal deaths and cases of maternal morbidity, including complications that result in chronic illness and future increased risk of death, be investigated at the State level first, and that standardized, streamlined, de-identified data regarding maternal deaths be sent annually to the Centers for Disease Control and Prevention. Such data standardization and collection would be similar in operation and effect to the National Program of Cancer Registries of the Centers for Disease Control and Prevention and akin to the Confidential Enquiry in Maternal Deaths Programme in the United Kingdom. Such a maternal mortalities and morbidities registry and surveillance system would help providers, academicians, lawmakers, and the public to address questions concerning the types of, causes of, and best practices to thwart, maternal mortality and morbidity.

(18) The United Nations' Millennium Development Goal 5a aimed to reduce by 75 percent, between 1990 and 2015, the maternal mortality rate, yet this metric has not been achieved. In fact, the maternal mortality rate in the United States has been estimated to have more than doubled between 2000 and 2014.

(19) The United States has no comparable, coordinated Federal process by which to review cases of maternal mortality, systems failures, or best practices. The majority of States have active Maternal Mortality Review Committees (referred to in this section as ''MMRC''), which help leverage work to impact maternal wellness. For example, the State of California has worked extensively with their State health departments, health and hospital systems, and research collaborative organizations, including the California Maternal Quality Care Collaborative and the Alliance for Innovation on Maternal Health, to establish MMRCs, wherein such State has determined the most prevalent causes of maternal mortality and recorded and shared data with providers and researchers, who have developed and implemented safety bundles and care protocols related to preeclampsia, maternal hemorrhage, peripartum cardiomyopathy, and the like. In this way, the State of California has been able to leverage its maternal mortality review board system, generate data, and apply those data to effect changes in maternal care-related protocol.

(20) Hospitals and health systems across the United States lack standardization of emergency obstetric protocols before, during, and after delivery. Consequently, many providers are delayed in recognizing critical signs indicating maternal distress that quickly escalate into fatal or near-fatal incidences. Moreover, any attempt to address an obstetric emergency that does not consider both clinical and public health approaches falls woefully under the mark of excellent care delivery. State-based perinatal quality collaboratives, or entities participating in the Alliance for Innovation on Maternal Health (AIM), have formed obstetric protocols, tool kits, and other resources to improve system care and response as they relate to maternal complications and warning signs for such conditions as maternal hemorrhage, hypertension, and preeclampsia. These perinatal quality collaboratives serve an important role in providing infrastructure that supports quality improvement efforts addressing obstetric care and outcomes. State-based perinatal quality collaboratives partner with hospitals, physicians, nurses, midwives, patients, public health, and other stakeholders to provide opportunities for collaborative learning, rapid response data, and quality improvement science support to achieve systems-level change.

(21) The Centers for Disease Control and Prevention reports that 22 percent of deaths occurred during pregnancy, 25 percent occurred on the day of delivery or within 7 days after the day of delivery, and 53 percent occurred between 7 days and 1 year after the day of delivery. Yet, for women eligible for the Medicaid program on the basis of pregnancy in States without Medicaid postpartum extension, such Medicaid coverage lapses at the end of the month on which the 60th postpartum day lands.

(22) The experience of serious traumatic events, such as being exposed to domestic violence, substance use disorder, or pervasive and systematic racism, can over-activate the body's stress-response system. Known as toxic stress, the repetition of high-doses of cortisol to the brain, can harm healthy neurological development and other body systems, which can have cascading physical and mental health consequences, as documented in the Adverse Childhood Experiences study of the Centers for Disease Control and Prevention.

(23) A growing body of evidence-based research has shown the correlation between the stress associated with systematic racism and one's birthing outcomes. The undue stress of sex and race discrimination paired with institutional racism has been demonstrated to contribute to a higher risk of maternal mortality, irrespective of one's gestational age, maternal age, socioeconomic status, educational level, geographic region, or individual-level health risk factors, including poverty, limited access to prenatal care, and poor physical and mental health (although these are not nominal factors). Black women remain the most at risk for pregnancy-associated or pregnancy-related causes of death. When it comes to preeclampsia, for example, for which obesity is a risk factor, Black women of normal weight remain at a higher at risk of dying during the perinatal period compared to non-Black obese women.

(24) The rising maternal mortality rate in the United States is driven predominantly by the disproportionately high rates of Black maternal mortality.

(25) Compared to women from other racial and ethnic demographics, Black women across the socioeconomic spectrum experience prolonged, unrelenting stress related to systematic racial and gender discrimination, contributing to higher rates of maternal mortality, giving birth to low-weight babies, and experiencing pre-term birth. Racism is a risk-factor for these aforementioned experiences. This cumulative stress, called weathering, often extends across the life course and is situated in everyday spaces where Black women establish livelihood. Systematic racism, structural barriers, lack of access to quality maternal health care, lack of access to nutritious food, and social determinants of health exacerbate Black women's likelihood to experience poor or fatal birthing outcomes, but do not fully account for the great disparity.

(26) Black women are twice as likely to experience postpartum depression, and disproportionately higher rates of preeclampsia compared to White women.

(27) Racism is deeply ingrained in United States systems, including in health care delivery systems between patients and providers, often resulting in disparate treatment for pain, irreverence for cultural norms with respect to health, and dismissiveness. However, the provider pool is not primed with many people of color, nor are providers

(whether maternity care clinicians or maternity care support personnel) consistently required to undergo implicit bias, cultural competency, respectful care practices, or empathy training on a consistent, on-going basis.

(28) Women are not the only people who can become pregnant or give birth. Nonbinary, transgender, and gender-expansive people can also become pregnant. The terms ''birthing people'' or ''birthing persons'' are also used to describe pregnant or postpartum people in a way that is inclusive of individuals who experience gender beyond the binary.

(29) Substance misuse among pregnant women, including the use of substances that are illegal or criminalized, misuse of prescribed medications, and binge drinking, has increased year after year for the past decade. Pregnant people with substance use disorder, particularly those with opioids, amphetamines, and cocaine use disorders, are at greater risk of severe maternal morbidity, including conditions such as eclampsia, heart attack or failure, and sepsis.

SEC. 3. IMPROVING FEDERAL EFFORTS WITH RESPECT TO PREVENTION OF MATERNAL MORTALITY.

(a) FUNDING FOR STATE-BASED PERINATAL QUALITY COLLABORATIVES DEVELOPMENT AND SUSTAINABILITY.—

(1) IN GENERAL.—Not later than one year after the date of enactment of this Act, the Secretary of Health and Human Services (referred to in this subsection as the ''Secretary''), acting through the Division of Reproductive Health of the Centers for Disease Control and Prevention, shall establish a grant program to be known as the State-Based Perinatal Quality Collaborative grant program under which the Secretary awards grants to eligible entities for the purpose of development and sustainability of perinatal quality collaboratives in every State, the District of Columbia, and eligible territories, in order to measurably improve perinatal care and perinatal health outcomes for pregnant and postpartum women and their infants.

(2) GRANT AMOUNTS.—Grants awarded under this subsection shall be in amounts not to exceed $250,000 per year, for the duration of the grant period.

(3) STATE-BASED PERINATAL QUALITY COLLABORATIVE DEFINED.—For purposes of this subsection, the term ''State-based perinatal quality collaborative'' means a network of teams that—

(A) is multidisciplinary in nature and includes the full range of perinatal and maternity care providers;

(B) works to improve measurable outcomes for maternal and infant health by advancing evidence-informed clinical practices using quality improvement principles;

(C) works with hospital-based or outpatient facility-based clinical teams, experts, and stakeholders, including patients and families, to spread best practices and optimize resources to improve perinatal care and outcomes;

(D) employs strategies that include the use of the collaborative learning model to provide opportunities for hospitals and clinical teams to collaborate on improvement strategies, rapid-response data to provide timely feedback to hospital and other clinical teams to track progress, and quality improvement science to provide support and coaching to hospital and clinical teams;

(E) has the goal of improving population-level outcomes in maternal and infant health; and

(F) has the goal of improving outcomes of all birthing people, through the coordination, integration, and collaboration across birth settings.

(4) AUTHORIZATION OF APPROPRIATIONS.—For purposes of carrying out this subsection, there is authorized to be appropriated $35,000,000 for each of fiscal years 2024 through 2028.

(b) EXPANSION OF MEDICAID AND CHIP COVERAGE FOR PREGNANT AND POSTPARTUM WOMEN.—

(1) REQUIRING COVERAGE OF ORAL HEALTH SERVICES FOR PREGNANT AND POSTPARTUM WOMEN.—

(A) MEDICAID.—Section 1905 of the Social Security Act (42 U.S.C. 1396d) is amended—

(i) in subsection (a)(4)—

(I) by striking ''; and (D)'' and inserting ''; (D)'';

(II) by striking ''; and (E)'' and inserting ''; (E)'';

(III) by striking ''; and (F)'' and inserting ''; (F)''; and

(IV) by striking the semicolon at the end and inserting ''; and (G) oral health services for pregnant and postpartum women (as defined in subsection (jj));''; and

(ii) by adding at the end the following new subsection:

''(jj) ORAL HEALTH SERVICES FOR PREGNANT AND POSTPARTUM WOMEN.—

''(1) IN GENERAL.—For purposes of this title, the term 'oral health services for pregnant and postpartum women' means dental services necessary to prevent disease and promote oral health, restore oral structures to health and function, and treat emergency conditions that are furnished to a woman during pregnancy (or during the 1-year period beginning on the last day of the pregnancy).

''(2) COVERAGE REQUIREMENTS.—To satisfy the requirement to provide oral health services for pregnant and postpartum women, a State shall, at a minimum, provide coverage for preventive, diagnostic, periodontal, and restorative care consistent with recommendations for perinatal oral health care and dental care during pregnancy from the American Academy of Pediatric Dentistry and the American College of Obstetricians and Gynecologists.''.

(B) CHIP.—Section 2103(c)(6) of the Social Security Act (42 U.S.C. 1397cc(c)(6)) is amended—

(i) in subparagraph (A)—

(I) by inserting ''or a targeted low-income pregnant woman'' after ''targeted low-income child''; and

(II) by inserting '', and, in the case of a targeted low-income child who is pregnant or a targeted low-income pregnant woman, satisfy the coverage requirements specified in section 1905(jj)'' after ''emergency conditions''; and

(ii) in subparagraph (B), by inserting ''(but only if, in the case of a targeted low-income child who is pregnant or a targeted low-income pregnant woman, the benchmark dental benefit package satisfies the coverage requirements specified in section 1905(jj))'' after ''subparagraph (C)''.

(2) REQUIRING 12-MONTH CONTINUOUS COVERAGE OF FULL BENEFITS FOR PREGNANT AND POSTPARTUM INDIVIDUALS UNDER MEDICAID AND CHIP.—

(A) MEDICAID.—Section 1902 of the Social Security Act (42 U.S.C. 1396a) is amended—

(i) in subsection (a)—

(ii) in paragraph (86), by striking ''and'' at the end;

(iii) in paragraph (87), by striking the period at the end and inserting ''; and''; and

(iv) by inserting after paragraph (87) the following new paragraph:

''(88) provide that the State plan is in compliance with subsection (e)(16).''; and

(v) in subsection (e)(16)—

(I) in subparagraph (A), by striking ''At the option of the State, the State plan (or waiver of such State plan) may provide'' and inserting ''A State plan (or waiver of such State plan) shall provide'';

(II) in subparagraph (B), in the matter preceding clause (i), by striking ''by a State making an election under this paragraph'' and inserting ''under a State plan (or a waiver of such State plan)''; and

(III) by striking subparagraph (C).

(B) CHIP.—

(i) IN GENERAL.—Section 2107(e)(1)(J) of the Social Security Act (42 U.S.C. 1397gg(e)(1)(J)), as inserted by section 9822 of the American Rescue Plan Act of 2021 (Public Law 117–2), is amended to read as follows:

''(J) Paragraphs (5) and (16) of section 1902(e) (relating to the requirement to provide medical assistance under the State plan or waiver consisting of full benefits during pregnancy and throughout the 12-month postpartum period under title XIX).''.

(ii) CONFORMING.—Section 2112(d)(2)(A) of the Social Security Act (42 U.S.C. 1397ll(d)(2)(A)) is amended by striking ''the month in which the 60-day period'' and all that follows through ''pursuant to section 2107(e)(1),''.

(3) MAINTENANCE OF EFFORT.—

(A) MEDICAID.—Section 1902(l) of the Social Security Act (42 U.S.C. 1396a(l)) is amended by adding at the end the following new paragraph:

''(5) During the period that begins on the date of enactment of this paragraph and ends on the date that is 5 years after such date of enactment, as a condition for receiving any Federal payments under section 1903(a) for calendar quarters occurring during such period, a State shall not have in effect, with respect to women who are eligible for medical assistance under the State plan or under a waiver of such plan on the basis of being pregnant or having been pregnant, eligibility standards, methodologies, or procedures under the State plan or waiver that are more restrictive than the eligibility standards, methodologies, or procedures, respectively, under such plan or waiver that are in effect on the date of enactment of this paragraph.''.

(B) CHIP.—Section 2105(d) of the Social Security Act (42 U.S.C. 1397ee(d)) is amended by adding at the end the following new paragraph:

''(4) IN ELIGIBILITY STANDARDS FOR TARGETED LOW-INCOME PREGNANT WOMEN.—During the period that begins on the date of enactment of this paragraph and ends on the date that is 5 years after such date of enactment, as a condition of receiving payments under subsection (a) and section 1903(a), a State that elects to provide assistance to women on the basis of being pregnant (including pregnancy-related assistance provided to targeted low-income pregnant women (as defined in section 2112(d)), pregnancy-related assistance provided to women who are eligible for such assistance through application of section 1902(v)(4)(A)(i) under section 2107(e)(1), or any other assistance under the State child health plan (or a waiver of such plan) which is provided to women on the basis of being pregnant) shall not have in effect, with respect to such women, eligibility standards, methodologies, or procedures under such plan (or waiver) that are more restrictive than the eligibility standards, methodologies, or procedures, respectively, under such plan (or waiver) that are in effect on the date of enactment of this paragraph.''.

(4) INFORMATION ON BENEFITS.—The Secretary of Health and Human Services shall make publicly available on the internet website of the Department of Health and Human Services, information regarding benefits available to pregnant and postpartum women and under the Medicaid program and

the Children's Health Insurance Program, including information on—

(A) benefits that States are required to provide to pregnant and postpartum women under such programs;

(B) optional benefits that States may provide to pregnant and postpartum women under such programs; and

(C) the availability of different kinds of benefits for pregnant and postpartum women, including oral health and mental health benefits and breastfeeding services and supplies, under such programs.

(5) FEDERAL FUNDING FOR COST OF EXTENDED MEDICAID AND CHIP COVERAGE FOR POSTPARTUM WOMEN.—

(A) MEDICAID.—Section 1905 of the Social Security Act (42 U.S.C. 1396d), as amended by paragraph (1), is further amended by adding at the end the following:

''(kk) INCREASED FMAP FOR EXTENDED MEDICAL ASSISTANCE FOR POSTPARTUM INDIVIDUALS.—

''(1) IN GENERAL.—Notwithstanding subsection (b), the Federal medical assistance percentage for a State, with respect to amounts expended by such State for medical assistance for an individual who is eligible for such assistance on the basis of being pregnant or having been pregnant that is provided during the 305-day period that begins on the 60th day after the last day of the individual's pregnancy (including any such assistance provided during the month in which such period ends), shall be equal to—

''(A) during the first 20-quarter period for which this subsection is in effect with respect to a State, 100 percent; and

''(B) with respect to a State, during each quarter thereafter, 90 percent.

''(2) EXCLUSION FROM TERRITORIAL CAPS.—Any payment made to a territory for expenditures for medical assistance for an individual described in paragraph (1) that is subject to the Federal medical assistance percentage specified under paragraph (1) shall not be taken into account for purposes of applying payment limits under subsections (f) and (g) of section 1108.''.

(B) CHIP.—Section 2105(c) of the Social Security Act (42 U.S.C. 1397ee(c)) is amended by adding at the end the following new paragraph:

''(13) ENHANCED PAYMENT FOR EXTENDED ASSISTANCE PROVIDED TO PREGNANT WOMEN.—Notwithstanding subsection (b), the enhanced FMAP, with respect to payments under subsection (a) for expenditures under the State child health plan (or a waiver of such plan) for assistance provided under the plan (or waiver) to a woman who is eligible for such assistance on the basis of being pregnant (including pregnancy-related assistance provided to a targeted low-income pregnant woman (as defined in section 2112(d)), pregnancy-related assistance provided to a woman who is eligible for such assistance through application of section 1902(v)(4)(A)(i) under section 2107(e)(1), or any other assistance under the plan (or waiver) provided to a woman who is eligible for such assistance on the basis of being pregnant) during the 305-day period that begins on the 60th day after the last day of her pregnancy (including any such assistance provided during the month in which such period ends), shall be equal to—

''(A) during the first 20-quarter period for which this subsection is in effect with respect to a State, 100 percent; and

''(B) with respect to a State, during each quarter thereafter, 90 percent.''.

(6) GUIDANCE ON STATE OPTIONS FOR MEDICAID COVERAGE OF DOULA SERVICES.—Not later than 1 year after the date of the enactment of this Act, the Secretary of Health and Human Services shall issue guidance for the States concerning options for Medicaid coverage and payment for support services provided by doulas.

(7) ENHANCED FMAP FOR RURAL OBSTETRIC AND GYNECOLOGICAL SERVICES.—Section 1905 of the Social Security Act (42 U.S.C. 1396d), as amended by paragraphs (1) and (5), is further amended—

(A) in subsection (b), by striking ''and (ii)'' and inserting ''(ii), (jj), (kk), and (ll)''; and

(B) by adding at the end the following new subsection:

''(ll) INCREASED FMAP FOR MEDICAL ASSISTANCE FOR OBSTETRIC AND GYNECOLOGICAL SERVICES FURNISHED AT RURAL HOSPITALS.—

''(1) IN GENERAL.—Notwithstanding subsection (b), the Federal medical assistance percentage for a State, with respect to amounts expended by such State for medical assistance for obstetric or gynecological services that are furnished in a hospital that is located in a rural area (as defined for purposes of section 1886) shall be equal to 90 percent for each calendar quarter beginning with the first calendar quarter during which this subsection is in effect.

''(2) EXCLUSION FROM TERRITORIAL CAPS.—Any payment made to a territory for expenditures for medical assistance described in paragraph (1) that is subject to the Federal medical assistance percentage specified under paragraph (1) shall not be taken into account for purposes of applying payment limits under subsections (f) and (g) of section 1108.''.

(8) EFFECTIVE DATES.—

(A) IN GENERAL.—Subject to subparagraphs (B) and (C)—

(i) the amendments made by paragraphs (1), (2), and (5) shall take effect on the first day of the first calendar quarter that begins on or after the date that is 1 year after the date of enactment of this Act;

(ii) the amendments made by paragraph (3) shall take effect on the date of enactment of this Act; and

(iii) the amendments made by paragraph (7) shall take effect on the first day of the first calendar quarter that begins on or after the date of enactment of this Act.

(B) EXCEPTION FOR STATE LEGISLATION.—In the case of a State plan under title XIX of the Social Security Act or a State child health plan under title XXI of such Act that the Secretary of Health and Human Services determines requires State legislation in order for the respective plan to meet any requirement imposed by amendments made by this subsection, the respective plan shall not be regarded as failing to comply with the requirements of such title solely on the basis of its failure to meet such an additional requirement before the first day of the first calendar quarter beginning after the close of the first regular session of the State legislature that begins after the date of enactment of this Act. For purposes of the previous sentence, in the case of a State that has a 2-year legislative session, each year of the session shall be considered to be a separate regular session of the State legislature.

(C) STATE OPTION FOR EARLIER EFFECTIVE DATE.—A State may elect to have subsection (e)(16) of section 1902 of the Social Security Act (42 U.S.C. 1396a) and subparagraph (J) of section 2107(e)(1) of the Social Security Act (42 U.S.C. 1397gg(e)(1)), as amended by paragraph (2), and subsection (kk) of section 1905 of the Social Security Act (42 U.S.C. 1396d) and paragraph (13) of section 2105(c) of the Social Security Act (42 U.S.C. 1397ee(c)), as added by paragraph (5), take effect with respect to the State on the first day of any fiscal quarter that begins before the date described in subparagraph (A) and apply to amounts payable to the State for expenditures for medical assistance, child health assistance, or pregnancy-related assistance to pregnant or postpartum individuals furnished on or after such day.

(c) REGIONAL CENTERS OF EXCELLENCE.—Part P of title III of the Public Health Service Act (42 U.S.C. 280g et seq.) is amended by adding at the end the following:

''SEC. 399V–8. REGIONAL CENTERS OF EXCELLENCE ADDRESSING IMPLICIT BIAS AND CULTURAL COMPETENCY IN PATIENT-PROVIDER INTERACTIONS EDUCATION.

''(a) IN GENERAL.—Not later than one year after the date of enactment of this section, the Secretary, in consultation with such other agency heads as the Secretary determines appropriate, shall award cooperative agreements for the establishment or support of regional centers of excellence addressing implicit bias, cultural competency, and respectful care practices in patient-provider interactions education for the purpose of enhancing and improving how health care professionals are educated in implicit bias and delivering culturally competent health care.

''(b) ELIGIBILITY.—To be eligible to receive a cooperative agreement under subsection (a), an entity shall—

''(1) be a public or other nonprofit entity specified by the Secretary that provides educational and training opportunities for students and health care professionals, which may be a health system, teaching hospital, community health center, medical school, school of public health, school of nursing, dental school, social work school, school of professional psychology, or any other health professional school or program at an institution of higher education (as defined in section 101 of the Higher Education Act of 1965) focused on the prevention, treatment, or recovery of health conditions that contribute to maternal mortality and the prevention of maternal mortality and severe maternal morbidity;

''(2) demonstrate community engagement and participation, such as through partnerships with home visiting and case management programs and community-based organizations serving minority populations;

''(3) demonstrate engagement with groups engaged in the implementation of health care professional training in implicit bias and delivering culturally competent care, such as departments of public health, perinatal quality collaboratives, hospital systems, and health care professional groups, in order to obtain input on resources needed for effective implementation strategies; and

''(4) provide to the Secretary such information, at such time and in such manner, as the Secretary may require.

''(c) DIVERSITY.—In awarding a cooperative agreement under subsection (a), the Secretary shall take into account any regional differences among eligible entities and make an effort to ensure geographic diversity among award recipients.

''(d) DISSEMINATION OF INFORMATION.—

''(1) PUBLIC AVAILABILITY.—The Secretary shall make publicly available on the internet website of the Department of Health and Human Services information submitted to the Secretary under subsection (b)(3).

''(2) EVALUATION.—The Secretary shall evaluate each regional center of excellence established or supported pursuant to subsection (a) and disseminate the findings resulting from each such evaluation to the appropriate public and private entities.

''(3) DISTRIBUTION.—The Secretary shall share evaluations and overall findings with State departments of health and other relevant State level offices to inform State and local best practices.

''(e) MATERNAL MORTALITY DEFINED.—In this section, the term 'maternal mortality' means death of a woman that occurs during pregnancy or within the one-year period following the end of such pregnancy.

''(f) AUTHORIZATION OF APPROPRIATIONS.—For purposes of carrying out this section, there is authorized to be appropriated $5,000,000 for each of fiscal years 2024 through 2028.''.

(d) SPECIAL SUPPLEMENTAL NUTRITION PROGRAM FOR WOMEN, INFANTS, AND CHILDREN.—Section 17(d)(3)(A)(ii) of the Child Nutrition Act of 1966 (42 U.S.C. 1786(d)(3)(A)(ii)) is amended—

(1) by striking the clause designation and heading and all that follows through ''A State'' and inserting the following:

''(ii) WOMEN.—

''(I) BREASTFEEDING WOMEN.—A State'';

(2) in subclause (I) (as so designated), by striking ''1 year'' and all that follows through ''earlier'' and inserting ''2 years postpartum''; and

(3) by adding at the end the following:

''(II) POSTPARTUM WOMEN.—A State may elect to certify a postpartum woman for a period of 2 years.''.

(e) DEFINITION OF MATERNAL MORTALITY.—In this section, the term ''maternal mortality'' means death of a woman that occurs during pregnancy or within the one-year period following the end of such pregnancy.

SEC. 4. FULL SPECTRUM DOULA WORKFORCE.

(a) IN GENERAL.—The Secretary of Health and Human Services shall establish and implement a program to award grants or contracts to health professions schools, schools of public health, academic health centers, State or local governments, territories, Indian Tribes and Tribal organizations, Urban Indian organizations, Native Hawaiian organizations, or other appropriate public or private nonprofit entities or community-based organizations (or consortia of any such entities, including entities promoting multidisciplinary approaches), to establish or expand programs to grow and diversify the doula workforce, including through improving the capacity and supply of health care providers.

(b) USE OF FUNDS.—Amounts made available by subsection (a) shall be used for the following activities:

(1) Establishing programs that provide education and training to individuals seeking appropriate training or certification as full spectrum doulas.

(2) Expanding the capacity of existing programs described in paragraph (1), for the purpose of increasing the number of students enrolled in such programs, including by awarding scholarships for students who agree to work in underserved communities after receiving such education and training.

(3) Developing and implementing strategies to recruit and retain students from underserved communities, particularly from demographic groups experiencing high rates of maternal mortality and severe maternal morbidity, including racial and ethnic minority groups, into programs described in paragraphs (1) and (2).

(c) FUNDING.—In addition to amounts otherwise available, there is appropriated to the Secretary of Health and Human Services for fiscal year 2024, out of any money in the Treasury not otherwise appropriated, $50,000,000, to remain available until expended, for carrying out this section.

SEC. 5. GRANTS FOR RURAL OBSTETRIC MOBILE HEALTH UNITS.

Part B of title III of the Public Health Service Act (42 U.S.C. 243 et seq.) is amended by adding at the end the following:

''SEC. 320C. GRANTS FOR RURAL OBSTETRIC MOBILE HEALTH UNITS.

''(a) IN GENERAL.—The Secretary, acting through the Administrator of the Health Resources and Services Administration (referred to in this section as the 'Secretary'), shall establish a pilot program under which the Secretary shall make grants to States—

''(1) to purchase and equip rural mobile health units for the purpose of providing preconception, pregnancy, postpartum, and obstetric emergency services in rural and underserved communities;

''(2) to train providers including obstetrician-gynecologists, certified nurse-midwives, nurse practitioners, nurses, and midwives to operate and provide obstetric services, including training and planning for obstetric emergencies, in such mobile health units; and

''(3) to address access issues, including social determinants of health and wrap-around clinical and community services including nutrition, housing, lactation services, and transportation support and referrals.

''(b) NO SHARING OF DATA WITH LAW ENFORCEMENT.—As a condition of receiving a grant under this section, a State shall submit to the Secretary an assurance that the State will not make available to Federal or State law enforcement any personally identifiable information regarding any pregnant or postpartum individual collected pursuant to such grant.

''(c) GRANT DURATION.—The period of a grant under this section shall not exceed 5 years.

''(d) IMPLEMENTING AND REPORTING.—

''(1) IN GENERAL.—States that receive pilot grants under this section shall—

''(A) implement the program funded by the pilot grants; and

''(B) not later than 3 years after the date of enactment of this section, and not later than 6 years after such date of enactment, submit to the Secretary a report that describes the results of such program, including—

''(i) relevant information and relevant quantitative indicators of the programs' success in improving the standard of care and maternal health outcomes for individuals in rural and underserved communities seen for pre-conception, pregnancy, or postpartum visits in the rural mobile health units, stratified by the categories of data specified in paragraph (2);

''(ii) relevant qualitative evaluations from individuals receiving pre-conception, pregnant, or postpartum care from rural mobile health units, including measures of patient-reported experience of care and measures of patient-reported issues with access to care without the rural mobile health unit pilot; and

''(iii) strategies to sustain such programs beyond the duration of the grant and expand such programs to other rural and underserved communities.

''(2) CATEGORIES OF DATA.—The categories of data specified in this paragraph are the following:

''(A) Race, ethnicity, sex, gender, gender identity, primary language, age, geography, insurance status, disability status.

''(B) Number of visits provided for preconception, prenatal, or postpartum care.

''(C) Number of repeat visits provided for preconception, prenatal, or postpartum care.

''(D) Number of screenings or tests provided for smoking, substance use, hypertension, sexually-transmitted diseases, diabetes, HIV, depression, intimate partner violence, pap smears, and pregnancy.

''(3) DATA PRIVACY PROTECTION.—The reports referred to in paragraph (1)(B) shall not contain any personally identifiable information regarding any pregnant or postpartum individual.

''(e) EVALUATION.—The Secretary shall conduct an evaluation of the pilot program under this section to determine the impact of the pilot program with respect to—

''(1) the effectiveness of the grants awarded under this section to improve maternal health outcomes in rural and underserved communities, with data stratified by race, ethnicity, primary language, socioeconomic status, geography, insurance type, and other factors as the Secretary determines appropriate;

''(2) spending on maternity care by States participating in the pilot program;

''(3) to the extent practicable, qualitative and quantitative measures of patient experience; and

''(4) any other areas of assessment that the Secretary determines relevant.

''(f) REPORT.—Not later than one year after the completion of the pilot program under this section, the Secretary shall submit to Congress, and make publicly available, a report that describes—

''(1) the results of the evaluation conducted under subsection (e); and

''(2) a recommendation regarding whether the pilot program should be continued after fiscal year 2028 and expanded on a national basis.

''(g) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated to the Secretary to carry out this section $10,000,000 for each of fiscal years 2024 through 2028.''.

SEC. 6. REQUIRING NOTIFICATION OF IMPENDING HOSPITAL OBSTETRIC UNIT CLOSURE.

Section 1866(a)(1) of the Social Security Act (42 U.S.C. 1395cc(a)(1)) is amended—

(1) in subparagraph (X), by striking ''and'' at the end;

(2) in subparagraph (Y)(ii)(V), by striking the period and inserting '', and''; and

(3) by inserting after subparagraph (Y) the following new subparagraph:

''(Z) beginning 180 days after the date of the enactment of this subparagraph, in the case of a hospital, not less than 90 days prior to the closure of any obstetric unit of the hospital, to submit to the Secretary a notification which shall include—

''(i) a report analyzing the impact the closure will have on the community;

''(ii) steps the hospital will take to identify other health care providers that can alleviate any service gaps as a result of the closure; and

''(iii) any additional information as may be required by the Secretary.''.

SEC. 7. EVALUATION AND REPORT ON MATERNAL HEALTH NEEDS.

(a) IN GENERAL.—Not later than 2 years after the date of enactment of this Act, the Secretary of Health and Human Services shall conduct, and submit to Congress a report that describes the results of, an evaluation of—

(1) where the maternal health needs are greatest in the United States; and

(2) the Federal expenditures made to address such needs.

(b) PERIOD COVERED.—The evaluation under subsection (a) shall cover the period of calendar years 2000 through 2022.

(c) ANALYSIS.—The evaluation under subsection (a) shall include analysis of the following:

(1) How Federal funds provided to States for maternal health were distributed across regions, States, and localities or counties.

(2) Barriers to applying for and receiving Federal funds for maternal health, including, with respect to initial applications—

(A) requirements for submission in partnership with other entities; and

(B) stringent network requirements.

(3) Why applicants did not receive funding, including limited availability of funds, the strength of the respective applications, and failure to adhere to requirements.

(d) DISAGGREGATION OF DATA.—The report under subsection (a) shall disaggregate data on mothers served by race, ethnicity, insurance status, and language spoken.

SEC. 8. INCREASING EXCISE TAXES ON CIGARETTES AND ESTABLISHING EXCISE TAX EQUITY AMONG ALL TOBACCO PRODUCT TAX RATES.

(a) TAX PARITY FOR ROLL-YOUR-OWN TOBACCO.—Section 5701(g) of the Internal Revenue Code of 1986 is amended by striking ''$24.78'' and inserting ''$49.56''.

(b) TAX PARITY FOR PIPE TOBACCO.—Section 5701(f) of the Internal Revenue Code of 1986 is amended by striking ''$2.8311 cents'' and inserting ''$49.56''.

(c) TAX PARITY FOR SMOKELESS TOBACCO.—

(1) Section 5701(e) of the Internal Revenue Code of 1986 is amended—

(A) in paragraph (1), by striking ''$1.51'' and inserting ''$26.84'';

(B) in paragraph (2), by striking ''50.33 cents'' and inserting ''$10.74''; and

(C) by adding at the end the following:

''(3) SMOKELESS TOBACCO SOLD IN DISCRETE SINGLE-USE UNITS.—On discrete single-use units, $100.66 per thousand.''.

(2) Section 5702(m) of such Code is amended—

(A) in paragraph (1), by striking ''or chewing tobacco'' and inserting '', chewing tobacco, or discrete single-use unit'';

(B) in paragraphs (2) and (3), by inserting ''that is not a discrete single-use unit'' before the period in each such paragraph; and

(C) by adding at the end the following:

''(4) DISCRETE SINGLE-USE UNIT.—The term 'discrete single-use unit' means any product containing, made from, or derived from tobacco or nicotine that—

''(A) is not intended to be smoked; and

''(B) is in the form of a lozenge, tablet, pill, pouch, dissolvable strip, or other discrete single-use or single-dose unit.''.

(d) TAX PARITY FOR SMALL CIGARS.—Paragraph (1) of section 5701(a) of the Internal Revenue Code of 1986 is amended by striking ''$50.33'' and inserting ''$100.66''.

(e) TAX PARITY FOR LARGE CIGARS.—

(1) IN GENERAL.—Paragraph (2) of section 5701(a) of the Internal Revenue Code of 1986 is amended by striking ''52.75 percent'' and all that follows through the period and inserting the following: ''$49.56 per pound and a proportionate tax at the like rate on all fractional parts of a pound but not less than 10.066 cents per cigar.''.

(2) GUIDANCE.—The Secretary of the Treasury, or the Secretary's delegate, may issue guidance regarding the appropriate method for determining the weight of large cigars for purposes of calculating the applicable tax under section 5701(a)(2) of the Internal Revenue Code of 1986.

(3) CONFORMING AMENDMENT.—Section 5702 of such Code is amended by striking subsection (l).

(f) TAX PARITY FOR ROLL-YOUR-OWN TOBACCO AND CERTAIN PROCESSED TOBACCO.—Subsection (o) of section 5702 of the Internal Revenue Code of 1986 is amended by inserting '', and includes processed tobacco that is removed for delivery or delivered to a person other than a person with a permit provided under section 5713, but does not include removals of processed tobacco for exportation'' after ''wrappers thereof''.

(g) CLARIFYING TAX RATE FOR OTHER TOBACCO PRODUCTS.—

(1) IN GENERAL.—Section 5701 of the Internal Revenue Code of 1986 is amended by adding at the end the following new subsection:

''(i) OTHER TOBACCO PRODUCTS.—Any product not otherwise described under this section that has been determined to be a tobacco product by the Food and Drug Administration through its authorities under the Family Smoking Prevention and Tobacco Control Act shall be taxed at a level of tax equivalent to the tax rate for cigarettes on an estimated per use basis as determined by the Secretary.''.

(2) ESTABLISHING PER USE BASIS.—For purposes of section 5701(i) of the Internal Revenue Code of 1986, not later than 12 months after the later of the date of the enactment of this Act or the date that a product has been determined to be a tobacco product by the Food and Drug Administration, the Secretary of the Treasury (or the Secretary of the Treasury's delegate) shall issue final regulations establishing the level of tax for such product that is equivalent to the tax rate for cigarettes on an estimated per use basis.

(h) CLARIFYING DEFINITION OF TOBACCO PRODUCTS.—

(1) IN GENERAL.—Subsection (c) of section 5702 of the Internal Revenue Code of 1986 is amended to read as follows:

''(c) TOBACCO PRODUCTS.—The term 'tobacco products' means—

''(1) cigars, cigarettes, smokeless tobacco, pipe tobacco, and roll-your-own tobacco, and

''(2) any other product subject to tax pursuant to section 5701(i).''.

(2) CONFORMING AMENDMENTS.—Subsection (d) of section 5702 of such Code is amended by striking ''cigars, cigarettes, smokeless tobacco, pipe tobacco, or roll-your-own tobacco'' each place it appears and inserting ''tobacco products''.

(i) INCREASING TAX ON CIGARETTES.—

(1) SMALL CIGARETTES.—Section 5701(b)(1) of such Code is amended by striking ''$50.33'' and inserting ''$100.66''.

(2) LARGE CIGARETTES.—Section 5701(b)(2) of such Code is amended by striking ''$105.69'' and inserting ''$211.38''.

(j) TAX RATES ADJUSTED FOR INFLATION.—Section 5701 of such Code, as amended by subsection (g), is amended by adding at the end the following new subsection:

''(j) INFLATION ADJUSTMENT.—

''(1) IN GENERAL.—In the case of any calendar year beginning after 2023, the dollar amounts provided under this chapter shall each be increased by an amount equal to—

''(A) such dollar amount, multiplied by

''(B) the cost-of-living adjustment determined under section 1(f)(3) for the calendar year, determined by substituting 'calendar year 2022' for 'calendar year 2016' in subparagraph (A)(ii) thereof.

''(2) ROUNDING.—If any amount as adjusted under paragraph (1) is not a multiple of $0.01, such amount shall be rounded to the next highest multiple of $0.01.''.

(k) FLOOR STOCKS TAXES.—

(1) IMPOSITION OF TAX.—On tobacco products manufactured in or imported into the United States which are removed before any tax increase date and held on such date for sale by any person, there is hereby imposed a tax in an amount equal to the excess of—

(A) the tax which would be imposed under section 5701 of the Internal Revenue Code of 1986 on the article if the article had been removed on such date, over

(B) the prior tax (if any) imposed under section 5701 of such Code on such article.

(2) CREDIT AGAINST TAX.—Each person shall be allowed as a credit against the taxes imposed by paragraph (1) an amount equal to the lesser of $1,000 or the amount of such taxes. For purposes of the preceding sentence, all persons treated as a single employer under subsection (b), (c), (m), or (o) of section 414 of the Internal Revenue Code of 1986 shall be treated as 1 person for purposes of this paragraph.

(3) LIABILITY FOR TAX AND METHOD OF PAYMENT.—

(A) LIABILITY FOR TAX.—A person holding tobacco products on any tax increase date to which any tax imposed by paragraph (1) applies shall be liable for such tax.

(B) METHOD OF PAYMENT.—The tax imposed by paragraph (1) shall be paid in such manner as the Secretary shall prescribe by regulations.

(C) TIME FOR PAYMENT.—The tax imposed by paragraph (1) shall be paid on or before the date that is 120 days after the effective date of the tax rate increase.

(4) ARTICLES IN FOREIGN TRADE ZONES.—Notwithstanding the Act of June 18, 1934 (commonly known as the Foreign Trade Zone Act, 48 Stat. 998, 19 U.S.C. 81a et seq.), or any other provision of law, any article which is located in a foreign trade zone on any tax increase date shall be subject to the tax imposed by paragraph (1) if—

(A) internal revenue taxes have been determined, or customs duties liquidated, with respect to such article before such date pursuant to a request made under the first proviso of section 3(a) of such Act, or

(B) such article is held on such date under the supervision of an officer of the United States Customs and Border Protection of the Department of Homeland Security pursuant to the second proviso of such section 3(a).

(5) DEFINITIONS.—For purposes of this subsection—

(A) IN GENERAL.—Any term used in this subsection which is also used in section 5702 of such Code shall have the same meaning as such term has in such section.

(B) TAX INCREASE DATE.—The term ''tax increase date'' means the effective date of any increase in any tobacco product excise tax rate pursuant to the amendments made by this section (other than subsection (j) thereof).

(C) SECRETARY.—The term ''Secretary'' means the Secretary of the Treasury or the Secretary's delegate.

(6) CONTROLLED GROUPS.—Rules similar to the rules of section 5061(e)(3) of such Code shall apply for purposes of this subsection.

(7) OTHER LAWS APPLICABLE.—All provisions of law, including penalties, applicable with respect to the taxes imposed by section 5701 of such Code shall, insofar as applicable and not inconsistent with the provisions of this subsection, apply to the floor stocks taxes imposed by paragraph (1), to the same extent as if such taxes were imposed by such section 5701. The Secretary may treat any person who bore the ultimate burden of the tax imposed by paragraph (1) as the person to whom a credit or refund under such provisions may be allowed or made.

(l) EFFECTIVE DATES.—

(1) IN GENERAL.—Except as provided in paragraphs (2) and (3), the amendments made by this section shall apply to articles removed (as defined in section 5702(j) of the Internal Revenue Code of 1986) after the last day of the month which includes the date of the enactment of this Act.

(2) DISCRETE SINGLE-USE UNITS, LARGE CIGARS, AND PROCESSED TOBACCO.—The amendments made by subsections (c)(1)(C), (c)(2), (e), and (f) shall apply to articles removed (as defined in section 5702(j) of the Internal Revenue Code of 1986) after the date that is 6 months after the date of the enactment of this Act.

(3) OTHER TOBACCO PRODUCTS.—The amendments made by subsection (g)(1) shall apply to products removed after the last day of the month which includes the date that the Secretary of the Treasury (or the Secretary of the Treasury's delegate) issues final regulations establishing the level of tax for such product.

SUBMITTED RESOLUTIONS

SENATE RESOLUTION 349—SUPPORTING THE DESIGNATION OF SEPTEMBER 19, 2023, AS ''NATIONAL STILLBIRTH PREVENTION DAY'', RECOGNIZING TENS OF THOUSANDS OF AMERICAN FAMILIES THAT HAVE ENDURED A STILLBIRTH, AND SEIZING THE OPPORTUNITY TO KEEP OTHER FAMILIES FROM EXPERIENCING THE SAME TRAGEDY

Mr. MERKLEY (for himself, Mr. BOOKER, and Mr. GRASSLEY) submitted the following resolution; which was referred to the Committee on Health, Education, Labor, and Pensions:

S. RES. 349

Whereas approximately 21,000 pregnancies in the United States end in stillbirth each year;

Whereas racial disparities persist in birth outcomes, with Black, Hispanic, Native Pacific Islander, and Indigenous families at the greatest risk of losing a baby to stillbirth;

Whereas, according to the Centers for Disease Control and Prevention, the annual number of stillbirths far exceeds the number of deaths among children under 15 years of age due to sudden infant death syndrome, car accidents, drowning, guns, fire, poison, and flu combined;

Whereas stillbirths are devastating and have a profound and lifelong impact on the families who endure them;

Whereas stillbirth is linked to an increased risk of maternal mortality;

Whereas, with increased awareness and better data collection, the United States will be able to better understand why stillbirths in the United States are happening at an alarming rate and identify what can be done to combat this crisis;

Whereas proven stillbirth prevention efforts have the power to save thousands of babies every year, and innovations in stillbirth prevention could save thousands of additional families nationwide from the heartache of losing a baby every year;

Whereas recognizing ''National Stillbirth Prevention Day'' is an opportunity to increase awareness, support evidence-based prevention efforts, promote research, encourage improved data collection and greater understanding, and provide support to those who have experienced stillbirth; and

Whereas ''National Stillbirth Prevention Day'' calls on the President and all other Federal officials to use authority to take action to help reduce stillbirths and to ensure every expectant family is educated on how to reduce the risk of losing a baby to stillbirth: Now, therefore, be it

Resolved, That the Senate—

(1) supports the goals and ideals of ''National Stillbirth Prevention Day'';

(2) understands the importance of advancing evidence-based prevention efforts; and

(3) requests that the President issue a proclamation calling upon the people of the United States to observe National Stillbirth Prevention Day with appropriate awareness programs and activities.

SENATE RESOLUTION 350—DESIGNATING SEPTEMBER 2023 AS ''NATIONAL VOTING RIGHTS MONTH''

Mr. WYDEN (for himself, Mr. CARPER, Mrs. FEINSTEIN, Mr. MARKEY, Ms. CANTWELL, Ms. KLOBUCHAR, Mr. PADILLA, Mr. VAN HOLLEN, Mr. KAINE, Ms. STABENOW, Mr. CASEY, Mr. WHITEHOUSE, Ms. SMITH, Mr. LUJÁN, Mr. COONS, Mr. WELCH, Ms. HIRONO, Ms. BALDWIN, Mr. BLUMENTHAL, Mr. BOOKER, Mr. SANDERS, Mr. MENENDEZ, Mr. KING, Mr. FETTERMAN, Mr. DURBIN, Mr. REED, Mr. MERKLEY, Mr. WARNER, Mr. BROWN, Ms. DUCKWORTH, and Mr. CARDIN) submitted the following resolution; which was referred to the Committee on the Judiciary:

S. RES. 350

Whereas voting is 1 of the single most important rights that can be exercised in a democracy;

Whereas, over the course of history, various voter suppression laws in the United States have hindered, and even prohibited, certain individuals and groups from exercising the right to vote;

Whereas, during the 19th and early 20th centuries, Native Americans and people who were born to United States citizens abroad, people who spoke a language other than English, and people who were formerly subjected to slavery were denied full citizenship and prevented from voting by English literacy tests;

Whereas, since the 1870s, minority groups such as Black Americans in the South have suffered from the oppressive effects of Jim Crow laws that were designed to prevent political, economic, and social mobility;

Whereas Black Americans, Latinos, Asian Americans, Native Americans, and other underrepresented voters were subject to violence, poll taxes, literacy tests, all-White primaries, property ownership tests, and grandfather clauses that were designed to suppress the right of those underrepresented individuals to vote;

Whereas 5,800,000 people in the United States are currently banned from voting because of a felony conviction, including 1 in 16 Black adults, due to the shameful entanglement of racial injustice in the criminal legal system and voting access in the United States;

Whereas members of the aforementioned groups and others are currently, in some cases, subject to intimidation, voter roll purges, and financial barriers that act effectively as modern-day poll taxes;

Whereas, in 1965, Congress passed the Voting Rights Act of 1965 (52 U.S.C. 10301 et seq.) to protect the right of Black Americans and other traditionally disenfranchised groups to vote, among other reasons;

Whereas, in 2013, in the landmark case of Shelby County v. Holder, 570 U.S. 529 (2013), the Supreme Court of the United States invalidated section 4 of the Voting Rights Act of 1965 (52 U.S.C. 10303), dismantling the preclearance formula provision in that Act that protected voters in States and localities that historically have suppressed the right of minorities to vote;

Whereas, since the invalidation of the preclearance formula provision of the Voting Rights Act of 1965 (52 U.S.C. 10301 et seq.), gerrymandered districts in many States have gone unchallenged and have become less likely to be invalidated by the courts;

Whereas gerrymandered districts in many States have been found to have a discriminatory impact on traditionally disenfranchised minorities through tactics that include ''cracking'', diluting the voting power of minorities across many districts, and ''packing'', concentrating the power of minority voters into 1 district to reduce their voting power in other districts;

Whereas the courts have found the congressional and, in some cases, State legislative district maps, in Texas, North Carolina, Florida, Pennsylvania, Ohio, Wisconsin, Alabama, and Louisiana to be gerrymandered districts that were created to favor some groups over others;

Whereas these restrictive voting laws encompass cutbacks in early voting, voter roll purges, placement of faulty equipment in minority communities, requirement of photo identification, and the elimination of same-day registration;

Whereas these policies could outright disenfranchise or make voting much more difficult for more than 80,000,000 minority, elderly, poor, and disabled voters, among other groups;

Whereas, in 2016, discriminatory laws in North Carolina, Wisconsin, North Dakota, and Texas were ruled to violate the rights of voters and were overturned by the courts;

Whereas the decision of the Supreme Court of the United States in Shelby County v. Holder, 570 U.S. 529 (2013), calls on Congress to update the formula in the Voting Rights Act of 1965 (52 U.S.C. 10301 et seq.);

Whereas addressing the challenges of administering future elections requires increasing the accessibility of vote-by-mail and other limited-contact options to ensure access to the ballot and the protection of the health and safety of voters, and access to the ballot amid a global pandemic like the Coronavirus Disease 2019 public health emergency;

Whereas Congress must work to combat any attempts to dismantle or underfund the United States Postal Service or obstruct the passage of the mail as blatant tactics of voter suppression and election interference;

Whereas following the 2020 elections there has been a relentless attack on the right to vote with more than 400 bills having been introduced to roll back the right to vote, including such bills being introduced in almost every State and at least 44 of such bills having been signed into law in 18 States;

Whereas there is much more work to be done to ensure all citizens of the United States have the right to vote through free, fair, and accessible elections, and Congress must exercise its constitutional authority to protect the right to vote;

Whereas National Voter Registration Day in 2023 is Tuesday, September 19; and

Whereas September 2023 would be an appropriate month—

(1) to designate as ''National Voting Rights Month''; and

(2) to ensure that, through the registration of voters and awareness of elections, the democracy of the United States includes all citizens of the United States: Now, therefore, be it

Resolved, That the Senate—

(1) designates September 2023 as ''National Voting Rights Month'';

(2) encourages all people in the United States to uphold the right of every citizen to exercise the sacred and fundamental right to vote;

(3) encourages Congress to pass—

(A) the Freedom to Vote Act (S. 1, 118th Congress), to set basic national standards to make sure all people in the United States can cast their ballots in the way that works best for them, regardless of what ZIP code they live in, improve access to the ballot for people in the United States, advance commonsense election integrity reforms, and protect the democracy of the United States from relentless attacks;

(B) the Democracy Restoration Act of 2023 (S. 1677, 118th Congress), to restore Federal voting rights to citizens after release from imprisonment, honoring the responsibilities of citizenship and civic engagement necessary for building healthy and safe communities, while welcoming the contributions of

people returning home after imprisonment; and

(C) other voting rights legislation that seeks to advance voting rights and protect elections in the United States;

(4) recommends that public schools and universities in the United States develop an academic curriculum that educates students about—

(A) the importance of voting, how to register to vote, where to vote, and the different forms of voting;

(B) the history of voter suppression in the United States before and after passage of the Voting Rights Act of 1965 (52 U.S.C. 10301 et seq.); and

(C) current measures that have been taken to restrict the vote;

(5) expresses appreciation for the United States Postal Service having issued a special Representative John R. Lewis stamp—

(A) to honor the life and legacy of Representative John R. Lewis in supporting voting rights; and

(B) to remind people in the United States that ordinary citizens risked their lives, marched, and participated in the great democracy of the United States so that all citizens would have the fundamental right to vote; and

(6) invites Congress to allocate the requisite funds for public service announcements on television, radio, newspapers, magazines, social media, billboards, buses, and other forms of media—

(A) to remind people in the United States when elections are being held;

(B) to share important registration deadlines; and

(C) to urge people to get out and vote.

SENATE RESOLUTION 351—DESIGNATING SEPTEMBER 25, 2023, AS ''NATIONAL LOBSTER DAY''

Mr. KING (for himself, Ms. COLLINS, Mrs. SHAHEEN, Ms. HASSAN, Ms. WARREN, Mr. MARKEY, Mr. WHITEHOUSE, Mr. REED, Mr. BLUMENTHAL, Mr. MURPHY, and Mr. SCOTT of Florida) submitted the following resolution; which was considered and agreed to:

Whereas lobstering has served as an economic engine and family tradition in the United States for centuries;

Whereas thousands of families in the United States make their livelihoods from catching, processing, or serving lobsters;

Whereas the lobster industry employs people of all ages year-round, and many harvesters begin fishing as children and stay in the industry for their entire working lives;

Whereas the lobster industry has spearheaded sustainability measures for more than 150 years, ensuring the health of the lobster stock and the marine environment;

Whereas consumers are looking to add more sustainable seafood to their diets, and more people are enjoying lobster at home;

Whereas historical lore notes that lobster likely joined turkey on the table at the very first Thanksgiving feast in 1621, and lobster continues to be a mainstay during many other holiday traditions;

Whereas lobster harvesters are evolving and diversifying their businesses to help maintain the health of the ocean, including through kelp farming, which absorbs carbon dioxide from seawater;

Whereas throughout history, Presidents of the United States have served lobster at their inaugural celebrations and state dinners with international leaders;

Whereas lobster is a versatile source of lean protein that is low in saturated fat and high in vitamin B12;

Whereas lobster is continually incorporated into foods such as pho, gnocchi, doughnuts, cocktails, ice cream, and butter;

Whereas the peak of the lobstering season in the United States occurs in late summer;

Whereas the Unicode Consortium added a lobster to its emoji set in 2018 in recognition of the popularity of the lobster around the world;

Whereas lobsters have inspired artists in the United States and throughout the world for hundreds of years;

Whereas lobsters have been, and continue to be, used as mascots for sports teams;

Whereas lobsters inspire innovation of all kinds beyond the culinary realm, including skincare, fertilizer, robotics, and biodegradable golf balls;

Whereas countless people in the United States enjoy lobster rolls to celebrate summer, from beaches to backyards, and from fine-dining restaurants to lobster shacks; and

Whereas lobster is a staple on the menus of beloved restaurants across the United States, and in kitchens across the United States, bringing families and friends together: Now, therefore, be it

Resolved, That the Senate—

(1) designates September 25, 2023, as ''National Lobster Day''; and

(2) encourages the people of the United States to observe the day with appropriate ceremonies and activities.

SENATE RESOLUTION 352—DESIGNATING SEPTEMBER 2023 AS ''NATIONAL CHILDHOOD CANCER AWARENESS MONTH''

Mr. MANCHIN (for himself, Mr. SCOTT of South Carolina, Mr. REED, Mr. CASEY, Mrs. CAPITO, Mr. GRAHAM, and Mr. HAWLEY) submitted the following resolution; which was considered and agreed to:

S. RES. 352

Whereas, each year, more than 15,500 children under the age of 19 in the United States are diagnosed with cancer;

Whereas, every year, more than 1,700 children in the United States lose their lives to cancer;

Whereas childhood cancer is the leading cause of death from disease and the second leading cause of death overall for children in the United States;

Whereas the 5-year survival rate for children with cancer in the United States has increased from 58 percent in the mid-1970s to 85 percent in 2023, representing a significant improvement from previous decades;

Whereas approximately ⅔ of children in the United States who survive cancer will develop at least one chronic health condition, and many survivors will face a late effect from treatment that can be severe or life-threatening; and

Whereas childhood cancer occurs regularly and randomly and spares no racial or ethnic group, socioeconomic class, or geographic region: Now, therefore, be it

Resolved, That the Senate—

(1) designates September 2023 as ''National Childhood Cancer Awareness Month'';

(2) requests that the Federal Government, States, localities, and nonprofit organizations observe the month with appropriate programs and activities, with the goal of increasing public knowledge of the risks of cancer;

(3) encourages survivors of childhood cancer to continue to receive ongoing monitoring and physical and psychosocial care throughout their adult lives;

(4) recognizes the human toll of cancer and pledges to make the prevention of and cure for cancer a public health priority;

(5) reminds the people of the United States of the bravery of children who are diagnosed with cancer; and

(6) commends and honors the courage of such children.

AMENDMENTS SUBMITTED AND PROPOSED

SA 1242. Mr. BUDD submitted an amendment intended to be proposed by him to the bill H.R. 4366, making appropriations for military construction, the Department of Veterans Affairs, and related agencies for the fiscal year ending September 30, 2024, and for other purposes; which was ordered to lie on the table.

SA 1243. Mr. BUDD submitted an amendment intended to be proposed to amendment SA 1092 proposed by Mrs. MURRAY (for herself and Ms. COLLINS) to the bill H.R. 4366, supra; which was ordered to lie on the table.

SA 1244. Mr. BARRASSO (for himself and Ms. LUMMIS) submitted an amendment intended to be proposed to amendment SA 1092 proposed by Mrs. MURRAY (for herself and Ms. COLLINS) to the bill H.R. 4366, supra; which was ordered to lie on the table.

SA 1245. Mr. MANCHIN submitted an amendment intended to be proposed by him to the bill H.R. 4366, supra; which was ordered to lie on the table.

SA 1246. Ms. BALDWIN submitted an amendment intended to be proposed to amendment SA 1092 proposed by Mrs. MURRAY (for herself and Ms. COLLINS) to the bill H.R. 4366, supra; which was ordered to lie on the table.

SA 1247. Mr. TILLIS (for himself and Mr. BUDD) submitted an amendment intended to be proposed to amendment SA 1092 proposed by Mrs. MURRAY (for herself and Ms. COLLINS) to the bill H.R. 4366, supra; which was ordered to lie on the table.

SA 1248. Mr. KING submitted an amendment intended to be proposed by him to the bill H.R. 4366, supra; which was ordered to lie on the table.

SA 1249. Mr. CRUZ (for himself and Mr. CORNYN) submitted an amendment intended to be proposed to amendment SA 1092 proposed by Mrs. MURRAY (for herself and Ms. COLLINS) to the bill H.R. 4366, supra; which was ordered to lie on the table.

SA 1250. Mr. MORAN (for himself, Mr. TESTER, and Mr. BOOZMAN) submitted an amendment intended to be proposed to amendment SA 1092 proposed by Mrs. MURRAY (for herself and Ms. COLLINS) to the bill H.R. 4366, supra; which was ordered to lie on the table.

SA 1251. Mr. CASSIDY (for himself and Mr. CARPER) submitted an amendment intended to be proposed by him to the bill H.R. 4366, supra; which was ordered to lie on the table.

SA 1252. Mr. KENNEDY submitted an amendment intended to be proposed to amendment SA 1092 proposed by Mrs. MURRAY (for herself and Ms. COLLINS) to the bill H.R. 4366, supra; which was ordered to lie on the table.

SA 1253. Mr. MORAN (for himself, Ms. KLOBUCHAR, and Ms. BALDWIN) submitted an amendment intended to be proposed to amendment SA 1092 proposed by Mrs. MURRAY (for herself and Ms. COLLINS) to the bill H.R. 4366, supra; which was ordered to lie on the table.

SA 1254. Mr. DURBIN submitted an amendment intended to be proposed to amendment SA 1092 proposed by Mrs. MURRAY (for herself and Ms. COLLINS) to the bill H.R. 4366, supra; which was ordered to lie on the table.

SA 1255. Mr. OSSOFF (for himself, Mr. BRAUN, and Mr. TILLIS) submitted an amendment intended to be proposed to amendment

SA 1092 proposed by Mrs. MURRAY (for herself and Ms. COLLINS) to the bill H.R. 4366, supra; which was ordered to lie on the table.

SA 1256. Mr. LANKFORD submitted an amendment intended to be proposed to amendment SA 1092 proposed by Mrs. MURRAY (for herself and Ms. COLLINS) to the bill H.R. 4366, supra; which was ordered to lie on the table.

SA 1257. Mr. JOHNSON submitted an amendment intended to be proposed to amendment SA 1092 proposed by Mrs. MURRAY (for herself and Ms. COLLINS) to the bill H.R. 4366, supra; which was ordered to lie on the table.

SA 1258. Mr. MANCHIN submitted an amendment intended to be proposed to amendment SA 1092 proposed by Mrs. MURRAY (for herself and Ms. COLLINS) to the bill H.R. 4366, supra; which was ordered to lie on the table.

SA 1259. Mr. MANCHIN submitted an amendment intended to be proposed to amendment SA 1092 proposed by Mrs. MURRAY (for herself and Ms. COLLINS) to the bill H.R. 4366, supra; which was ordered to lie on the table.

SA 1260. Mr. MANCHIN submitted an amendment intended to be proposed to amendment SA 1092 proposed by Mrs. MURRAY (for herself and Ms. COLLINS) to the bill H.R. 4366, supra; which was ordered to lie on the table.

SA 1261. Mr. REED (for Mr. TESTER) proposed an amendment to the resolution S. Res. 238, expressing support for recognizing September 20 as National Service Dog Day.

SA 1262. Mr. ROMNEY submitted an amendment intended to be proposed to amendment SA 1092 proposed by Mrs. MURRAY (for herself and Ms. COLLINS) to the bill H.R. 4366, making appropriations for military construction, the Department of Veterans Affairs, and related agencies for the fiscal year ending September 30, 2024, and for other purposes; which was ordered to lie on the table.

SA 1263. Mr. ROMNEY submitted an amendment intended to be proposed to amendment SA 1092 proposed by Mrs. MURRAY (for herself and Ms. COLLINS) to the bill H.R. 4366, supra; which was ordered to lie on the table.

SA 1264. Mr. TILLIS (for himself, Mr. WELCH, Mr. SANDERS, and Ms. HASSAN) submitted an amendment intended to be proposed to amendment SA 1092 proposed by Mrs. MURRAY (for herself and Ms. COLLINS) to the bill H.R. 4366, supra; which was ordered to lie on the table.

SA 1265. Mr. SCHATZ (for himself, Mr. SULLIVAN, and Ms. HIRONO) submitted an amendment intended to be proposed to amendment SA 1092 proposed by Mrs. MURRAY (for herself and Ms. COLLINS) to the bill H.R. 4366, supra; which was ordered to lie on the table.

SA 1266. Mr. SCHMITT submitted an amendment intended to be proposed to amendment SA 1092 proposed by Mrs. MURRAY (for herself and Ms. COLLINS) to the bill H.R. 4366, supra; which was ordered to lie on the table.

SA 1267. Mr. SCHMITT submitted an amendment intended to be proposed to amendment SA 1092 proposed by Mrs. MURRAY (for herself and Ms. COLLINS) to the bill H.R. 4366, supra; which was ordered to lie on the table.

SA 1268. Mr. WELCH (for himself, Mr. TILLIS, Mr. SANDERS, and Ms. HASSAN) submitted an amendment intended to be proposed to amendment SA 1092 proposed by Mrs. MURRAY (for herself and Ms. COLLINS) to the bill H.R. 4366, supra; which was ordered to lie on the table.

TEXT OF AMENDMENTS

SA 1242. Mr. BUDD submitted an amendment intended to be proposed by him to the bill H.R. 4366, making appropriations for military construction, the Department of Veterans Affairs, and related agencies for the fiscal year ending September 30, 2024, and for other purposes; which was ordered to lie on the table; as follows:

On page 230, line 13, insert ''*Provided further*, That not later than 60 days after the date of enactment of this Act, the Administrator shall transmit to Congress a report that provides, with respect to the FAA Modernization and Reform Act of 2012 (Pub. L. 112-95), FAA Extension, Safety, and Security Act of 2016 (Pub. L. 114-190), and FAA Reauthorization Act of 2018 (Pub. L. 115-254), a list of each rulemaking and report requirement in such Acts and the status of each rulemaking or report: *Provided further*, That the amounts made available under this heading shall be reduced by $100,000 for each day after the date that is 60 days after the date of enactment of this Act that such report has not been submitted to Congress:'' after ''Congress:''.

SA 1243. Mr. BUDD submitted an amendment intended to be proposed to amendment SA 1092 proposed by Mrs. MURRAY (for herself and Ms. COLLINS) to the bill H.R. 4366, making appropriations for military construction, the Department of Veterans Affairs, and related agencies for the fiscal year ending September 30, 2024, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in division A, insert the following:

SEC. _____. PROHIBITION ON USE OF FUNDS TO IMPLEMENT EXECUTIVE ORDER 14019.

None of the funds appropriated or otherwise made available by this division may be used to implement or enforce Executive Order 14019 (86 Fed. Reg. 13623; relating to promoting access to voting).

At the appropriate place in division B, insert the following:

SEC. _____. PROHIBITION ON USE OF FUNDS TO IMPLEMENT EXECUTIVE ORDER 14019.

None of the funds appropriated or otherwise made available by this division may be used to implement or enforce Executive Order 14019 (86 Fed. Reg. 13623; relating to promoting access to voting).

At the appropriate place in division C, insert the following:

SEC. _____. PROHIBITION ON USE OF FUNDS TO IMPLEMENT EXECUTIVE ORDER 14019.

None of the funds appropriated or otherwise made available by this division may be used to implement or enforce Executive Order 14019 (86 Fed. Reg. 13623; relating to promoting access to voting).

SA 1244. Mr. BARRASSO (for himself and Ms. LUMMIS) submitted an amendment intended to be proposed to amendment SA 1092 proposed by Mrs. MURRAY (for herself and Ms. COLLINS) to the bill H.R. 4366, making appropriations for military construction, the Department of Veterans Affairs, and related agencies for the fiscal year ending September 30, 2024, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in division B, insert the following:

SEC. ____. None of the funds made available by this Act may be used to finalize, implement, administer, or enforce the proposed rule of the Department of Agriculture entitled ''Use of Electronic Identification Eartags as Official Identification in Cattle and Bison'' (88 Fed. Reg. 3320 (January 19, 2023)).

SA 1245. Mr. MANCHIN submitted an amendment intended to be proposed by him to the bill H.R. 4366, making appropriations for military construction, the Department of Veterans Affairs, and related agencies for the fiscal year ending September 30, 2024, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. _____. (a) Not later than 180 days after the date of enactment of this Act, the Director of the Federal Housing Finance Agency, in consultation with the Secretary of the Treasury, shall submit to Congress a report regarding the state of the conservatorship of the Federal National Mortgage Association and the Federal Home Loan Mortgage Corporation (referred to in this section as the ''covered entities'').

(b) The report required under subsection (a) shall include—

(1) policy options that could be taken to end the conservatorship of the covered entities;

(2) potential safeguards that would need to be established to ensure that, after the end of the conservatorship of the covered entities, the covered entities would not need to be placed in conservatorship at a future date;

(3) whether the conservatorship of the covered entities has accomplished the primary goals of the conservatorship; and

(4) if applicable, the projected timeline for ending the conservatorship of the covered entities.

SA 1246. Ms. BALDWIN submitted an amendment intended to be proposed to amendment SA 1092 proposed by Mrs. MURRAY (for herself and Ms. COLLINS) to the bill H.R. 4366, making appropriations for military construction, the Department of Veterans Affairs, and related agencies for the fiscal year ending September 30, 2024, and for other purposes; which was ordered to lie on the table; as follows:

In the matter under the heading ''SALARIES AND EXPENSES'' under the heading ''AGRICULTURAL RESEARCH SERVICE'' under the heading ''AGRICULTURAL PROGRAMS'' in title I of division B, insert '': *Provided further*, That of the amounts made available under this heading, $8,100,000 shall be used to carry out cranberry research'' before the period at the end.

SA 1247. Mr. TILLIS (for himself and Mr. BUDD) submitted an amendment intended to be proposed to amendment SA 1092 proposed by Mrs. MURRAY (for herself and Ms. COLLINS) to the bill H.R. 4366, making appropriations for military construction, the Department of Veterans Affairs, and related agencies for the fiscal year ending September 30, 2024, and for other purposes; which was ordered to lie on the table; as follows:

At the end of the amendment, insert the following:

DIVISION D—LUMBEE FAIRNESS ACT

SEC. 101. SHORT TITLE.

This division may be cited as the ''Lumbee Fairness Act''.

SEC. 102. FEDERAL RECOGNITION.

The Act of June 7, 1956 (70 Stat. 254, chapter 375), is amended—

(1) by striking section 2;

(2) in the first sentence of the first section, by striking ''That the Indians'' and inserting the following:

''SEC. 3. DESIGNATION OF LUMBEE INDIANS.

''The Indians'';

(3) in the preamble—

(A) by inserting before the first undesignated clause the following:

''SECTION 1. FINDINGS.

''Congress finds that—'';

(B) by designating the undesignated clauses as paragraphs (1) through (4), respectively, and indenting appropriately;

(C) by striking ''Whereas'' each place it appears;

(D) by striking ''and'' after the semicolon at the end of each of paragraphs (1) and (2) (as so designated); and

(E) in paragraph (4) (as so designated), by striking '': Now, therefore,'' and inserting a period;

(4) by moving the enacting clause so as to appear before section 1 (as so designated);

(5) by striking the last sentence of section 3 (as designated by paragraph (2));

(6) by inserting before section 3 (as designated by paragraph (2)) the following:

''SEC. 2. DEFINITIONS.

''In this Act:

''(1) SECRETARY.—The term 'Secretary' means the Secretary of the Interior.

''(2) TRIBE.—The term 'Tribe' means the Lumbee Tribe of North Carolina or the Lumbee Indians of North Carolina.''; and

(7) by adding at the end the following:

''SEC. 4. FEDERAL RECOGNITION.

''(a) IN GENERAL.—Federal recognition is extended to the Tribe (as designated as petitioner number 65 by the Office of Federal Acknowledgment).

''(b) APPLICABILITY OF LAWS.—All laws and regulations of the United States of general application to Indians and Indian tribes shall apply to the Tribe and its members.

''(c) PETITION FOR ACKNOWLEDGMENT.—Notwithstanding section 3, any group of Indians in Robeson and adjoining counties, North Carolina, whose members are not enrolled in the Tribe (as determined under section 5(d)) may petition under part 83 of title 25 of the Code of Federal Regulations for acknowledgment of tribal existence.

''SEC. 5. ELIGIBILITY FOR FEDERAL SERVICES.

''(a) IN GENERAL.—The Tribe and its members shall be eligible for all services and benefits provided by the Federal Government to federally recognized Indian tribes.

''(b) SERVICE AREA.—For the purpose of the delivery of Federal services and benefits described in subsection (a), those members of the Tribe residing in Robeson, Cumberland, Hoke, and Scotland counties in North Carolina shall be deemed to be residing on or near an Indian reservation.

''(c) DETERMINATION OF NEEDS.—On verification by the Secretary of a tribal roll under subsection (d), the Secretary and the Secretary of Health and Human Services shall—

''(1) develop, in consultation with the Tribe, a determination of needs to provide the services for which members of the Tribe are eligible; and

''(2) after the tribal roll is verified, each submit to Congress a written statement of those needs.

''(d) TRIBAL ROLL.—

''(1) IN GENERAL.—For purpose of the delivery of Federal services and benefits described in subsection (a), the tribal roll in effect on the date of enactment of this section shall, subject to verification by the Secretary, define the service population of the Tribe.

''(2) VERIFICATION LIMITATION AND DEADLINE.—The verification by the Secretary under paragraph (1) shall—

''(A) be limited to confirming documentary proof of compliance with the membership criteria set out in the constitution of the Tribe adopted on November 16, 2001; and

''(B) be completed not later than 2 years after the submission of a digitized roll with supporting documentary proof by the Tribe to the Secretary.

''SEC. 6. AUTHORIZATION TO TAKE LAND INTO TRUST.

''(a) IN GENERAL.—Notwithstanding any other provision of law, the Secretary is hereby authorized to take land into trust for the benefit of the Tribe.

''(b) TREATMENT OF CERTAIN LAND.—An application to take into trust land located within Robeson County, North Carolina, under this section shall be treated by the Secretary as an 'on reservation' trust acquisition under part 151 of title 25, Code of Federal Regulations (or a successor regulation).

''SEC. 7. JURISDICTION OF STATE OF NORTH CAROLINA.

''(a) IN GENERAL.—With respect to land located within the State of North Carolina that is owned by, or held in trust by the United States for the benefit of, the Tribe, or any dependent Indian community of the Tribe, the State of North Carolina shall exercise jurisdiction over—

''(1) all criminal offenses that are committed; and

''(2) all civil actions that arise.

''(b) TRANSFER OF JURISDICTION.—

''(1) IN GENERAL.—Subject to paragraph (2), the Secretary may accept on behalf of the United States, after consulting with the Attorney General of the United States, any transfer by the State of North Carolina to the United States of any portion of the jurisdiction of the State of North Carolina described in subsection (a) over Indian country occupied by the Tribe pursuant to an agreement between the Tribe and the State of North Carolina.

''(2) RESTRICTION.—A transfer of jurisdiction described in paragraph (1) may not take effect until 2 years after the effective date of the agreement described in that paragraph.

''(c) EFFECT.—Nothing in this section affects the application of section 109 of the Indian Child Welfare Act of 1978 (25 U.S.C. 1919).

''SEC. 8. AUTHORIZATION OF APPROPRIATIONS.

''There are authorized to be appropriated such sums as are necessary to carry out this Act.''.

SA 1248. Mr. KING submitted an amendment intended to be proposed by him to the bill H.R. 4366, making appropriations for military construction, the Department of Veterans Affairs, and related agencies for the fiscal year ending September 30, 2024, and for other purposes; which was ordered to lie on the table; as follows:

In the matter under the heading ''RURAL HOUSING INSURANCE FUND PROGRAM ACCOUNT'' under the heading ''RURAL HOUSING SERVICE'' under the heading ''RURAL DEVELOPMENT PROGRAMS'' in title III of division C, strike ''$60,000,000 for section 515'' and insert ''$200,000,000 for section 515''.

In the matter under the heading ''RURAL HOUSING INSURANCE FUND PROGRAM ACCOUNT'' under the heading ''RURAL HOUSING SERVICE'' under the heading ''RURAL DEVELOPMENT PROGRAMS'' in title III of division C, strike ''$35,000,000'' and insert ''75,000,000''.

SA 1249. Mr. CRUZ (for himself and Mr. CORNYN) submitted an amendment intended to be proposed to amendment SA 1092 proposed by Mrs. MURRAY (for herself and Ms. COLLINS) to the bill H.R. 4366, making appropriations for military construction, the Department of Veterans Affairs, and related agencies for the fiscal year ending September 30, 2024, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ____. ADVANCING EFFORTS SEEKING COMPLIANCE BY MEXICO WITH TREATY ON UTILIZATION OF WATERS OF THE COLORADO AND TIJUANA RIVERS AND OF THE RIO GRANDE.

The Secretary of State shall use the voice, vote, diplomatic capital, and resources of the United States to ensure that United States diplomats and officials of the U.S. Section of the International Boundary and Water Commission are able to advance efforts seeking compliance by the United Mexican States with the Treaty on Utilization of Waters of the Colorado and Tijuana Rivers and of the Rio Grande, signed at Washington February 3, 1944, and to establish understandings to provide predictable and reliable future deliveries of water by the United Mexican States.

SA 1250. Mr. MORAN (for himself, Mr. TESTER, and Mr. BOOZMAN) submitted an amendment intended to be proposed to amendment SA 1092 proposed by Mrs. MURRAY (for herself and Ms. COLLINS) to the bill H.R. 4366, making appropriations for military construction, the Department of Veterans Affairs, and related agencies for the fiscal year ending September 30, 2024, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in division A, insert the following:

SEC. _____. PROHIBITION ON USE OF FUNDS TO CHANGE RATE OF REIMBURSEMENT FOR TRANSPORTATION VIA SPECIAL MODE OF TRANSPORTATION.

During the period beginning on October 1, 2023, and ending on September 30, 2024, no funds appropriated by this division may be obligated or expended to change rates for reimbursement for transportation of a veteran or other individual via a special mode of transportation under the laws administered by the Secretary of Veterans Affairs from the rates in place as of January 1, 2023.

SEC. _____. REDUCTION OF AMOUNTS FOR DEPARTMENTAL ADMINISTRATION—GENERAL ADMINISTRATION ACCOUNT OF THE DEPARTMENT OF VETERANS AFFAIRS.

The amounts otherwise made available by this division for the Departmental Administration—General Administration account of the Department of Veterans Affairs are hereby reduced by $43,500,000.

SA 1251. Mr. CASSIDY (for himself and Mr. CARPER) submitted an amendment intended to be proposed by him to the bill H.R. 4366, making appropriations for military construction, the Department of Veterans Affairs, and related agencies for the fiscal year ending September 30, 2024, and for other purposes; which was ordered to lie on the table; as follows:

In the matter under the heading ''RURAL HOUSING INSURANCE FUND PROGRAM ACCOUNT'' under the heading ''RURAL HOUSING SERVICE''

under the heading ''RURAL DEVELOPMENT PROGRAMS'' in title III of division C, strike ''$850,000,000'' and insert ''$793,520,000''.

In the matter under the heading ''RURAL HOUSING INSURANCE FUND PROGRAM ACCOUNT'' under the heading ''RURAL HOUSING SERVICE'' under the heading ''RURAL DEVELOPMENT PROGRAMS'' in title III of division C, strike ''$62,637,000'' and insert ''$82,637,000''.

In title VII of division B, strike sections 771 and 774.

SA 1252. Mr. KENNEDY submitted an amendment intended to be proposed to amendment SA 1092 proposed by Mrs. MURRAY (for herself and Ms. COLLINS) to the bill H.R. 4366, making appropriations for military construction, the Department of Veterans Affairs, and related agencies for the fiscal year ending September 30, 2024, and for other purposes; which was ordered to lie on the table; as follows:

At the end of division A, insert the following:

TITLE V—IMPROVING REVIEW OF CLAIMS FOR VETERANS BENEFITS

SEC. 501. SHORT TITLE.

This title may be cited as the ''Preserving Lawful Utilization of Services for Veterans Act of 2023'' or the ''PLUS for Veterans Act of 2023''.

SEC. 502. CLARIFICATION OF PREPARATION, PRESENTATION, OR PROSECUTION OF A CLAIM UNDER A LAW ADMINISTERED BY SECRETARY OF VETERANS AFFAIRS.

Section 5901 of title 38, United States Code, is amended—

(1) by striking ''Except'' and inserting the following:

''(a) IN GENERAL.—Except''; and

(2) by adding at the end the following new subsection:

''(b) EXCLUSION.—The administration of a medical examination, or the writing of a report based on such examination, described in section 5125 of this title, does not constitute the preparation, presentation, or prosecution of a claim described in subsection (a).''.

SEC. 503. AGENTS AND ATTORNEYS IN CLAIMS UNDER LAWS ADMINISTERED BY SECRETARY OF VETERANS AFFAIRS: RECOGNITION; SUSPENSION.

Section 5904 of title 38, United States Code, is amended—

(1) in subsection (a)(1)—

(A) by inserting ''(A)'' before ''Except''; and

(B) by adding at the end the following new subparagraphs:

''(B)(i) The Secretary shall determine whether to recognize under subparagraph (A) an agent or attorney who applies for such recognition not later than 90 days after the Secretary receives such application.

''(ii) If the Secretary cannot verify whether the agent or attorney meets the qualifications and standards prescribed under paragraph (2) before the end of such 90 days, the Secretary shall recognize the agent or attorney under such subparagraph.

''(C) The Secretary may not refuse to recognize under subparagraph (A) an agent or attorney solely on the basis that such agent or attorney charges a claimant a fee for services rendered in the preparation, presentation, or prosecution of a claim.

''(D) The Secretary may suspend under subsection (b) an agent or attorney described in subparagraph (E) without regard to the notice and opportunity for a hearing under such subsection.

''(E) An agent or attorney described in this subparagraph is an agent or attorney—

''(i) recognized pursuant to subparagraph (B)(ii); and

''(ii) whom the Secretary determines, after the 90-day period described in such subparagraph, does not meet the qualifications and standards prescribed under paragraph (2).''; and

(2) in subsection (b)—

(A) by redesignating paragraphs (1) through (9) as subparagraphs (A) through (I), respectively;

(B) in the matter preceding subparagraph (A), as redesignated, by inserting ''(1)'' before ''The Secretary''; and

(C) by adding at the end the following new paragraph:

''(2) Not later than one year after the date of the enactment of the Preserving Lawful Utilization of Services for Veterans Act of 2023 and annually thereafter, the Secretary shall submit to the Committee on Veterans' Affairs of the Senate and the Committee on Veterans' Affairs of the House of Representatives a report regarding the number of individuals suspended under this subsection or denied recognition under subsection (a), disaggregated by the reasons for such suspension or denial and whether the individual is—

''(A) a representative of an organization recognized under section 5902 of this title;

''(B) an agent; or

''(C) an attorney.''.

SEC. 504. FEES ALLOWABLE FOR REPRESENTATION OF VETERANS FOR CLAIMS UNDER LAWS ADMINISTERED BY SECRETARY OF VETERANS AFFAIRS.

(a) FEES.—Section 5904 of title 38, United States Code, as amended by section 503, is further amended—

(1) in subsection (a)(5), by striking ''preparation, presentation, and prosecution of a claim before the Department'' and inserting ''course of representation described in subsection (c)(2)'';

(2) in subsection (c)—

(A) in the subsection heading, by inserting ''FLAT FEE AGREEMENTS.—'' after ''(c)'';

(B) by amending paragraph (1) to read as follows:

''(1)(A) In a case other than a case described in paragraph (2), a fee agreement between a claimant and an agent or attorney, with respect to the preparation, presentation, or prosecution of a claim under a law administered by the Secretary, shall be a fee agreement under—

''(i) this paragraph, using a standard agreement form prescribed by the Secretary;

''(ii) subsection (d); or

''(iii) subsection (e).

''(B) A fee agreement under this paragraph is one under which the total amount payable by the claimant to the agent or attorney with respect to the claim—

''(i) may not exceed $12,500 (as adjusted from time to time under subparagraph (C)); and

''(ii) is contingent on whether the claim is resolved in a manner favorable to the claimant.

''(C) Effective on October 1 of each year (beginning in the first fiscal year after the date of the enactment of the Preserving Lawful Utilization of Services for Veterans Act of 2023), the Secretary shall increase the dollar amount in effect under clause (i) of subparagraph (B) by a percentage equal to the percentage by which the Consumer Price Index for all urban consumers (U.S. city average) increased during the 12-month period ending with the last month for which Consumer Price Index data is available. In the event that such Consumer Price Index does not increase during such period, the Secretary shall maintain the dollar amount in effect under such clause during the previous fiscal year.

''(D) The limitation under subparagraph (B)(i) does not apply to any fee charged, allowed, or paid for services provided with respect to proceedings before a court.

''(E) For purposes of subparagraph (B)(ii), a claim shall be considered to have been resolved in a manner favorable to the claimant if all or any part of the relief sought is granted.

''(F) The form prescribed by the Secretary under subparagraph (A)(i) shall include the following notifications to the claimant:

''(i) That organizations recognized under section 5902 of this title furnish services concerning claims under laws administered by the Secretary, at no cost to claimants.

''(ii) That the claimant may select a private physician for a medical examination described in section 5125 of this title regarding the claim.

''(iii) That such agent or attorney may not refer the claimant to a private physician described in clause (ii) with whom the agent or attorney has a business relationship regarding the claim.'';

(C) in paragraph (2), by striking ''referred to in paragraph (1) of this subsection'' and inserting ''regarding a claim under a law administered by the Secretary'';

(D) in paragraph (3)(A), by striking ''to paragraph (2)'' and inserting ''to paragraph (1) or (2)''; and

(E) by striking paragraph (4); and

(3) by adding at the end the following new subsection:

''(e) PAYMENT OF FEES OUT OF AN AWARD OR INCREASED AWARD.—(1) When a claimant and an agent or attorney have entered into a fee agreement described in paragraph (2), the total fee payable to the agent or attorney (including all ancillary fees) may not exceed the amount that is equal to the product of five and the amount of the monthly increase of benefits awarded on the basis of the claim.

''(2) A fee agreement referred to in paragraph (1) is one under which the total amount of the fee payable to the agent or attorney—

''(A) is to be paid to the agent or attorney by the claimant, after commencement of the monthly period of payment of monetary benefits based on an award or increased award (as defined in section 5111(d) of this title); and

''(B) is contingent on whether the matter is resolved in a manner favorable to the claimant.

''(3) For the purposes of this subsection, a claim shall be considered to have been resolved in a manner favorable to the claimant if all or any part of the relief sought is granted.''.

(b) REGULATIONS.—Not later than 180 days after the date of the enactment of this Act, the Secretary shall prescribe regulations to carry out the amendments made by this section.

SEC. 505. REINSTATEMENT OF PENALTIES FOR CHARGING VETERANS UNAUTHORIZED FEES RELATING TO CLAIMS UNDER LAWS ADMINISTERED BY THE SECRETARY OF VETERANS AFFAIRS.

(a) IN GENERAL.—Section 5905 of title 38, United States Code, is amended—

(1) in the section heading, by striking ''**Penalty**'' and inserting ''**Penalties**'';

(2) by striking ''Whoever'' and inserting the following:

''(a) WITHHOLDING OF BENEFITS.—Whoever''; and

(3) by adding at the end the following new subsection:

''(b) CHARGING OF UNAUTHORIZED FEES.—Except as provided in sections 5904 or 1984 of this title, whoever directly or indirectly solicits, contracts for, charges, or receives, or attempts to solicit, contract for, charge, or receive, any fee or compensation with respect to the preparation, presentation, or

prosecution of any claim for benefits under a law administered by the Secretary shall be fined as provided in title 18, or imprisoned not more than one year, or both.''.

(b) CLERICAL AMENDMENT.—The table of sections at the beginning of chapter 59 of such title is amended by striking the item relating to section 5905 and inserting the following new item:

''5905. Penalties for certain acts.''.

(c) EFFECTIVE DATE.—The amendments made by this section shall take effect one year after the date of the enactment of this Act.

SA 1253. Mr. MORAN (for himself, Ms. KLOBUCHAR, and Ms. BALDWIN) submitted an amendment intended to be proposed to amendment SA 1092 proposed by Mrs. MURRAY (for herself and Ms. COLLINS) to the bill H.R. 4366, making appropriations for military construction, the Department of Veterans Affairs, and related agencies for the fiscal year ending September 30, 2024, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in division B, insert the following:

SEC. _____. (a) In addition to amounts otherwise made available, there is appropriated, out of amounts in the Treasury not otherwise appropriated, $1,000,000 to carry out section 4208 of the Agriculture Improvement Act of 2018 (7 U.S.C. 2026a).

(b) Notwithstanding any other provision of this Act, the total amount appropriated under the heading ''OFFICE OF THE SECRETARY'' under the heading ''PROCESSING, RESEARCH, AND MARKETING'' under the heading ''AGRICULTURAL PROGRAMS'' in title I is reduced by $1,000,000.

SA 1254. Mr. DURBIN submitted an amendment intended to be proposed to amendment SA 1092 proposed by Mrs. MURRAY (for herself and Ms. COLLINS) to the bill H.R. 4366, making appropriations for military construction, the Department of Veterans Affairs, and related agencies for the fiscal year ending September 30, 2024, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in title VII of division B, insert the following:

SEC. ____. (a) In addition to the annual amount of user fees authorized to be assessed and collected under section 919(c) of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 387s(c)) and made available for purposes of carrying out the Food and Drug Administration's tobacco regulation activities under chapter IX of such Act (21 U.S.C. 387 et seq.), notwithstanding section 919(c)(2)(B) of such Act (21 U.S.C. 387s(c)(2)(B)), of the amounts made available to the Food and Drug Administration under this Act, not less than $8,000,000 shall be used by the Commissioner of Food and Drugs for such tobacco regulation activities, including to enhance regulatory reviews of, and enforcement actions with respect to, electronic nicotine delivery systems.

(b) Notwithstanding any other provision of this Act, the amount rescinded pursuant to section 745 shall be $315,526,000.

SA 1255. Mr. OSSOFF (for himself, Mr. BRAUN, and Mr. TILLIS) submitted an amendment intended to be proposed to amendment SA 1092 proposed by Mrs. MURRAY (for herself and Ms. COLLINS) to the bill H.R. 4366, making appropriations for military construction, the Department of Veterans Affairs, and related agencies for the fiscal year ending September 30, 2024, and for other purposes; which was ordered to lie on the table; as follows:

On page 75, line 23, strike the period at the end and insert the following: '', of which $10,000,000 shall be made available for the Office of Women's Health of the Department of Veterans Affairs established under section 7310 of title 38, United States Code, to be used by the Secretary to expand access of women veterans to—

(1) mobile mammography initiatives;

(2) advanced mammography equipment; and

(3) outreach activities to publicize such initiatives and equipment.

SA 1256. Mr. LANKFORD submitted an amendment intended to be proposed to amendment SA 1092 proposed by Mrs. MURRAY (for herself and Ms. COLLINS) to the bill H.R. 4366, making appropriations for military construction, the Department of Veterans Affairs, and related agencies for the fiscal year ending September 30, 2024, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in title VII of division B, insert the following:

SEC. 7____. (a) The modifications approved by the Food and Drug Administration on January 3, 2023, to the risk evaluation and mitigation strategy under section 505–1 of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 355–1) for mifepristone shall have no force or effect.

(b) None of the funds made available by this Act may be used to—

(1) establish, implement, or enforce any provision of a risk evaluation and mitigation strategy under section 505–1 of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 355–1) for mifepristone that is substantially similar to any of the modifications nullified by subsection (a); or

(2) exercise discretion to not enforce any provision of a risk evaluation and mitigation strategy under such section 505–1 for mifepristone.

SA 1257. Mr. JOHNSON submitted an amendment intended to be proposed to amendment SA 1092 proposed by Mrs. MURRAY (for herself and Ms. COLLINS) to the bill H.R. 4366, making appropriations for military construction, the Department of Veterans Affairs, and related agencies for the fiscal year ending September 30, 2024, and for other purposes; which was ordered to lie on the table; as follows:

At the end, add the following:

DIVISION D—PREVENT GOVERNMENT SHUTDOWNS ACT OF 2023

SECTION 4001. SHORT TITLE.

This division may be cited as the ''Prevent Government Shutdowns Act of 2023''.

SEC. 4002. AUTOMATIC CONTINUING APPROPRIATIONS.

(a) IN GENERAL.—Subtitle I of chapter 13 of title 31, United States Code, is amended by adding at the end the following:

''§ 1311. Automatic continuing appropriations

''(a)(1)(A) On and after the first day of each fiscal year, if an appropriation Act for such fiscal year with respect to the account for a program, project, or activity has not been enacted and continuing appropriations are not in effect with respect to the program, project, or activity, there are appropriated such sums as may be necessary to continue, at the rate for operations specified in subparagraph (C), the program, project, or activity if funds were provided for the program, project, or activity during the preceding fiscal year.

''(B)(i) Appropriations and funds made available and authority granted under subparagraph (A) shall be available for a period of 14 days.

''(ii) If, at the end of the first 14-day period during which appropriations and funds are made available and authority is granted under subparagraph (A), and the end of every 14-day period thereafter, an appropriation Act for such fiscal year with respect to the account for a program, project, or activity has not been enacted and continuing appropriations are not in effect with respect to the program, project, or activity under a provision of law other than subparagraph (A), the appropriations and funds made available and authority granted under subparagraph (A) during the 14-day period shall be extended for an additional 14-day period.

''(C)(i) Except as provided in clause (ii), the rate for operations specified in this subparagraph with respect to a program, project, or activity is the rate for operations for the preceding fiscal year for the program, project, or activity—

''(I) provided in the corresponding appropriation Act for such preceding fiscal year;

''(II) if the corresponding appropriation bill for such preceding fiscal year was not enacted, provided in the law providing continuing appropriations for such preceding fiscal year; or

''(III) if the corresponding appropriation bill and a law providing continuing appropriations for such preceding fiscal year were not enacted, provided under this section for such preceding fiscal year.

''(ii) For entitlements and other mandatory payments whose budget authority was provided for the previous fiscal year in appropriations Acts, under a law other than this section providing continuing appropriations for such previous year, or under this section, and for activities under the Food and Nutrition Act of 2008, appropriations and funds made available during a fiscal year under this section shall be at the rate necessary to maintain program levels under current law, under the authority and conditions provided in the applicable appropriations Act.

''(2) Appropriations and funds made available, and authority granted, for any fiscal year pursuant to this section for a program, project, or activity shall be available, in accordance with paragraph (1)(B), for the period—

''(A) beginning on the first day of any lapse in appropriations during such fiscal year; and

''(B) ending on the date of enactment of an appropriation Act for such fiscal year with respect to the account for such program, project, or activity (whether or not such Act provides appropriations for such program, project, or activity) or a law making continuing appropriations for the program, project, or activity, as applicable.

''(3) Notwithstanding section 251(a)(1) of the Balanced Budget and Emergency Deficit Control Act of 1985 (2 U.S.C. 901(a)(1)) and the timetable in section 254(a) of such Act (2 U.S.C. 904(a)), for any fiscal year for which appropriations and funds are made available under this section, the final sequestration report for such fiscal year pursuant to section 254(f)(1) of such Act (2 U.S.C. 904(f)(1)) and any order for such fiscal year pursuant to section 254(f)(5) of such Act (2 U.S.C. 901(f)(5)) shall be issued—

''(A) for the Congressional Budget Office, 10 days after the date on which appropriation Acts providing funding for the entire Federal Government through the end of such fiscal year have been enacted; and

''(B) for the Office of Management and Budget, 15 days after the date on which appropriation Acts providing funding for the entire Federal Government through the end of such fiscal year have been enacted.

''(b) An appropriation or funds made available, or authority granted, for a program, project, or activity for any fiscal year pursuant to this section shall be subject to the terms and conditions imposed with respect to the appropriation made or funds made available for the preceding fiscal year, or authority granted for such program, project, or activity under current law.

''(c) Expenditures made for a program, project, or activity for any fiscal year pursuant to this section shall be charged to the applicable appropriation, fund, or authorization whenever an appropriation Act for such fiscal year with respect to the account for a program, project, or activity or a law making continuing appropriations until the end of such fiscal year for such program, project, or activity is enacted.

''(d) This section shall not apply to a program, project, or activity during a fiscal year if any other provision of law (other than an authorization of appropriations)—

''(1) makes an appropriation, makes funds available, or grants authority for such program, project, or activity to continue for such period; or

''(2) specifically provides that no appropriation shall be made, no funds shall be made available, or no authority shall be granted for such program, project, or activity to continue for such period.''.

(b) CLERICAL AMENDMENT.—The table of sections for subtitle I of chapter 13 of title 31, United States Code, is amended by adding at the end the following:

''1311. Automatic continuing appropriations.''.

SEC. 4003. TIMELY ENACTMENT OF APPROPRIATION ACTS.

(a) DEFINITIONS.—In this section—

(1) the term ''covered officer or employee'' means—

(A) an officer or employee of the Office of Management and Budget;

(B) a Member of Congress; or

(C) an employee of the personal office of a Member of Congress, a committee of either House of Congress, or a joint committee of Congress;

(2) the term ''covered period''—

(A) means any period of automatic continuing appropriations; and

(B) with respect to the legislative branch—

(i) does not include any period of automatic continuing appropriations that occurs during the period—

(I) beginning at the time at which general appropriations Acts providing funding for the entire Federal Government (including an appropriation Act providing continuing funding) have been enacted or passed in identical form by both Houses and transmitted to the Secretary of the Senate or Clerk of the House for enrollment and presentment to the President for his signature; and

(II) ending at the time at which 1 or more general appropriations Acts—

(aa) are vetoed by the President; or

(bb) do not become law without the President's signature under article I, section 7 of the Constitution of the United States based on an adjournment of the Congress; and

(ii) includes any period of automatic continuing appropriations that is not a period described in clause (i) and that follows a veto or a failure to become law (as described in item (bb) of clause (i)(II)) of 1 or more general appropriations Acts;

(3) the term ''Member of Congress'' has the meaning given that term in section 2106 of title 5, United States Code;

(4) the term ''National Capital Region'' has the meaning given that term in section 8702 of title 40, United States Code; and

(5) the term ''period of automatic continuing appropriations'' means a period during which automatic continuing appropriations under section 1311 of title 31, United States Code, as added by section 2 of this Act, are in effect with respect to 1 or more programs, projects, or activities.

(b) LIMITS ON TRAVEL EXPENDITURES.—

(1) LIMITS ON OFFICIAL TRAVEL.—

(A) LIMITATION.—Except as provided in subparagraph (B), no amounts may be obligated or expended for official travel by a covered officer or employee during a covered period.

(B) EXCEPTIONS.—

(i) RETURN TO DC.—If a covered officer or employee is away from the seat of Government on the date on which a covered period begins, funds may be obligated and expended for official travel for a single return trip to the seat of Government by the covered officer or employee.

(ii) TRAVEL IN NATIONAL CAPITAL REGION.—During a covered period, amounts may be obligated and expended for official travel by a covered officer or employee from one location in the National Capital Region to another location in the National Capital Region.

(iii) NATIONAL SECURITY EVENTS.—During a covered period, if a national security event that triggers a continuity of operations or continuity of Government protocol occurs, amounts may be obligated and expended for official travel by a covered officer or employee for any official travel relating to responding to the national security event or implementing the continuity of operations or continuity of Government protocol.

(2) RESTRICTION ON USE OF CAMPAIGN FUNDS.—Section 313 of the Federal Election Campaign Act of 1971 (52 U.S.C. 30114) is amended—

(A) in subsection (a)(2), by striking ''for ordinary'' and inserting ''except as provided in subsection (d), for ordinary''; and

(B) by adding at the end the following:

''(d) RESTRICTION ON USE OF CAMPAIGN FUNDS FOR OFFICIAL TRAVEL DURING AUTOMATIC CONTINUING APPROPRIATIONS.—

''(1) IN GENERAL.—Except as provided in paragraph (2), during a covered period (as defined in section 3 of the Prevent Government Shutdowns Act of 2023), a contribution or donation described in subsection (a) may not be obligated or expended for travel in connection with duties of the individual as a holder of Federal office.

''(2) RETURN TO DC.—If the individual is away from the seat of Government on the date on which a covered period (as so defined) begins, a contribution or donation described in subsection (a) may be obligated and expended for travel by the individual to return to the seat of Government.''.

(c) PROCEDURES IN THE SENATE AND HOUSE OF REPRESENTATIVES.—

(1) IN GENERAL.—During a covered period, in the Senate and the House of Representatives—

(A) it shall not be in order to move to proceed to any matter except for—

(i) a measure making appropriations for the fiscal year during which the covered period begins;

(ii) any motion required to determine the presence of or produce a quorum; or

(iii) on and after the 30th calendar day after the first day of a covered period—

(I) the nomination of an individual—

(aa) to a position at level I of the Executive Schedule under section 5312 of title 5, United States Code; or

(bb) to serve as Chief Justice of the United States or an Associate Justice of the Supreme Court of the United States; or

(II) a measure extending the period during which a program, project, or activity is authorized to be carried out (without substantive change to the program, project, or activity or any other program, project, or activity) if—

(aa) an appropriation Act with respect to the program, project, or activity for the fiscal year during which the covered period occurs has not been enacted; and

(bb) the program, project, or activity has expired since the beginning of such fiscal year or will expire during the 30-day period beginning on the date of the motion;

(B) it shall not be in order to move to recess or adjourn for a period of more than 23 hours; and

(C) at noon each day, or immediately following any constructive convening of the Senate under rule IV, paragraph 2 of the Standing Rules of the Senate, the Presiding Officer shall direct the clerk to determine whether a quorum is present.

(2) WAIVER.—

(A) LIMITATION ON PERIOD.—It shall not be in order in the Senate or the House of Representatives to move to waive any provision of paragraph (1) for a period that is longer than 7 days.

(B) SUPERMAJORITY VOTE.—A provision of paragraph (1) may only be waived or suspended upon an affirmative vote of two-thirds of the Members of the applicable House of Congress, duly chosen and sworn.

(d) MOTION TO PROCEED TO APPROPRIATIONS.—

(1) IN GENERAL.—On and after the 30th calendar day after the first day of each fiscal year, if an appropriation Act for such fiscal year with respect to a program, project, or activity has not been enacted, it shall be in order in the Senate, notwithstanding rule XXII or any pending executive measure or matter, to move to proceed to any appropriations bill or joint resolution for the program, project, or activity that has been sponsored and cosponsored by not less than 3 Senators who are members of or caucus with the party in the majority in the Senate and not less than 3 Senators who are members of or caucus with the party in the minority in the Senate.

(2) CONSIDERATION.—For a bill or joint resolution described in paragraph (1)—

(A) the bill or joint resolution may be considered the same day as it is introduced and shall not have to lie over 1 day; and

(B) the motion to proceed to the bill or joint resolution shall be debatable for not to exceed 6 hours, equally divided between the proponents and opponents of the motion, and upon the use or yielding back of time, the Senate shall vote on the motion to proceed.

SEC. 4004. BUDGETARY EFFECTS.

(a) CLASSIFICATION OF BUDGETARY EFFECTS.—The budgetary effects of this division and the amendments made by this division shall be estimated as if this division and the amendments made by this division are discretionary appropriations Acts for purposes of section 251 of the Balanced Budget and Emergency Deficit Control Act of 1985 (2 U.S.C. 900 et seq.).

(b) BASELINE.—For purposes of calculating the baseline under section 257 of the Balanced Budget and Emergency Deficit Control Act of 1985 (2 U.S.C. 907), the provision of budgetary resources under section 1311 of title 31, United States Code, as added by this division, for an account shall be considered to be a continuing appropriation in effect for

such account for less than the entire current year.

(c) ENFORCEMENT OF DISCRETIONARY SPENDING LIMITS.—For purposes of enforcing the discretionary spending limits under section 251(a) of the Balanced Budget and Emergency Deficit Control Act of 1985 (2 U.S.C. 901(a)), the budgetary resources made available under section 1311 of title 31, United States Code, as added by this division, shall be considered part-year appropriations for purposes of section 251(a)(4) of the Balanced Budget and Emergency Deficit Control Act of 1985 (2 U.S.C. 901(a)(4)).

SA 1258. Mr. MANCHIN submitted an amendment intended to be proposed to amendment SA 1092 proposed by Mrs. MURRAY (for herself and Ms. COLLINS) to the bill H.R. 4366, making appropriations for military construction, the Department of Veterans Affairs, and related agencies for the fiscal year ending September 30, 2024, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in division A, insert the following:

SEC. _____. SENSE OF CONGRESS AND REPORT ON NATIONAL ARTIFICIAL INTELLIGENCE INSTITUTE OF THE DEPARTMENT OF VETERANS AFFAIRS.

(a) SENSE OF CONGRESS.—It is the sense of Congress that Congress supports the National Artificial Intelligence Institute of the Department of Veterans Affairs in the endeavors of the Institute to research, develop, incorporate, and implement artificial intelligence where needed in the Department.

(b) REPORT REQUIRED.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Veterans Affairs shall submit to Congress a report on the mission of the Institute, the current programs of the Institute, the implementation by the Institute of artificial intelligence within the Department, and the strategy of the Institute to incorporate artificial intelligence across the Department going forward.

SA 1259. Mr. MANCHIN submitted an amendment intended to be proposed to amendment SA 1092 proposed by Mrs. MURRAY (for herself and Ms. COLLINS) to the bill H.R. 4366, making appropriations for military construction, the Department of Veterans Affairs, and related agencies for the fiscal year ending September 30, 2024, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in division B, insert the following:

SEC. ____. In determining awardees of grants under the distance learning and telemedicine program under chapter 1 of subtitle D of title XXIII of the Food, Agriculture, Conservation, and Trade Act of 1990 (7 U.S.C. 950aaa et seq.), the Secretary of Agriculture shall provide attention to the need for distance learning and telemedicine access in moderately rugged and highly rugged areas, as defined by the Road Ruggedness Scale of the Economic Research Service.

SA 1260. Mr. MANCHIN submitted an amendment intended to be proposed to amendment SA 1092 proposed by Mrs. MURRAY (for herself and Ms. COLLINS) to the bill H.R. 4366, making appropriations for military construction, the Department of Veterans Affairs, and related agencies for the fiscal year ending September 30, 2024, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in division A, insert the following:

SEC. ____. REPORT ON DEPARTMENT OF VETERANS AFFAIRS CONSULTATION WITH PHYSICIANS ON NATIONAL STANDARDS OF PRACTICE.

Not later than 180 days after the date of the enactment of this Act, the Secretary of Veterans Affairs shall submit to Congress a report on how the Department of Veterans Affairs consults with physicians to ensure that safe, high-quality national standards of practice are developed and implemented across medical centers of the Department.

SA 1261. Mr. REED (for Mr. TESTER) proposed an amendment to the resolution S. Res. 238, expressing support for recognizing September 20 as National Service Dog Day; as follows:

In the first whereas clause of the preamble, strike ''including—'' and all that follows through ''disabilities''.

In the second whereas clause of the preamble, strike '', hear'' and all that follows through ''seizure''.

Strike the fourth whereas clause of the preamble.

In the fifth whereas clause of the preamble, strike '', including'' and all that follows through ''ideation''.

In the sixth whereas clause of the preamble, strike '', located in all 50 States, Puerto Riceo, and Guam''.

SA 1262. Mr. ROMNEY submitted an amendment intended to be proposed to amendment SA 1092 proposed by Mrs. MURRAY (for herself and Ms. COLLINS) to the bill H.R. 4366, making appropriations for military construction, the Department of Veterans Affairs, and related agencies for the fiscal year ending September 30, 2024, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in title I of division C, insert the following:

SEC. _____. Not later than September 30, 2024, the Secretary of Transportation shall submit to Congress a report that compares the labor costs of transportation projects funded by the Department of Transportation (including through any grant, loan, loan guarantee, insurance, or other method) that are subject to the final rule of the Department of Labor entitled ''Updating the Davis-Bacon and Related Acts Regulations'' (88 Fed. Reg. 57526 (August 23, 2023)) with the labor costs of transportation projects funded by the Department of Transportation (including through any grant, loan, loan guarantee, insurance, or other method) in the 1-year period ending on the effective date of that rule.

SA 1263. Mr. ROMNEY submitted an amendment intended to be proposed to amendment SA 1092 proposed by Mrs. MURRAY (for herself and Ms. COLLINS) to the bill H.R. 4366, making appropriations for military construction, the Department of Veterans Affairs, and related agencies for the fiscal year ending September 30, 2024, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. _____. PROTECTING DOMESTIC SOURCES OF URANIUM.

Notwithstanding any other provision of law, no Federal funds shall be used to designate a new, or expand an existing, national monument on land that includes a uranium mill or mine that may provide a domestic source of uranium.

SA 1264. Mr. TILLIS (for himself, Mr. WELCH, Mr. SANDERS, and Ms. HASSAN) submitted an amendment intended to be proposed to amendment SA 1092 proposed by Mrs. MURRAY (for herself and Ms. COLLINS) to the bill H.R. 4366, making appropriations for military construction, the Department of Veterans Affairs, and related agencies for the fiscal year ending September 30, 2024, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in division A, insert the following:

SEC. _____. REVIEW OF VETERANS WHO ENGAGED IN TOXIC EXPOSURE RISK ACTIVITIES WHILE SERVING IN KOSOVO AND THE HEALTH EFFECTS OF SUCH TOXIC EXPOSURE RISK ACTIVITIES.

(a) REVIEW REQUIRED.—The Secretary of Veterans Affairs shall conduct a review of the following:

(1) Data regarding the mortality of covered veterans.

(2) Any data on toxic exposure experienced by covered veterans that is both relevant and available, including toxicology studies.

(3) The type of toxic exposure risk activities covered veterans engaged in while serving in the active military, naval, air, or space service in Kosovo.

(b) COVERED VETERANS.—For purposes of subsection (a), a covered veteran is a veteran who—

(1) served in the active military, naval, air, or space service in Kosovo; and

(2) as part of such service, engaged in a toxic exposure risk activity.

(c) MANNER AND SUITABILITY OF REVIEW.—The Secretary shall carry out the review required by subsection (a) in a manner such that the findings of the Secretary with respect to the review are suitable and applicable under subchapter VII of chapter 11 of title 38, United States Code.

(d) DEFINITIONS.—In this section:

(1) ACTIVE MILITARY, NAVAL, AIR, OR SPACE SERVICE.—The term ''active military, naval, air, or space service'' has the meaning given such term in section 101 of title 38, United States Code.

(2) TOXIC EXPOSURE RISK ACTIVITY.—The term ''toxic exposure risk activity'' has the meaning given such term in section 1710(e)(4) of such title.

(3) VETERAN.—The term ''veteran'' has the meaning given such term in section 101 of such title.

SA 1265. Mr. SCHATZ (for himself, Mr. SULLIVAN, and Ms. HIRONO) submitted an amendment intended to be proposed to amendment SA 1092 proposed by Mrs. MURRAY (for herself and Ms. COLLINS) to the bill H.R. 4366, making appropriations for military construction, the Department of Veterans Affairs, and related agencies for the fiscal year ending September 30, 2024, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in title IV of division C, insert the following:

SEC. ___.

Notwithstanding any other provision of law, the Administrator of the Federal Emergency Management Agency may adjust the limit established under section 408(h)(1) of the Robert T. Stafford Disaster Relief and

Emergency Assistance Act (42 U.S.C. 5174(h)(1)) with respect to a major disaster declared under section 401 of that Act (42 U.S.C. 5170) outside the continental United States after August 1, 2023, based on appropriate economic indicators demonstrating high local repair and construction costs. *Provided*, that such amounts are designated by Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985 (2 U.S.C. 951(b)(2)(A)(i)).

SA 1266. Mr. SCHMITT submitted an amendment intended to be proposed to amendment SA 1092 proposed by Mrs. MURRAY (for herself and Ms. COLLINS) to the bill H.R. 4366, making appropriations for military construction, the Department of Veterans Affairs, and related agencies for the fiscal year ending September 30, 2024, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in division A, insert the following:

SEC. ___. AMOUNTS FOR ROSECRANS AIR NATIONAL GUARD BASE, MISSOURI.

The is appropriated, out of any funds in the Treasury not otherwise appropriated, $2,000,000 to carry out a project at Rosecrans Air National Guard Base, Missouri, relating to 139th airlift wing entry control point planning and design.

SA 1267. Mr. SCHMITT submitted an amendment intended to be proposed to amendment SA 1092 proposed by Mrs. MURRAY (for herself and Ms. COLLINS) to the bill H.R. 4366, making appropriations for military construction, the Department of Veterans Affairs, and related agencies for the fiscal year ending September 30, 2024, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in division A, insert the following:

SEC. ___. AMOUNTS FOR ROSECRANS AIR NATIONAL GUARD BASE, MISSOURI.

The is appropriated, out of any funds in the Treasury not otherwise appropriated, $2,000,000 to carry out a project at Rosecrans Air National Guard Base, Missouri, relating to entry control point planning and design.

SA 1268. Mr. WELCH (for himself, Mr. TILLIS, Mr. SANDERS, and Ms. HASSAN) submitted an amendment intended to be proposed to amendment SA 1092 proposed by Mrs. MURRAY (for herself and Ms. COLLINS) to the bill H.R. 4366, making appropriations for military construction, the Department of Veterans Affairs, and related agencies for the fiscal year ending September 30, 2024, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in division A, insert the following:

SEC. _____. REVIEW OF VETERANS WHO ENGAGED IN TOXIC EXPOSURE RISK ACTIVITIES WHILE SERVING IN KOSOVO AND THE HEALTH EFFECTS OF SUCH TOXIC EXPOSURE RISK ACTIVITIES.

(a) REVIEW REQUIRED.—The Secretary of Veterans Affairs shall conduct a review of the following:

(1) Data regarding the mortality of covered veterans.

(2) Any data on toxic exposure experienced by covered veterans that is both relevant and available, including toxicology studies.

(3) The type of toxic exposure risk activities covered veterans engaged in while serving in the active military, naval, air, or space service in Kosovo.

(b) COVERED VETERANS.—For purposes of subsection (a), a covered veteran is a veteran who—

(1) served in the active military, naval, air, or space service in Kosovo; and

(2) as part of such service, engaged in a toxic exposure risk activity.

(c) MANNER AND SUITABILITY OF REVIEW.—The Secretary shall carry out the review required by subsection (a) in a manner such that the findings of the Secretary with respect to the review are suitable and applicable under subchapter VII of chapter 11 of title 38, United States Code.

(d) DEFINITIONS.—In this section:

(1) ACTIVE MILITARY, NAVAL, AIR, OR SPACE SERVICE.—The term ''active military, naval, air, or space service'' has the meaning given such term in section 101 of title 38, United States Code.

(2) TOXIC EXPOSURE RISK ACTIVITY.—The term ''toxic exposure risk activity'' has the meaning given such term in section 1710(e)(4) of such title.

(3) VETERAN.—The term ''veteran'' has the meaning given such term in section 101 of such title.

NOTICE OF INTENT TO SUSPEND THE RULES

Mr. LEE. Madam President, I submit the following notice in writing: In accordance with Rule V of the Standing Rules of the Senate, I hereby give notice in writing that it is my intention to move to suspend Rule XVI and Rule XXII, including germaneness requirements and dilatory provisions, to offer the following amendments, either as floor amendments, or as motions to recommit with instructions: Vance No. 1210, Lee No. 1121, Cruz No. 1176, Rubio No. 1159, Rubio No. 1237, Hawley No. 1200, Marshall No. 1161, Braun No. 1182, Paul No. 1226, Paul No. 1217. Scott of Florida S. 2721, as amended with a Scott of Florida–Rubio substitute amendment.

AUTHORITY FOR COMMITTEES TO MEET

Mr. WHITEHOUSE. Madam President, I have four requests for committees to meet during today's session of the Senate. They have the approval of the Majority and Minority Leaders.

Pursuant to rule XXVI, paragraph 5(a), of the Standing Rules of the Senate, the following committees are authorized to meet during today's session of the Senate:

COMMITTEE ON THE JUDICIARY

The Committee on the Judiciary is authorized to meet during the session of the Senate on Tuesday, September 19, 2023, at 10 a.m., to conduct a hearing.

SELECT COMMITTEE ON INTELLIGENCE

The Select Committee on Intelligence is authorized to meet during the session of the Senate on Tuesday, September 19, 2023, at 2:30 p.m., to conduct an open hearing.

SUBCOMMITTEE ON EMERGING THREATS AND SPENDING OVERSIGHT

The Subcommittee on Emerging Threats and Spending Oversight of the Committee on Homeland Security and Governmental Affairs is authorized to meet during the session of the Senate on Tuesday, September 19, 2023, at 2:30 p.m., to conduct a hearing.

SUBCOMMITTEE ON HEALTH CARE

The Subcommittee on Health Care of the Committee on Finance is authorized to meet during the session of the Senate on Tuesday, September 19, 2023, at 10 a.m., to conduct a hearing.

EXPRESSING SUPPORT FOR RECOGNIZING SEPTEMBER 20 AS NATIONAL SERVICE DOG DAY

Mr. REED. Mr. President, I ask unanimous consent that the Committee on Health, Education, Labor, and Pensions be discharged from further consideration and the Senate now proceed to S. Res. 238.

The PRESIDING OFFICER. The clerk will report the resolution by title.

The legislative clerk read as follows:

A resolution (S. Res. 238) expressing support for recognizing September 20 as National Service Dog Day.

There being no objection, the committee was discharged, and the Senate proceeded to consider the resolution.

Mr. REED. Mr. President, I ask unanimous consent that the resolution be agreed to; that the Tester amendment at the desk to the preamble be considered and agreed to; that the preamble, as amended, be agreed to; and that the motions to reconsider be considered made and laid upon the table.

The PRESIDING OFFICER. Without objection, it is so ordered.

The resolution (S. Res. 238) was agreed to.

The amendment (No. 1261) to the preamble was considered and agreed to as follows:

(Purpose: To amend the preamble)

In the first whereas clause of the preamble, strike ''including—'' and all that follows through ''disabilities''.

In the second whereas clause of the preamble, strike '', hear'' and all that follows through ''seizure''.

Strike the fourth whereas clause of the preamble.

In the fifth whereas clause of the preamble, strike '', including'' and all that follows through ''ideation''.

In the sixth whereas clause of the preamble, strike '', located in all 50 States, Puerto Riceo, and Guam''.

The preamble, as amended, was agreed to.

The resolution with its preamble, as amended, reads as follows:

S. RES. 238

Whereas service dogs assist individuals with a wide range of challenges,

Whereas service dogs are able to support veterans struggling after war;

Whereas service dogs have assisted individuals in the United States since 1929;

Whereas evidence-based research has shown that service dogs provide numerous health and fitness benefits;

Whereas tens of thousands of service dogs are estimated to be working in the United States today; and

Whereas National Service Dog Day is an appropriate tribute to service dogs and the organizations that offer service dogs free of charge to United States veterans and individuals with disabilities: Now, therefore, be it

Resolved, That the Senate—

(1) supports recognizing September 20 as National Service Dog Day;

(2) encourages all individuals in the United States to learn about the history of service dogs and the unique, positive impact service dogs have on individuals with disabilities; and

(3) requests that the President issue a proclamation calling on the people of the United States to conduct appropriate ceremonies, activities, and programs to demonstrate support for organizations that train and pair service dogs with disabled individuals in the United States.

NATIONAL LOBSTER DAY

Mr. REED. Mr. President, I ask unanimous consent that the Senate proceed to the consideration of S. Res. 351, submitted earlier today.

The PRESIDING OFFICER. The clerk will report the resolution by title.

The legislative clerk read as follows:

A resolution (S. Res. 351) designating September 25, 2023, as ''National Lobster Day''.

There being no objection, the Senate proceeded to consider the resolution.

Mr. REED. I ask unanimous consent that the resolution be agreed to; that the preamble be agreed to; and that the motions to reconsider be considered made and laid upon the table with no intervening action or debate.

The PRESIDING OFFICER. Without objection, it is so ordered.

The resolution (S. Res. 351) was agreed to.

The preamble was agreed to.

(The resolution, with its preamble, is printed in today's RECORD under ''Submitted Resolutions.'')

NATIONAL CHILDHOOD CANCER AWARENESS MONTH

Mr. REED. Mr. President, I ask unanimous consent that the Senate proceed to the consideration of S. Res. 352, submitted earlier today.

The PRESIDING OFFICER. The clerk will report the resolution by title.

The legislative clerk read as follows:

A resolution (S. Res. 352) designating September 2023 as ''National Childhood Cancer Awareness Month''.

There being no objection, the Senate proceeded to consider the resolution.

Mr. REED. Mr. President, I ask unanimous consent that the resolution be agreed to; that the preamble be agreed to; and that the motions to reconsider be considered made and laid upon the table with no intervening action or debate.

The PRESIDING OFFICER. Without objection, it is so ordered.

The resolution (S. Res. 352) was agreed to.

The preamble was agreed to.

(The resolution, with its preamble, is printed in today's RECORD under ''Submitted Resolutions.'')

ORDERS FOR WEDNESDAY, SEPTEMBER 20, 2023

Mr. REED. Mr. President, I ask unanimous consent that when the Senate completes its business today, it stand adjourned until 10 a.m. on Wednesday, September 20; that following the prayer and pledge, the Journal of proceedings be approved to date, the morning hour be deemed expired, the time for the two leaders be reserved for their use later in the day, and morning business be closed; that upon the conclusion of morning business, the Senate resume consideration of H.R. 4366; that the cloture motion with respect to the motion to suspend rule XVI ripen at 12:15 p.m.; further, that the Senate recess from 5 p.m. until 6:15 p.m. to allow for the all-Senators briefing.

The PRESIDING OFFICER. Without objection, it is so ordered.

ADJOURNMENT UNTIL 10 A.M. TOMORROW

Mr. REED. Mr. President, if there is no further business to come before the Senate, I ask that it stand adjourned under the previous order.

There being no objection, the Senate, at 7:52 p.m., adjourned until Wednesday, September 20, 2023, at 10 a.m.

NOMINATIONS

Executive nominations received by the Senate:

FEDERAL DEPOSIT INSURANCE CORPORATION

JENNIFER L. FAIN, OF VIRGINIA, TO BE INSPECTOR GENERAL, FEDERAL DEPOSIT INSURANCE CORPORATION, VICE JAY NEAL LERNER, RESIGNED.

MILLENNIUM CHALLENGE CORPORATION

STUART ALAN LEVEY, OF MARYLAND, TO BE A MEMBER OF THE BOARD OF DIRECTORS OF THE MILLENNIUM CHALLENGE CORPORATION FOR A TERM OF THREE YEARS, VICE MICHAEL O. JOHANNS, TERM EXPIRED.

JAMES MADISON MEMORIAL FELLOWSHIP FOUNDATION

CHRISTOPHER H. SCHROEDER, OF NORTH CAROLINA, TO BE A MEMBER OF THE BOARD OF TRUSTEES OF THE JAMES MADISON MEMORIAL FELLOWSHIP FOUNDATION FOR A TERM EXPIRING OCTOBER 3, 2024, VICE HARVEY M. TETTLEBAUM, TERM EXPIRED.

CHRISTOPHER H. SCHROEDER, OF NORTH CAROLINA, TO BE A MEMBER OF THE BOARD OF TRUSTEES OF THE JAMES MADISON MEMORIAL FELLOWSHIP FOUNDATION FOR A TERM EXPIRING OCTOBER 3, 2030. (REAPPOINTMENT)

NATIONAL FOUNDATION ON THE ARTS AND THE HUMANITIES

DARYLE WILLIAMS, OF CALIFORNIA, TO BE A MEMBER OF THE NATIONAL COUNCIL ON THE HUMANITIES FOR A TERM EXPIRING JANUARY 26, 2024, SHELLY COLLEEN LOWE, TERM EXPIRED.

IN THE AIR FORCE

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES AIR FORCE UNDER TITLE 10, U.S.C., SECTION 624:

To be colonel

MELISSA L. HULL

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES AIR FORCE UNDER TITLE 10, U.S.C., SECTION 624:

To be lieutenant colonel

ALICIA C. PALLETT

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES AIR FORCE UNDER TITLE 10, U.S.C., SECTION 624:

To be lieutenant colonel

JULIE A. GRIFFITH

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES AIR FORCE UNDER TITLE 10, U.S.C., SECTION 624:

To be major

JOSHUA N. YOUNG

IN THE ARMY

THE FOLLOWING NAMED ARMY NATIONAL GUARD OF THE UNITED STATES OFFICERS FOR APPOINTMENT TO THE GRADE INDICATED IN THE RESERVE OF THE ARMY UNDER TITLE 10, U.S.C., SECTIONS 12203 AND 12211:

To be colonel

AMANDA R. CAMPEAU
ANDREW T. ERICKSON
AUDREY L. FIELDING
JASON H. GRACIDA
ANTHONY J. MORTRUD
CHARLES V. SLIDER

THE FOLLOWING NAMED ARMY NATIONAL GUARD OF THE UNITED STATES OFFICERS FOR APPOINTMENT TO THE GRADE INDICATED IN THE RESERVE OF THE ARMY UNDER TITLE 10, U.S.C., SECTIONS 12203 AND 12211:

To be colonel

BRIAN J. ALLEN
HERBERT L. BREARD IV
CRAIG A. BROYLES
DAVID P. COUGHRAN
CASEY L. DEGROOF
RODNEY C. EDENFIELD
MARSHALL J. HUNT
JESSE C. JOHNSON
JOHN P. MIRE, JR.
STEVEN R. OVERBY
ERICK H. TERRY
NICOLE A. WASHINGTON
DAVID A. WORTHY

THE FOLLOWING NAMED OFFICERS FOR TEMPORARY APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES ARMY JUDGE ADVOCATE GENERAL'S CORPS UNDER TITLE 10, U.S.C., SECTIONS 605 AND 7064:

To be colonel

KRISTA L. BARTOLOMUCCI
TRAVIS W. ELMS
STEPHEN M. HERNANDEZ
BRENDAN J. MAYER

THE FOLLOWING NAMED ARMY OFFICER FOR APPOINTMENT IN THE GRADE INDICATED IN THE REGULAR ARMY UNDER TITLE 10, U.S.C., SECTION 531:

To be major

DAVID A. BOUDREAUX, JR.

THE FOLLOWING NAMED ARMY NATIONAL GUARD OFFICER FOR APPOINTMENT TO THE GRADE INDICATED IN THE RESERVE OF THE ARMY UNDER TITLE 10, U.S.C., SECTIONS 12203 AND 12211:

To be colonel

ARTHUR A. BLAIN IV

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT TO THE GRADE INDICATED IN THE RESERVE OF THE ARMY UNDER TITLE 10, U.S.C., SECTION 12203:

To be colonel

JAMES A. FAVUZZI

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT TO THE GRADE INDICATED IN THE RESERVE OF THE ARMY UNDER TITLE 10, U.S.C., SECTION 12203:

To be colonel

BRYAN A. SHIPMAN

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT TO THE GRADE INDICATED IN THE RESERVE OF THE ARMY UNDER TITLE 10, U.S.C., SECTION 12203:

To be colonel

PETER D. HELZER

THE FOLLOWING NAMED ARMY NATIONAL GUARD OF THE UNITED STATES OFFICERS FOR APPOINTMENT TO THE GRADE INDICATED IN THE RESERVE OF THE ARMY UNDER TITLE 10, U.S.C., SECTIONS 12203 AND 12211:

To be colonel

STEPHEN L. BOSSIER
JEFFREY A. COUILLARD
CHRISTOPHER A. DAY
CHRISTOPHER M. MELVIN
ZEBULAN V. MURRAY
STEPHEN M. WARREN

CONFIRMATIONS

Executive nominations confirmed by the Senate September 19, 2023:

THE JUDICIARY

RITA F. LIN, OF CALIFORNIA, TO BE UNITED STATES DISTRICT JUDGE FOR THE NORTHERN DISTRICT OF CALIFORNIA.

VERNON D. OLIVER, OF CONNECTICUT, TO BE UNITED STATES DISTRICT JUDGE FOR THE DISTRICT OF CONNECTICUT.

EXTENSIONS OF REMARKS

HONORING GARY KROESCHEN FOR RETIRING AS CHAIR OF THE MARSHALL COUNTY BOARD

HON. DARIN LaHOOD

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, September 19, 2023

Mr. LaHOOD. Mr. Speaker, I would like to honor and congratulate Gary Kroeschen on his retirement as Marshall County Board Chairman.

Gary has dedicated much of his career to serving the people of Marshall County. Throughout his incredible career. Gary served on the Marshall County Board, Bennington Township Board, and Toluca Park District Board. Serving on the Bennington Township Board and the Toluca Park District Board for nearly 20 years, Gary also served on the Marshall County Board for 16 years and 11 of those as Chairman. He retired from this role on September 14, 2023, marking the end of his exceptional tenure serving the Marshall County area.

Like his work serving the people of Marshall County. Gary was a small business owner of Kroeschen Plumbing and Heating Inc in Toluca, Illinois. Gary exemplifies the values of public service and hard work.

I want to express the utmost gratitude to Gary. I am certain that my fellow Illinoisans feel the same pride and respect towards him that I do. He has undoubtedly improved the lives of Marshall County residents and Central Illinoisans more broadly. Most importantly, Gary accomplished all this while being a loving husband, father, and family man. I congratulate Gary, and wish him happiness and relaxation in retirement.

HONORING THE VALIANT MILITARY SERVICE OF ELECTRICIAN'S MATE 3RD CLASS ALAN DANCULOVICH

HON. DIANA HARSHBARGER

OF TENNESSEE

IN THE HOUSE OF REPRESENTATIVES

Tuesday, September 19, 2023

Mrs. HARSHBARGER. Mr. Speaker, I rise today to honor Electrician's Mate 3rd Class Richard Alan Danculovich of Jefferson City for his valiant military service during the Vietnam War. Following in his WWII veteran father's footsteps, EM3 Danculovich's dedicated service in the United States Navy began on November 29, 1965, at the RTC Great Lakes for Bootcamp and later EM–A School for electrician training.

Upon completion of his naval training, EM3 Danculovich served aboard the U.S.S. *Piedmont* (AD–17), ported out of San Diego, where he was assigned to the Electrical Repair Division. The U.S.S. *Piedmont* (AD–17) was a *Dixie*-class destroyer tender that served and maintained all ships engaged in combat operations during naval battles. While aboard the U.S.S. *Piedmont*, EM3 Danculovich conducted electrical repairs on ships in the Western Pacific region, including Pearl Harbor, the Subic Bay in the Philippines and Kaohsiung, Taiwan; and many of these ships previously spent months in service off the coast of Vietnam.

After 3 years of distinguished military service, he was discharged from Active Duty in November of 1968. He is proud to share that his grandson continues the family tradition of military service in support of our country.

Please join me in celebrating Electrician's Mate 3rd Class Alan Danculovich for his distinguished military service to the United States of America.

RECOGNIZING TIMOTHY D. ARMOUR FOR WORKING TO IMPROVE PEOPLE'S LIVES THROUGH SUCCESSFUL INVESTING

HON. BRAD SHERMAN

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, September 19, 2023

Mr. SHERMAN. Mr. Speaker, I rise today to speak about Capital Group and one of its retiring leaders, Mr. Timothy D. Armour. Capital Group is not only headquartered, but was also founded more than 90 years ago, in my hometown of Los Angeles. Today, I want to recognize Tim for his contributions to the field of asset management and his dedication to the tens of millions of investors in the United States and around the world who have entrusted Capital Group to safeguard and grow their savings.

At the end of this year, Tim will retire from Capital Group, a firm he joined over 40 years ago at its Los Angeles headquarters. After graduating from the firm's early-career rotational program, he served as an investment research analyst covering telecommunications and U.S. service companies and later as a portfolio manager in several of the American Funds. He distinguished himself throughout his career as a savvy investor able to identify companies that deliver long-term value for their shareholders.

Tim also served in various leadership roles, including as Chairman of Capital Group's Management Committee and Board of Directors over the past 8 years. Under his leadership, the 92-year old firm expanded its reach to global investors while evolving to meet the demands of a changing world and provide for future success for the benefit of Capital Group's clients, associates and the communities where those associates live and work.

Tim has been regarded by his colleagues and peers within the financial services industry as the embodiment of Capital Group's core values. His personal integrity, long-term focus and commitment to clients have set the tone for the current generation of the firm's associates and created a legacy that the next generation can follow.

In anticipation of his retirement at the end of this year, associates of Capital Group were asked to characterize Tim's leadership with just a single word. The words most often repeated included kind, trusted, candid, inclusive, present, and caring. One close colleague added, ''It is rare to find a leader who cares so genuinely and openly about his colleagues and clients.'' I am proud to celebrate the career accomplishment of Tim Armour and wish him all the very best in life's next chapter.

PERSONAL EXPLANATION

HON. COLIN Z. ALLRED

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, September 19, 2023

Mr. ALLRED. Mr. Speaker, on September 14, 2023, I was absent during the time of votes due to illness. Had I been present, I would have voted: NAY on Roll Call No. 388, H. Res. 681, On Ordering the Previous Question, NAY on Roll Call No. 389, H. Res. 681, On Agreeing to the Resolution, YEA on Roll Call No. 390, H.R. 1435, On Motion to Recommit, and NAY on Roll Call No. 391, H.R. 1435, Preserving Choice in Vehicle Purchases Act.

RECOGNIZING PASTOR CHUCK HORNER

HON. ERIC SWALWELL

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, September 19, 2023

Mr. SWALWELL. Mr. Speaker, I rise to recognize Pastor Chuck Horner of Calvary Baptist Church in Hayward for his service to the community for over 30 years.

Chuck graduated from Woodlawn High School in 1969, then enlisting in the United States Navy serving as an Anti-Submarine Warfare Operator from 1970 to 1974 in Coronado, California.

Upon discharge, Chuck enrolled at the California Baptist University, earning a Bachelor of Arts in Religion and Behavioral Science in 1978. He later returned to school to earn a Master of Divinity in Theology from Golden Gate Baptist Theological Seminary.

In October 1990, Chuck moved to Hayward from Dixon, California, to become the Senior Pastor of Calvary Baptist Church. Through his role, he profoundly contributed to the faith community within Hayward and the East Bay at large. In fact, I fondly remember walking with Chuck through Hayward to deliver prepared Thanksgiving meals to the homeless, something he loved doing every year.

Chuck is heavily involved in community service programs. As Chair of the Clean & Green Task Force, Chuck worked to improve

the city of Hayward by reducing graffiti vandalism. When graffiti taggers were caught, Chuck offered to mentor and help them change course to prevent property vandalism. Chuck also founded HayWallKru in 2010, empowering graffiti taggers to become artists through abatement, education, and additional development opportunities.

Chuck served in the community through his various roles in other community service organizations, such as director of the Hayward Coalition for Healthy Youth, the Ashland Cherryland Health Community Coalition, the Hayward Rotary Club, the Salvation Army Meal Project Coordinator, Vice President of the Hayward Education Foundation, and an Ambassador for the Hayward Chamber of Commerce.

Chuck has been a beloved member of the Hayward community for over 30 years, and known as the big guy with a booming voice, and a personality to match. Chuck has battled prostate cancer for ten years while remaining involved in various outreach roles and has recently started hospice care.

I join the Hayward community in recognizing the contributions of Pastor Chuck and send my sincerest well wishes to Linda, his wife of over 50 years, and their two children, Christal and Aaron.

HONORING THE 30TH ANNIVERSARY OF THE JOHNNY APPLESEED ARTS AND CULTURAL FESTIVAL IN LEOMINSTER, MASSACHUSETTS

HON. JAMES P. McGOVERN

OF MASSACHUSETTS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, September 19, 2023

Mr. MCGOVERN. Mr. Speaker, I rise today to celebrate the 30th anniversary of the Johnny Appleseed Arts and Cultural Festival in Leominster, Massachusetts on Saturday, September 23, 2023.

While many have heard the tales of Johnny Appleseed—the American folk hero who wandered our early Nation planting apple seeds—not many know the man behind the story.

John Chapman was born in Leominster, Massachusetts in 1774. From a young age, his father taught him to cultivate trees. That's where his story starts.

Back then, frontier law allowed anyone to earn a claim to the land by developing a permanent homestead on it. Chapman established his homesteads by planting apple orchards, just like his father. He ventured more than 100,000 square miles from Massachusetts to Illinois, all the while planting apple seeds in his wake. At the time of his death in 1845, John Chapman owned over 1,200 acres of land, leaving behind hundreds of apple trees.

Every year since 1993, thousands of people have gathered in Leominster to celebrate the life and work of John Chapman. Through live music and apple crisp, the festival aims to honor Chapman's legacy of abundance, bravery, and cultivation.

Mr. Speaker, this year is special. Under the dedication and expertise of Festival Coordinator Rick Marchand, the event has blossomed year after year. This year, the festival will provide 1,000 complimentary meals to children and their families, accommodate 230 local vendors, and welcome several dozens of organizations and artists to interface with their community. The Johnny Appleseed Arts and Cultural Festival is a chance to celebrate our rich land across generations.

Mr. Speaker, Johnny Appleseed is a treasured National figure that we in Central Massachusetts are proud to share. I commend the Johnny Appleseed Festival on its 30th anniversary and am proud of the staff, volunteers, and community members that work to make this such a beloved annual event. We look forward to welcoming tens of thousands of neighbors to this beloved festival.

PERSONAL EXPLANATION

HON. JOSEPH D. MORELLE

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, September 19, 2023

Mr. MORELLE. Mr. Speaker, I regrettably missed Roll Call No. 393 on September 18, 2023.

Had I been present, I would have voted AYE.

REMEMBERING FRANK BARRIOS

HON. RUBEN GALLEGO

OF ARIZONA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, September 19, 2023

Mr. GALLEGO. Mr. Speaker, I rise today to celebrate the life and mourn the loss of Frank Barrios, a third generation Arizonan and proud Mexican American who dedicated over 50 years of service to the people of Arizona. I want to express my gratitude for Frank's remarkable service to the 3rd Congressional District, to our community, and to all of Arizona.

Frank spent his career in hydrology, utilizing his engineering degree to ensure the sustainability of Arizona's water supply. Without these efforts, Arizona's growth and success over the past decades would not have been possible. He began his career with the U.S. Bureau of Reclamation. From there, he transitioned to the Arizona Water Commission, later called the Arizona Department of Water Resources, serving as a director for both the Pinal and Phoenix Active Management Areas. After retiring from Colorado River Planning in 1998, Frank was appointed to the Central Arizona Water Conservation District Board of Directors, where he served for 3 years.

But Frank's impact and his legacy go far beyond his career. Frank served as President of 7 boards, won numerous awards and accolades, and published several books. He was passionate about preserving the history of Mexican Americans in the Valley, fighting to restore a historically Latino burial ground in downtown Phoenix and archiving photographs and stories. Thanks to his work, the contributions of Latinos to Arizona history will not be erased.

My thoughts are with Frank's family and friends during this difficult time. Although he will be greatly missed, his legacy will be carried on through the countless lives he touched in his decades of service to the people of Arizona.

HONORING THE HEROIC SERVICE OF OPERATIONS SPECIALIST 5TH CLASS DONALD WOLF

HON. DIANA HARSHBARGER

OF TENNESSEE

IN THE HOUSE OF REPRESENTATIVES

Tuesday, September 19, 2023

Mrs. HARSHBARGER. Mr. Speaker, I rise today to honor Operations Specialist 5th Class Donald Wolf of Morristown for his courageous military service in the United States Army. Specialist Wolf joined the Army in 1968, and trained for the Quartermaster Corps after attending basic training at Ft. Campbell in Kentucky.

In 1969, SPC Wolf deployed to Vietnam, where he served as a clerk in Headquarters Company 266 Supply and Service Battalion. During his tour of duty, he earned the Bronze Star for Meritorious Service in a Combat Zone. Ultimately, he was honorably discharged from the Army following 2 valiant years of service.

Please join me in thanking Operations Specialist 5th Class Donald Wolf for his bravery and heroic military service to our great Nation.

RECOGNIZING THE 20TH ANNIVERSARY OF THE PRISON RAPE ELIMINATION ACT

HON. ROBERT C. "BOBBY" SCOTT

OF VIRGINIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, September 19, 2023

Mr. SCOTT of Virginia. Mr. Speaker, I rise today to acknowledge that 20 years ago, on September 4, 2003, President George W. Bush signed the Prison Rape Elimination Act, or PREA, into law. This law recognized the difficult truth of rampant and completely unacceptable sexual abuse of people in our jails, prisons, and juvenile detention facilities, and endeavored to address it. PREA sought to end these abuses by creating research mandates, promulgating National standards, and providing grant funding to meet those standards.

Ending prisoner rape remains one of the increasingly rare topics on which people on both sides of the aisle can continue to agree. I joined forces with my Virginia colleague, Congressman Frank Wolf, to sponsor the bill in this chamber, and Senators Ted Kennedy and Jeff Sessions sponsored PREA in the Senate. PREA passed with unanimous support in both the House and Senate. Fighting against institutional abuse and protecting those who cannot advocate for themselves should never be a partisan issue, and I have been gratified by the coalition of support PREA has inspired over the years.

Since PREA's passage, we've seen dramatic improvements in how adults and children in detention are treated. Thousands of corrections professionals have been hired and trained to ensure the safety of people in their custody through the implementation of PREA's National standards. The U.S. Department of Justice is now required to gather data on sexual abuse in custody that provides corrections facilities, advocates and policymakers with invaluable information on the dynamics of sexual abuse in detention, and how it can be stopped.

Hundreds of thousands of incarcerated people are educated every year about their right

to be safe and respected, and how to speak out if they are not. Incarcerated people, their families, and advocates now have more effective methods of reporting sexual abuse, as evidenced by the dramatic increase in the number of reports we have seen since PREA's enactment. This is a clear sign that incarcerated survivors understand that people care about their experiences, that they have mechanisms to advocate for themselves, and that their voices should no longer go unheard. Through these efforts and sustained support for survivors, the stigma of reporting abuse has been steadily eroding since PREA's passage.

I also want to acknowledge the broad-based coalition of advocates and civil rights groups that fought to pass PREA, encourage corrections facilities to implement PREA's National standards, and continue to ensure that the law lives up to its intended purpose and promise. Specifically, people who have endured this abuse have been on the front lines of the effort to make our prisons and jails places where people are free of sexual abuse. Just Detention International's Survivor Council deserves special mention. These courageous survivors have fought tirelessly to ensure that no one ever has to face abuse and to instill in all of us the principle that no matter what crime a person has committed, rape is not part of the penalty.

The work we set out to do with PREA is by no means over. Rape in prisons is still far too common. And young people, LGBTQ+ individuals, immigrants, and people who come from communities of color are more affected by this crisis than others. The recent cases of staff sexual abuse in California at the Federal Correctional Institution Dublin (FCI–Dublin) at the highest levels expose and illustrate the impunity with which many staff perpetrators still operate. Making things worse, the dozens of women at FCI–Dublin who were abused could not initially get support services. This highlights a larger problem of a lack of resources for community service providers.

Prisons, jails, and youth detention facilities nationwide must commit to implementing the National Prison Rape Elimination Act standards. This doesn't mean merely changing policies as they're written on paper. It means meaningfully adopting those policies and shifting the culture on the ground in detention facilities. This encompasses everything from safer reporting procedures for survivors to stronger investigations after an assault occurs. We must empower staff to identify signs that incarcerated people are being abused, and to identify red flags in staff behavior that could result in abuse. We must also have more confidential emotional support services in prisons, especially from community providers, so that survivors can get the help they deserve. And finally, we must end the culture of impunity and the code of silence among staff which allows abuse to flourish. As I have before, I call on the Department of Justice to work vigorously to ensure that every state implements PREA to protect all inmates from sexual violence.

Mr. Speaker, on the 20th anniversary of its enactment, let us take this moment to recognize the ways that PREA marked an important shift in how we, as a country, deal with this violence. Sexual abuse in detention may not be a secret epidemic anymore, but it is incumbent upon us to actualize the goal set out in this historic law and end this crisis, once and for all. Let me say again: rape is not part of the penalty.

COMMEMORATING THE 150TH ANNIVERSARY OF THE VILLAGE OF CAPRON, ILLINOIS

HON. DARIN LaHOOD

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, September 19, 2023

Mr. LAHOOD. Mr. Speaker, I would like to recognize the Village of Capron, Illinois, for celebrating their 150th anniversary.

On December 3, 1873, the Village of Capron was established in Boone County, Illinois. The Village of Capron was named after Colonel Capron who purchased the land from Nancy Scott and Nathan H. Wooster served as the village's first president. Today, the village serves as the third largest municipality in Boone County with a population of 1,400 residents.

The village celebrated significant achievements throughout its history, such as the drilling of its first municipal well in 1881, the building of its original water tower in 1900, and electricity coming to the village in 1911. We are grateful for Capron's commitment and investment in agriculture and business development in northern Illinois.

The Village of Capron is known throughout northern Illinois for the services that it has provided for the community over the last 150 years. Today, we celebrate the village and their residents for their dedication to their community. I extend my sincere congratulations to the Village of Capron, Illinois for a successful 150 years, and I wish them even more success going forward.

CELEBRATING THE 100TH ANNIVERSARY OF THE MU LAMBDA CHAPTER OF ALPHA PHI ALPHA FRATERNITY

HON. ELEANOR HOLMES NORTON

OF THE DISTRICT OF COLUMBIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, September 19, 2023

Ms. NORTON. Mr. Speaker, I rise to recognize and honor the 100th anniversary of the chartering of the Mu Lambda Chapter of Alpha Phi Alpha Fraternity, the eleventh alumni chapter of the first intercollegiate Greek-letter fraternity established for African Americans.

The Alpha Phi Alpha Fraternity was founded on December 4, 1906, by 7 young African American men, known as the Seven Jewels, at Cornell University in Ithaca, New York. The founders of the fraternity—Henry Arthur Callis, Charles Henry Chapman, Eugene Kinckle Jones, George Biddle Kelley, Nathaniel Allison Murray, Robert Harold Ogle and Vertner Woodson Tandy—recognized the need for a strong bond of brotherhood among African Africans.

The Alpha Phi Alpha Fraternity is the largest predominantly African American intercollegiate fraternity and 1 of the 10 largest intercollegiate fraternities in the Nation, with more than 850 chapters around the world. The fraternity is led by General President Dr. Willis L. Lonzer, III, Interim Executive Director Sean L. McCaskill, Comptroller Donald E. Jackson and General Treasurer Densel Fleming. Its Eastern Region and Mid-Atlantic Association of Alpha Chapters are led by Regional Vice President East Christopher G. Ellis, Jr., Regional Assistant Vice President East Tamir D. Harper, District VI Director Ray Hawkins, Jr., Assistant District VI Director Noah Absalon, and Area Director Michael Taylor.

The Mu Lambda Chapter of Alpha Phi Alpha Fraternity was established as the first alumni chapter in the District of Columbia on October 1, 1923, in response to the desire of graduate members, many of whom were initiated into the Beta Chapter at Howard University, to give aid to the undergraduate members and continue the work of the fraternity after graduation.

The Mu Lambda Chapter of Alpha Phi Alpha Fraternity established the Mu Lambda Foundation in 1994 expressly to provide community service to residents of the District of Columbia and to inspire and assist today's youth in their quest to make their mark on society. For 100 years, the Mu Lambda Chapter has played a role in the positive development of the character and education of men. Six members of the Mu Lambda Chapter have served as the General President of the Alpha Phi Alpha Fraternity, Inc. and two have served as the Eastern Region Vice President. Members of the Mu Lambda Chapter are leaders in the areas of government, business, entertainment, philanthropy, law, non-profit, science, sports, literature, armed services, religion and academia.

Mr. Speaker, I ask the House of Representatives to join me in commending the members of the Mu Lambda Chapter of Alpha Phi Alpha, past and present, for their bond of friendship, common ideals and beliefs, and service to their community and in expressing our best wishes for the Mu Lambda Chapter's continued growth and success.

Daily Digest

Senate

Chamber Action

Routine Proceedings, pages S4567–S4607

Measures Introduced: Nineteen bills and four resolutions were introduced, as follows: S. 2836–2854, and S. Res. 349–352. **Pages S4589–90**

Measures Passed:

National Service Dog Day: Committee on Health, Education, Labor, and Pensions was discharged from further consideration of S. Res. 238, expressing support for recognizing September 20 as National Service Dog Day, and the resolution was then agreed to, after agreeing to the following amendment proposed thereto: **Pages S4606–07**

Reed (for Tester) Amendment No. 1261, to amend the preamble. **Pages S4606–07**

National Lobster Day: Senate agreed to S. Res. 351, designating September 25, 2023, as ''National Lobster Day''. **Page S4607**

National Childhood Cancer Awareness Month: Senate agreed to S. Res. 352, designating September 2023 as ''National Childhood Cancer Awareness Month''. **Page S4607**

Measures Considered:

Military Construction, Veterans Affairs, and Related Agencies Appropriations Act—Agreement: Senate continued consideration of H.R. 4366, making appropriations for military construction, the Department of Veterans Affairs, and related agencies for the fiscal year ending September 30, 2024, taking action on the following amendments and motions proposed thereto: **Pages S4572–82**

Pending:

Schumer (for Murray/Collins) Amendment No. 1092, in the nature of a substitute. **Page S4572**

Murray Amendment No. 1205 (to Amendment No. 1092), to change the effective date. **Page S4572**

Murray motion to suspend Rule XVI for the consideration of Schumer (for Murray/Collins) Amendment No. 1092 (listed above) to the bill. **Page S4572**

Schumer motion to commit the bill to the Committee on Appropriations, with instructions, Schumer Amendment No. 1230, to change the effective date. **Page S4572**

A unanimous-consent agreement was reached providing for further consideration of the bill at approximately 10 a.m., on Wednesday, September 20, 2023; and that the motion to invoke cloture with respect to the Murray motion to suspend Rule XVI for the consideration of Schumer (for Murray/Collins) Amendment No. 1092 (listed above), ripen at 12:15 p.m. **Page S4607**

Nominations Confirmed: Senate confirmed the following nominations:

By 53 yeas to 44 nays (Vote No. EX. 230), Vernon D. Oliver, of Connecticut, to be United States District Judge for the District of Connecticut. **Pages S4567–71**

By 52 yeas to 45 nays (Vote No. EX. 232), Rita F. Lin, of California, to be United States District Judge for the Northern District of California. **Page S4572**

During consideration of this nomination today, Senate also took the following action:

By 52 yeas to 45 nays (Vote No. EX. 231), Senate agreed to the motion to close further debate on the nomination. **Pages S4571–72**

Nominations Received: Senate received the following nominations:

Jennifer L. Fain, of Virginia, to be Inspector General, Federal Deposit Insurance Corporation.

Stuart Alan Levey, of Maryland, to be a Member of the Board of Directors of the Millennium Challenge Corporation for a term of three years.

Christopher H. Schroeder, of North Carolina, to be a Member of the Board of Trustees of the James Madison Memorial Fellowship Foundation for a term expiring October 3, 2024.

Christopher H. Schroeder, of North Carolina, to be a Member of the Board of Trustees of the James Madison Memorial Fellowship Foundation for a term expiring October 3, 2030.

Daryle Williams, of California, to be a Member of the National Council on the Humanities for a term expiring January 26, 2024, Shelly Colleen Lowe, term expired.

Routine lists in the Air Force and Army. Page S4607

Messages from the House: Page S4585

Measures Referred: Page S4585

Executive Communications: Pages S4585–86

Petitions and Memorials: Pages S4586–89

Additional Cosponsors: Pages S4590–92

Statements on Introduced Bills/Resolutions: Pages S4592–99

Additional Statements: Pages S4582–85

Amendments Submitted: Pages S4599–S4606

Notices of Intent: Page S4606

Authorities for Committees to Meet: Pages S4606–07

Record Votes: Three record votes were taken today. (Total—232) Pages S4571–72

Adjournment: Senate convened at 10 a.m. and adjourned at 7:52 p.m., until 10 a.m. on Wednesday, September 20, 2023. (For Senate's program, see the remarks of the Acting Majority Leader in today's Record on page S4607.)

Committee Meetings

(Committees not listed did not meet)

APPROPRIATIONS: FCC

Committee on Appropriations: Subcommittee on Financial Services and General Government concluded a hearing to examine proposed budget estimates and justification for fiscal year 2024 for the Federal Communications Commission, after receiving testimony from Jessica Rosenworcel, Chairwoman, Federal Communications Commission.

AGING IN PLACE

Committee on Finance: Subcommittee on Health Care concluded a hearing to examine aging in place, focusing on the vital role of home health in access to care, after receiving testimony from Carrie Edwards, Mary Lanning Healthcare, Hastings, Nebraska; Judith A. Stein, Center for Medicare Advocacy, Willimantic, Connecticut; Tracy M. Mroz, University of Washington, Seattle; William A. Dombi, National Association for Home Care and Hospice, Washington, D.C.; and David C. Grabowski, Harvard Medical School Department of Health Care Policy, Boston, Massachusetts.

ADVANCED TECHNOLOGY

Committee on Homeland Security and Governmental Affairs: Subcommittee on Emerging Threats and Spending Oversight concluded a hearing to examine advanced technology, focusing on threats to national security, after receiving testimony from Gregory C. Allen, Center for Strategic and International Studies Wadhwani Center for AI and Advanced Technologies, and Dewey Murdick, Center for Security and Emerging Technology, both of Washington, D.C.; and Jeff Alstott, RAND Corporation, Arlington, Virginia.

CHAPTER 11 BANKRUPTCY

Committee on the Judiciary: Committee concluded a hearing to examine corporate manipulation of Chapter 11 bankruptcy, after receiving testimony from Erik Haas, Johnson and Johnson, Armonk, New York; Melissa B. Jacoby, University of North Carolina, Chapel Hill; Stephen E. Hessler, Sidley Austin LLP, New York, New York; Samir D. Parikh, Lewis and Clark Law School, Portland, Oregon; and Lori Knapp, Greeneville, Tennessee.

ARTIFICIAL INTELLIGENCE

Select Committee on Intelligence: Committee concluded a hearing to examine advancing intelligence in the era of Artificial Intelligence, focusing on addressing the national security implications of AI, after receiving testimony from Benjamin Jensen, CSIS, Burke, Virginia; Jeffrey Ding, George Washington University, Washington, D.C.; and Yann LeCun, Meta, New York, New York.

House of Representatives

Chamber Action

Public Bills and Resolutions Introduced: 27 public bills, H.R. 14, 5555–5580; and 4 resolutions, H. Res. 700–703, were introduced. Pages H4406–08

Additional Cosponsors: Pages H4409–10

Reports Filed: Reports were filed today as follows:

H. Res. 699, providing for consideration of the bill (H.R. 1130) to repeal restrictions on the export and import of natural gas; providing for consideration of the resolution (H. Res. 684) condemning the actions of Governor of New Mexico, Michelle

Lujan Grisham, for subverting the Second Amendment to the Constitution and depriving the citizens of New Mexico of their right to bear arms; and providing for consideration of the bill (H.R. 5525) making continuing appropriations for fiscal year 2024, and for other purposes (H. Rept. 118–201); and

H.R. 3511, to amend the Small Business Act to require training on increasing contract awards to small business concerns owned and controlled by service-disabled veterans, and for other purposes (H. Rept. 118–202). **Pages H4405–06**

Speaker: Read a letter from the Speaker wherein he appointed Representative Cline to act as Speaker pro tempore for today. **Page H4385**

Recess: The House recessed at 10:43 a.m. and reconvened at 12 p.m. **Page H4390**

Recess: The House recessed at 1:23 p.m. and reconvened at 2:25 p.m. **Page H4401**

National Defense Authorization Act for Fiscal Year 2024—Motion to go to Conference: The House agreed to the Rogers (AL) motion to take from the Speakers table the bill H.R. 2670, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense and for military construction, and for defense activities of the Department of Energy, and to prescribe military personnel strengths for such fiscal year, and ask for its immediate consideration in the House; disagree to the Senate amendment and request a conference with the Senate thereon, by a yea-and-nay vote of 393 yeas to 27 nays, Roll No. 395. **Pages H4401–03**

Agreed to the Rogers (AL) motion to close portions of the conference by a yea-and-nay vote of 401 yeas to 19 nays, Roll No. 396. **Page H4402**

Preserving Choice in Vehicle Purchases Act and Department of Defense Appropriations Act, 2024—Rule for Consideration: The House failed to agreed to H. Res. 680, providing for consideration of the bill (H.R. 1435) to amend the Clean Air Act to prevent the elimination of the sale of internal combustion engines, and providing for consideration of the bill (H.R. 4365) making appropriations for the Department of Defense for the fiscal year ending September 30, 2024, by a recorded vote of 212 ayes to 214 noes, Roll No. 398, after the previous question was ordered by a yea-and-nay vote of 217 yeas to 209 nays, Roll No. 397.

Pages H4392–H4401, H4403–04

Suspension—Proceedings Resumed: The House agreed to suspend the rules and pass the following measure. Consideration began Monday, September 18th. Amending title 38, United States Code, to strengthen benefits for children of Vietnam veterans born with spina bifida: S. 112, to amend title 38, United States Code, to strengthen benefits for children of Vietnam veterans born with spina bifida, by a yea-and-nay vote of 422 yeas with none voting "nay", Roll No. 399. **Pages H4404–05**

National Defense Authorization Act for Fiscal Year 2024—Appointment of Conferees: Without objection, the Chair appointed the following conferees on H.R. 2670, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense and for military construction, and for defense activities of the Department of Energy, and to prescribe military personnel strengths for such fiscal year: **Page H4405**

From the Committee on Armed Services, for consideration of the House bill and the Senate amendment, and modifications committed to conference: Representatives Rogers (AL), Wilson (SC), Lamborn, Wittman, Austin Scott (GA), Stefanik, DesJarlais, Kelly (MS), Gallagher, Gaetz, Bacon, Banks, Bergman, Waltz, Johnson (LA), McClain, Jackson (TX), Fallon, Gimenez, Mace, Greene (GA), Smith (WA), Courtney, Garamendi, Norcross, Gallego, Moulton, Carbajal, Khanna, Keating, Kim (NJ), Houlahan, Slotkin, Sherrill, and Escobar. **Page H4405**

From the Permanent Select Committee on Intelligence, for consideration of matters within the jurisdiction of that committee under clause 11 of rule X: Representatives Turner, Wenstrup, and Himes. **Page H4405**

From the Committee on Education and the Workforce, for consideration of secs. 636, 651–55, 658–61, 1041, and 1042 of the House bill and secs. 303, 563, 592, 593, 1079, 1090K, 1099JJ, 1726, and 3142 of the Senate amendment and modifications committed to conference: Representatives Foxx, Owens, and Scott (VA). **Page H4405**

From the Committee on Energy and Commerce, for consideration of secs. 224, 749, and 3121 of the House bill, and secs. 314, 712 of division A, 1087, 1088, 1090A, 1090G, 1099II, 3122–24, 3143, 3144, 6074, 8141, and sec. 11009 of division J of the Senate amendment and modifications committed to conference: Representatives Carter (GA), Pfluger, and Pallone. **Page H4405**

From the Committee on Financial Services, for consideration of subtitle J of title X of division A, sec. 1086, title LXVIII of division F, division I, and division J of the Senate amendment, and modifications committed to conference: Representatives McHenry, Luetkemeyer, and Waters. **Page H4405**

From the Committee on Foreign Affairs, for consideration of secs. 217, 1009, 1080K, 1210, 1211, 1213, 1214, 1216, 1220, 1220A, 1220C, 1220G, 1220K, 1220L, 1221–24, 1234, 1245, 1250, 1310L, 1505, and 1883 of the House bill, and secs. 212,

1085, 1302, 1397, 1399B, 1399D, 1399E, 1399F, 1399I, 1399J, 1399K, 1399L, subtitles H–K of title XIII of division A, secs. 1634, 6031, 6242, 6293, division F, and secs. 11104 and 11105 of the Senate amendment and modifications committed to conference: Representatives McCaul, McCormick, and Meeks. Page H4405

From the Committee on the Judiciary, for consideration of secs. 542, 822, 1049, 1689, and 3116 of the House bill, and secs. 1041, 1090H, subtitles I and K of title X of division A, subtitle I of title XIII of division A, secs. 6031, 6075, 6082, 6084, subtitle H of title LX of division E, secs. 6813, 6816, 6821, 6831 of division E, secs. 9007, 9011, 9012, 9014, and title LXXI of the Senate amendment and modifications committed to conference: Representatives Issa, Lee (FL), and Nadler. Page H4405

From the Committee on Natural Resources, for consideration of secs. 261, 510, 1853, 1865, 2843, 2844, 2847, and 3515 of the House bill, and secs. 312, 1041, 1090G, 2805, 6711, 11002 of division J, division K, and sec. 11341 of the Senate amendment and modifications committed to conference: Representatives Carl, Hageman, and Grijalva. Page H4405

From the Committee on Oversight and Accountability, for consideration of secs. 364, 834, 891, 899C, 921, 922, 1047, 1101–10, 1116–18, 1122, 1221, 1222, 1521, 1523, 1805, and 1880 of the House bill, and secs. 537, 867, subtitle H of title X of division A, secs. 1201–03, 1206–09, 1211–13, 1215, 1512, 11133, 6101, 6202, 6203, 6607, sec. 6831 of division E, 8141, 9005, 11331–33, and secs. 601, 603, 605, 703, 704, 715–18, 802, and 1001 of division M, and secs. 11001 and 11002 of division L of the Senate amendment and modifications committed to conference: Representatives Grothman, Perry, and Raskin. Page H4405

From the Committee on Science, Space, and Technology, for consideration of secs. 886, 1608, 1875, and 1879 of the House bill, and secs. 308, 845, 1090E, 1090G, 3144, 5204, and title X of division M of the Senate amendment, and modifications committed to conference: Representatives Mike Garcia (CA), Collins, and Lofgren. Page H4405

From the Committee on Small Business, for consideration of secs. 223, 853, 881, 882, 884, and 886 of the House bill, and secs. 141, 823, 831, 841–45, 849–52, and 5841 of the Senate amendment, and modifications committed to conference: Representatives Molinaro, Alford, and Velázquez. Page H4405

From the Committee on Transportation and Infrastructure, for consideration of secs. 315, 707, 723, 866, 1602, 1608, 1804, 1854, 3501, 3511–13, 3515, 3531, and 3533 of the House bill, and secs. 314, 1083, 1090D, 1399N, 1606, 1644, 2814, title XXXV of division C, secs. 6079, 6226, 8141, and division H of the Senate amendment, and modifications committed to conference: Representatives Graves (MO), Webster (FL), and Larsen (WA). Page H4405

From the Committee on Veterans' Affairs, for consideration of secs. 571, 572, 579, 1118, 1413, 1733, and 1885 of the House bill, and secs. 1084, 1090B, 1521, 1833, 1852, 6071, 6077, and 11020 of the Senate amendment, and modifications committed to conference: Representatives Bost, Luttrell, and Takano. Page H4405

Quorum Calls Votes: Four yea-and-nay votes and one recorded vote developed during the proceedings of today and appear on pages H4401, H4402, H4403, H4403–04, and H4404–05.

Adjournment: The House met at 10 a.m. and adjourned at 3:54 p.m.

Committee Meetings

DEFENSE COOPERATION WITH TAIWAN

Committee on Armed Services: Full Committee held a hearing entitled "Defense Cooperation with Taiwan". Testimony was heard from Ely Ratner, Assistant Secretary of Defense for Indo-Pacific Security Affairs, Department of Defense; Mira Resnick, Deputy Assistant Secretary of State for Regional Security, Department of State; and Major General Joseph McGee, U.S. Army, Vice Director for Strategy, Plans, and Policy, J–5, Joint Staff, Department of Defense.

ACADEMIC FREEDOM UNDER ATTACK: LOOSENING THE CCP'S GRIP ON AMERICA'S CLASSROOMS

Committee on Education and Workforce: Subcommittee on Early Childhood, Elementary, and Secondary Education held a hearing entitled "Academic Freedom Under Attack: Loosening the CCP's Grip on America's Classrooms". Testimony was heard from Ryan Walters, State Superintendent of Public Instruction, Oklahoma State Department of Education; and public witnesses.

EXAMINING POLICIES TO IMPROVE SENIORS' ACCESS TO INNOVATIVE DRUGS, MEDICAL DEVICES, AND TECHNOLOGY

Committee on Energy and Commerce: Subcommittee on Health held a hearing entitled "Examining Policies to Improve Seniors' Access to Innovative Drugs, Medical Devices, and Technology". Testimony was heard from Dora Hughes, M.D., Acting Director, Center for Clinical Standards and Quality, Acting Chief Medical Officer, U.S. Centers for Medicare and Medicaid Services, Department of Health and

Human Services; and John Dicken, Director, Health Care—Public and Private Markets, Government Accountability Office.

PROTECTING AMERICAN MANUFACTURING: EXAMINING EPA'S PM2.5 PROPOSED RULE

Committee on Energy and Commerce: Subcommittee on Environment, Manufacturing, and Critical Materials held a hearing entitled "Protecting American Manufacturing: Examining EPA's PM2.5 Proposed Rule". Testimony was heard from Bryce C. Bird, Director, Division of Air Quality, Department of Environmental Quality, Utah; and public witnesses.

MEMBER DAY HEARING

Committee on Energy and Commerce: Full Committee held a hearing entitled "Member Day Hearing". Testimony was heard from Chairman Westerman, Chairman Green of Tennessee, and Representatives DelBene, Newhouse, Davis of North Carolina, Grothman, Levin, Santos, McClain, Williams of New York, Spartz, Landsman, Moylan, Carey, Casten, Chavez-DeRemer, Ezell, James, Houchin, Molinaro, Khanna, and Baird.

OVERSIGHT OF THE SEC'S DIVISION OF INVESTMENT MANAGEMENT

Committee on Financial Services: Subcommittee on Capital Markets held a hearing entitled "Oversight of the SEC's Division of Investment Management". Testimony was heard from William Birdthistle, Director of Division of Investment Management, Securities and Exchange Commission.

A HOLISTIC REVIEW OF REGULATORS: REGULATORY OVERREACH AND ECONOMIC CONSEQUENCES

Committee on Financial Services: Subcommittee on Financial Institutions and Monetary Policy held a hearing entitled "A Holistic Review of Regulators: Regulatory Overreach and Economic Consequences". Testimony was heard from public witnesses.

EFFORTS TO ADDRESS RITUAL ABUSE AND SACRIFICE IN AFRICA

Committee on Foreign Affairs: Subcommittee on Global Health, Global Human Rights, and International Organizations held a hearing entitled "Efforts to Address Ritual Abuse and Sacrifice in Africa". Testimony was heard from public witnesses.

EVALUATING CISA'S FEDERAL CIVILIAN EXECUTIVE BRANCH CYBERSECURITY PROGRAMS

Committee on Homeland Security: Subcommittee on Cybersecurity and Infrastructure Protection held a hearing entitled "Evaluating CISA's Federal Civilian Executive Branch Cybersecurity Programs". Testimony was heard from public witnesses.

OVERSIGHT OF UNITED STATES CAPITOL SECURITY: ASSESSING SECURITY FAILURES ON JANUARY 6, 2021

Committee on House Administration: Subcommittee on Oversight held a hearing entitled "Oversight of United States Capitol Security: Assessing Security Failures on January 6, 2021". Testimony was heard from a public witness.

EXAMINING PROPOSED CONSTITUTIONAL AMENDMENTS

Committee on the Judiciary: Subcommittee on the Constitution and Limited Government held a hearing entitled "Examining Proposed Constitutional Amendments". Testimony was heard from public witnesses.

EXAMINING BARRIERS TO ACCESS IN FEDERAL WATERS: A CLOSER LOOK AT THE MARINE SANCTUARY AND MONUMENT SYSTEM

Committee on Natural Resources: Subcommittee on Oversight and Investigations held a hearing entitled "Examining Barriers to Access in Federal Waters: A Closer Look at the Marine Sanctuary and Monument System". Testimony was heard from Jainey Bavishi, Assistant Secretary of Commerce for Oceans and Atmosphere, National Oceanic and Atmospheric Administration, Department of Commerce; and public witnesses.

EXAMINING THE BIDEN ADMINISTRATION'S MISMANAGEMENT OF THE FEDERAL ONSHORE OIL AND GAS PROGRAM

Committee on Natural Resources: Subcommittee on Energy and Mineral Resources held a hearing entitled "Examining the Biden Administration's Mismanagement of the Federal Onshore Oil and Gas Program". Testimony was heard from Mike Nedd, Deputy Director, Bureau of Land Management, Department of the Interior; and public witnesses.

LEGISLATIVE MEASURES

Committee on Natural Resources: Subcommittee on Federal Lands held a hearing on H.R. 1657, the "Lake Winnibigoshish Land Exchange Act of 2023"; H.R. 3107, the "Improving Outdoor Recreation Coordination Act"; H.R. 3200, the "Gateway Community and Recreation Enhancement Act"; and H.R. 4984, the "D.C. Robert F. Kennedy Memorial Stadium Campus Revitalization Act". Testimony was heard from Representatives Stauber and Neguse; Mike

Reynolds, Deputy Director, Congressional and External Relations, National Park Service, Department of the Interior; Jacqueline Emanuel, Associate Deputy Chief, National Forest System, U.S. Forest Service, Department of Agriculture; Cory Smith, Commissioner, District 1, Itasca County, Minnesota; Randy Brodehl, Commissioner, Flathead County, Kalispell, Montana; Delano Hunter, Acting Director, Department of General Services, Washington D.C.; and a public witness.

THE ROLE OF PHARMACY BENEFIT MANAGERS IN PRESCRIPTION DRUG MARKETS PART II: NOT WHAT THE DOCTOR ORDERED

Committee on Oversight and Accountability: Full Committee held a hearing entitled ''The Role of Pharmacy Benefit Managers in Prescription Drug Markets Part II: Not What the Doctor Ordered''. Testimony was heard from public witnesses.

BIDENOMICS: A PERFECT STORM OF SPENDING, DEBT, AND INFLATION

Committee on Oversight and Accountability: Subcommittee on Economic Growth, Energy Policy, and Regulatory Affairs held a hearing entitled ''Bidenomics: A Perfect Storm of Spending, Debt, and Inflation''. Testimony was heard from public witnesses.

CHIPS ON THE TABLE: A ONE YEAR REVIEW OF THE CHIPS AND SCIENCE ACT

Committee on Science, Space, and Technology: Full Committee held a hearing entitled ''Chips on the Table: A One Year Review of the Chips and Science Act''. Testimony was heard from Gina M. Raimondo, Secretary, Department of Commerce.

FEMA: THE CURRENT STATE OF DISASTER READINESS, RESPONSE, AND RECOVERY

Committee on Transportation and Infrastructure: Subcommittee on Economic Development, Public Buildings, and Emergency Management held a hearing entitled ''FEMA: The Current State of Disaster Readiness, Response, and Recovery''. Testimony was heard from Deanne Criswell, Administrator, Federal Emergency Management Agency, Department of Homeland Security.

USE AND REGULATION OF AUTONOMOUS AND EXPERIMENTAL MARITIME TECHNOLOGIES

Committee on Transportation and Infrastructure: Subcommittee on Coast Guard and Maritime Transportation held a hearing entitled ''Use and Regulation of Autonomous and Experimental Maritime Technologies''. Testimony was heard from Rear Admiral Wayne R. Arguin, Jr., Assistant Commandant for Prevention Policy (CG–5P), U.S. Coast Guard; Rear Admiral Todd Wiemers, Assistant Commandant for Capability (CG–7), U.S. Coast Guard; and public witnesses.

VA'S FEDERAL SUPREMACY INITIATIVE: PUTTING VETERANS FIRST?

Committee on Veterans' Affairs: Subcommittee on Health held a hearing entitled ''VA's Federal Supremacy Initiative: Putting Veterans First?''. Testimony was heard from Erica Scavella, M.D., Assistant Under Secretary for Health for Clinical Services, Chief Medical Officer, Veterans Health Administration, Department of Veterans Affairs; and public witnesses.

REDUCED CARE FOR PATIENTS: FALLOUT FROM FLAWED IMPLEMENTATION OF SURPRISE MEDICAL BILLING PROTECTIONS

Committee on Ways and Means: Full Committee held a hearing entitled ''Reduced Care for Patients: Fallout from Flawed Implementation of Surprise Medical Billing Protections''. Testimony was heard from public witnesses.

CIA INVESTIGATION UPDATE

Permanent Select Committee on Intelligence: Subcommittee on Central Intelligence Agency held a hearing entitled ''CIA Investigation Update''. This hearing was closed.

Joint Meetings

No joint committee meetings were held.

COMMITTEE MEETINGS FOR WEDNESDAY, SEPTEMBER 20, 2023

(Committee meetings are open unless otherwise indicated)

Senate

Committee on Banking, Housing, and Urban Affairs: to hold hearings to examine artificial intelligence in financial services, 10 a.m., SD–538.

Subcommittee on Economic Policy, to hold hearings to examine child care since the pandemic, focusing on macroeconomic impacts of public policy measures, 2 p.m., SD–538.

Committee on the Budget: to hold hearings to examine public investment, 10 a.m., SD–608.

Committee on Commerce, Science, and Transportation: to hold hearings to examine the nominations of Rebecca Kelly Slaughter, of Maryland, Melissa Holyoak, of Utah, and Andrew N. Ferguson, of Virginia, each to be a Federal Trade Commissioner, and Douglas Dziak, of Virginia, to be a Commissioner of the Consumer Product Safety Commission, 10 a.m., SR–253.

Committee on Energy and Natural Resources: Subcommittee on Water and Power, to hold hearings to examine drought impacts on drinking water access and water availability, 2:30 p.m., SD–366.

Committee on Environment and Public Works: Subcommittee on Fisheries, Water, and Wildlife, to hold hearings to examine drinking water infrastructure and tribal communities, 2:30 p.m., SD–406.

Committee on Foreign Relations: business meeting to consider the nominations of James C. O'Brien, of Nebraska, to be an Assistant Secretary (European and Eurasian Affairs), Dennis B. Hankins, of Minnesota, to be Ambassador to the Republic of Haiti, Nathalie Rayes, of Massachusetts, to be Ambassador to the Republic of Croatia, and Tobin John Bradley, of California, to be Ambassador to the Republic of Guatemala, all of the Department of State, and other pending nominations, 10:45 a.m., S–116, Capitol.

Committee on the Judiciary: Subcommittee on Federal Courts, Oversight, Agency Action, and Federal Rights, to hold hearings to examine restoring transparency and accountability in the accommodation process, 2:45 p.m., SD–226.

Committee on Veterans' Affairs: to hold hearings to examine improving mental health and suicide prevention measures for our Nation's veterans, 3:30 p.m., SR–418.

House

Committee on Armed Services, Subcommittee on Cyber, Information Technologies, and Innovation, hearing entitled ''Industry Perspectives on Defense Innovation and Deterrence'', 9 a.m., 2212 Rayburn.

Subcommittee on Military Personnel, hearing entitled ''Meritocracy in the Military Services: Accession, Promotion, and Command Selection'', 1 p.m., 2212 Rayburn.

Committee on the Budget, Full Committee, markup on legislation on the Concurrent Resolution on the Budget for Fiscal Year 2024, 10 a.m., 210 Cannon.

Committee on Education and Workforce, Subcommittee on Higher Education and Workforce Development, hearing entitled ''Strengthening WIOA: Improving Outcomes for Jobseekers, Employers, and Taxpayers'', 10:15 a.m., 2175 Rayburn.

Committee on Energy and Commerce, Subcommittee on Energy, Climate, and Grid Security, hearing entitled ''American Hydropower: Unleashing Reliable, Renewable, Clean Power Across the U.S.'', 10 a.m., 2123 Rayburn.

Subcommittee on Innovation, Data, and Commerce, hearing entitled ''Mapping America's Supply Chains: Solutions to Unleash Innovation, Boost Economic Resilience, and Beat China'', 10:30 a.m., 2322 Rayburn.

Subcommittee on Oversight and Investigations, hearing entitled ''At What Cost: Oversight of How the IRA's Price Setting Scheme Means Fewer Cures for Patients'', 2 p.m., 2123 Rayburn.

Committee on Financial Services, Full Committee, markup on H.R. 3378, the ''Agricultural Security Risk Review Act''; H.R. 5409, the ''Safeguarding American Farms from Foreign Influence Act''; H.R. 760, the ''Chinese Military and Surveillance Company Sanctions Act''; H.R. 5472, the ''FinCEN Oversight and Accountability Act of 2023''; H.R. 5485, the ''Financial Privacy Act of 2023''; H.R. 5119, the ''Protect Small Business and Prevent Illicit Financial Activity Act''; H.R. 5557, the ''Combatting Foreign Surveillance Spyware Sanctions Act''; legislation on the Financial Access Improvements Act; legislation on the Russia and Belarus Financial Sanctions Act of 2023; legislation on the Foreign Affiliates Sharing Pilot Program Extension Act; H.R. 3402, the ''Power of the Mint Act''; H.R. 5403, the ''CBDC Anti-Surveillance State Act''; H.R. 3712, the ''Digital Dollar Pilot Prevention Act'', 10 a.m., 2128 Rayburn.

Committee on Homeland Security, Full Committee, hearing entitled ''The Financial Costs of Mayorkas' Open Border'', 10 a.m., 310 Cannon.

Committee on House Administration, Full Committee, hearing entitled ''Oversight of the Federal Election Commission'', 10:15 a.m., 1310 Longworth.

Committee on the Judiciary, Full Committee, hearing entitled ''Oversight of the U.S. Department of Justice'', 10 a.m., 2141 Rayburn.

Subcommittee on Courts, Intellectual Property, and the Internet, hearing entitled ''IP and Strategic Competition with China: Part III—IP Theft, Cybersecurity, and AI'', 3 p.m., 2141 Rayburn.

Committee on Natural Resources, Full Committee, markup on H.R. 929, the ''Puyallup Tribe of Indians Land Into Trust Confirmation Act of 2023''; H.R. 934, to require the Secretary of Agriculture to carry out activities to suppress wildfires, and for other purposes; H.R. 1786, the ''GROW Act''; H.R. 3448, the ''American Battlefield Protection Program Enhancement Act''; H.R. 4051, the ''SHARKED Act''; and H.R. 4596, the ''Upper Colorado and San Juan River Basins Endangered Fish Recovery Programs Reauthorization Act of 2023'', 10:15 a.m., 1324 Longworth.

Committee on Oversight and Accountability, Full Committee, markup on H.R. 4984, the ''D.C. Robert F. Kennedy Memorial Stadium Campus Revitalization Act''; H.R. 5040, the ''Cannabis Users' Restoration of Eligibility Act''; legislation on the Modernizing Government Technology Reform Act; H.R. 4428, the ''Guidance Clarity Act of 2023''; legislation on the Safe and Smart Federal Purchasing Act of 2023; and several postal naming measures, 10 a.m., 2154 Rayburn.

Committee on Science, Space, and Technology, Subcommittee on Investigations and Oversight, hearing entitled ''A Bar Too High: Concerns with CEQ's Proposed Regulatory Hurdle for Federal Contracting'', 10 a.m., 2318 Rayburn.

Committee on Small Business, Full Committee, hearing entitled ''Athletes and Innovators: Analyzing NIL's Impact on Entrepreneurial Collegiate Athletes'', 10 a.m., 2360 Rayburn.

Committee on Transportation and Infrastructure, Full Committee, hearing entitled ''Oversight of the Department of Transportation's Policies and Programs'', 10 a.m., 2167 Rayburn.

Committee on Veterans' Affairs, Subcommittee on Economic Opportunity, hearing entitled ''Less is More: The Impact of Bureaucratic Red Tape on Veterans Education Benefits'', 10 a.m., 360 Cannon.

Subcommittee on Oversight and Investigations, hearing entitled ''VA Procurement: Made in America'', 3 p.m., 360 Cannon.

Committee on Ways and Means, Subcommittee on Trade, hearing entitled ''Reforming the Generalized System of Preferences to Safeguard U.S. Supply Chains and Combat China'', 2 p.m., 1100 Longworth.

Joint Meeting

Commission on Security and Cooperation in Europe: to hold hearings to examine Putin's personal prisoner Vladimir Kara-Murza, 2 p.m., 2200, Rayburn Building.

Joint Economic Committee: to hold hearings to examine growing the economy of the future, focusing on job training for the clean energy transition, 2:15 p.m., SH–216.

Next Meeting of the **SENATE**

10 a.m., Wednesday, September 20

Senate Chamber

Program for Wednesday: Senate will continue consideration of H.R. 4366, Military Construction, Veterans Affairs, and Related Agencies Appropriations Act, and vote on the Murray motion to suspend Rule XVI for the consideration of Schumer (for Murray/Collins) Amendment No. 1092, in the nature of a substitute, at 12:15 p.m.

(Senate will recess from 5 p.m. until 6:15 p.m. for an all-Senators briefing.)

Next Meeting of the **HOUSE OF REPRESENTATIVES**

10 a.m., Wednesday, September 20

House Chamber

Program for Wednesday: To be announced.

Extensions of Remarks, as inserted in this issue

HOUSE

Allred, Colin Z., Tex., E861
Gallego, Ruben, Ariz., E862
Harshbarger, Diana, Tenn., E861, E862
LaHood, Darin, Ill., E861, E863
McGovern, James P., Mass., E862
Morelle, Joseph D., N.Y., E862
Norton, Eleanor Holmes, The District of Columbia, E863
Scott, Robert ''Bobby'', Va., E862
Sherman, Brad, Calif., E861
Swalwell, Eric, Calif., E861

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